Japanese fliers shot down over Pearl Harbor were wearing class rings of the University of Hawaii and Honolulu High School. The paper even claimed that a Japanese resident painted himself green and "camouflaged himself so he could hide in the foliage and aid attacking Japs."

As reports of Pearl Harbor "treachery" proliferated, West Coast politicians stoked the fires of anti-Japanese prejudice and began clamoring for the removal of Japanese immigrants and citizens. In California, Congressman Leland Ford, Mayor Fletcher Bowron of Los Angeles, Governor Culbert Olson, and California Attorney General Earl Warren demanded that Washington take action to protect the West Coast from "Jap" spies. The advocates of internment found a receptive audience in the commander of the Western Defense Command, Lieutenant General John L. DeWitt. In charge of protecting West Coast security, DeWitt was more impressed by the dire warnings of California politicians and Allen Gullion, provost marshal general for the army, than by reports from Naval Intelligence, the FBI, and the Army General Staff dismissing any threat of sabotage, espionage, or invasion.

On February 14, 1942, DeWitt sent a memo to Secretary of War Henry Stimson recommending the removal of all immigrants and citizens of Japanese ancestry from the West Coast. DeWitt's memo declared, "The Japanese race is an enemy race," and "racial affinities are not severed by migration." Even second- and third-generation Japanese Americans who were citizens and "Americanized" could not be trusted, according to DeWitt, because "the racial strains are undiluted." Taking for granted that all "Japs" were disloyal, DeWitt concluded that the "very fact that no sabotage has taken place to date" was a "disturbing and confirming indication that such action will be taken."

Why did Washington accept DeWitt's recommendation? Members of the government who knew there was no need to remove Japanese Americans mounted a tepid response to the advocates of internment. FBI director J. Edgar Hoover wrote a memo to Attorney General Francis Biddle noting that the public hysteria was groundless. Biddle argued against mass exclusion at a luncheon conference with President Roosevelt. But neither one publicized their objections or criticized plans for mass removal on constitutional grounds. Once it became clear that the War Department and the president supported DeWitt's request, Biddle even proceeded to help implement the plans for mass removal.

President Roosevelt accepted Secretary of War Stimson's advice to endorse DeWitt's plans and ignored the advice of his own intelligence specialists.

Instead, Roosevelt signed Executive Order 9066 on February 19, 1942, authorizing the War Department to designate military areas from which "any and all persons may be excluded." Although this order never specifically named Japanese Americans, it soon became clear that they would be the only group targeted for mass removal. DeWitt also wanted to exclude German and Italian "enemy aliens" from the West Coast, but his civilian superiors at the War Department overruled him.

Individuals of Japanese ancestry in Hawaii were spared from mass exclusion despite the fact that the islands were more vulnerable to an invasion than the West Coast. The 158,000 people of Japanese ancestry in Hawaii were, however, viewed with suspicion and suffered special restrictions under martial law.

"Enemy aliens" in Hawaii were required to carry a registration card at all times and endured travel and work limitations. Almost fifteen hundred "suspects" of Japanese ancestry were arrested and interned in camps run by the U.S. Army or the Department of Justice because of their activities within the ethnic community. Yet General DeWitt's counterpart in Hawaii, General Delos Emmons, recognized that Japanese labor was critical to both the civilian and the military economies of the islands. Japanese Americans made up less than 2 percent of the population of the West Coast and could be removed without much difficulty. But removing more than 35 percent of the population of Hawaii not only would be a logistical nightmare but also would cripple many industries needed for the war effort.

DeWitt, by contrast, quickly implemented plans for mass exclusion on the West Coast. At first, he simply ordered Japanese Americans to leave Military Area 1, which consisted of southern Arizona and the western portions of Washington, Oregon, and California. Yet "voluntary evacuation" was short-lived because public officials in the mountain states condemned the prospect of their states becoming "dumping grounds" for California "Japs." If they were too dangerous to roam freely in California, why weren't they too dangerous to let loose in Idaho and Wyoming? With the exception of Governor Ralph Carr of Colorado, the governors of these western states unanimously opposed voluntary migration and urged that Japanese Americans be placed in "concentration camps."

Consequently, at the end of March, "voluntary evacuation" was replaced with what the government called a "planned and systematic evacuation." The government used such euphemisms to mask the fact that immigrants and citizens would be incarcerated behind barbed wire. Even the three thousand Japanese Americans who had moved from Military Area 1 to Military Area 2 in the eastern half of California, based on government assurances that this area would remain a "free zone," were forced into internment camps.

The Internment Camps

The government developed a two-step internment program. Japanese Americans were first transported to one of sixteen "assembly centers" near their homes and then sent to one of ten "relocation centers" in California, Arizona, Utah, Idaho, Wyoming, Colorado, or Arkansas. Most Japanese Americans had less than a week's notice before being uprooted from their homes and community. Instructed to bring only what they could carry, most had little choice but to sell businesses, homes, and prized possessions for a fraction of their value. Internment also disrupted educational and career plans. But for many Japanese Americans, the stigma of suspected disloyalty and the loss of liberty inflicted the deepest wounds. As one internee later recalled, "The most valuable thing I lost was my freedom."

A few Japanese Americans defied DeWitt's orders. Lawyer Minoru Yasui, still outraged by the internment of his father, Masuo Yasui, decided to walk the streets of Portland, Oregon, at night deliberately disobeying the curfew order. After failing to get a policeman to arrest him, he turned himself in at a police station so that

he could contest DeWitt's authority in court. Yasui was soon joined by Gordon Hirabayashi, a twenty-four-year-old University of Washington student, who went to an FBI office to report his refusal to comply with removal orders. The third Japanese American to wage a legal challenge did not initially plan to be a protester. Fred Korematsu had simply wanted to remain in Oakland and San Francisco to be with his Italian American fiancée. But after he was discovered and arrested for violating the Army's exclusion order, Korematsu also decided to battle the government in court. Yasui, Hirabayashi, and Korematsu forced the Supreme Court to consider the constitutionality of the government's curfew and exclusion policies. When the Court affirmed the legality of the "mass evacuation," it established a legal precedent for the wartime removal of a single ethnic group that has never been officially overturned. Only in the case of Mitsuyé Endo did the justices acknowledge a limitation to the government's powers to detain Japanese Americans. On December 18, 1944, the Supreme Court ruled in the Endo case that camp administrators had "no authority to subject citizens who are concededly loyal to its leave restrictions" and made it possible for at least some Japanese Americans to return to the West Coast.

Although a few individuals went to court to fight the removal and detention orders, most Japanese Americans complied with DeWitt's instructions. Few had any idea of their destinations when they were labeled, like luggage, with numbered identification tags at designated departure points in April and early May 1942. Most of the "assembly centers" were located at racetracks and fairgrounds, and many families stayed in hastily converted horse stalls that reeked of manure. Then, at the end of May, they were sent to camps run by the WRA, where barbed wire, watchtowers, and military police reminded them that they were prisoners who could not leave without the administrators' approval. Even those who received permission to leave the camps could not return to the West Coast until the exclusion order was lifted in December 1944.

Most internment camps were located on desert or swamp-like terrain. In some camps, winter temperatures dropped to 35 degrees below zero, and summer temperatures soared as high as 115 degrees. The hot and humid summers in the Arkansas camps bred swarms of chiggers and mosquitoes. The assistant project director at Minidoka, a camp in Idaho, described the camp as "hot, dusty, [and] desolate" and remarked on the "flat land, nothing growing but sagebrush, not a tree in sight." A WRA official noted a common problem in many camps: "a dust storm nearly every day for the first two months.... Fine, choking dust ... swirled over the center. Traffic was sometimes forced to a standstill because there was no visibility."

Facilities differed from camp to camp, but all were spartan. Internees were assigned to a block consisting of fourteen barracks subdivided into four or six rooms. The average room for a family of six measured twenty by twenty-five feet. Privacy within the barracks proved elusive because room dividers often stopped short of the roof. Many internees, especially older women, were mortified by the lack of partitions in the communal bathrooms. Families constantly

battled the dust that seeped through the barracks planks. The WRA supplied only canvas cots, a potbellied stove, and a lightbulb hanging from the ceiling. Resourceful internees later constructed makeshift furniture from scrap lumber and cultivated their own gardens to supplement the unfamiliar and unappetizing food served in the mess halls. Standing in line became an integral part of camp life. The WRA's assistant regional director once reported counting three hundred people waiting outside a mess hall.

At first, no internee could leave the center except for an emergency, and then only if chaperoned by someone not of Japanese ancestry. Regardless of education or training, Japanese American workers were subordinate to WRA personnel and received vastly lower wages of $12, $16, or $19 a month. For example, a WRA librarian might earn $167 a month, whereas her Japanese American staff members were paid only $16 for doing similar work. Moreover, wages and clothing allowances were often delayed, and the WRA failed to fulfill its promise to ship household goods to arriving internees. There were even rumors that WRA staff members at several camps stole food and other supplies.

WRA policies also exacerbated pre-existing tensions between Issei (first-generation) and Nisei (second-generation) community leaders. The government named Nisei leaders in the Japanese American Citizens League (JACL) as representatives of the entire ethnic community. Even though this middle-class, second-generation organization had fewer than eight thousand members before the war, government officials were pleased by JACL ultrapatriotic statements praising "American Democracy," vowing cooperation, and expressing gratitude for benevolent internment policies. Camp administrators accepted JACL advice to limit community government positions to citizens, to ban Japanese-language schools, and to prohibit the use of the Japanese language at public meetings. Whereas JACL leaders believed that cooperation, assimilation, and regaining the right to serve in the military were necessary to combat racism, many disgruntled internees, especially the disempowered Issei, derided JACL leaders as "inu" or dogs who collaborated with the government against the interests of the community.

As hostility toward the WRA grew, some internees vented their anger against JACL leaders suspected of being informers. The arrests of individuals accused of beating up suspected "inu" generated protests against the administration at the Poston and Manzanar Camps at the end of 1942. When the project director at Poston refused to release two men arrested for an attack, internees waged a general strike that shut down most camp services. Deciding to negotiate with the strikers, camp administrators agreed to release one suspect and to try the other within the camp rather than in an Arizona court. In return, strike leaders agreed to try to stop assaults against suspected "inu" and to promote harmony with the administration.

Similar protests at Manzanar, however, ended in bloodshed. The project director summoned the military police to put down a mass demonstration calling for the release of an arrested internee. When the crowd refused to disperse, military police sprayed tear gas, which was ineffective due to the wind. A member of

the crowd started a car and aimed it at the police. While witnesses disagree about whether the police began firing before or after the car was started, all agree that they opened fire directly on the crowd, killing two people and wounding at least nine others. Even after the administration removed JACL leaders from the camp and moved suspected agitators to isolation camps, tensions remained high.

Turmoil enveloped all of the camps in February 1943, when the WRA instituted a loyalty review program with little or no notice and without a clear explanation as to how the information gathered would be used. All internees over the age of seventeen were told to fill out a "leave clearance" application, which included ambiguously worded questions that confused many internees. Ironically, the WRA mistakenly assumed that the internees would be grateful for this expedited "leave clearance" program, which would allow them to move to the Midwest or East and volunteer for military service. JACL leaders had fought for the opportunity to serve in the armed forces and praised the War Department's decision to allow Japanese Americans to volunteer for a segregated combat unit on January 28, 1943. But many other internees resented being asked to shed blood for a country that had imprisoned them.

Unaware of the depth of internee fear and anger, WRA officials were shocked by the controversy generated by two of the questions on the leave application. Question 27 required internees to say whether they were "willing to serve in the armed forces of the United States on combat duty, wherever ordered." Question 28 asked, "Will you swear unqualified allegiance to the United States of America and faithfully defend the United States from any or all attack by foreign or domestic forces, and forswear any form of allegiance or obedience to the Japanese emperor, or any other foreign government, power or organization?" Taking for granted that both questions would be answered positively, the WRA didn't contemplate how foolish it was to ask elderly Issei to serve in combat. Some Nisei suspected that question 28 was designed to trap them into admitting an "allegiance" to the emperor they never had. The injustice of asking immigrants ineligible for American citizenship to become stateless by forswearing "any form of allegiance or obedience to the Japanese emperor" was recognized only belatedly. But even after WRA officials rephrased these questions, some internees still refused to complete the "leave clearance" forms to avoid being forced to resettle. After losing their businesses and property and being told that they could not return to the West Coast, some embittered internees were skeptical that they could start over in predominantly white communities in the Midwest and East.

Although about some 68,000 internees answered the two loyalty questions with an unqualified yes, approximately 5,300 answered "no no" and about 4,600 either refused to answer or qualified their responses. One WRA staff member noted how difficult it was to distinguish

> the No of protest against discrimination, the No of protest against a father interned apart from his family, the No of bitter antagonism to subordinations in the relocation center, the No of a gang sticking

> together, the No of thoughtless defiance, the No of family duty, the No of hopeless confusion, the No of fear of military service, and the No of felt loyalty to Japan.

Far from measuring "loyalty" to the United States or Japan, the questionnaire, another staff member noted, "sorted people chiefly into the disillusioned and the defiant as against the compliant and the hopeful."

Some of "the compliant and the hopeful" followed WRA procedures to leave camp for military service, jobs, or college programs. But of the almost 20,000 men in the camps who were eligible for military service, only 1,200 actually volunteered from behind barbed wire. Later, at the beginning of 1944, the Selective Service began drafting Japanese Americans. More than 300 men refused to comply with the draft while they and their families were still incarcerated. Many of these draft resisters served prison terms of two to four years, but they were pardoned by President Harry Truman in 1947. Other Japanese Americans agreed to offer "proof in blood" of their loyalty to the United States. Ultimately, approximately 23,000 Nisei, more than half from Hawaii, served in the 100th Infantry Battalion, the 442nd Regimental Combat Team, and the Military Intelligence Service during World War II. Fighting seven major campaigns in Italy and France, the 442nd suffered almost 9,500 casualties (300 percent of its original complement) and became the most decorated unit in American military history for its size and length of service.

Other Japanese Americans left the camps through the WRA's "seasonal leave" program, developed in the summer of 1942 to address a shortage of farmworkers. In 1942 and 1943, more than eight thousand internees obtained work release furloughs. The WRA encouraged internees who passed the "loyalty test" to resettle in the interior states after February 1943. By December 1943, the National Japanese American Student Relocation Council was able to place more than two thousand Nisei in colleges in the Midwest and East. Then, on December 17, 1944, officials announced the termination of mass exclusion one day before the Supreme Court declared in the Endo case that the United States could no longer detain loyal citizens against their will. Once allowed to go back home, more than two-thirds of the internee population chose to return to the West Coast.

A significant number of "the disillusioned and the defiant," however, remained in camps even after the war ended in August 1945. The Tule Lake camp in northern California, which had been transformed into a "segregation center" for "disloyals," did not close until March 1946. Approximately one-third of the eighteen thousand residents at Tule Lake were people the WRA deemed "disloyal"; another third were members of their families; and the final third were "Old Tuleans," who, when the camp was designated as a segregation center in 1943, chose to remain with the "disloyals" rather than be forced to move a second time. The combination of this diverse internee population and a repressive administration created an explosive atmosphere at the segregation center. On November 4, 1943, the Army was called in to quell a demonstration, took over the camp, and declared martial law, which remained in effect until January 15, 1944. In the last half of 1944, the WRA allowed "resegregationists," who demanded a separation

of those wanting to leave the United States for Japan and those at Tule Lake for other reasons, to dominate the camp. Using rumors, beatings, and in one case murder, the resegregationists intimidated inmates considered "fence-sitters" or "loyal" to the United States. By the time the WRA brought the camp back under control, seven of every ten adult Nisei had renounced their citizenship.

The Department of Justice received more than 6,000 applications for renunciation of citizenship and approved 5,589 of them. This number represented 12.5 percent of the 70,000 citizens interned during the war. But even before many of these applications were processed, most of the "renunciants" tried to withdraw their requests. In fact, 5,409 citizens attempted to rescind their applications but the government ignored these attempts and proceeded with plans to deport these people to Japan. In August and September 1945, the renunciants who wanted to fight for their citizenship rights organized the Tule Lake Defense Committee and hired attorney Wayne M. Collins to represent them. Collins resisted pressure from the national American Civil Liberties Union to withdraw from the case and spent more than a decade fighting on behalf of the renunciants. In his suit, Collins argued that the Nisei had been coerced into renouncing their citizenship. He said that the government's forced removal and incarceration of Japanese Americans had subjected internees to "inhuman" treatment and extreme duress. To compound this injustice, the government had known about but had done nothing to restrain a small group of Japanese Americans at Tule Lake who terrorized many of the Nisei until they renounced their citizenship. Finally, after fourteen years, citizenship rights were restored to 4,978 Nisei.

Perhaps the most tragic example of "defiance" against the authorities was opposition to the closing of the camps. Instead of celebrating the prospect of freedom, many demoralized internees demanded that the government continue to provide for them or at least increase the amount of assistance given to resettlers. Many were afraid to leave the camps after hearing reports of how Japanese Americans outside of camp were subjected to arson, vandalism, and even gunfire. Many Issei men in their sixties didn't relish the prospect of starting over and felt that they were "entitled to receive compensation from the Government for the losses which they experienced at the time of evacuation." Rejecting these calls for substantive redress, the WRA gave recalcitrant internees $25 and put them on trains back to their hometowns.

Japanese American Citizenship, Loyalty, and the "Kibei Problem" During World War II

MICHAEL JIN

By the eve of the Second World War, thousands of second-generation Japanese Americans (*Nisei*) had lived and traveled outside the United States. Many Nisei had been sent to Japan at young ages by their immigrant parents to be

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Essay by Michael Jin, written for this volume. Reprinted with permission of the author.

raised in the households of their relatives and receive a proper Japanese education. Many Nisei also sought opportunities for employment or higher education in a country that represented an expanding colonial power in Asia especially during the 1930s. Although no official data exist to help determine the exact number of Nisei in Japan before the Pacific War, various sources suggest that about 50,000 Americans of Japanese ancestry spent some of their formative years in Japan. Of these Nisei, 10,000-20,000 returned to the United States before the outbreak of Pearl Harbor and became known as *Kibei* ("returned to America").

The Kibei who returned from Japan before the war and subsequently experienced the wartime incarceration along with the other 110,000 or so Japanese and Japanese Americans from the West Coast have become controversial figures in both the Japanese American community and scholarship. Because of their education in Japan, many Kibei have been stigmatized as pro-Japan elements in the internment camps. Both government and Japanese American Citizens League (JACL) wartime documents reveal that the existence of Kibei was central to shaping the history of Japanese American internment during the critical years of the Pacific War.

The presence of Kibei on the U.S. West Coast served the proponents of the mass incarceration of Japanese Americans within the U.S. government as a justification of the "military necessity" to remove all Nisei from the West Coast without due process of law. For instance, Western Defense Commander John L. Dewitt, who had recommended forced relocation of Japanese Americans under military supervision, found in Kibei convenient scapegoats and used their education in Japan as evidence of their alleged pro-Japan attitudes. In *The Final Report: Japanese Evacuation from the West Coast, 1942*, DeWitt claimed that Kibei were a "homogenous, unassimilated element" with unbreakable "ties of...custom and indoctrination of the enemy" that rendered the entire Japanese American community vulnerable to ideological contamination. This assumption of the Kibei's cultural and ideological homogeneity helped weave racial and military reasoning behind the decision to incarcerate Japanese Americans. When there was no hard evidence of Nisei's potential role as Japanese saboteurs, labeling Kibei as a dangerous pro-Japan element would allow the proponents of the internment to argue that Americans of Japanese ancestry could be a national security threat.

Such extreme distrust of Kibei would shape the debate on Japanese American loyalty throughout the war, and ultimately, the wartime internment policies. Identifying Kibei as a dangerous pro-Japan element became a pressing issue for both government authorities and Japanese American community leaders. The term Kibei simultaneously emerged as a political and cultural construct that would transform the issue of wartime loyalty from a "Japanese problem" to a "Kibei problem." Multiple parties involved in the development of wartime internment policies took part in shaping the "Kibei problem." When the War Relocation Authority (WRA) took over the management of the internment camps in 1942, the agency devoted considerable effort to dealing with the presence of Kibei within the camps. Some of the most vocal and prominent leaders of the emerging Nisei community organization Japanese American Citizens League also targeted Kibei as scapegoats that would help spare the rest of the Nisei from mass evacuation. Many JACL-oriented Nisei worked vigorously to

promote the image of loyal Nisei and used the image of disloyal and trouble-making Kibei as the antithesis of Americanized Nisei.

Kibei and the Japanese American Community during World War II

The historical narrative of the Japanese American internment emphasizing Nisei loyalty to the U.S. has had little room for the experiences Kibei during WWII. Although the existence of Kibei was central to shaping the internment policies, the "Kibei problem" has received little scholarly attention largely due to a general misunderstanding of the Kibei as transnational individuals. Many Kibei had received their education in Japan in the 1930s when Japan's political path was steered increasingly by the militarist wing of the government. Under this circumstance, it was easy for American policymakers and military leaders like DeWitt to claim that the Kibei who returned to the U.S. had been indoctrinated with Japan's imperialist agenda as a result of their education in Japanese public schools. Even those within the U.S. government who opposed the mass internment of Japanese Americans in 1942 accepted the notion of Kibei as a pro-Japanese faction among Nisei without much criticism.

Instead of challenging this public indictment of Kibei's alleged loyalty to Japan, JACL leaders in the United States during WWII chose to distinguish themselves and the Japanese American community from the negative Kibei image. As the JACLers opted for wartime cooperation with federal authorities to demonstrate Nisei loyalty, they saw the hostile reports on Kibei as a threat to the image of patriotic Japanese Americans. Soon after Pearl Harbor, JACL's national leaders determined that policing the thought and behavior of Kibei would be among the priorities in their campaign to promote Nisei Americanism.

For instance, in February 1942, the JACL National Headquarters issued a "Kibei survey" and directed each regional chapter to collect responses from local Kibei residents. National Director Mike Masaoka insisted that the survey was voluntary, but suggested that his organization would scrutinize the loyalty of any Kibei who failed to complete the questionnaire. He also warned local JACL chapters that a failure to administer the survey would be "reported to the authorities." The Kibei survey questions looked tailor-made for a report that could be furnished to the FBI, as they solicited detailed personal information that revealed the level of each respondent's cultural and ideological connection to Japan. In this way, the Kibei survey served as a lesser-known prelude to the following year's loyalty questionnaire in the internment camps, which all of the incarcerated Japanese Americans were required to complete. Emerging Nisei leaders might have felt that a sacrifice forced upon Kibei would improve the fate of the majority of the Japanese American community in time of war. However, such extreme measure employed by JACL's loyalty campaign would exacerbate the alienation and stigmatization of many Kibei throughout the internment years and leave many more in the community to feel bitter in the years to come.

The WRA's "Kibei Problem"

Since the War Relocation Authority took over the management of the internment camps in mid-1942, what the agency's paternalistic director Dillon S. Myer described as the "Kibei problem" would emerge as an issue that shaped the internment policies. Myer was determined to prove his agency's ability to mold the Japanese American character and struggled with the question of what to do with Kibei. He faced pressure from the military to segregate Kibei from the rest of Nisei before the transfer of evacuees from the Army to the WRA was complete on October 31, 1942. Lieutenant General John L. DeWitt in August 1942 reiterated his point in the *Final Report* by asserting that Kibei remained a threat to national security and to "large numbers" of loyal Nisei. He insisted that segregation of Kibei would be necessary in the absence of military supervision after the Army's complete release of its jurisdiction over Japanese American internees. He went further by recommending not only the segregation of all Kibei in a separate facility, but also stripping them of their U.S. citizenship.

Despite the pressure from the War Department to swiftly deal with Kibei, Myer was not keen on branding a significant portion of Japanese Americans disloyal and segregating them. Also, rather than military intelligence, Myer placed more trust in his social scientific experts at the Community Analysis Section (CAS), who monitored the behaviors and attitudes of the Japanese American internees. The WRA in 1942 established CAS in each camp to assess grievances among the internees, but more importantly, Myer used the CAS reports as scientific proof of Nisei Americanization. The CAS ethnographers, many of whom were academics with advanced degrees, evaluated and reported on "what the evacuees are thinking on all subjects." Throughout his tenure, Myer turned to the Community Analysis Section to study Kibei behaviors and simultaneously to promote Nisei loyalty. The CAS reports served this purpose by categorizing "pro-Japan" constituents from the rest of the internees. These reports suggested that the majority of Japanese American internees were anti-Axis, but identified adult male bachelor Kibei as a group mostly sympathetic to the cause of Japanese empire. Rather than targeting all Kibei, the WRA's focus throughout the internment would be on this gender- and age-specific group of Kibei.

Reports on the internees' reactions to the WRA's infamous "loyalty questionnaire" in 1943 compounded the negative public perception and sweeping generalization of bachelor Kibei as the most dangerous fifth column. In February 1943, the WRA required all adult evacuees to complete the questionnaire as proof of their readiness for permanent relocation out of the internment camps. Designed initially to register male evacuees for military service, this program was adopted by the WRA in an attempt to punctuate Japanese American assimilation and loyalty. Myer hoped that positive results of registration would accelerate the "loyal" evacuees' release from the Relocation Centers and acceptance by the general American public. The WRA staff and JACLers expected the vast majority of the adult population to answer positively to the loyalty questions. However, Questions 27 and 28 on the questionnaire proved to be problematic, as they asked citizens and non-citizens, male and female, and young and old to prove their "unqualified allegiance" through their willingness to serve in the

U.S. military and renounce any loyalty to the Japanese emperor. Evacuee reactions to these questions varied, from confusion to outrage to enthusiastic support. To Myer's surprise and dismay, these diverse reactions to the loyalty questionnaire sparked a series of unrest at a number of camps.

While some evacuees answered no to one or both of these questions and others refused to answer at all, many "loyal" Nisei and WRA administrators had the impression that young Kibei men were leading the charge to sabotage the registration program. There were indeed a few Kibei among those who adamantly opposed registration, but such a wide belief in the Kibei men's role in instigating trouble did not emerge out of a vacuum. The term Kibei had come to carry such a negative connotation that it was not uncommon for many Nisei to simply refer to leading camp agitators as Kibei. According to CAS researcher John F. Embree's report from the Topaz Relocation Center, the most vocal opposition to registration allegedly came from a group of Kibei. A group of young Nisei complained to Embree that many Kibei were attempting to disturb the registration process because the Kibei had no will to fight against Japan. Other Topaz Nisei accused the Kibei gang of being cowards who feared becoming combat casualties.

The JACLers were also quick to blame Kibei for any camp disturbance, as attacks on the JACLers by troublemakers were reported during the registration period. Eric L. Muller has found that after a half century since the conclusion of the war, many old JACLers have continued to express their suspicion of those who opposed the registration program. Some Nisei critics of resistance, according to Muller, continue to believe that any attempt to interfere with registration was an act of "laziness" and "cowardice." Disturbances during the registration also contributed to the WRA staff's perception of all Kibei as "citizens in name only," who had "almost nothing in common with other second generation Japanese Americans."

As signs of agitation increased, the WRA began to consider more seriously the immediate segregation of "disloyals" in a separate Relocation Center and announced its plan in July 1943. Myer stated that the segregation program was to ensure the safety of "loyal American citizens and law-abiding aliens" in the camps and to expedite the process of preparing them for post-internment resettlement. Masaoka and the JACLers enthusiastically endorsed the segregation policy, which would isolate the "agitators from those who wanted to cooperate with the government." Male bachelor Kibei were high on the WRA's priority list of "disloyals" to be transferred to the WRA Segregation Center at Tule Lake, California in September 1943. The WRA's Administrative Instruction in July 1943 stipulated the agency's tentative plan to designate "bachelor Kibei" among the alleged disloyals in the internment camps to depart for Tule Lake before "all others." Dovetailing with a Community Analysis Section report from 1942, the instruction defined "bachelor Kibei" as a Nisei man who spent "a total of three or more years in Japan since January 1, 1935."

However, the WRA would reverse its policy in August 1943 and eliminate the Kibei category in its official publication explaining the segregation policy, instead using the neutral term "persons." Myer and his staff had to consider the fact that despite the negative public perception of Kibei, it was becoming increasingly difficult for them to cast all Kibei as potential troublemakers, as many Kibei

within the camps had established themselves as some of the most cooperative and patriotic evacuees. For example, California Kibei and Communist Party member Karl G. Yoneda enthusiastically advocated Japanese American support for the U.S. war against what he described as the "fascist militarists" in Japan. The Glendale, California-native had returned to the U.S. after spending his formative years in Japan and become an influential labor organizer and a vocal critic of Japanese militarism in the 1930s and 1940s. During World War II, Yoneda not only rallied for the American war effort against Japan, but also cooperated with the U.S. government's internment policies. He did not even hesitate to report on the activities of other Kibei in the camp to the FBI. Many Kibei at Manzanar resented how the war had turned Yoneda's internationalist idealism into radical patriotism, as they called him "*inu*" ("dog"), a traitor of his own people.

To the paternalistic Myer who wanted to be remembered as the "great white father" that helped all Japanese Americans assimilate successfully, the words and actions of patriotic Kibei served as the most compelling evidence of Nisei Americanism. In summer of 1943, a number of Kibei internees stepped forward to announce their desire to fight for the United States. Some Kibei in fact demonstrated that their experiences abroad had armed them with a sense of internationalism that allowed a more sophisticated expression of patriotism. A young Kibei volunteer at Topaz Relocation Center who volunteered to serve in the U.S. Army declared, for example, "I am thinking not only of defending American democracy against all foes," but also of protecting the "common people of Japan." He claimed that while in Japan he had "learned the meaning of fascism" and "to fight against its oppressive measures."

Many Kibei proved especially useful in the U.S. intelligence warfare in the Pacific Theater. In 1943, the U.S. Army trained an increasing number of Nisei and Kibei to serve in the Military Intelligence Service (MIS). Brigadier General John Weckerling, who was instrumental in establishing the Military Intelligence Language School, praised the Kibei servicemen's role in the Pacific campaigns and insisted that any belief in Kibei's pro-Japan tendency was a mistake. In fact, white officers valued the service of Kibei linguists not only because of their Japanese proficiency, but also because of their knowledge of Japan as a result of their transnational experiences. The increasing number and usefulness of Kibei volunteers, collaborators, and servicemen meant that the WRA could no longer treat internment camp troubles simply as "Kibei problems."

Despite these complexities, the notion of Kibei's alleged disloyalty continued to shape the American public's misunderstanding of this subgroup within the Nisei community as a dangerous pro-Japan element. The mainstream press, such as the *Los Angeles Times* and the *San Francisco Examiner* continued to depict all male Kibei as militant troublemakers. The WRA attempted to counter this view by using its CAS study in January 1944 to recast Kibei's transnational identity and their nationalism. The report depicted Kibei as "new immigrants" subject to assimilation, despite their U.S. citizenship by birth. The literal meaning of the term Kibei—"returned to America"—notwithstanding, the report called for a "narrowed" definition in order for it "to have much use as designating a distinct type of Japanese American." The CAS report suggested that bona fide Kibei should have spent "anywhere from two to twenty years" in Japan to have been "influenced in

important ways by [their] stay [in Japan]." Such an artificial definition used by the WRA has further reinforced the generalized image of Kibei as perpetual, if not dangerous pro-Japan, outsiders and the antithesis of the Americanized Nisei.

The "Kibei Problem" and the Question of Nisei Loyalty

Thus, by the late 1943 the question of Kibei loyalty was becoming increasingly complex in the WRA-JACL identity politics. However, while policymakers and Nisei elites could no longer label all bachelor Kibei as troublemakers, they nevertheless failed to adequately understand that the question of loyalty had affected Kibei in different ways because of their diverse transnational experiences. To many Kibei, the internment was a critical extension of their transnational movement, and the stigma of disloyalty had a profound impact on their internment experiences. The U.S. government's policies of relocation and resettlement involved close scrutiny of the internees' self-professed and perceived loyalty and Americanization. However, just as Kibei are not a culturally and economically homogenous group, their wartime experiences varied significantly. Many among the Kibei internees actively cooperated with the JACL and the War Relocation Authority's campaign to promote the loyal Nisei image. The exemplary service of Kibei volunteers and draftees in the Army between 1943 and 1945 defied the previously unchallenged notion of their Japanese nationalism and further complicated the WRA and JACL's dealings with the question of Kibei loyalty. Yet, others actively criticized and resisted the U.S. government's treatment of Japanese Americans as enemy aliens. In short, the history of Kibei internment experiences is as complex as that of the Japanese American internment as a whole.

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CHAPTER 9



War and Asia-Pacific Allies, 1941–1950

Chinese and Korean immigrants in the United States, whose home countries were being victimized under Japanese colonialism, rejoiced when the United States declared war against Japan in December 1941. Chinese Americans had called for boycotts of U.S.–Japan trade after Japan invaded Manchuria in 1931 and again when Japanese troops massacred and raped civilians in Nanjing in 1937. Korean Americans had been publicizing the abuses of Japan's colonization of Korea ever since 1910 and were especially vocal after the Japanese crushed a Korean independence movement uprising in 1919. To avoid being confused with the supposed Japanese American enemies after Pearl Harbor, Chinese Americans and Korean Americans wore buttons identifying their ethnicity. White Americans' inability to distinguish between different Asian people led Life Magazine *to publish an essay on "How to Tell Japs from the Chinese" that presented racialized depictions of the skin color, facial features, and ostensible personality characteristics of "friendly Chinese allies" and "enemy alien Japs."*

To counter Japan's military propaganda about American racism and to acknowledge China's contributions as a U.S. ally, Congress repealed Chinese exclusion in 1943 after a rousing U.S. tour by the First Lady of China, Soong May-ling, who backed such a repeal. No longer denounced as a yellow peril, Chinese Americans embraced new educational and occupational opportunities that became available as the wartime draft and new defense factories created a major labor shortage. Their new rights, however, were based on perceptions of Chinese Americans as foreign allies rather than as fellow citizens.

Filipino Americans, too, distinguished themselves sharply from the Japanese enemy and during World War II fought to liberate the Philippines from Japan's control. After evacuating from Manila and holding out on the Bataan Peninsula for three months, over 75,000 sick and starving U.S. and Filipino soldiers surrendered unconditionally to the Japanese in April 1942. As many as 10,000 Filipino and 1,000 American troops died on the Bataan Death March because they were starved, beaten, and bayoneted during the 65-mile trek to a prisoner of war camp. Between 500,000 and 1,000,000 Filipinos

died during the Japanese occupation. Filipinos suffered mass rape, massacres, and atrocities against POWs and suspected Allied supporters. Praised by Americans as "little brown brothers," the Philippine Commonwealth Army was conscripted into the U.S. forces, and Filipino Americans served as naval stewards and in segregated Filipino army regiments. The U.S. government promised Filipino soldiers naturalization rights and full veterans' benefits but allowed only a small number of them to become U.S. citizens after the war.

In the U.S. territory of Guam, the indigenous Chamorros also suffered under Japanese occupation. The Japanese seized private homes, initiated a strict curfew, forbade the speaking of English, and required Chamorros to learn Japanese language and customs. In 1944, the Japanese army closed schools and coerced the population to serve the needs of the Japanese forces. Public executions of individuals suspected of supporting the Americans terrorized the local population. Without notice, the Japanese occupiers forced approximately 10,000 to 15,000 Chamorros to march to concentration camps in Guam's central and southern jungles. The prisoners were allowed to bring only what they could carry. Other Chamorros were forced to labor at bayonet point, tortured, raped, massacred, and killed during battles or during American bombing campaigns before the Japanese finally surrendered on August 10, 1944.

DOCUMENTS

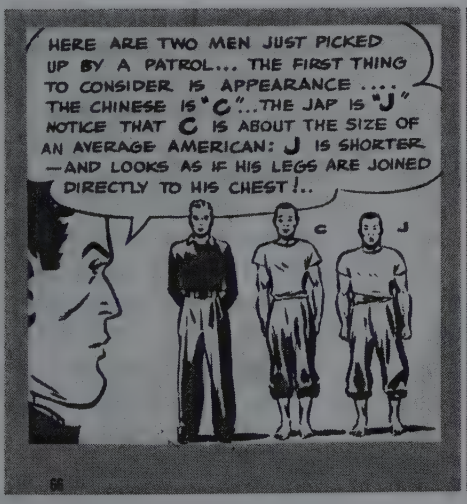
Documents 1 to 8 provide different views of loyalty, patriotism, and citizenship during World War II. Document 1 is an excerpt from "How to Spot a Jap," a 1942 U.S. War Department comic strip that was included in the *Pocket Guide to China* booklet distributed to U.S. army and navy personnel in China. Drawn by Milton Caniff, illustrator of the *Terry and the Pirates* comic strip, the guide identifies Japanese enemies by emphasizing racialized differences in height, eye slant, and feet. In marked contrast, Chinese allies are depicted as loyal supporters of the U.S. war effort. In Document 2, Rose Hum Lee, a sociology graduate student at the University of Chicago, describes how Chinese Americans found well-paying jobs in the defense industry and the private sector. They also enlisted in the U.S. military, and as American patriots and allies called for the repeal of Chinese exclusion.

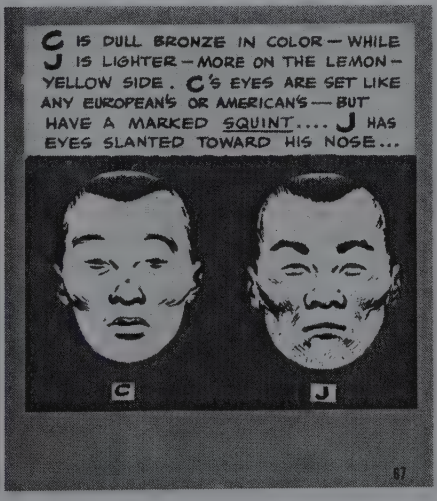
Soong May-ling, the wife of China's leader Chiang Kai-shek, proved to be one of the most effective advocates for winning American public support for China and Chinese Americans. A graduate of Wellesley College, the cultured and glamorous Madame Chiang Kai-shek became the first Chinese and only the second woman to address a joint session of Congress on February 18, 1943. Her speech, excerpted in Document 3, persuaded Congress to provide more support for the Chinese nationalists' struggle against Japan. In Document 4, President Franklin Delano Roosevelt asks Congress to repeal Chinese exclusion laws to recognize China's important role in the war against Japan. However, he made clear that no "flood" of Chinese immigrants would be unleashed since the quota, based on a percentage of the total population of Chinese Americans in the United States in 1920, would amount to only around 105 immigrants per year.

Document 5 attests to the way the repeal of Chinese exclusion in 1943 set a precedent for repealing the exclusion of Indian immigrants. Indian immigrants received a small quota in 1946 that reflected the U.S. commitment to cultivating anticommunist allies in South Asia during the Cold War. This document includes testimony calling for the repeal of Indian exclusion and the provision of naturalization rights in 1945.

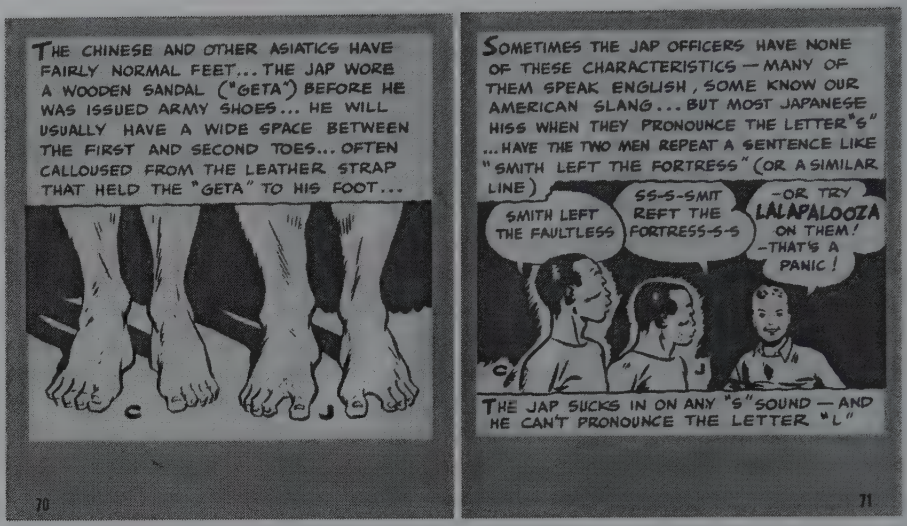
Documents 6 to 8 address the conditions of the Philippines and Guam under Japanese occupation. In Document 6, drawn from a 1943 edition of *Asia and the Americas* magazine, Filipino regiment member Manuel Buaken celebrates American ideals, notes the failure of the United States to live up to those ideals, and recounts his feelings as one of 1,200 Filipino soldiers who became U.S. citizens in a wartime ceremony at Camp Beale in northern California. Rosa Roberto Carter addresses the harsh conditions Chamorros suffered in Guam during the war in Document 7. During testimony presented in 2003 to the Guam War Claims Review Commission, she details how she and her family experienced starvation, interrogation, forced labor, napalm burns, and the forced march to a concentration camp. In Document 8, Ben Blaz reflects on the fiftieth anniversary of the liberation of Guam and pays tribute to the Chamorro spirit during and after the war. He also criticizes American colonial rule and calls for self-determination for Guam.

1. The U.S. War and Navy Departments Tell U.S. Soldiers "How to Spot a Jap," 1942





Source: U.S. War and Navy Departments, "How to Spot a Jap," *Pocket Guide to China* (Washington, D.C.): U.S. Government Printing Office, 1942, 66–67, 70–71.



2. Sociology Graduate Student Rose Hum Lee Describes How World War II Changed the Lives of Chinese Americans, 1942

One hundred and thirty million Americans were very little aware on December 7 of the eighty thousand Chinese in the United States. But by noon of December 8, the country's declaration of war on Japan and similar action by the Republic of China had made the two nations allies. Since then the outlook of the Chinese living in this country has been considerably changed by Pearl Harbor.

One half of our Chinese population lives on the West Coast. San Francisco and the Bay Region have approximately 30,000, Los Angeles 4,500, Seattle 3,500, Portland 2,000. Most of the others are located in large cities in the East and the Midwest; New York, Chicago, Cincinnati, Detroit, and Cleveland have sizeable Chinatowns. In out-of-the-way towns are lonely laundrymen silently washing and ironing. Wherever the Chinese are, it has been possible to count the variations in ways they can earn their living on the fingers of the hand—chop suey and chow mein restaurants, Chinese art and gift shops, native grocery stores that sell foodstuffs imported from China to the local Chinese community.

In San Francisco's Chinatown, merely from force of habit, signs saying, "This is a Chinese Shop" are still displayed. But they no longer are needed; the section today is completely Chinese. The fifty Japanese shops fringing upon or in Chinatown have had to liquidate and Chinese have rented the stores. One of the most attractive shops is being run by a second generation Chinese-American young woman.

From *Unbound Voices: A Documentary History of Chinese Women in San Francisco* (1999), 419, 444. Copyright © 1999 Judy Yung. Used by permission of the Regents of the University of California.

Throughout the Chinatowns in the United States there is a labor shortage. For the first time since Chinese labor exclusion began, absorption of the Chinese into American industry has been significant. Whether in New York, Los Angeles, San Francisco, Chicago, or in Butte, Mont., the service in Chinese restaurants is slow. Four restaurants in New York's Chinatown have closed their doors in the past few months. The proprietor of Li Po, an up-to-date cocktail-chop-suey place located in "Chinatown on Broadway" in Los Angeles, said sadly: "I was just ready for another venture. But I can't now. No men to run it."

They have gone in the army and navy, into shipbuilding and aircraft plants. Even the girls are getting jobs. A personal column of the *Chinese Press* notes: "The newest on the defense payrolls are Jane Sai, stenographer; Rose Hom, timekeeper; Jimmy Hom, welder; J. Eric Hom, carpenter." And another item says; "In Fresno, Chinese boys and girls are training at the NYA resident project for employment with Consolidated Aircraft."

The same issue carried the announcement that the associate editor, William Hoy, is donning a uniform. This brilliant young inductee is one of the best informed persons on the history of the Chinese in California.

In War Industries

In Portland, Ore., the Chinese Consul, Silwing P. C. Au, and his wife have done much to promote interracial understanding. For three years they have worked to get Chinese assistants and cooks into the hospitals at Vancouver Barracks. The Chinese make good workers: they are taciturn, orderly, and perform their duties well. Meetings with the union leaders have smoothed out some labor difficulties and paved the way for absorption of many Chinese-Americans into war industries. Recently the restaurant unions invited the Chinese restaurant employees to join their ranks. Although very few Chinese have joined so far, the invitation is significant. Mrs. Au is active in the League of Women Voters, the American Association of University Women (she was recently invited to be the program chairman for the coming season), in the National Federation of Women's Clubs, as well as in the Chinese-American Women's League, and in all organizations aiding in relief for China.

Only a handful of stores dot the so-called Chinatown in Minneapolis. In June, when the city turned out to welcome fifteen war heroes from the East Coast, tiny Chinese-Americans wearing their gay costumes waved welcome to the visiting celebrities. The flag of the Republic of China elicited thundering applause. The proprietor of the city's only Oriental gift shop liquidated his business last winter at the height of a busy Christmas season and entered a war industry. His wife, likewise a Chinese-American, works in the same plant. An American-born University-of-Minnesota-trained master in architecture found work in a war industry—the first technical job he has held since his graduation fifteen years ago. Previously he had to be satisfied with managing his father's restaurant, but now, his American-born, business-trained wife is doing that.

In the Pittsburgh and Philadelphia communities, shortage of help has been acute for so long that not even labor imported from other cities can ease the situation. In New York, students who used to earn money as "extra waiters" during the weekends have found employment in industries working on lease-lend material for China. The China Institute in America has placed many trained young men in American industry as technicians, chemists, and engineers.

An officer of the China Institute, Dr. B. A. Liu, has been making a tour of the large universities to get in touch with Chinese students, many of them stranded in this country as a result of the war. The Department of State announced in April that such students would be given opportunities to gain practical experience or be assisted financially to complete their technical training. The response of American industry has been heartening. Industrial, transportation, and scientific organizations have absorbed many scientific and technical students. Other students hope for employment in educational institutions, libraries, foundations, hospitals, publishing houses; and as translators....

In the Armed Services

Portland's Chinese community sent a contingent of thirty-three trained pilots to Generalissimo Chiang Kai-shek before December 7. With America in the war as an ally, those now in training will be pilots in the United States Air Force. The Generalissimo has urged Chinese men here to enlist in the armed forces of the United States as a demonstration of China's complete cooperation with the United Nations. The removal of restrictions in the United States Navy and Naval Reserve has started a drive for 500 Chinese as apprentice seamen. Heretofore, Chinese were restricted to enlistment as messmen and stewards. The recent requirements for enlistment are American citizenship; ability to pass the navy's physical examination; age seventeen to thirty-one for the navy and seventeen to fifty for the naval reserve.

New York's Chinatown cheered itself hoarse when the first draft numbers drawn were for Chinese-Americans. Some below-age boys tried to pass on their "Chinese age," which is often a year or two older than the American count. Since their birth certificates told a different tale, they had to be patient and wait.

There are only eleven Chinese-Americans of draft age in Butte, Mont., and all have enlisted or are serving Uncle Sam in some other way. One in the army was promoted to be sergeant, and has gone overseas. A family with three sons has one in the medical corps, another in the army air corps, the third in the navy. In another family with three sons one, an engineer, is in the East in a lease-lend organization, and the other two, both engineering students, are reserves in the air corps until they graduate.

K. S. Jue, president of the Shiu [Sue] Hing Benevolent Society, speaking of home front activities, said: "San Francisco has gone over the top in its recent Red Cross drive. We raised $18,000 for the campaign. In the Defense Bond Drive, we bought over $30,000." This is in addition to all the war relief the

Chinese here have been sending to China and in response to the demands of relatives across the Pacific.

Civil Rights for Our Chinese Allies

This year, at the recent convention of the California League of Women Voters in San Francisco, the following resolution was passed:

> Recognizing the racial discrimination shown in several Asiatic Exclusion Acts passed by our government over a period of sixty years, the California League of Women Voters accepts its responsibility for education as to the history and effects of the Exclusion Acts leading toward effective opposition to racial discrimination in immigration laws, and asks that the National League send material to all State Leagues.

It is significant that this step towards righting an old wrong should come from California, where the Chinese exclusion movement first saw birth as a state issue, gradually to become national policy. While the exclusion sections of the Immigration Act of 1924 were aimed primarily at rapidly increasing immigration of Japanese picture-brides in the early years of the twentieth century, they worked even more hardship among the Chinese immigrants. The solution to the problem of Oriental immigration promises to be not exclusion by law, but intelligent restriction and selection of those who desire admittance into the country. It seems to the Chinese that those of us not born here should be eligible to become citizens through a process of naturalization as do those who come from other lands; and that the right to own property as citizens should be acknowledged. Surely racial discrimination should not be directed against those who are America's Allies in the Far East and are helping here in every way to win the war.

It has long been recognized that "cheap labor" was not eliminated by the series of exclusion laws. Immediately after the passing of those laws, "cheap labor" was supplied by incoming Mexicans and Filipinos.

Every thinking Chinese in this country and in China hopes that the American people will advance the social, political, and economic status of the Chinese in the United States. To be fighting for freedom and democracy in the Far East, at the cost of seven million lives in five years of hard, long, bitter warfare, and to be denied equal opportunity in the greatest of democracies, seems the height of irony. With the absorption of the Chinese in industry and the proof that they are good workers, loyal citizens, and faithful to the United Nations' cause, racial barriers and prejudices should break down now and for all time.

In California, today, there are fourth generation Americans—Chinese-Americans who speak no Chinese. They live on close terms with their American neighbors, enjoy the same recreation and health facilities offered to their fellow citizens. For them the present crisis is another stepping stone toward complete assimilation. No longer do Americans think of the Chinese as mysterious Orientals from a little known land. Most of these Chinese living among them are fellow citizens. The rest of them, as well as their cousins in the old country, are Allies. The crisis of December 7 has emancipated the Chinese in the United States. It is up to the American people to effect the emancipation by law.

3. Madame Chiang Kai-Shek Speaks to Congress on the Need to Provide Military and Economic Aid to China, 1943

You, as representatives of the American people, have before you the glorious opportunity of carrying on the pioneer work of your ancestors, beyond the frontiers of physical and geographical limitations. Their brawn and thews [muscles] braved undauntedly almost unbelievable hardships to open up a new continent. The modern world lauds them for their vigor and intensity of purpose, and for their accomplishment.

You have today before you the immeasurably greater opportunity to implement these same ideals and to help bring about the liberation of man's spirit in every part of the world. In order to accomplish this purpose, we of the United Nations must now so prosecute the war that victory will be ours decisively and with all good speed.

Sun-tse [Sun Tzu], the well-known Chinese strategist, said: "In order to win, know thyself and thy enemy." We have also the saying: "It takes little effort to watch the other fellow carry the load."

In spite of these teachings from a wise old past, which are shared by every nation, there has been a tendency to belittle the strength of our opponents.

When Japan thrust total war on China in 1937, military experts of every nation did not give China even a ghost of a chance. But, when Japan failed to bring China cringing to her knees as she vaunted, the world took solace in this phenomenon by declaring that they had overestimated Japan's military might.

Nevertheless, when the greedy flames of war inexorably spread in the Pacific following the perfidious attack on Pearl Harbor, Malaya and lands in and around the China Sea, and one after another of these places fell, the pendulum swung to the other extreme. Doubts and fears lifted their ugly heads and the world began to think that the Japanese were Nietzschean supermen, superior in intellect and physical prowess, a belief which the Gobineau(s) [Arthur de Gobineau] and the Houston Chamberlain(s) and their apt pupils, the Nazi racists, had propounded about the Nordics.

Again, now the prevailing opinion seems to consider the defeat of the Japanese as of relative unimportance and that Hitler is our first concern. This is not borne out by actual facts, nor is it to the interests of the United Nations as a whole to allow Japan to continue, not only as a vital potential threat but as a waiting sword of Damocles, ready to descend at a moment's notice.

Let us not forget that Japan in her occupied areas today has greater resources at her command than Germany.

Let us not forget that the longer Japan is left in undisputed possession of these resources, the stronger she must become. Each passing day takes more toll in lives of both Americans and Chinese.

Let us not forget that the Japanese are an intransigent people.

Delivered in House of Representatives, Washington, D.C., February 18, 1943, *Vital Speeches of the Day*, Vol. IX, pp. 301–303, http://www.ibiblio.org/pha/policy/1943/1943-02-18a.html

Let us not forget that during the first four and a half years of total aggression China has borne Japan's sadistic fury unaided and alone.

The victories won by the United States Navy at Midway and the Coral Sea are doubtless steps in the right direction—they are merely steps in the right direction—for the magnificent fight that was waged at Guadalcanal during the past six months attests to the fact that the defeat of the forces of evil, though long and arduous, will-finally come to pass. For have we not on the side of righteousness and justice stanch allies in Great Britain, Russia and other brave and indomitable peoples? Meanwhile the peril of the Japanese Juggernaut remains. Japanese military might must be decimated as a fighting force before its threat to civilization is removed.

When the Seventy-seventh Congress declared war against Japan, Germany and Italy, Congress, for the moment, had done its work. It now remains for you, the present representatives of the American people, to point the way to win the war, to help construct a world in which all peoples may henceforth live in harmony and peace.

May I not hope that it is the resolve of Congress to devote itself to the creation of the post-war world? To dedicate itself to the preparation for the brighter future that a stricken world so eagerly awaits?

We of this generation who are privileged to help make a better world for ourselves and for posterity should remember that, while we must not be visionary, we must have vision so that peace should not be punitive in spirit and should not be provincial or nationalistic or even continental in concept, but universal in scope and humanitarian in action, for modern science has so annihilated distance that what affects one people must of necessity affect all other peoples.

The term "hands and feet" is often used in China to signify the relationship between brothers. Since international interdependence is now so universally recognized, can we not also say that all nations should become members of one corporate body?

The hundred and sixty years of traditional friendship between our two great peoples, China and America, which has never been marred by misunderstandings, is unsurpassed in the annals of the world. I can also assure you that China is eager and ready to cooperate with you and other peoples to lay a true and lasting foundation for a sane and progressive world society which would make it impossible for any arrogant or predatory neighbor to plunge future generations into another orgy of blood.

In the past China has not computed the cost to her manpower in her fight against aggression, although she well realized that manpower is the real wealth of a nation and it takes generations to grow it. She has been soberly conscious of her responsibilities and has not concerned herself with privileges and gains which she might have obtained through compromise of principles. Nor will she demean herself and all she holds dear to the practice of the market place.

We in China, like you, want a better world, not for ourselves alone, but for all mankind, and we must have it. It is not enough, however, to proclaim our ideals or even to be convinced that we have them. In order to preserve, uphold and maintain them, there are times when we should throw all we cherish into our effort to fulfill these ideals even at the risk of failure.

The teachings drawn from our late leader, Dr. Sun Yat-sen, have given our people the fortitude to carry on. From five and a half years of experience we in China are convinced that it is the better part of wisdom not to accept fail-ire [failure] ignominiously, but to risk it gloriously. We shall have faith, that, at the writing of peace, America and our gallant Allies will not be obtunded [dulled] by the mirage of contingent reasons of expediency.

Man's mettle is tested both in adversity and in success. Twice is this true of the soul of a nation.

4. Franklin Delano Roosevelt Calls on Congress to Repeal Chinese Exclusion, 1943

To the Congress:

There is now pending before the Congress legislation to permit the immigration of Chinese people into this country and to allow Chinese residents here to become American citizens. I regard this legislation as important in the cause of winning the war and of establishing a secure peace.

China is our ally. For many years she stood alone in the fight against aggression. Today we fight at her side. She has continued her gallant struggle against very great odds.

China has understood that the strategy of victory in this world war first required the concentration of the greater part of our strength upon the European front. She has understood that the amount of supplies we could make available to her has been limited by difficulties of transportation. She knows that substantial aid will be forthcoming as soon as possible- aid not only in the form of weapons and supplies, but also in carrying out plans already made for offensive, effective action. We and our allies will aim our forces at the heart of Japan—in ever increasing strength until the common enemy is driven from China's soil.

But China's resistance does not depend alone on guns and planes and on attacks on land, on the sea, and from the air. It is based as much in the spirit of her people and her faith in her allies. We owe it to the Chinese to strengthen that faith. One step in this direction is to wipe from the statute books those anachronisms in our law which forbid the immigration of Chinese people into this country and which bar Chinese residents from American citizenship.

Nations, like individuals, make mistakes. We must be big enough to acknowledge our mistakes of the past and to correct them.

By the repeal of the Chinese Exclusion Laws, we can correct a historic mistake and silence the distorted Japanese propaganda. The enactment of legislation now pending before the Congress would put Chinese immigrants on a parity with those from other countries. The Chinese quota would, therefore, be only

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Franklin D. Roosevelt: "Message to Congress on Repeal of the Chinese Exclusion Laws," October 11, 1943. Online by Gerhard Peters and John T. Woolley, The American Presidency Project. http://www.presidency.ucsb.edu/ws/?pid=16325

about 100 immigrants a year. There can be no reasonable apprehension that any such number of immigrants will cause unemployment or provide competition in the search for jobs.

The extension of the privileges of citizenship to the relatively few Chinese residents in our country would operate as another meaningful display of friendship. It would be additional proof that we regard China not only as a partner in waging war but that we shall regard her as a partner in days of peace. While it would give the Chinese a preferred status over certain other Oriental people, their great contribution to the cause of decency and freedom entitles them to such preference.

I feel confident that the Congress is in full agreement that these measures—long overdue- should be taken to correct an injustice to our friends. Action by the Congress now will be an earnest of our purpose to apply the policy of the Good Neighbor to our relations with other peoples.

5. Indians in America Call for Repeal of U.S. Exclusion Laws, 1945

U.S. Congress. House. Committee on Immigration and Naturalization. *To Grant a Quota to Eastern Hemisphere Indians and To Make Them Racially Eligible for Naturalization.* 79th Cong., 1st sess., March 7-14, 1945, excerpts.

Dr. Haridos T. Mazumdar, Professor of Sociology and Economics, William Penn College; Vice President, National Committee for India Freedom; Editor, Voice of India: "This particular bill of Mr. Lynch attempts to bring relief to a group of people who are in a very especially underprivileged position. They have been in this country for a number of years. They have participated in American culture, American activities. They have rendered their contributions to the well-being of America. They have paid taxes. They have carried on their part of the work in the business of this land. To all intents and purposes they have been Americans in everything except in the exercise of the rights of American citizenship. They are here. They are going to die here. They are doing their duty in everything as American citizens, except in the one vital fact of the exercise of the rights of American citizenship.

It would seem to me that America has an obligation to do the right thing, to rectify a serious wrong, by giving them the right to become American citizens ...

Those who are eligible to go into the armed services have gone into the armed services, regardless of whether they were born here, or have come here ... These people are perfectly willing to render service to Uncle Sam, and I think *it*, is only fair to expect Uncle Sam to do a little for them.

... I think it is better that we establish a general principle as to what is what, and the principle I should like to see established is that the people of India be put on a par with the people of Europe and the people of China in regard to

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House Committee on Immigration and Naturalization. Hearings on Bills to Grant a Quota to Eastern Hemisphere Indians and to Make Them Racially Eligible for Naturalization. 79th Cong., 1st sess., March 7–14, 1945.

immigration and naturalization. I am convinced it would not do any harm. On the other hand, I suspect, and I humbly submit that it may do a great deal of good, both for India and for America."

Ramlal B. Bajpai, Vice President, India Welfare League: "India is not a small island, but a vast territory containing one-fifth of the world's population. Let us remember, further, that the people of India are predominantly of the same race as the Greeks, the Romans, and the Americans, i.e., Indo-Europeans or Aryans; though their skin has been browned by the tireless suns, that India was the mother–land of the Aryan race and Sanskrit the mother of European languages.

America has been the haven of free institutions and asylum for the disowned and oppressed of the human race. In view of this noble heritage of this great democracy it would seem inconsistent indeed to find that people from India who have entered the United States and lawfully resided for periods of 15 to 25 or more years, engaging in the free and legitimate pursuits of life and sharing in the blessings as well as difficulties peculiar to this land, are subjected to a legal discrimination that denies them the privilege of naturalization.

Today, American citizenship, which is open to every European, Syrian, Armenian, the Negroes, and now the Chinese, is not open to Indians.

This microscopic minority of about 3,000 Indians includes farmers, machine workers, writers, and at least 10 scientists of note–men whose achievements are considered top rank. The contributions of these people is out of all proportion to their numbers.

Since July, 1924, these people of ancient race and culture were barred from American citizenship. Those who suffer most from ineligibility to American citizenship are the Indian farmers of California, Nevada, Oregon, Texas, and Arizona, who by their labor improved what was considered worthless alkali swamps by making them into profitable rice, wheat, vegetable, and cotton fields. These experienced Indian farmers contributed so much to the prosperity of the States...

Like all peoples from other lands, natives of India in the United States have shown qualities of cultural adaptation and social assimilation and have proved themselves to be law abiding and loyal to the democratic institutions of the United States.

Since these Indian residents have voluntarily given up their former domiciles and cast their lots for better or worse with the land of their adoption, in the name of human justice and American sense of fair play it is only just that they be granted the right to become naturalized and saved from discriminating limitations due to the national origin clause."

J.J. Singh, President, India League of America: "... That brings me to the present bill, and if this bill is passed—and there is a tremendous amount of excitement in India at the present moment about this bill—it is front-page news. I have seen some of the recent papers in India, and there is quite a lot of excitement going on there. They're watching this as a test case of the professions of democracy and equality, and the Yalta Conference and the San Francisco Conference, and the new world order."

Rep. [A. Leonard] Allen (R-LA): "I think what is coming is the thing that Mr. [Ed] Gossett (D-TX) pointed out a few minutes ago, the predictions of what would happen when we passed the Chinese bill, that that bill would be followed by other bills, to let in Hindus, Koreans, people of Siam, and all other Orientals ... My personal conviction is that we have gone too far already ... we have got to call a halt ... You are breaking down barriers, and when you break down too many barriers, you get a flood like the floods on the Mississippi River ... We know that a crawfish may crawl through the levee and break the levee, and that is what we are called upon to do here. We are called upon to break the levee and I am not willing to break the levee any further."

6. Filipino Regiment Member Manuel Buaken Fights for Freedom, 1943

THE EYES OF THE WORLD were upon us that day of our world première as citizens of the United States. We were spotlighted before the cameras and microphones of the nation. The place of our debut was the parade ground of Camp Beale, on the wet red clay of northern California. The time, February 20, 1943.

We are soldiers, members of the First Filipino Infantry, United States Army. We are Mount Mayon's men, as you can see by our insignia symbolizing our oath of vengeance against the invaders of our homeland—a brilliant yellow disk upon which is the volcano Mount Mayon in black, erupting black smoke, with three bright stars shining through, to represent the three principal islands of the Philippines.

While we, the twelve hundred candidates for citizenship, stood proud and silent in a V formation, Colonel Cowley began the ceremony, saying in part, "Officers who returned from Bataan have said there are no finer soldiers in the world than the Filipinos who fought and starved and died there shoulder to shoulder with our troops. I can well believe it as I look at the men before me. On those faces is quiet determination and a consciousness of training and discipline with a definite end in view. I congratulate them on their soldierly appearance and on their approaching citizenship."

The post's public relations officer, Captain Sprague, described the scene to the radio audience "... fine looking, well disciplined Filipino soldiers. Their faces are immobile but their eyes are gleaming with anticipation. In exactly eight minutes they will become officially what they have long been in their hearts—Americans. They are waiting at this moment for the only reward they have asked—citizenship—real live nephews of the Uncle Sam they revere."

Next to come to the microphone was Colonel Offley, who simply said, "They are fine soldiers and I am proud to be their commander."

The concluding speech was made by Judge Welsh: "Citizenship came to us who were born here as a heritage—it will come to you as a privilege. We have

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From Manuel Buaken, "Our Fighting Love of Freedom," *Asia and the Americas* 43, no. 6 (June 1943): 357, 359.

every faith you will become and remain loyal, devoted citizens of the United States, and we wish you. God speed and success."

Then the oath was solemnly administered by Judge Welsh, and as solemnly pledged by us.

Came the singing of "On to Bataan," our stirring regimental song, then "The Star Spangled Banner" and our salute to the flag. And we were citizens of the United States.

We have not taken this step lightly, but with serious consideration, and much debate among ourselves. We did not renounce our citizenship in the Philippines. We have accepted a wider citizenship, a greater responsibility. As Pfc. Jose Trinidad said, in one of our discussions in our barracks, "I cannot give up my citizenship in the Philippines, it is in my heart. But America is also in my mind. I wish to have both loyalties." One phase of this wider responsibility was voiced by Corporal Manuel Luz, of Company I, when he said, "This is a step toward our dream of a world citizenship, of a United States of the Orient. And we are preparing now the pattern of this citizenship, by this leadership that America has set for us, and has taught us."

That is the consensus of our convictions—that America has set the pattern this day, with this grant of citizenship to us, as we have granted it to Americans in the Philippines long ago—on a dual basis—*giving you full participation in our country's political and economic life without asking you to renounce your share in America.*

So you ask me, what is the Philippine interpretation of the meaning of citizenship?

With us, it is a growth, a summary of all our traditions, our folk-lore—it has taken elements of meaning from all our diverse racial strains, it has been molded by all our history....

Our citizenship concept has been tolerant—we have assimilated Chinese, modern Malayans, Spanish and other Europeans such as the Portuguese. And in some ways our citizenship standards are higher than yours. We have begun our national life with the protection of all our natural resources from exploitation and ruthless destruction. We shall have no denuded forests as you have, no exhausted lands or heavy concentration of wealth in the hands of the ruthless few. Our citizenship is foresighted.

More than that, we have taken your best ideals and made them our own. These twelve hundred Filipino soldiers, now citizens of America, are here because they were fired by American ideals and determined to learn the best democratic principles and practices, to make them a part of our country's heritage. We are here because we have studied your books, have made your patriotic leaders our heroes—Washington, Lincoln, Woodrow Wilson and, not least, Franklin Delano Roosevelt.

What Captain Sprague said is true: we have long been Americans in our hearts. We are thankful now for the privilege of becoming legally entitled to participate in your democracy. To us it is the fruition of Filipino-American friendship. It is the flower of a bloodless freedom, an achievement almost unparalleled in history.

But, alas, how many Americans are truly sincere in granting us this privilege? We know that you have long denied it to us and that military expediency is a large factor in the gift you have made to us.

But you must know us by our unwavering loyalty to you. We came to the United States to learn the best, and we found that our place here was in the blind spot of America. We believed in your ideals, we expected you to practise them. But we were barred from the best in your society, we were barred from economic advancement, held to the most menial of your unwanted tasks, kept from labor unions, denied access to skilled jobs or professions, prevented from learning those things that would be of value to our country when we returned home, condemned here for our dark skins, the light of our high ideals ignored and shunned. Yet we have not become bitter. No Filipino in the United States harbors hatred against the Americans in spite of all the stupidities with regard to race prejudice. We have always been loyal to your ideals to the extent of tolerating the un-American dealings of some Americans. We have held to the hope in our hearts that some day you would know us for what we are—*and now that day has come.* It came by way of Bataan—but it is here—this citizenship ceremony proves it.

It was to perfect our citizenship that we came to America. And the work done by Filipinos on California ranches, in Alaskan fisheries and canneries, in the movie industry, on railroads, in mills, factories and in homes all over America has been a contribution to the economic welfare of the United States, but primarily apprenticeship for us in service and useful arts. Here, as well as in your American schools and colleges, we have absorbed the lessons of America. Now we advance another step. We are soldiers now, soldiers of freedom, who go to take back a free citizenship to our country. When this war ends, when reconstruction comes to our homeland, the Filipino citizen of the United States will go back home, not to renounce his oath to the American people, but eager to fulfill his duty to the Philippines. The Philippines will need men who have been trained in your modern ways to rebuild the shattered Orient, to be the leaders of the new order. All that we learn now will one day be put to use for our country.

We are taking on a broad responsibility, a triple responsibility, really. We are responsible for our loyalty to the United States. Our duty to the Philippines means that we must take the leadership there. And we must also lead in the rebuilding of the new Orient. The Malayan lands, freed, must have leadership they trust and understand. We Filipinos must have trade and cooperation with our neighbors: we cannot live isolated from the rest of the Orient. The United States has already set up trade barriers against us. Furthermore, America has taught us well: now it is our duty to pass the teachings on to these other lands that will be freed from the Japanese invader, and freed also from European "colonizers," by the same army of the United Nations.

All this was bound up in the oath that we took at Camp Beale, as we stood in our Victory formation, as we saluted the American flag, proud American soldiers!

We are the Advance Echelon of the Army of the United States of the Orient.

7. Rosa Roberto Carter Recalls Starvation and Loyalty Interrogation in Guam, 1941–5 (2003)

When Japan occupied Guam 62 years ago, I was 12 years old, the oldest child in our family. My mother would have another child during the occupation, and her last one after the war, for a total of nine of us who made it through childhood. In regard to physical damage from the war, I am sure the effects of malnutrition on my parents, as well as nine of us kids, was severe in both the near term and over the following years.

There's no way to know all the negative effects of the two years of malnutrition we were forced to experience during the occupiers who confiscated our food for themselves. In the last two weeks, they forced us into more difficult situations involving a forced march and virtual imprisonment in a squalid camp, where there was no food at all. We older kids foraged for our family, searching wild lands for many miles. We nearly starved to death at that time.

In regard to immediately visible physical damage, most of us suffered wounds from being forced into the jungle, where we contacted scarring napalm from the United States bombing of the Japanese. When the bombing stopped, we were forced to go back to clearing bushes, which were dripping with this napalm. And in a proper setting, I could show you some scars, which have irritated me for 60 years. One of my brothers lost parts of two fingers, as well, from the live ammunition scattered over so much of Guam after the fighting in 1944.

And at one time, I found myself clinging to a large breadfruit tree while American planes attacked. Human limbs, arms and legs, flew through the air on their own. People screamed in the grip of hysteria. I saw people going berserk.

My own forced labor consisted, at first, of clearing fields in the Mangilao area. My brother Juan was also forced to do this too. At this time I was singled out by the Japanese soldiers, locked up in a tiny room at the old Price Elementary school house, and interrogated about my loyalty to the United States. It may have had something to do with my slightly lighter skin color, but the terrifying experience is still vivid in my mind. Also, at this time, I was given the extra duty of carrying their lunches to Japanese soldiers located at the present site of the Father Duenas Memorial School.

Our forced march started for me late one afternoon, when my brother and I returned from working in the fields to find my parents and my siblings loading our bull cart with as much food and personal belongings as possible. People congregated at the Mangilao school areas, where the trek to Manenggon concentration camp started around twilight. We trudged along on foot all night. Weak people fell by the way side. I do not know what happened to them.

From Real People. *Real Stories*, the Guam War Claims Review Commission public hearing held in Hagåtña, Guam, December 8, 2003, http://guamwarsurvivorstory.com.

In regard to the constant terror of being an occupied people, earlier in Mangilao, many of us were forced to line up in orderly rows to witness the beating of a family for the crime of trying to hide some of its food from the Japanese occupiers. If we showed any emotion, we would have been beaten too. We practiced a code of silence because that means collaborators might be anywhere at any time.

Near the end of the war out here in Guam, because tomorrow men were being forced to the front lines where they were to be sacrificed as human targets, my father went into hiding. As a survivor, immediately he led his entire family back to Mangilao. The regimentation of our lives extended to digging our own graves in the last days at Manenggon.

8. Ben Blaz Describes the Lessons of the Liberation of Guam, 1945 (1994)

My generation was caught between childhood and adulthood. The unexpected and violent interruption of our lives and the common adversity that we shared gave our parents and elders an unusual opportunity to inculcate in us much more vital learning than we could have received in calmer times.

Challenged by the threatening experience of war and pressed to our limits, we learned things about human nature and ourselves that we might never have been able to grasp in peaceful, less demanding, times.

We learned: to be tolerant when conditions were intolerable; to be generous when there was so little to give; to be patient when our deepest desire was to end our bondage; to be ourselves, preserving our language and culture while the enemy was trying to impose his on us.

Life seemed more endangered, more tentative, and therefore, more precious then. We learned through toil the sweetness of the saltiness of the sweat that trickled down our faces at the peak of a hard day's work.

We clearly saw and keenly appreciated the basic choices of life, between freedom and bondage; justice and oppression; hope and despair; surviving and perishing. Through the heat and dust and smoke, we saw ourselves and what we stood for.

There were many painful experiences in that dark period in our history. But there were also many pleasant memories:

—The long hours on a log with our parents sharing their thoughts and experiences with us much like the generations before them had done; but with greater urgency as the winds of war swirled around the island;

—The groups of neighboring farmers who pooled their strength to push back the jungle so we could plant; The women caring for the sick, working the gardens preparing food over open fires;

—The men echoing each other's folksong at twilight as they cut tuba [coconut tree sap used to make liquor];

Ben Blaz, "Chamorros Yearn For Freedom," in *Liberation: Guam Remembers* (Agana, GU: Golden Salute Committee, 1994), 92–94.

—The labor camps where we realized how we had to protect each other, how we had to care for one another as an island family;

—The devout men and women who emerged as our natural leaders and who would always lead us in prayer during our most trying and fearful moments as we labored to finish our forced labor projects under incredible duress;

—There was the young Japanese officer who taught me elementary Japanese in exchange for my father teaching him English and who, after getting to know us, innocently asked my father why we were at war;

—There was this same officer who came to say good-bye and as he left to defend against the invasion, I felt an indescribably mixed emotion of seeing a new friend leaving to fight those coming to liberate us;

—There were the U.S. Marines, the soldiers, the sailors and the Coast Guardsmen who, after hopping from island to island, liberated one of their own and seemed as glad as we were that they had come back to Guam;

—And there were the joyous faces of my fellow Chamorros, 23,000 strong, who had endured 31 months of harsh enemy occupation, including internment in concentration camps, in a war they had no part in starting.

As excruciating and as harrowing as the occupation was, our people did not surrender without a fight and did not stop fighting after the surrender. In the face of an overwhelmingly larger enemy force, a handful of U.S. sailors and Marines stood their ground. Standing beside them, with equal valor and courage but even with greater pride and determination, were the members of the Navy Insular Force Guard.

For these men, Chamorros all, the defense of Guam meant the defense of home, family and honor. Although they wore the same U.S. Navy uniforms, their pay was exactly one-half that of the stateside comrades. Although they fought under the same U.S. flag, they were considered only half-brothers in the patronizing, colonial society on Guam at that time.

Yet, when it came time to shed blood against foreign invaders, the Chamorros of the Navy Insular Force demonstrated their loyalty to the United States in the same way they demonstrated their love for the U.S. principles of freedom and democracy: not halfheartedly, but totally and wholeheartedly.

It is that commitment to home, family and honor that has sustained us over the years as a people. In the years since [Ferdinand] Magellan landed on Guam, our people have been colonized, proselytized, Catholicized, and subsidized. Guam has fallen under Spanish, American, Japanese and again American rule.

But never have we been asked what we as a people wanted. Progress, whatever there was of it, moved at a pace of the administering authority. It was his choice to uncover or cover at his will what he wished to know about us, and it was our lot to remain mute to the process. The attitude developed that the foreigners' right to dominate the land was established by their finding it, and the people - like the flora and fauna - had no alternative but to acquiesce in silence.

The Spaniards made Guam their own, but never did they ask the Chamorro people, the Old People, what relationship should be forged with them. Nor, centuries later, when the United States took control of the island did it ask the descendants of those Chamorros and those Spaniards what association should be formed.

We must wonder why the colonizing forces never asked this most fundamental question. Perhaps they felt that the new order they were bringing was so progressive that the people could not help but be overjoyed to embrace it. Or perhaps the ugly hand of racism was at work, and they believed the people could not tell the difference between freedom and subjugation.

Whatever the case, with the close of the war and with increased education opportunities becoming available to the people of Guam, those of my generation realized the disparities we had accepted without question for so long did not have to be the case. It was as if we had been born blind and then miraculously had been given sight.

It came as a shock to realize that darkness was not inevitable nor the natural state of the world. And so it was we who realized that we were not a second class people. Invisible barriers were just that—invisible and without reason. New horizons revealing incredible vistas began to open before us. We had been told for generations, for example, that should we join the Navy, we were worthy to serve as servants, as stewards. My generation began to ask: And why not officers? There was no reply.

And so slowly at first, and then with accelerating force, we set out on a quest to achieve our self-determination as a people—economically, culturally, and politically. Genuine self-determination, if the word is to have any meaning, is a self-help program. If you truly want it, if it truly means anything to you, you must reach out for it and grasp it as your own. That we have done.

During the 25th anniversary celebration in 1969, one of the most distinguished officers in the Marine Corps, Gen. Lemuel C. Shepherd, was our guest of honor. Having commanded one of the major units that liberated Guam, Gen. Shepherd had a very special place in his heart for the people of Guam and, in particular for those under his command who were killed in action during the fighting. I remember still his closing remarks before a full house at the Guam Legislature: "When I get to heaven," he said, "my men who died here during the war will be at the gate waiting for me with this question: 'Lem, was dying for Guam worth it?' My answer to them will be that having just visited Guam recently, the answer is, you damn right it was."

In closing my recollections of this very auspicious occasion, I cannot resist the urge to share an exchange I had with my own father as I was about to leave Guam after spending a week's leave following my graduation from Notre Dame and my being commissioned a second lieutenant in the U.S. Marines.

Departing with me that day was a group of young Guamanians who had just been recruited in the Army and on their way to basic training. As with me, most of them would eventually find themselves serving in Korea. Unlike me, however, some of them would die there and others would return home with lives and limbs shattered forever.

It made for a large group, the recruits and their mothers and fathers, brothers and sisters, aunts and uncles, and me and my family. We made our way to the tarmac for our final good-byes, and as I gathered my things for boarding, my father grabbed my arm.

In his eyes was the old fierceness, and despite his failing health, he was the robust and feisty man who had been a boxer and a fighter for equality. To my utter amazement, he said to me, "Since you are now an officer of the United States, Lieutenant, answer me this. Why is it that we are treated as equals only in war but not in peace?"

Still holding my arm, he pulled me to him and said, "You don't have to answer now. Just remember that the quest must endure."

My chest was tight as I said, "Yes, Sir."

As I finished kissing him good-bye, he whispered, "By the way, you never did return the salute I gave you when you first arrived." I stepped back from him, and standing ramrod straight, I brought my hand to my forehead in a crisp salute but my arm was trembling from the unexpected and affectionate admonition from my Navyman father.

To this day, my father's question continues to haunt all of us, but at least we now have that question formalized and on the Congressional table - the Commonwealth of Guam.

On this, the 50th anniversary of our liberation, we will be shedding a few tears—of gratitude to our liberators; of remembrance of our brothers and sisters who suffered with us but are unable to join us; and of thanksgiving as we thank Almighty God for all the blessings that have come our way during these golden years.

But after those tears have stopped and have become a precious memory for us all, we must remember that the work begun by the Liberators in 1944 is not yet complete. The people of Guam picked up the torch of freedom passed to them on July 21, 1944. All who call Guam home have worked so hard and so determinedly that the entire world can see the island and its people have come so far from that terrible time of long ago.

But true self-determination and equality still evade our people. Thus, the quest endures.

ESSAYS

These two essays address how World War II improved the status and treatment of Asian Americans whose homelands had joined the United States in fighting Japan. In the first essay, Xiaojian Zhao, a professor of Asian American Studies at the University of California, Santa Barbara, shows how the lives of approximately 500 to 600 Chinese American women in the San Francisco Bay area were transformed when they left Chinatown to become well-paid defense workers. Helping to shape a new positive image of Chinese Americans, many of these second-generation women were proud of their contributions to the war effort, even though discriminatory policies denied them promotions and supervisory positions. In the second essay, Jane Hong, an assistant professor of history at Occidental College, situates the repeal of Asian exclusion laws within the context of U.S. military intervention in Asia. Hong discusses how white lobbyists countered Chinese exclusionists by presenting the repeal as a necessary measure to defeat Japan. The repeal of Chinese exclusion established a model other

groups could use to mobilize American geopolitical interests in Asia and counter anti-American propaganda about racism, discrimination, and colonialism in the United States. Indian activists won the repeal of exclusion laws not because they were considered desirable immigrants but because the U.S. government wanted to establish a Cold War alliance with India.

World War II and Chinese American Women Defense Workers

XIAOJIAN ZHAO

In February 1945, *Fortune Magazine* published an article on the Kaiser shipyards in Richmond, California, including eight photos of the shipyards workers. One of the captions for the photos says, "Chinese Woman: she hasn't missed a day's work in two years." This woman was Ah Yoke Gee, a welder in Kaiser Richmond Shipyard Number Two. The weekly magazine of the Kaiser Richmond shipyards, *Fore 'N'Aft*, described her as one of the oldest crew members of the Richmond shipyards. From July 31, 1942, when she started to work in the shipyard, to April 20, 1945, Ah Yoke Gee had missed only one day of work to spend time with her oldest son, a serviceman who was passing through San Francisco on his way to the Pacific front. At a time when there was a shortage of labor, Ah Yoke Gee's story was apparently useful for the Kaiser company's public relations. Here, a middle-aged Chinese American woman was being recognized as a patriotic, hardworking defense worker, who was doing her best to contribute to the nation's war effort.

Ironically, this model shipyard worker had been deprived of citizenship by her own government. Born in 1895 on the Monterey Peninsula in California, Ah Yoke Gee was a second-generation Chinese American for whom U.S. citizenship was a birthright. Her legal status changed, however, after she married a Chinese immigrant from Hong Kong. During the period of Chinese exclusion from 1882 to 1943, Ah Yoke Gee's husband, an alien from China, was racially ineligible for naturalization. Moreover, the Cable Act of September 22, 1922, stipulated that women citizens who married aliens ineligible for citizenship could no longer be citizens themselves. Though Ah Yoke Gee worked for the nation's defense industry, she could not vote as a citizen. Her daughters recalled that she had been very upset about losing her citizenship because she always considered herself an American. At age forty-six, she finally had the opportunity to work in a defense industry to demonstrate her patriotism to her country. It was also during the war that Congress repealed the Chinese exclusion laws and made it possible later for Ah Yoke Gee to regain her citizenship through naturalization. Unfortunately, her husband, who died before the war, did not live to see the happy day. Ah Yoke passed away in 1973.

Xiaojian Zhao, "Chinese American Women Defense Workers in World War II," *California History*, 75, no. 2 (Summer 1996): 138–153. Reprinted by permission.

World War II marked a turning point in the lives of Chinese Americans. For the first time, Chinese Americans began to be accepted by the larger American society. Chinese American women not only had a chance to work at jobs traditionally held by men, but were also allowed to show their loyalty to their country....

Since the United States and China were allies against common enemies during the war, American images of Chinese began to change from negative to positive ones. Whereas, once, negative stereotypes of the Chinese had dominated popular culture, the American mass media now described the Chinese as polite, moderate, and hard-working. On December 22, 1941, *Time* magazine, for example, published a short article to help the American public differentiate their Chinese "friends" from the Japanese. The facial expressions of the Chinese, according to the article, were more "placid, kindly, open," while those of the Japanese were more "positive, dogmatic, arrogant." Also, because World War II was considered by the American public as a "good war" against fascists who had launched a racist war, it was important for the United States itself to improve its domestic race relations....

After decades of isolation imposed by the larger American society, the Bay Area Chinese American communities lost no time in seizing this opportunity. In various meetings and social gatherings, community leaders and organizations urged Chinese American residents to participate in the war efforts. Because military service would qualify immigrants for U.S. citizenship and some Chinese immigrants had been granted citizenship while in the Army, it was considered a breakthrough in challenging the exclusion acts. *Jinshan shibao* (Chinese Times) published a number of articles regarding the advantages of defense jobs. First, defense jobs were well paid. Second, these jobs could be used for draft deferment. Third, defense employees could apply for government-subsidized housing, which provided a great opportunity for Chinese Americans to move out of their isolated ethnic ghettos....

Given the social isolation of the immigrant generation, it is not surprising that the Chinese American women who worked in defense industries were mostly the second-generation daughters of immigrant women....

Since most of them were already living in the Bay Area before the war, these younger Chinese American women were among the first American women to join the Bay Area's defense labor force. As early as May 1942, the *Chinese Press* reported that young Chinese American girls were working in most of the defense establishments in the region. At the Engineer Supply Depot, Pier 90, eighteen-year-old Ruth Law was the youngest office staff member in the company. Her co-worker, Anita Lee, was an assistant to the company's chief clerk. Fannie Yee, a high school senior at the time, won top secretarial honors for her efficiency at work at Bethlehem Steel Corporation in San Francisco. She worked with two other young women, Rosalind Woo and Jessie Wong. The major defense employers in San Francisco for Chinese American women at the time, according to the *Press*, were the Army Department and Fort Mason. In Oakland, the Army Supply Base recognized Stella Quan as a very capable clerk. The first two Chinese American women who

worked at Moore Dry Dock Company were Maryland Pong and Edna Wong. The State Employment Bureau also had Chinese American women on its staff. Before Kaiser's Richmond shipyards and Marinship began production work, many young Chinese American girls worked at Mare Island Navy Shipyard. Among them were Anita Chew, Mildred Lew, and Evelyn Lee of Oakland. Both Jenny Sui of San Francisco and Betty Choy of Vallejo started as messenger girls in the yard, but they were soon promoted to clerk-typists....

Unlike single young women, it was much more difficult for married Chinese American women to take defense jobs unless they did not have small children at home. After she married, Ah Yoke Gee spent most of her time at home taking care of her six children. She kept her sewing machine running whenever she was free from household chores. One of her daughters remembered that sometimes she woke up at two o'clock in the morning and could still hear her mother sewing. By the time the war started, Ah Yoke was widowed. Two of her older children had left home and the rest of them were in either high school or college. Although she still cooked for her family, her children had their own routines and did not expect to be served in a formal way. Every morning before leaving for her swing shift job in the shipyard, Ah Yoke would cook enough food for the whole family for the day. On weekends she shopped, washed, and cleaned.

Maggie Gee, Ah Yoke Gee's daughter, was born in Berkeley....

On December 7, 1941, Maggie was spending the afternoon studying in the campus library. She found many students there talking very emotionally. Maggie sensed that something unusual had happened. To Chinese Americans, World War II had begun on September 18, 1931, when the Japanese invaded Manchuria in northeastern China. Maggie had been in the fourth grade at the time. Her mother had planned to send her and her sister to China to study, and they had to cancel the trip after the Japanese occupied Chinese territory. After July 7, 1937, when the Japanese attacked Chinese troops at Lugou Bridge near Beijing, the war against Japan became a nationwide effort in China. Overseas Chinese were actively involved in supporting their fellow countrymen. Maggie often went with her mother to San Francisco's Chinatown to attend rallies and fund-raising activities. She remembered how badly she felt when she learned about the outrageous atrocities during the 1937 Nanjing Massacre, but she was surprised to notice that her American classmates knew very little about what had happened in China. Not until Pearl Harbor did everyone seem involved in the war effort. The Berkeley campus offered classes for defense employment, in which Maggie and many other students received training. While still a full-time student at Berkeley, she got a graveyard-shift job at Richmond Shipyard Number Two.

Wartime employment provided tangible benefits to many Chinese Americans. "For people who used to have very little money," recalled Aimei Chen, "the war was a time of great economic opportunity." She started to buy things for her family—food, kitchen-ware, and other household items. Aimei's mother also got a job in a cannery in Stockton, where many former employees had left for defense jobs. Yulan Liu, meanwhile, made $65 a week, four times more than she had

made before the war. She gave some money to her mother and saved the rest for herself. On her day off, she went to the movies and bought herself candies and pastries. As for Ah Yoke Gee, her family endured great difficulties for many years after she lost her husband. During the war, with both her and her daughters working in the shipyard and her son in the service, the living standard of the family improved significantly....

Although Chinese Americans were accepted in defense industries, they had little chance to be promoted to supervisory positions. Many companies simply assumed that white employees would not follow orders given by Chinese....

Ah Yoke Gee loved her job in the shipyard so much that she would not leave it for anything else. She knew that other jobs would not pay as well. Aimei Chen also wanted to stay at her defense job. Since so many white women were then also job-hunting, the chances for her to find a good job were slim. By late 1945, however, most of the Bay Area's defense establishments were about to shut down, and large-scale lay-offs began. With limited training and skills, these women could not find jobs in other industries; they had to look for jobs that were traditionally held by women.

These Chinese American women's wartime work nevertheless had important consequences: their lives were no longer restricted within their ethnic communities. Most of them found jobs outside Chinatowns as race relations and the economy improved in the postwar years. Ah Yoke Gee took a job at a post office in Berkeley, where she worked until her retirement. Meanwhile, she became actively involved in Berkeley's Chinese American community. Aimei Chen married and moved with her husband to Berkeley. Under the GI Bill, her husband became an engineering student at the University of California. Aimei found a job as an office clerk in a small firm, where she worked until her first child was born....

While acknowledging that World War II brought significant changes to their lives, many Chinese American women noticed that racial discrimination and prejudice did not disappear after the war. They continued in subtle ways. When Maggie Gee and her sister tried to find an apartment in Berkeley in the early 1950s, they knew that some people would not rent their properties to Chinese Americans. So they told people their ethnic identity when they first inquired over the telephone. At least in one case, a landlady refused to show the sisters the apartment when she learned that they were Chinese....

The young Chinese American women who participated in defense work had had fresh memories of discriminatory practices in American society before the war, and they were fully aware of the political implications of taking defense jobs. Although very few of them were able to keep their jobs after the war, and some of them might not necessarily have cared about the limited skills that they acquired, what they had accomplished was far more significant than the jobs themselves. They were accepted, for the first time, as Americans, even though most of them were born in the U. S. and had been Americans since birth. To a large extent, the war provided an entry for Chinese American women into the larger American society, something for which their ancestors had struggled a hundred years.

The Movement to Repeal Asian Exclusion

JANE HONG

The 1943 Magnuson Act marked both an end and a beginning. Popularly known as the "Chinese Exclusion Repealer," the legislation overturned all Chinese Exclusion legislation passed between 1882 and the early 1900s, gave China a race-based immigration quota of 105 persons per year, and made Chinese persons eligible for U.S. citizenship for the first time in U.S. history. On the one hand, the 1943 Act followed decades of activism by Chinese, Chinese American, and white American advocates to end America's exclusionary policies against Chinese people. On the other, the Magnuson Act provided a roadmap to success for groups of Indians, Filipinos, and Japanese and their advocates and allies to seek repeal legislation benefiting their own communities.

Understanding the Chinese repeal effort as part of a longer movement to end Asian Exclusion as a whole that extended from 1943 to 1965 reveals it as a the first of several legislative campaigns that together dismantled the exclusionary regime. This essay focuses on the Chinese and Indian campaigns of the World War II years. The Magnuson and Luce-Celler Act lobbies built upon the Chinese effort's success, adapting lessons from its organization, argumentation, and strategy. Chief among these was the leveraging of geopolitics. Throughout successive campaigns for repeal, advocates crafted their appeals to capitalize on the political cachet of U.S. foreign policy interests in Asia, as the region became a major site of Cold War conflict. The longer movement culminated in the 1965 Immigration Act, which overhauled the immigration system, replacing the national origins quota system with preferences based on occupational skills and family relationships.

World War II provided a confluence of international and domestic developments that made the repeal of the Chinese Exclusion laws politically viable as never before. For decades, U.S. and Chinese officials agitated against the Exclusion laws as an impediment to Sino-American diplomacy, but U.S. Congressional lawmakers felt little need to address them in light of China's weakness on the world stage. Japan's surprise attack on Pearl Harbor war changed their minds. America's entry into the war made the United States and China, led by the Nationalist regime of Chiang Kaishek, military allies and partners for the first time as the United States joined the Pacific War against Japan. Never before had Americans fought alongside an Asian power as formal allies, and never before had U.S. policymakers had such incentive to maintain a strong relationship with China. Washington's top priority to defeat Germany on the war's Western front, known in shorthand as the "Europe First" policy, threatened this partnership. Throughout 1942, Washington diverted the bulk of U.S. troops and resources to Europe, leaving the war-weary Chinese to bear the brunt of Allied casualties in Asia. As U.S. promises of aid and supplies repeatedly failed to materialize, Chinese morale and goodwill toward the United States suffered.

Jane Hong, "The Movement to Repeal Asian Exclusion," from Reorienting America: Race, Geopolitics, and the Repeal of Asian Exclusion, 1940–1952 (PhD diss., Harvard University, 2013). Reprinted by permission.

Japan sought to exploit the strain in the Sino-American alliance with radio campaigns singling out America's history of exclusionary laws against Asians, and Chinese in particular. In messages aired throughout occupied Asia, Japanese-controlled radio derided American claims to democracy, while calling on Asian audiences to unite under Japanese leadership against the forces of white, Western imperialism. The special publication and distribution of a pamphlet excerpting similar Japanese broadcasts for the House Committee on Immigration and Naturalization in 1943 ignited alarm among Congressional lawmakers. Its contents identified America's exclusion laws as a major impediment to U.S. wartime goals in the Pacific.

More than any other single factor, these attacks on America's anti-Chinese and anti-Asian laws strengthened the case for repeal of Chinese exclusion. Impressed with the necessity of keeping China in the war against Japan at all costs, Roosevelt and the U.S. State Department turned to concessionary, symbolic gestures to reassure Chinese officials of America's commitment to the Pacific front. In January 1943, Washington renounced its extraterritoriality privileges in China with an official abrogation of the unequal treaties. One month later, Congressional sponsors timed the introduction of the first Chinese repeal bills in February 1943 to coincide with a U.S. visit by Soong Meiling, Chinese Nationalist leader General Chiang Kaishek's Wellesley-educated wife. Soong became a media sensation, unleashing an outpouring of public support for America's Chinese allies. On a stop in Washington, DC, she addressed a joint session of U.S. Congress to request more American aid to China in the Pacific War against Japan. America and the other Allied powers had it wrong, she suggested, if they believed that Germany was a greater threat than Japan; such a belief was "not borne out by actual facts," as Japan had far "greater resources at her command than Germany." Working behind the scenes, Soong and Chinese consular officials seized the opportunity to express their support for the repeal measure through private diplomatic channels. They emphasized the boon it promised as a means to restore and strengthen the Sino-American alliance.

The Citizens Committee to Repeal Chinese Exclusion and Place Immigration on a Quota Basis, the white American group that spearheaded the public lobby for repeal through the spring and fall of 1943, made the argument the focus of its campaign. Framing Chinese exclusion repeal as a war measure had several advantages. Above all, war-related arguments were politically powerful during a time when winning the war was paramount both in the minds of Washington officials and the American public at large. Even the most reluctant Congressional lawmakers felt hard-pressed to deny a Chinese ally under duress lest it undermine or otherwise delay the objective of Allied victory. Furthermore, war arguments had broad appeal to an anxious American public, enabling supporters to market the cause to a general American audience beyond China enthusiasts alone. If repeal was primarily about the war, the logic flowed, it was a matter that concerned all Americans committed to an Allied victory on the Pacific front, and not simply those who took a personal interest in the Chinese.

Founded by New York-based publisher Richard Walsh, the Citizens Committee brought together some of the most powerful white American friends of

China around a common cause. As political scientist Fred Riggs has shown, the group did not generate new public interest in China so much as it coordinated the efforts of those already seeking repeal, including religious and liberal groups. Within government circles, U.S. State Department officials and other internationalists in the executive branch joined a small bipartisan core of Congressmen and women to draft and sponsor legislation, petition committees, and secure powerful endorsements in the effort to convince lawmakers to vote for repeal. Under Walsh's leadership, these diverse forces launched a broad publicity campaign using churches, direct mailings, radio broadcasts, and strategically placed editorials to rally public support for the Chinese cause.

Far from challenging the racial ideas and prejudices that underwrote exclusion, the Citizens Committee relied on a strategy of political expediency and pragmatism to win the support of U.S. lawmakers. This included a policy of restricting membership to white American citizens only. Thus, even as Chinese American activists agitated and editorialized in support of repeal, they largely did so behind the scenes and in Chinese-language forums, downplaying their public involvement for fear of inciting backlash or creating the impression that repeal was a Chinese cause. Chinese Americans also provided financial support, contributing a significant portion of the Citizens Committee's overall budget.

The Citizens Committee capitalized upon public support for China to push the Magnuson bill through a conservative coalition of restrictionist Southern Democrats and Western Republicans who maintained a majority on the U.S. House and Senate Immigration Committees. Citizens Committee members also strategically neutralized the opposition of groups that had long opposed Chinese immigration, including veterans' organizations, West Coast interests, and self-described patriotic societies. These groups took special issue with Congress passing the Chinese repeal bill on the grounds that doing so would invite "hundreds of millions of other Asiatics" to "ask for that same thing."

Their fears were prescient. Other Asian groups took the passage of the Magnuson bill through Congress on December 17, 1943 as a rallying cry. While President Franklin Roosevelt called the bill a "manifestation on the part of the American people of their affection and regard" for the Chinese people, declaring that the "war effort in the Far East [could] now be carried on with a greater vigor and a larger understanding of our common purpose," activists introduced a flurry of legislation proposing similar rights for Indians, Filipinos, and Koreans, among other groups, confirming the law's critics were right. No longer compelled to be discreet lest they jeopardize the Chinese campaign, Indian and Korean advocates began lobbying for their own communities in earnest.

World War II ultimately did not enable the passage of additional repeal legislation, but its conclusion brought an era of decolonization in Asia that would be the backdrop for the next phase of the repeal movement. As in the Chinese campaign, Indian and Korean advocates looked to the language of geopolitics as a political tool, but the problem of colonialism made their task fundamentally different. The Magnuson Act reflected a negotiation between sovereign states; the question of granting rights to Asian colonial groups involved their struggle for independence and the United States' relationship with their colonial oppressor.

The campaign for the rights of Indians would find success soon after World War II. As Indian independence from Great Britain looked increasingly likely, advocates in the United States (and in India) successfully pointed to the claims of a soon-to-be independent India that could ally with the United States—or its adversaries. They argued that legislation giving rights to Indians would invite support. It would also uphold Washington's claims, as articulated in the 1941 Atlantic Charter, to support self-determination. The result was the Luce-Celler Act of 1946. Among its provisions, the Act granted India an annual immigration quota of 100, to take effect upon the subcontinent's independence from Great Britain. In addition, it made Indians racially eligible for U.S. citizenship as exceptions to the blanket ban on naturalization for Asian peoples. (It also extended U.S. citizenship eligibility to Filipinos, whose status had changed from "American nationals" to "aliens" when the Philippines became a U.S. protectorate in 1935.)

Anti-colonial struggles made the approach Indian lobbyists took to legal victory fundamentally different from the approach of Chinese activists and their advocates, in spite of the fact that several key figures such as Richard Walsh participated in both efforts. While some Indians living in the United States sought immigration and naturalization rights as a path to domestic incorporation, others framed the legislative struggle as an instrument to advance their India's independence struggles. The New York-based India League of America (ILA), under the leadership of Sikh merchant J.J. Singh, embodied this approach. He explicitly stated that he had no interest in becoming a U.S. citizen. The Luce-Celler legislation would have symbolic power in the fight for Indian independence. If India's future lay in achieving equal status and recognition in the international community, he and other India League advocates argued, an American bill granting Indians nominal parity with European peoples under U.S. immigration and naturalization advanced the goal of Indian independence as a goodwill gesture affirming the nationalist aspirations of Indians everywhere.

This argument represented a continuum with the ILA's founding principle; it also brought conflict with another New York-based organization called the India Welfare League of America (IWL). Indian elites living in New York City had founded the ILA in 1937 to "interpret India and America to each other." By contrast, a group of Indian factory and blue-collar workers had created the IWL as a relief organization for unemployed members of their community. The IWL had been advocating since at least 1939 for an Indian citizenship bill that would provide U.S. naturalization eligibility to longtime Indian residents of the United States; unlike the ILA-endorsed Luce-Celler bill, the IWL's version made no mention of Indian immigration. In keeping with the IWL's focus on the practical needs of its members, it traded symbolism for the ability to maintain residency and a livelihood in the United States.

The India League proved the victor, ultimately, as Washington officials remained more interested in cultivating the goodwill of Indians in India than that of Indian immigrant communities stateside. But the success of drawing a connection between repeal and independence was by no means assured as the bill made its journey through Congress. Critics of the legislation also opposed passage on geopolitical grounds, saying it would strain the Anglo-American relationship. One

U.S. lawmaker, for example, objected that the British might interpret passage of the act as an American attempt to "alienate the affections of some of their oppressed Empire people." Others claimed that conscience barred them from voting for the Luce-Celler measure in advance of a formal statement from Whitehall [the British government]. While the voting records of a number of these lawmakers suggest that they would have opposed any bill to liberalize immigration on principle, India's colonial status offered ready grounds for opposition.

Just as Chinese officials working in the background had been decisive in the passage of the Magnuson Act, Indian officials within the British colonial government at Delhi, working mainly through diplomatic channels and outside of the public eye, proved critical to the success of the Luce-Celler bill. In the spring of 1945, when restrictionists tabled the bill in the House Immigration Committee, it was the private lobbying of Delhi's representative to Washington, Sir Girja Bajpai, that revived the legislation. Most critically, Bajpai secured an official endorsement for the Luce-Celler bill from the British Government at Whitehall. Recognizing that tensions with the Indian Congress threatened the war effort in the Pacific, British officials expressed support for the Luce-Celler bill as a "gesture of friendship" honoring India's past military contributions and anticipating its future role in finishing the fight.

With British support assured, the ILA and its advocates moved quickly to expedite another hearing on the Luce-Celler bill before the Congressional session ended. The U.S. House Committee on Immigration convened within weeks and reported the measure out favorably in late June 1945. One month later, British parliamentarian Clement Attlee replaced staunch imperialist Winston Churchill as the British Prime Minister; Attlee accelerated the decolonization process and U.S. policymakers soon recognized Indian independence as imminent. That fall the Luce-Celler bill passed the full U.S. House of Representatives by a vote of nearly three to one. While restrictionists on the Senate Immigration Committee proved a roadblock, President Truman's personal intervention prevented a stall and the measure proceeded to the Senate floor for a vote in June 1946, where it passed easily. Truman signed the Luce-Celler bill into law on July 2, 1946.

The passage of the Luce-Celler bill unleashed a wave of congratulatory and jubilant reports in both the United States and Indian media. Upon Pakistan's creation in 1947, Congress quietly extended the immigration quota and citizenship eligibility given to Indians to Pakistanis as well. The wholesale repeal of restrictive race-based Asian quotas would not come until 1965, however, when the Hart-Celler Act (or Immigration Act of 1965) abolished the national origins quota system once and for all.

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CHAPTER 10



Asian Americans and the Cold War, 1945–1965

After World War II ended, international affairs continued to impact Asian Americans who, regardless of their generation, were still viewed as foreigners by the majority of Americans. Once a hated foe and an occupied country, Japan became a vital friend of the United States and the site of bases strategic to the U.S. effort to contain Communist aggression in Asia. China, on the other hand, went from being a World War II ally to a feared adversary after Mao Zedong and his Communist troops took over the country in 1949. Tension escalated during the Korean War (1950–1953) when Chinese Communists joined North Koreans in combat against South Korean and U.S. forces. American popular media resurrected exclusion era images of "yellow hordes" bent on world conquest. While the U.S. government distinguished between the "bad" Communist China on the mainland and Chiang Kai-shek's "good" Chinese nationalist forces now on the island of Taiwan, the FBI and the Immigration and Naturalization Service suspected all Chinese Americans of being Communist spies. They kept Chinatowns under surveillance, harassed leftists, and evoked fears that Chinese Americans might suffer the internment Japanese Americans experienced during World War II.

The intense ideological war between communism and capitalism during the late 1940s and 1950s also affected American immigration and naturalization policies. Mindful of Communist indictments of American racism, U.S. politicians called for the removal of racial barriers to immigration and naturalization. The 1952 McCarran–Walter Act provided a mixed response to these reform efforts. The act failed to eliminate the national origins quota system that severely limited immigration from non-Western countries. In addition, it counted Asian immigrants, unlike other immigrants from Europe, not by their place of birth but by their racial ancestry. Thus an individual of half Indian ancestry who was born in Britain was included in India's immigration quota. The legislation also instituted loyalty tests to prevent "subversives" from entering the United States, expanded the ideological and moral criteria for preventing admission, and facilitated the deportation of "undesirable" immigrants.

At the same time, Japanese Americans praised the McCarran–Walter Act for ending Japanese exclusion by granting Japan a token annual immigration quota of 185 and for granting Japanese immigrants the right to become U.S. citizens. As a result of this and other changes in national and state laws, Asian immigrants were no longer relegated to the status of "aliens ineligible to citizenship" and therefore were no longer subjected to alien land laws that denied them the right to own property.

Refugees from the Korean War began migrating to the United States during the 1950s. Often called the "Forgotten War," the civil war in Korea became the first "hot war" of the Cold War. Beginning in 1950, just five years after liberation from Japanese colonial rule, the war permanently divided Korea into North and South, separated nearly 10 million people from family members, and produced, in 1953, an armistice that denied a definitive victory to either side. One million civilians in the South and two million civilians in the North died during the war and left numerous orphans. The division and militarization of Korea spurred many migrants—including military brides, adoptees, political exiles, job seekers, and international students—to leave South Korea. In 1955, evangelical Christians Harry and Bertha Holt started an adoption service for babies fathered and abandoned by U.S. soldiers. By the 1960s, many of these supposed "orphans" were in fact children given up for adoption because their mothers were unwed or their parents were poor.

DOCUMENTS

Documents 1 and 2 illustrate the intense conflict within Asian American communities generated by the Cold War. In Hawai'i, business leaders and conservative politicians used fears of communism to attack the growing labor movement in the islands by charging that strikes were instigated and controlled by Communists. The House Un-American Activities Committee held hearings in Honolulu in 1950 and a year later indicted seven people for violating the Smith Act by advocating the overthrow of the U.S. government. In Document 1, radical labor journalist Koji Ariyoshi, one of the seven arrested, denounced the indictment as an assault on union activism. Although the seven were convicted, the verdict was overturned in 1958 after the U.S. Supreme Court ruled that the First Amendment protected a person advocating for revolution or government change.

During the Cold War, white Americans' impression of Asian Americans improved because the United States was firmly allied with Asian countries in the fight against communism. The McCarran–Walter Act, excerpted in Document 2, embodied the new appreciation of Japanese Americans by ending Japanese exclusion and providing immigrants from Japan with naturalization rights. In Document 3, a *Life Magazine* editorial worries that Asians will view the discrimination against a Chinese American family in South San Francisco as a failure of democracy that could threaten American geopolitical interests in Asia.

Documents 4 and 5 illustrate how the U.S. occupation of Japan after World War II and the expansion of military bases throughout Asia affected

American perceptions of race and gender. Document 4 provides Setsuko Kamei Amburn's account of how she went from being the daughter of a Japanese samurai to a war bride in the United States. After finding well-paying jobs with the occupation forces, she began socializing with Americans, fell in love with one, married him, and moved to the United States. Popular culture reinforced acceptance of these interracial couples in the United States. In James Michener's popular 1953 novel *Sayonara*, Major Ace Gruver jilts his American sweetheart for being too independent and is drawn toward an exotic and passive Japanese woman who is eager to fulfill his every desire, even though Americans killed her father and brother during World War II. Document 5, a 1957 poster for the movie adaptation of *Sayonara*, shows Hollywood's depiction of a strong, virile, and masculine white American man rescuing a submissive and feminine Japanese woman.

Document 6 testifies to the enduring legacy of the Korean War on Korean Americans. It presents a public television interview with filmmaker Deann Borshay Liem about family, loss, and identity after the Korean War. Adopted by an American family when she was eight years old, Liem left South Korea for California in 1966. Her adoptive mother told her she was a Korean War orphan named Cha Jung Hee, but recurring dreams and vague memories of her family led her to investigate her past. In South Korea, she discovered her birth family and introduced them to her adoptive parents. After chronicling this journey in her film *First Person Plural*, Liem made another film, *In the Matter of Cha Jung Hee*, about her return to Korea to find the girl whose identity she assumed in the United States.

1. *Honolulu Record* Editor and Labor Leader Koji Ariyoshi Describes the Arrest of Seven Suspected Communists in Hawai'i, 1951 (2000)

The early morning arrest of seven members of this community, including the editor of the *Record*, raises the curtain in Hawaii on the intensified campaign to stifle independent thinking and free speech, a suppression which is becoming more urgent in the whipped-up war program, highly profitable to the big employers but not popular with the great masses of the people.

The attack upon the constitutional rights of the seven individuals who are charged under the notorious Smith Act of advocating certain ideas, but not of committing any overt act of crime, comes at the crucial moment of the sugar negotiations between Hawaii's Big Five and the ILWU [International Longshore and Warehouse Union]. On Lanai, 750 workers are on strike, and have been now for more than half a year, and Hawaiian Pineapple Company is letting a $25,000,000 crop rot to break the union.

From Kona to Yenan: The Political Memoirs of Koji Ariyoshi by Koji Ariyoshi, 1–5, © 2000 University of Hawaii Press. Used with permission.

One of the seven is the ILWU regional director. The others have been alleged by fingermen, stool pigeons and disgruntled former labor leaders to have influenced the policies of the union, a union in whose democracy its participating members take great pride.

As the longshoremen from Maui have already said, this is a move to discredit the ILWU which, nationally and locally, has not kow-towed to the war mobilization program that results in higher taxes and less pork chops, while destruction and death take place far from our shores to keep the pumps primed for the highly profitable war industry that benefits only big employers.

The arrest of the seven is said to fall into the "national pattern" by Justice Department propagandists. It is significant that the top publicity man of the Justice Department was brought here to drum up the allegation of "conspiracy" and the teaching of the overthrow of the government by force and violence.

Such preparation of the propaganda barrage was necessary to strike fear into the people, even after all these years of red-baiting the labor movement, particularly the ILWU, in order to isolate the leadership of the union from the membership, and the union itself from the rest of the island community.

A large segment of the people who have had close association with the seven must realize from their own experiences that the allegation of teaching the overthrow of the government by force and violence is fantastic. Subscribers to the *Record* have read views of the editor as expressed in the editorial column week after week for more than three years....

What is this "national pattern"? Those who ride the bandwagon of the witch-hunters say it is the arrest and incarceration of Communists, alleged Communists and non-conformists.

Let us look at the picture from the other side and ask a few questions: "Why the arrests?" "What crime or crimes harmful to the populace have these people committed?" "What purpose and whom do the arrests serve?"

Actually, the "national pattern" today is the attack against trade unions, the buying off of some top leaders, attempting to crush militant unions that do not conform, loyalty purges, a war scare to condition the people for continued mobilization, unprecedented profits for big industrialists and financiers whose key men run the government. We have big steals in war contracts, corruption and graft in government even involving the President's immediate staff—now the chairman of the National Democratic Party is implicated.

All these go on as the industrialists, who postponed a recession setting in two years ago by the war program, grab profits in the most ruthless manner. They dodge taxes, get plants built free with taxpayers' money, and constantly fight to raise taxes of the low-income earners, 10,500,000 families of whom live, according to a recent government report, on less than $2,000 a year.

More and more people are beginning to realize that the war program is a phony, despite the increasing attempts to instill fear and timidity to voice their disapproval....

Now, what has the *Record* done to bring similar attacks upon its editor? It is not a Big Five controlled newspaper. Last week, for instance, it reported that Davies & Company is laying off its 25-year men, all of Japanese ancestry. No

other newspaper has reported this major news in the community where job security is disdainfully ignored by big employers. The *Record* has criticized plantation conditions and has brought about improvements in housing on certain plantations. And the *Record* is the only newspaper that supports unions and the workers in the Territory.

The jailing of its editor will not suspend its publication. There will be others to carry on, and there being no monopoly of ideas, there are many more coming up who will see the injustices in these islands and raise their voices against them in order to improve conditions....

The hope lies in the people, here and on the Mainland. We have deep faith in them to struggle for progress. It is the duty of those who understand the situation, including those who have been silenced, to awaken the conscience of the whole populace.

2. Congress Expands Immigration and Naturalization Rights for Asian Immigrants, 1952

Chapter 1—Selection System/Numerical Limitations

Sec. 201. (a) The annual quota of any quota area shall be one-sixth of 1 per centum of the number of inhabitants in the continental United States in 1920, which number, except for the purpose of computing quotas for the quota areas within the Asia-Pacific triangle, shall be the same number heretofore determined under the provisions of section 11 of the Immigration Act of 1924, attributable by national origin to such quota area: *Provided*, That the quota existing for Chinese persons prior to the date of enactment of this Act shall be continued, and, except for as otherwise provided in section 202(e), the minimum quota for any quota area shall be one hundred....

[Sec. 202. (b)] (4) such immigrant born outside the Asia-Pacific triangle who is attributable by as much as one-half of his ancestry to a people or peoples indigenous to not more than one separate quota area, situate wholly within the Asia-Pacific triangle, shall be chargeable to the quota of that quota area....

Sec. 203. (a) Immigrant visas to quota immigrants shall be allotted in each year as follows:

(1) The first 50 per centum of the quota of each quota area for such year, plus any portion of such quota not required for the issuance of immigrant visas to the classes specified in paragraphs (2) and (3), shall be made available for the issuance of immigrant visas (A) to qualified quota immigrants whose services are determined by the Attorney General to be needed urgently in the United States because of the high education, technical training, specialized experience, or exceptional ability of such immigrants and to be substantially beneficial prospectively to the national economy, cultural interests, or welfare of the United

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From Act of June 27, 1952: The Immigration and Nationality Act, 66 Stat. 163: reprinted in *U.S. Immigration and Naturalization Laws and Issues: A Documentary History*, ed. Michael Lemay and Elliot Robert Barkan (Westport, CT: Greenwood Press, 1999), 220–223.

States, and (B) to qualified quota immigrants who are the spouse or children of any immigrant described in clause (A) if accompanying him.

(2) The next 30 per centum of the quota for each quota area for such year... shall be made available for the issuance of immigrant visas to qualified immigrants who are the parents of citizens of the United States, such citizens being at least twenty-one years of age or who are unmarried....

(3) The remaining 20 per centum of the quota ... shall be made available... to qualified immigrants who are the spouses or unmarried sons or daughters of aliens lawfully admitted for permanent residence....

(e) Every immigrant shall be presumed to be a quota immigrant until he establishes to the satisfaction of the consular officer, at the time of application for a visa, and to the immigrant officers, at the time of application for admission, that he is a nonquota immigrant. Every quota immigrant shall be presumed to be a nonpreference quota immigrant until he establishes to the satisfaction of the consular officer... that he is entitled to a preference status under paragraph (1), (2), or (3) of subsection (a) or to a preference under paragraph (4) or such subsection....

Chapter 2—Nationality through Naturalization

Sec. 311. The right of a person to become a naturalized citizen of the United States shall not be denied or abridged because of race or sex or because such a person is married. Notwithstanding section 405(b), this section shall apply to any person whose petition for naturalization shall hereafter be filed, or shall have been pending on the effective date of this Act.

Sec. 312. No person except as otherwise provided in this title shall hereafter be naturalized as a citizen of the United States upon his own petition who cannot demonstrate—

(1) an understanding of the English language, including the ability to read, write, and speak words in ordinary usage in the English language....

(2) a knowledge and understanding of the fundamentals of the history, and of the principles and form of government, of the United States.

Sec. 313. (a) Notwithstanding the provisions of section 405(b), no person shall be naturalized as a citizen of the United States—[the act lists subsection (1) through (6) which prohibit the naturalization of anarchists, communists, totalitarians, and those who believe or publish such, etc.]....

Sec. 316. (a) No person, except as otherwise provide for in this title, shall be naturalized unless such petitioner, (1) immediately preceding the date of filing his petition for naturalization has resided continuously, after being lawfully admitted for permanent residence, within the United States for at least five years and during the five years ... has been physically present therein for periods totaling at least half of that time, and who has resided within the State in which petition is filed for at least six months, (2) has resided continuously within the United States from the date of the petition up to the time of admission to citizenship, and (3) during all the periods referred to in this subsection has been and still is a person of good moral character, attached to the principles

of the Constitution of the United States, and well disposed to the good order and happiness of the United States.

3. *Life* Magazine Condemns Southwood's Denial of Housing to Sing Sheng, 1952

Mr. Sing Sheng placed a bet on American democracy and lost it. In Asia they will therefore be asking whether American democracy is worth betting on. It still is.

Sheng, a U.S. college graduate and a former Nationalist Chinese intelligence officer, is an airline mechanic in south San Francisco. He wanted to buy a small house for his growing family in Southwood, a suburb near the airport where he works. When he learned that some of the all-Caucasian residents of Southwood did not want a Chinese neighbor, he proposed that the question be put to a vote. To all residents he wrote, "We think so highly of democracy because it offers freedom and equality. America's forefathers fought for these principles and won the independence of 1776.... Do not make us the victims of false democracy. Please vote for us." The other side was summed up by a builder who said, "People must stick together to protect their property rights." Sheng lost, 174 to 28, with 14 abstentions. Said he bitterly, when the votes were counted, "I hope your property values will go up every three days."

The response to the Sheng case has been strong and nationwide. Other cities have offered him a job and a home; there is a move in south San Francisco itself to make amends. Since Sheng's original purpose was not to put democracy on the spot but simply to find a better place to live, the outcome for him is likely to be satisfactory. That is one minor count for American democracy.

Another is the fact that Sheng could have moved into the Southwood house if he had wanted to make an issue of it. The restrictive covenant is legally unenforceable; so says the Supreme Court. But Sheng made what he calls a "gentleman's agreement" to abide by the outcome of the balloting. In other words he tactfully asks more of our democracy than law can provide. He asks what the U.S. at present merely aspires to, namely complete absence of prejudice between man and man.

In fact the people of Southwood were less prejudiced against Sheng than against losing money. The market value of group prejudice is the key to the segregation problem in the U.S. During the last 10 years the U.S. has made revolutionary progress toward racial equality. If this progress continues, prejudice should eventually even lose its market value. It had better, for the national costs of discrimination are exceedingly high. Segregated slums yield only about 6% of the typical city's taxes, but use a third of its fire and almost a half of its police protection. The underemployment of Negro talents and skills is even more wasteful. According to the Urban League the total economic cost of discrimination in a city like New York is at least $1 billion a year.

Sing Sheng v. Southwood, 1952, excerpt.

This loss is at least as real as the one the calculating householders of Southwood think they have avoided. When we outgrow group prejudice in this country, the Southwood type of property loss would be inconceivable, and the present cost of discrimination will be turned into a big gain for all.

4. Setsuko Kamei Works at a U.S. Army Camp and Becomes a War Bride, 1952

Because of the war, the farm land was devastated, and not enough food was distributed by the government. People in Japan were starving. On October 4, 1945, the U.S. Occupation forces took over Hokkaido to reestablish the country, and the American soldiers poured into Sapporo. Two years later, the U.S. Occupation forces set up Camp Crawford, ten miles from Sapporo.

"Why don't you work at the army camp because the payment is good," said her brother, Toshio, who was a student and was also working as a boiler man for the officers of the Occupation forces.

The U.S. camp offered good-paying jobs to women. The pay was twice as much as the local jobs in Sapporo. From 1948 to 1952, Setsuko worked as a housemaid at five houses for American families in Sapporo.

"You are samurai descendant, so I do not want you to work as a housemaid," Setsuko's mother said. Her mother thought it was a menial job. Setsuko persuaded her mother, saying, "The war was over, and we had to change as our country changed."

Setsuko started working for American families. "It was a good experience because I learned American cooking, table setting, house-cleaning, and English," she said....

Antifraternity Rules in the American Camp

While working for Americans, she lived in the dormitory in Camp Crawford with other Japanese women. The dormitory in the camp had strict antifraternity rules and regulations.

"When I stepped in the dormitory on the first day, I noticed a big sign written in Japanese ink," she recalled. The sign said if you talk to an American soldier, you will be handed over to the Japanese police. "We Japanese women were ordered not to speak to American soldiers," Setsuko said. "Since I was not interested in men, including American men, I did not care about it." To her, Americans and the English were still devils, as she was taught during the war. To her surprise, Setsuko found that American soldiers were nice to Japanese girls. "They were so friendly, and they said 'Hello' to us whenever we met them in the camp," Setsuko recalled.

Japanese War Brides in America: An Oral History by Ward Crawford, Miki; Kaori Hayashi, Katie; Suenaga, Shizuko. Reproduced with permission of Praeger in the format Republish in a book via Copyright Clearance Center.

As the Korean War started, more and more young soldiers were sent to Japan from the United States. Young men who were looking for social opportunities with women sometimes visited brothels and ended up contracting venereal diseases. It became a big issue in the camp. To discourage the men from going to brothels, the antifraternity rules were loosened. The authorities thought that young soldiers needed recreation and relaxation, so they held a dance party every weekend....

One of Setsuko's two roommates in the dormitory asked her to go with her to the dance. Setsuko hesitated because she was not interested in going to dances. "You can learn English," said her roommate. Setsuko decided to go to the party because she wanted to improve her English.

At the dance, she talked with several Americans, and she noticed that they were nice and courteous. She could see they were not "devils and beasts," as she and other Japanese were told during the war.

"It was fun to talk to American men," she said. She thought American young men were cheerful and naïve. She started taking an interest in going to the dances and talking to Americans in English....

She Met Him

During the Korean War, the American soldiers in Camp Crawford were transferred to Camp Hachinohe or Camp Sendai on Honshu Island. Setsuko decided to move to Sendai for work. At Camp Sendai, she applied for telephone switchboard operator, a professional job.

While working in Camp Crawford, her English was getting better. She thought she could work as an English operator. The pay was better than that of a housemaid. The pay in the camp was also better than the pay outside the camp. She was paid 15,000 yen in the camp, and the same job paid 7,000 yen outside the camp.

Her American boss was not able to pronounce Japanese names. The boss gave her an American name, Betty.

In Sendai, Setsuko again lived in a dormitory on the camp. Her roommate, who was dating an American soldier, set up a date for Setsuko in the spring of 1952. "It started as a blind date," she said. "My roommate said a surgeon was waiting for me at the gate."

When she first met Joe, she did not think that it would develop into a romantic relationship. He was 5 feet 9 inches and 120 pounds. He had a moustache like Clark Gable's. When she saw his moustache, she thought that his affectations were annoying. Setsuko was a small woman. Her height was 4 feet 11 inches and her weight was ninety pounds.

On the second date, Joe had shaved off his moustache because she had told him on their first date that she did not like it. He was doing his best to make a good impression on Setsuko. However, she thought that he was not her type.

Joe was born in December 1931, in Duck Town, Tennessee, to Charles Rufus and Cora Roslee Amburn. His grandfather was German-Scottish, and his

grandmother was German-Irish. "His eyes were so blue, and his skin was so fair," said Setsuko. He looked good, but he often misbehaved.

"I can give him 100 points right now, but at that time I could give him only 30 points out of 100 points," she said. He drank a lot, liked to gamble and sometimes lied to Setsuko. He was a harmless drunk. He often fell asleep after drinking, but he was quick to get in fights at the bars.

In his hometown, he was a delinquent. His mother thought he would end up in jail, so she decided to enlist him in the army at the age of sixteen....

Sayonara

In December 1952, Joe's enlistment ended. He was discharged from the army, and he returned to his hometown in Tennessee. Setsuko thought it would be the end of their relationship. "He would never go back to Japan," she thought. She heard a lot of sad stories of Japanese women deserted by American soldiers, and she thought that she might be one of them.

After he left Japan, she thought about him. When he drank, he sometimes got involved in useless fights in Sendai. He did not like fighting, but he got involved. She worried about him. "I simply cared about him, and I wanted to make sure he was okay in the United States," she said.

Setsuko sent a five-page letter to his mother in Tennessee, asking her to "train" him and take good care of him. After reading Setsuko's letter, Joe's mother sensed that Setsuko would be an ideal wife for Joe.

Within a couple of months after sending the letter, Setsuko received a call from Joe, who had just arrived in Yokohama, Japan. He had reenlisted in the army and gotten himself assigned to Sendai. Setsuko and Joe started dating again in Sendai. "We loved each other, so we decided to get married," she said.

In May 1953, Joe was transferred to Sapporo, where her mother lived. Setsuko's mother started looking for a house for them; however, it seemed to be difficult to rent a house. "I do not want to rent out a house to an American soldier," a landlord said. Setsuko and her mother grew tired of rejection from the Japanese landlords.

When Setsuko was walking with him in Sapporo, a Japanese man called her a *panpan*, which means "whore" in English. Joe got angry and tried to hit him. Setsuko asked him not to, even though she was shocked and offended by the remark. In the 1950s, many Japanese did not respect the women who were with American soldiers. They simply regarded them as prostitutes.

Setsuko had some difficulty living in Japan as the wife of an American soldier. She was tired of being discriminated against in Japan. She dreamed about a new life in the United States.

For their first Christmas, they invited Setsuko's family and people from Joe's military unit to dinner. Setsuko's mother brought a Christmas tree to celebrate the first memorable event for them. She felt that her mother accepted their marriage.

On January 1, 1954, they celebrated the first New Year, the most important holiday in Japan, at her mother's house in Sapporo. She wore a kimono given to her by her mother.

On May 13, 1954, their daughter, Cora Kayo Amburn, was born. Cora is Joe's mother's name, and Kayo is Setsuko's mother's name. Both families celebrated their daughter's birth. It was one of their happiest memories.

"Joe said he did not like kids, but he became a good father and changed her diaper and even ironed it," Setsuko said. After their marriage, as their life settled, he started changing. Setsuko felt that she really "trained" her husband.

To the United States

With their baby, Setsuko and Joe decided to go to America. She was excited with the new life in the United States. To most Japanese, America was a dream country with wealth and modernization. She was tired of being harassed by bigots in Japan.

Joe's tour of duty ended at the close of 1954, so Joe, Setsuko, and Cora left Camp Crawford to start their life in the United States. Their ship arrived in San Francisco on December 30, 1954. Joe's eldest sister, Edith, and Joe's mother, Cora, were waiting for them. They had driven from Tennessee to California to pick them up. The five of them headed to her house in Tennessee, and the trip took a few days. Setsuko felt she was welcomed by his family.

His mother, Cora, was so happy because Joe married Setsuko, as she had wanted.

Joe's relatives and friends in Tennessee also welcomed Setsuko. Most of Joe's relatives and friends were white. "His mother and sisters were nice to me, so I tried to be nice to Joe," she said. "I tried to be nice to Joe more to repay them. They did not discriminate against me because of my nationality and race." In Japan, Joe was not accepted because of his nationality and race, and Setsuko and Joe had been discriminated against as a mixed couple by some bigots. They were excited in their new life in the United States.

After his thirty-day leave was over, the three left for his new assignment at Fort Niagara, New York, in January 1955. Six months later, Joe was assigned to Fort Monmouth, New Jersey, and he went to the Signal Corps School to get promoted in the army. Then he was transferred to Darmstadt in West Germany in 1956.

While he was in West Germany, Setsuko and Cora went to his mother's house because housing was not provided for them by the military. At that time, she decided to become an American citizen. On January 16, 1956, she passed the test and became an American citizen. She felt secure to live in the United States.

5. A Hollywood Poster Sells Interracial Love and the Exoticism of Japan in the Film *Sayonara*, 1957



Movie Poster Image Art/Getty Images

FIGURE 10.1 *Hollywood sells interracial romance and the exoticism of Japan in this poster for* Sayonara *(1957). Still courtesy of Jerry Ohlinger.*

6. Korean Adoptee Deann Borshay Liem Looks for Her Birth Family, 1966 (2010)

POV [Point of View]: *In the Matter of Cha Jung Hee* is the second of two autobiographical films you've made about your adoption. The first film, *First Person Plural*, aired on POV in 2000. Can you refresh our memory of *First Person Plural* and talk about how you came to make *In the Matter of Cha Jung Hee*?

Deann Borshay Liem: *First Person Plural* tells my story of being adopted by an American family. I was adopted by Arnold and Alveen Borshay from Fremont, California, when I was about 8 years old. When they adopted me, they thought I was a girl named Cha Jung Hee and that I was an orphan. I also grew up thinking that I was Cha Jung Hee and that I was an orphan. But when I was grown up, I discovered that I had a birth family in Korea. First Person Plural follows the journey of discovering the existence of my birth family, meeting my birth family and taking my adoptive parents to Korea for a meeting of the two families. It explores my relationship to both families, my sense of divided loyalties and divided identities and the paradox of living in two different worlds, being pulled in two different directions.

As for making *In the Matter of Cha Jung Hee*, I had always been curious and haunted by this identity that was never mine. Over the years, Cha Jung Hee has always been in the back of my mind. She was a girl I never knew; she was someone who apparently was at the orphanage with me, but someone I had never met. To this day, I have her identity, her birth date, her name and her legal papers. The clothing I was wearing when I came to the United States was hers; the shoes that I wore were hers. I have all the letters that she had written to my adoptive family from Korea. So in *In the Matter of Cha Jung Hee* I go back to Korea to look for her, to put this matter to rest once and for all.

In the film, I meet a number of women named Cha Jung Hee, and through the process I explore the history of international adoptions from Korea and uncover the deceptions and lies that took place within the process of my adoption. I also explore memory, amnesia and what it means kind of to live someone else's life.

POV: The shoes that you wore on your arrival to the United States and that you kept your whole life are one of the strongest symbols in *In the Matter of Cha Jung Hee*. They play a major role in the film, triggering memories and becoming a part of this lost history. Can you talk about the role of those shoes?

Liem: When I came off the plane in America as an 8 year old, I was wearing these shoes that didn't fit me. They were long and narrow, whereas my feet were short and wide. My adoptive mother couldn't figure out why the shoes didn't fit me properly, because she had bought them according to the tracings of Cha Jung Hee's feet. Well, it turned out I wasn't Cha Jung Hee, so that's why they didn't fit.

"In the Matter of Cha Jung Hee," Interview, "In the Matter of Cha Jung Hee," *American Documentary | POV, PBS*, September 14, 2010, http://www.pbs.org/pov/chajunghee/interview.php. Reprinted by permission.

The shoes have always been with me. Whenever I've moved to a different house, I've always taken with me baggage that included Cha Jung Hee's clothes and her shoes and all these documents and things. The shoes, in a literal fashion, represented walking into her life—I literally walked into the life that she would have had. In this film, I wanted to find the real Cha Jung Hee and give back her shoes and all her letters and be free of this identity.

My actual journey turned out to be a bit different. But the shoes are symbolic: They represent how any of us might have had a different life. What are the possibilities of living someone else's life or walking in someone else's shoes?

POV: There's a bit of ambiguity at the end of the film about whether you find the woman you're seeking. Do you think it matters whether or not you find the "real" Cha Jung Hee?

Liem: I do think that the woman I meet at the end of the film is Cha Jung Hee, the one I've been looking for, although there is some ambiguity about that, in part because she herself isn't entirely sure. Many of the facts about her adoption match [information about] the person I was looking for, yet some things don't match. In the end I've come to realize that there were untruths involved not only in my adoption, but in other children's adoptions as well. Cha Jung Hee served as a kind of template; she became a kind of ideal orphan. She was a marketing vehicle that was geared to the desires of adoptive parents abroad, and facts were made up to suit those desires.

For me, it does matter whether the woman I met was the "real" Cha Jung Hee, but in the end I discovered that it wasn't so much about finding her, that it was really more about finding myself. I had to wade through the layers of who I thought I was and embrace my life in the United States.

POV: *In the Matter of Cha Jung Hee* is one of three films that POV is broadcasting this year about adoption. What are your feelings about international adoption?

Liem: Every situation is different, but I think it's best when a child can be raised in a family, preferably in his or her native country. In Korea specifically, it's probably no longer necessary to have a huge number of international adoptions and they should stop.

International adoption is often seen as the first choice in a situation. And I don't think it's the best first choice. When there are various possibilities, the first choice ought to be to keep families together—whether it's a single mother or a single father or a grandmother raising a child. The first priority, in terms of policy, should be to create opportunities within the country to keep those families intact.

POV: Ultimately, what is *In the Matter of Cha Jung Hee* really about for you?

Liem: The film is a journey to find the real Cha Jung Hee and, through that process, work through this case of mistaken identity. Meeting all the Cha Jung Hees in Korea really enabled me to imagine my own life if I had stayed in Korea. So in part it's an attempt to walk in their shoes and discover who I might have become. At the same time, I wanted to explore my own adoption, the ethics of adoption, international adoption and my own experiences with memory, identity and adoption.

I wanted to explore the personal impact of living a lie. I've had Cha Jung Hee's identity for more than 40 years. It's been eating away at me for all these years, and it has impacted who I've become. So this additional layer in the film looks not only at the impact of carrying this person's identity on myself and my relationship with my adoptive family, but also the way in which memory and amnesia have played a role in how I've resolved that history and come to understand that history.

ESSAYS

These two essays examine how Cold War politics and the importance of U.S.–Asian military alliances shaped the treatment of Asian Americans in the United States. The first essay, by Cindy I-Fen Cheng, associate professor of history and Asian American studies at the University of Wisconsin, Madison, analyzes how the U.S. public viewed racial equality as vital for demonstrating the superiority of democracy over communism. The perceptions and depictions of Chinese women as good wives and mothers helped Chinese Americans move from segregated urban Chinatowns into formerly white suburbs. In the second essay, Arissa Oh, a Boston College historian, describes the symbolic transformation of Korean War orphans from desperate, illegitimate, foreign waifs to beloved, grateful female beneficiaries of American benevolence during the Cold War. Adoption advocates portrayed Korean adoption as a kind of Christian missionary work that could help counter Soviet propaganda about American racism and win support from potential Asian allies.

Chinese Americans and the Politics of Cultural Citizenship in Early Cold War America

CINDY I-FEN CHENG

In 1951, *Life* magazine featured a look at "America's Chinese" through a New York Chinatown that was internally fractured and polarized between East and West. To capture this social and cultural rift, the article ran a photographic spread highlighting various segments of the Chinese population. This spread, which centered on a sequence of three photographs, depicted an elderly Chinese bachelor smoking alone in a dark apartment, a beaming war bride surrounded by her children, and lastly, a plump eight-year-old boy. Organized in part by the age of its subjects, these pictures generated a temporal narrative in which the passing of the old ushered in the new. Their accompanying captions also underscored the cultural difference separating the elderly bachelor who "spoke nothing but Chinese" from the eight-year-old boy who was "completely Americanized by the New York public school system." As these characterizations followed the temporal arrangement, the contrast of cultures emerged into a narrative of progress wherein a new generation

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Cheng, Cindy I-Fen. "Out of Chinatown and into the Suburbs: Chinese Americans and the Politics of Cultural Citizenship in the Early Cold War America." *American Quarterly* 58:4 (2006), 1067–1090. © 2006 The American Studies Association. Reprinted with permission of Johns Hopkins University Press.

presumably moved away from the culture of the East only to advance into the culture of the West. Their nationality, moreover, shifted from Chinese to American. Notably, sandwiched between the two representative male figureheads was the war bride; her central placement reinforced her symbolic role in mediating the passage of time and bringing about a new generation of Chinese Americans. As wife and mother, she made possible the cultural citizenship of the Chinese.

Similarly, the *Los Angeles Times* in a 1959 article examined the cultural division of the city's Chinese population. It relied on spatial designations to convey the social and cultural differences among the Chinese and mapped these ideas onto specific locales. The article, for example, juxtaposed the caricature of an elderly Chinese man shuffling down the drab sidewalks of Old Chinatown with an image of an eight-year-old Chinese boy holding hands with his sister and skipping down Mei-Ling road, one of the main thoroughfares of New Chinatown. The two Chinatowns thus highlighted not only the disparity between the young and the old but also a change from the old to the new. The *Times*, however, did not limit its analysis of this transformation within the confines of the two Chinatowns. Instead it contrasted Chinatown from the suburbs to make known and bring coherence to the differences in culture, race, and nationality.

The *Times* cautioned its readers not to be deceived into thinking that New Chinatown was in fact the place of residence for this new generation. Not only was it merely "a glittering façade, a place dressed up" for the tourists' amusement, but it also acted as a smoke screen, masking the fact that the actual place of residence for this new group was in the suburbs, far removed from this tourist trap. According to the *Times*, "of a population of 22,000 only a few hundred remain in Chinatown. The others have moved to the suburbs." It further insisted that "there is nothing startling about this," for the Chinese "are Americans. As such, they wish to live as Americans—to own homes and breathe the fresh air of the suburbs, where there is greenery for their children to play." While the *Times* may not have considered this change "startling," it nevertheless recognized the significance of this resettlement in distinguishing the Chinese as Americans. But just as this transformation hinged upon a movement out of Chinatown, it also necessitated that the suburbs signified the place of Americans. Moreover, it elicited the symbolic effect of Chinese women to mediate the terms of assimilation. Since the new generation of Chinese consisted not of bachelors but of heterosexual nuclear families, they became like Americans, possessing similar values and goals. In particular, the Chinese, like Americans, desired to own homes with yards for their children to play in. Assimilation or conformity to the domestic ideal thus successfully overcame racial differences to convey a sense of both the possibility and the attainment of social equality between Chinese and Americans. The diminishing population in the Los Angeles Chinatown attested to the effectiveness of Americanization. The terms of becoming an American therefore entailed not only the ability to live as an American but also to live where Americans lived.

Sing Sheng and the Test of Cold War Democracy

In January 1952, Sing Sheng, his wife, Grace, and their two-and-a-half-year-old son, Richard, decided to move out of their apartment in San Francisco

and placed a $2,950 deposit for a house in the Southwood suburb of South San Francisco. Shortly after, Southwood residents instructed Sheng and his family not to move into this restricted area. They claimed that their decision stemmed not from any personal prejudices against Sheng but from a desire to maintain the economic viability of their suburban tract. They also insisted that it was in Sheng's best interest not to take up residence in Southwood since he would only be targeted for acts of vandalism by neighborhood kids. Undaunted by these concerns, Sheng decided to fight for his right to live in Southwood, and for many weeks the Sheng case captivated the public's attention nationally and internationally.

Despite its racial restrictions, South San Francisco was a prime location for working-class families. Since 1895, South City, as this area was commonly called, had established an image of being a working-class family town whose livelihood depended on the area's factories, the main one being the Western Meat Company. At the turn of the twentieth century, the town became known for its ethnic diversity, consisting of Irish, Portuguese, and Italian immigrants. Chinese settlers were also found at the edge of town, but a fire in 1912 destroyed this small settlement. During World War II and the immediate postwar years, South San Francisco experienced a population boom as well as a rise in the number of industries, thus living up to its self-proclaimed moniker, "The Industrial City." Residential tracts also proliferated. Since the U.S. census during this time did not survey the racial composition of cities in the San Mateo County, a systematic breakdown of South San Francisco's population by race cannot be obtained. The *San Francisco Chronicle*, however, in its coverage of the Sheng case, provided a sense of the racial makeup of Southwood. The *Chronicle* reported that during a neighborhood meeting about the Sheng case, homeowner Belmar B. Shepley voluntarily confessed to being a "hapa haole," or a half Hawaiian, and to his wife being Polynesian. Although the headline quipped, "Southwood finds out it isn't an 'all-white' community, after all," this racial outing indicated the prevalence of white residents, or at the very least, how the white ideal regulated who resided in Southwood. It also crucially exposed a rupture in the adherence to this ideal underscored more pointedly by Sheng's battle to reside in Southwood.

The broad appeal of the Sheng case captured in part the growing interest that Americans had in Asia, Asians, and Asian Americans following U.S. military expansion in Asia from 1945 to 1961. Of great concern was the social status of Asians in the United States as it came to calibrate the credibility of U.S. democracy abroad; the need to ensure housing rights for Sheng thus became connected to the fight against communism in Asia. The manner in which Sheng went about challenging his exclusion from Southwood also contributed to the public's interest in this case. While Sheng in 1952 could have settled this matter in the district courts of San Francisco, especially since the U.S. Supreme Court had ruled in 1948 that state enforcement of racial restrictive covenants was unconstitutional, he nevertheless opted to abide by the social judgment of Southwood residents. He asked Southwood to administer a vote whereby

residents could choose democratically whether to allow him and his family to move into their neighborhood. Sheng rallied support by distributing a letter explaining why they should vote on his behalf. Newspapers reprinted the following excerpt:

> Before you reach any decision as to how you will vote in this ballot, allow us to tell you our opinion. The present world conflict is not between individual nations, but between Communism and Democracy. We think so highly of Democracy because it offers freedom and equality. America's forefathers fought for these principles and won the independence in 1776 ... We have forsaken all our beloved China and have come to this country seeking the same basic rights. Do not make us the victims of false Democracy. Please vote in favor of us.

As this excerpted plea looked to contest racial restrictions in housing, it linked the fight against residential segregation to the fight against communism. More specifically, it argued that the best way to combat communism was not through the exclusion of Chinese from the United States or the rejection of Communist China. Rather, the inclusion of the Chinese spoke to the capacity of cold war democracy to entice China away from communism. The movement of Chinese into the suburbs therefore extended beyond mapping a national and cultural shift from China to America and from Chinese to American; it also marked a political progression from communism to American democracy. As this plea scrutinized the credibility of U.S. democracy, it also pitted the ideal of whiteness against a racially inclusive model of national belonging. Sheng's fight to live in Southwood therefore not only exposed the contradiction in the meaning of Americanness but also called into question the authority of whiteness to determine national citizenship.

As newspapers dubbed this vote "a test of democracy," they framed the significance of the Sheng case as proof of the claims of cold war democracy. Despite appeals to the broader political implications of this case, residents voted on February 16 to prohibit Sheng and his family from living in Southwood: 174 people voted against Sheng, 28 for, and 14 had no opinion. The outcome of this vote, however, did little to end this "test." It instead incited a public dialogue over the meaning, validity, and effect of cold war democracy. The *San Francisco Chronicle* ran a full-page editorial highlighting the outbursts of public dismay at the outcome of this vote just days after the results were published. It detailed the "floodtide" of telephone calls along with letters and telegrams all expressing "their indignation at such a desecration of democracy and American principles" while other correspondences sought to validate these ideals by offering Sheng a home elsewhere. The editorial also noted the vote's damaging impact on U.S. cold war policies in Asia:

> The ultimate effects cannot yet be known—but, like ripples in a pool, the effects of the Southwood plebiscite seem likely to spread to the outermost corners of this cold-war-torn globe. Already, public and private groups that spend great treasure and labor in wooing Asia to the side of the free world are complaining that Southwood has undone the long and tedious

> work of the Voice of America, of Radio Free Asia and even of American men who have been fighting in Korea. They say: "We cannot sell freedom to Asia unless we can deliver freedom at home.

Arguing that America must "deliver freedom at home," the editorial participated in efforts to restore the credibility of U.S. democracy. The prescribed solution, which connected Sheng's acceptance by Southwood to the ability of cold war democracy to achieve a world order in which nations coexisted equally, crucially authorized the United States to be the leader of this new world order.

Additionally, the *Chronicle* examined how newspapers in Asia reacted to the Sheng vote. It discussed an editorial in the *Hong Kong Standard*, for example, which declared Sheng's actions reckless given the assault of propaganda attacks against the United States in Asia. The editorial also asserted that one can never "test democracy," since its espousal likened to "one's faith in religion, has to be intuitive and not lightly put to the test." Interestingly, the *Chronicle* expressed that it did not share the *Hong Kong Standard's* judgment of Sheng. Instead, it placed blame on Americans swayed by the unfounded fear that nonwhite residents depreciated property values of suburban homes. Their failings, nevertheless, did the United States a service as it imbued the nation with a "resolve to do better." As the *Chronicle* juxtaposed its interpretation of Sheng's actions with that of the *Hong Kong Standard*, it unveiled the desired subject position of Asia and America in promoting cold war democracy. Whereas Asia supplied "faith," America provided "resolve." By refusing to add to the *Hong Kong Standard's* criticism of Sheng, the *Chronicle* also affirmed the moral superiority of American democracy, which never blamed others for its own failings but rightfully took responsibility for its own mistakes.

Efforts to reclaim the validity of cold war democracy further relied on Sheng's racial identity as nonwhite to demonstrate democracy's triumph over racism even though being nonwhite had disqualified him from living in the place of Americans. Christina Klein has examined in *Cold War Orientalism* how the "dual identity" of Chinese in the United States, or an identity that contained recognizable albeit constructed Chinese and American elements, enabled their social position to signify the political relationship between the United States and China and to an extent Asia. Klein thus asserts that "the foreignness of Chinese Americans gave them value as Americans" and that this desire for the foreign resisted the complete assimilation of "Asian differences into a homogenous sameness of postwar American whiteness." The Sheng case supports this analysis since Sheng's Chineseness was the foreign element that helped to calibrate the effectiveness of American democracy in Asia. Additionally, his Chineseness served as a nonwhite trace that showcased the capacity of cold war democracy to bring about racial equality *and* to transform immigrants into assimilated Americans. Incorporating Sheng within early cold war America therefore necessitated that he be depicted as nonwhite and as conforming to white middle-class norms. His status of being like other Americans captured how cultural membership in the nation regulated race to convey a sameness and difference from whites.

The *San Francisco Chronicle*, for instance, focused on attributes that Sheng had in common with white Americans in order to construct him as fit for residence in the

suburbs. While most articles highlighted the fact that Sheng was a veteran of the Second World War, only a few bothered to mention that his veteran status stemmed from service in the Chinese Nationalist army. The way in which Sheng was often casually absorbed into a nationally unmarked category of the "veteran," implicitly understood as a U.S. veteran, spoke not only to the allied relationship between China and the United States during the war but also to the conflation of Sheng's Chinese nationality with an American nationality. This characterization was further reinforced by repeated references to the fact that his wife, Grace, was born, raised, and educated in the United States and that their son was also American-born. Additionally, articles emphasized that Sheng completed college in the United States and worked as an airline mechanic for Pan-American Airlines.

A widely circulated image of Sheng that showed him sitting with his wife on their living-room couch staring lovingly at Richard captured the defining characteristics that cast Sheng as similar to white Americans. His role as father and husband, more than his identity as a middle-class, college-educated veteran, had narrowed the gap separating him from white Americans. His American-born wife, Grace, and their son, Richard, facilitated this cultural enfranchisement by distancing him from popular representations of the lone and aged Chinese bachelor whose inability to procreate had ghettoized him within the confines of Chinatown. Depictions of Sheng properly performing his assigned gender role also helped establish his Americanness. According to the *Chronicle*, Sheng expressed the impact that the vote had on him and his family by saying: "You know how women are. She [Grace] had it all worked out in her mind how she was going to decorate the house." Noting that he said this "with an understanding smile," the *Chronicle* depicted Sheng as like any typical family man looking after the interests of his family. The purchase of the suburban home was therefore not for his benefit but for that of his wife, who wanted a place to decorate, and his son, who needed a backyard to play in. The status of being like other Americans thus spoke to Sheng's successful assimilation. But Sheng's position as an assimilated American preserved a sense of difference from the original. This distance, rather setting the terms of exclusion, signified a capacity for inclusion and the ability of cold war democracy to bring about racial integration.

While most newspaper and magazine coverage of the Sheng case developed its significance within the context of U.S. cold war politics, a few accounts stressed its relevance outside the demands of cold war democracy. An editorial in the San Francisco–based *Chinese Pacific Weekly*, for example, argued that without "this strange voting procedure, the Western newspapers would not be interested in covering this story." It also criticized Sheng for unduly subjecting himself to the judgment of Southwood residents and asserted that "we [the Chinese in the U.S.] need to have more confidence in the belief that we have the right to choose where we want to live . . . Sing Sheng should not have suggested that a vote be administered. Does he not already have this right? Why allow others to determine his right?" By issuing this defiant critique against relinquishing power to white society to select who to integrate, the editorial tapped into other ideologies, mainly those espoused by black civil rights activists during the late nineteenth and early twentieth centuries, and not cold war democracy, to advocate for the rights of Chinese in the United States. Hence despite the attempts of cold war democracy to make

use of civil rights reform to establish its own legitimacy, it did not completely limit all articulations of racial equality to the promotion of American democracy over communism. In other words, cold war democracy could not link antiracist sentiments exclusively to a cold war agenda. As exemplified in the analysis of the *Chinese Pacific Weekly* editorial, the Sheng case extended beyond documenting the setback of U.S. cold war policies abroad, and significantly historicized the "gradual liberalism of the American press and the gradual liberalism of public opinion against discrimination."

The observation that the Sheng case captured the growing liberalism of U.S. press and public opinion against discrimination was well substantiated by the proliferation of press coverage of this case. Stories appeared in the *San Francisco Chronicle*, the *New York Times*, the *New York Herald Tribune*, the *Chicago Tribune*, and *Time* and *Newsweek* magazines, to name a few. National radio and TV stations also took an interest in this story. Outside the United States, the Sheng case was reported in the *Manila Chronicle* and in Hong Kong newspapers. The majority of these accounts sympathized with Sheng. Additionally, key state and political leaders, along with national and community organizations, issued public statements in support of Sheng. They included the San Francisco City Council, the city attorney, the mayor, California governor Earl Warren, U.S. senators, the national Committee for Free Asia, and local church groups. The *Chronicle* further documented the pervasive public dialogue over the Sheng case by publishing numerous letters from across the nation. It even administered its own vote, mimicking the one Sheng issued before Southwood residents. The results of this vote, gathered from tallying up the number of letters for and the number of letters against Sheng between February 16 and 23, indicated a landslide "victory" for Sheng supporters. The *Chronicle* headlined the results, "266 for Sheng, 16 on the Other Side." In doing so, the *Chronicle* effectively minimized the ability of Southwood residents to reflect public opinion and showed how the "public" had in fact supported Sheng's efforts to break race-based restrictions in housing. It also noted that "more letters were received on the Sheng affair than on any other single issue in many months" and that only the Shengs had received more letters than the *Chronicle*, all, except for one unsigned letter, were sympathetic.

Against this overwhelming display of public support for Sheng, the American Homes Development Company of Burlingame issued a statement upholding the practice of racial restrictive covenants. Not only was this statement one of the few published in newspapers against Sheng but it also posed a rationale that was at odds with cold war democracy. It asked home owners to "hold fast to the principles of restrictive covenants in all their housing transactions" and explained how this practice had "set forth salutary and beneficial restrictions on the land for those purchasers desiring ownership in a community where they would welcome their neighbor and live in equality." Exclusion and restriction, instead of inclusion, thus set the terms of equality. The effect of this belief in exclusion as equality entered and reentered public discourse when newspapers reported how Southwood residents had in fact remained steadfast against racial incursions into their neighborhood. Even though the Shengs later successfully purchased a home in the northern California region of Sonoma, reports on their exclusion from Southwood sparked a

negotiation within public discourse over which account of American democracy would be dominant. The proliferation of media coverage of Sheng, in addition to documenting the growing liberalism of the U.S. press, also exposed attempts to recover the credibility of U.S. democracy by promoting its commitment to racial equality.

In light of the outpouring of public support for Sheng, his exclusion from Southwood did not necessarily point to the failure of cold war democracy, but neither did his admission into the suburbs of Sonoma indicate its success. Rather, the Sheng case, significantly, documented the negotiations taking place within public discourse over the meaning of American democracy. Its relevance was thus not as a test case for democracy but rather how it historicized the emergence of questions over the credibility of American democracy and the attempts to restore its legitimacy. Lisa Lowe has argued in *Immigrant Acts* that definitions of the American citizen have "cast Asian immigrants both as persons and populations to be integrated into the national political sphere and as the contradictory, confusing, unintelligible elements to be marginalized and returned to their alien origins." The discourse on postwar suburbanization played out this contradiction. Whether the Chinese were depicted as assimilated subjects to be integrated or as nonwhites to be excluded, they made known the values that informed the making of the U.S. national identity. During the early cold war years, a rupture occurred in the adherence to the white ideal, thus transforming this contradiction into a competing vision of Americanness. It allowed the assimilated nonwhite to challenge his systematic exclusion from the suburbs even as he affirmed the ability of the suburbs to include him. The assimilated subject's acceptance of white norms as the standards of society had compromised its potential to unsettle the privilege of whiteness. Even still, the assimilated did not become white, nor were the suburbs all white. Rather, early cold war America engaged in sustained discussion over the place of race in the making of the national identity.

The Cold War Transformation of the Korean Orphan

ARISSA OH

The figure of the Korean "orphan" was central to the development of Korean and intercountry adoption. Proponents of Korean adoption used this term to access deep cultural understandings and mythologies of the innocent, victimized child. In truth, the category of orphan was both capacious and easily manipulated. A child could be—and often was—made into an orphan through a simple administrative act by an orphanage director or a social worker. Alternatively, a child could be made a "social orphan" when released for adoption by a living parent, which subverted common understandings of the orphan as a parentless child.

Adoptive and would-be adoptive parents used the terms "son" or "daughter" to emphasize their kinship with these children. Media coverage of adoptions reinforced the transformation from orphan—the dirty, hungry, homeless waif—

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to adoptee—the well-dressed, beloved son or daughter grinning in the midst of domestic plenty. Adoptive parents used the language of transfiguration to describe how their children had flourished in American homes: from "undernourished waif," "emotional misfit," and "frightened, hopeless, little things" to "happy, healthy, well-adjusted," "bright-eyed," and a "roly-poly sunbeam." Many parents continued to campaign for new orphan laws even after they had completed their own adoptions. The letters they sent to members of Congress included snapshots of their thriving adopted children and reports that they "fit into our family circle perfectly" and were doing well in school.

Whether actually true or not, orphanhood was an essential precondition to adoption, not just legally but narratively. I have argued elsewhere that advocates of Korean adoption promoted it using the rhetoric of a specifically Cold War American civic religion that I call Christian Americanism. Coupling a diluted form of Christianity with values identified as particularly American, Christian Americanism viewed Korean adoption as an act that was at once personal and political. Through Korean adoption, Americans could simultaneously add to their families and support their nation's Cold War agenda by demonstrating American racial democracy abroad and by helping to fulfill America's moral obligations towards Koreans—especially those fathered by irresponsible American servicemen. The conflation of global politics and domestic family concerns—what scholar Mark Jerng calls the "collapsing of home and world"—in Christian Americanist discourse, and its sentimental narrative of rescue, required that the children be figured as orphans; in the words of adoption advocate Pearl S. Buck, as "piteous lonely children whom no country claims."

Indeed, Korean orphans could be thought of as a metaphor for Korea itself. Deemed irrelevant to American security interests, it had been abandoned by the U.S. in 1948 and emerged from civil war completely dependent on U.S. aid. During and after the Korean War, the U.S. mainstream and military media showcased the many ways GIs cared for Korean children: for example, by building orphanages, throwing Christmas parties, and distributing warm clothes and food sent by Americans. If GI humanitarianism offered a way for Americans to salvage a moral victory out of the stalemate of the Korean War, then adopting a Korean orphan was a way for Americans to atone for abandoning—for orphaning—the land of her birth. Furthermore, the relationship between American parents and Korean children mirrored geopolitics by enacting the asymmetry that has characterized the neocolonial U.S.–Korea relationship since World War II. Anthropologist Eleana Kim has suggested how that imbalance was mediated in part by "intimate diplomacy" conducted through the bodies of adopted Korean children: "the sentimentalization and depoliticization of children as orphans and pure humanity ... made them available to be dispatched as sons and daughters who could link people and nations in their roles as ambassadors and bridges."

The fantasy of the bereft orphan in need of rescue lay at the heart of American imaginings about the Korean child, when in fact she might have had living parents or relatives. The vision of themselves as rescuers led American adopters and their supporters to construct Korean children into victims: of poverty; homelessness; lovelessness; Communism; and, for GI babies, racism. While it is

true that many were vulnerable to these forces, the conversation about Korean adoption provided no room for the possibility that these children could avoid grim fates without being saved by Americans.

The Korean child served a powerful function in Cold War America. Like the politically symbolic children that Karen Dubinsky has discussed, the Korean child served to "smooth out or even submerge complicated political issues under the veneer of sentiment." That veneer was central to the hegemonic narrative of Korean adoption, which claimed that love could conquer all divisions of race and nationality and that the adoption of a Korean child by an American family signified nothing more than the uncomplicated mutual completion of a homeless orphan and the parents who wanted her. The narrative erased birth mothers and ignored histories of imperialism, militarism, racism, and patriarchal sexism, as well as any suggestion of exploitation in an emerging adoption market.

A deeply contradictory figure, the Korean child altered intertwined American understandings of race, nation, and family but did so in ways that reaffirmed certain existing definitions and structures. The adoption of the visibly different Korean child demonstrated the racial liberalism of white Americans while at the same time reinscribing racial boundaries. After all, it was the very visibility of Korean adoption that made it such powerful evidence of American racial liberalism. But that colorblindness had its limits. Korean-black children, rendered black by American "one-drop" thinking, languished in orphanages in Korea. Meanwhile, in a reversal of that "one-drop" rule, Korean-white children became white (though still considered Asian for immigration purposes). A kind of geneticism rendered Korean-white GI babies "our" babies in American eyes; a belief in the power of nurture suggested that their racial mixture could be overcome with the proper environment and upbringing. These feelings of sympathy for, and identification with, certain mixed-race Korean children paved the way for the later adoption of full-blooded Korean children. The logic of racial triangulation drastically altered the fate of Korean-white and full-blooded Korean children. Once labeled "unadoptable" because they were not white, they became "adoptable" because they were not black.

Likewise, the Korean child disrupted ideas of the monoracial (white) American family while also reaffirming its power as a "normalizing institution." Her adoption was revolutionary, for her obvious racial difference upended conceptions of family rooted in blood and biology and challenged the dominant social work doctrine of using careful matching to create "as-if begotten" adoptive families. But Korean adoption was also deeply conservative, for the Korean child shored up "an idealized notion of kinship": the Cold War heterosexual nuclear family. She verified her adoptive parents' worthiness for inclusion in the nation at a time when status as a parent was equated with citizenship. These conservative underpinnings—the reinforcing of hierarchies of heteronormativity and race and the containment of the Korean child's otherness within conventional family forms—suggest one reason why some conservative evangelical Americans embraced the seemingly radical cause of Korean adoption.

Korean adoption highlighted the ambivalent relationship of many Americans with the state even as it exposed the falseness of the distinction between private and public spheres. Adoptive parents often resisted the incursions of social

workers into their homes and families, insisting that the state had no business in their intimate matters. Yet they could not and did not completely sever themselves from state power, since they needed orphan laws to admit their adopted children. They appealed to lawmakers to enact adoption-friendly laws, deploying the language of Christian Americanism to present their desire to adopt as furthering national goals. Some adopters emphasized that adoptions helped the national cause but without public funds. Adoptive parents and their allies sought to protect their vision of family as, in Nancy Cott's terms, "personally chosen private freedoms" while at the same time tapping into the institution's symbolic importance as "public emblem of the nation." The way in which adoptive families used national concerns to gain support for Korean adoption demonstrates the deep mutual imbrication of public and private spheres.

Indeed, the adopted Korean child embodied the inextricable linkages between the private and the public. Simultaneously selected to be a member of both a nuclear American family and the national American family, her adoption resonated with old and enduring ways of thinking of the family as a microcosm of the nation and the hope that social and racial unity within the family could lead to the same in the community and the nation. One prominent supporter thought even more grandly than this, arguing that intercountry adoption would "prove a solid contribution to the culture and strength of our Nation and to the welfare of mankind as a whole." Many proponents of Korean adoption celebrated the horizon-broadening advantages of having a Korean child in their midst. An adoptive father declared that his Korean daughter had "helped to remove prejudice, and fear, and increased the understanding and vision of the people," which were "vital to our nations [*sic*] future." As adults, however, Korean adoptees did not always have positive memories of integrating their communities.

Adoption transformed the Korean child from "needy object" to "treasured subject," from a "pathetic" child to "our precious" child. With the spread of intercountry adoption and the rise of a market for Korean children, she became what Korean adult adoptee and filmmaker Deann Borshay Liem has called a "precious object of desire." Whether object or subject, the Korean child was nonetheless a child—without agency, but powerful as a cultural, social, ideological and political symbol. Imagined as an orphan, she was a tabula rasa, allowing politicians, adoptive parents, journalists, and social workers to project a multitude of ideals and burdens onto her: victim of Communism, herald of multiracial harmony, and ideal citizen.

Korean Adoption and the Refiguring of Asianness

Asian American and Korean American histories usually overlook intercountry adoption and adoptees, but adopted Korean children were instrumental to the larger refiguring of Asianness that occurred in the U.S. in the 1950s and 1960s. This process began during World War II, when Congress repealed the Chinese exclusion laws and offered token quotas to Filipinos and Asian Indians. It continued after the war as both the U.S. government and Asian American communities worked to transform the former image of alien, unassimilable Chinese

and Japanese into "model" citizens—from Oriental alien to Asian American citizen—or, as historian Ellen Wu describes, from definitively not-white to definitively not-black.

Recasting Asians in America as model citizens was a central part of this transformation. Although standard accounts locate the origins of the model minority image in the 1960s, new historical research suggests that this stereotype started emerging earlier, in the immediate aftermath of World War II. The upheavals of global war, the Cold War imperatives of racial liberalism, and a nascent Civil Rights Movement led to broad changes in racial thinking. Against this shifting racial terrain, Asian Americans positioned themselves as a model minority: hard-working, family- and education-oriented, capitalist, and therefore superlatively equipped to be good American citizens.

These domestic shifts in ideology mirrored geopolitical developments, which were presented in familial terms that emphasized relationships of love and care. As the U.S. established new ties with Asian nations, war brides and war orphans from those countries allowed individual Americans to participate in these new relationships at the level of the everyday and perhaps reconsider the assimilating potential of Asians. As Christina Klein has shown, makers of middlebrow culture encouraged Americans to feel bonds of kinship with Asia and Asians, which were then enacted in part through sponsorship programs like Christian Children's Fund and the moral adoptions promoted by the *Saturday Evening Post.*

In these new configurations, the hypermasculinity that had been central to constructions of the Japanese Yellow Peril during World War II was replaced by feminization in America's embrace of East Asians during the Cold War. Americans imagined the rehabilitation of a deeply hated former enemy, Japan, in gendered terms, with Japan as compliant, willing wife to her dominating, masculine American husband. As American GIs began bringing home Japanese wives, resistance to these marriages competed with accounts that romanticized them as concrete ways to demonstrate American racial liberalism. War brides and war orphans replaced older images of the male Oriental laborer with more appealing women and children who affirmed colonial and Orientalist tropes of Asians as childlike and feminine. It is true that the war bride was not a wholly unproblematic figure, for she presented the specter of miscegenation and raised questions about whether she was actually a cunning prostitute using marriage to gain access to America. Children, however, were beyond such suspicions.

Despite this refiguring of Asianness, enduring anti-Asian sentiment delayed the liberalization of U.S. immigration law affecting Asians more generally. The 1952 INA [Immigration and Nationality Act] had established an Asia Pacific Triangle and imposed immigration quotas of one hundred per year to each country within it, with an overall limit of two thousand for the entire region. As [Mae] Ngai notes, "liberals believed strongly that the Asia Pacific Triangle, with its global race quotas, was racist policy that damaged America's reputation and interests in Asia." Yet eliminating it was not considered an option by conservatives like the powerful U.S. representative Francis Walter, who was openly hostile toward Asian immigration. In 1961, the same year that provisions for

foreign-born adopted children became a permanent part of the INA, Walter "flatly declared his commitment to preventing a horde of Asiatics from overrunning the United States."

Yet mixed-race and full-blooded "Asiatic" babies and children, otherwise inadmissible under the American race-based immigration quotas, were not only acceptable but were idealized in conversations about immigration and refugee policy. The State Department declared openly that "orphans make the best possible immigrants from the standpoint of their youth, flexibility, and lack of ties to any other cultures." Although not ideal from a racial point of view, the mixture of Korean-white GI babies made them more palatable even to those opposing Asian immigration. As children, they posed no economic or national security threats, an important quality given how powerfully fears about Communist infiltration shaped refugee policy and its administration. Adoptive parents presented their children as being aware and proud of their special status as U.S. citizens. The mother of a three-year-old Korean-white girl described her as saying "I'm a 'cinzen'" and reciting the pledge of allegiance. A father in California described his two Korean daughters as "the most enthusiastic loyal Americans I have ever met" and claimed that they and other Korean children would "become wonderful citizens of our country." As lucky recipients of American citizenship—"the greatest gift to be given them!"—these children would one day give back by contributing to the nation, and eventually the world.

Together, the war orphan, war bride, and model minority offered a new image of Asians in the United States: anti-Communist, assimilable, conforming to American values, and therefore contributing to a stronger nation. Of these, the Korean orphan was the best kind of immigrant. Free of the taint of the potentially subversive adult refugee or the sexual threat of the war bride, and full of the promise of childhood, she was the worthiest of immigrants, deserving of entering the "circle of care" provided by both the nuclear and the national American family. She was the ideal future citizen, at once a model minority and a model immigrant.

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CHAPTER 11



The Rise of Asian American Identity, 1965–2012

During the political turmoil of the 1960s, politicians and the mainstream media began to portray Chinese Americans and Japanese Americans as "model minorities" who were able to overcome racism and discrimination through hard work, love of education, and patriotism. Declaring Chinese Americans a "Success Story," U.S. News and World Report *praised the ethnic group for overcoming a history of discrimination by emphasizing cultural traditions, family values, and self-reliance rather than government welfare. Contrasting satisfied and successful Asian Americans with angry and militant African American activists sent a clear message: while other minorities complained about racism, Asian Americans pulled themselves up by their own bootstraps.*

A critical mass of college students organized the Asian American movement, which challenged these model minority accounts. Movement leaders often were urban, middle-class, first- or second-generation Chinese Americans or third-generation Japanese Americans. Inspired by the civil rights, antiwar, and ethnic pride movements, these activists tried to transcend the ethnic and national differences among Asian Americans by emphasizing the need for a common bond of struggle against white racism. They were inspired by black power activists and Third World revolutionary leaders like Mao Zedong who championed grassroots mobilization, political protest, self-determination, and cultural pride. Some Asian American activists advocated policy reforms, while others worked toward socialist revolution, but all encouraged resistance to racial oppression. They tried to cultivate cultural pride by organizing artistic, musical, and theatrical programs; they also developed journals and magazines and joined global protests against the Vietnam War. Members of the Asian American Political Alliance, for example, denounced U.S. actions in Indochina as a racist war that massacred civilians; they also celebrated the goals and struggles of Vietnamese Communists. Asian Americans for Action, another activist organization, mobilized to fight imperialism abroad and "internal colonialism" at home that its members believed caused Asian Americans to feel inferior to white Americans. Other examples of activism include student strikes for the development of Asian American studies; demonstrations against urban

renewal programs that evicted the poor and the elderly; the creation of health, vocational, and childcare programs within ethnic enclaves; and the successful campaign to repeal Title II of the Internal Security Act, a policy that allowed for the use of internment camps to quell social unrest.

While the Asian American movement demonstrated the power of pan-ethnic solidarity, it also experienced conflicts over issues of ethnic leadership, class, gender, sexuality, and mixed race heritage. Korean American and Filipino American activists challenged the prioritization of Chinese American and Japanese American causes. While proliferating on college campuses throughout the nation, pan-Asian groups were barely visible in Asian ethnic enclaves. Women often found that they were shut out of leadership roles and charged with betraying the community or being assimilationist if they brought up the topic of sexism within the movement. Some women formed separate feminist groups to address the "triple oppression" of intertwined race, class, and gender discrimination. Lesbian, gay, bisexual, and transgender (LGBT) activists drew attention to prejudice within Asian American communities based on sexual orientation.

Definitions of Asian American identity have changed as the population has grown to include large numbers of children of interracial marriages. After the 2000 census allowed participants for the first time to mark one or more of sixty-three racial classifications, nearly 7 million individuals identified themselves as having a mixed race background. While some associated more with a single racial or ethnic group, others embraced a variety of ancestral heritages. The professional golfer Tiger Woods, for example, proclaimed himself a "Cablinasian" to celebrate the Caucasian, black, American Indian, and Asian components of his identity. Some called for a stand-alone multiracial category in the census. Others opposed this addition because it would reduce the representation of traditional racial groups, decrease their political clout and funding for educational programs and healthcare facilities, and cut grants for community development.

DOCUMENTS

Documents 1 to 4 illustrate how Asian American activists challenged popular media portrayals of Asian Americans as uncomplaining model minorities. In Document 1, Malcolm Collier and Dan Gonzales recount how Asian American students, faculty, and community members participated in the San Francisco State strike to establish courses and programs on ethnic studies. Joining the Third World Liberation Front, the students went on strike in 1968 and organized a sit-in protest at the office of university president S. I. Hayakawa. The students won the strike, and as a result the university established a school of ethnic studies. In Document 2, an excerpt from an article published in 1969, Amy Uyematsu defines "yellow power" consciousness as emulating black power in demanding militant demonstrations against racism. Uyematsu's article and Document 3, a photograph of activists protesting the Vietnam War in the late 1960s, demonstrate the Asian American movement's commitment to anti-imperialism and revolutionary policies. Document 4, a poem by Filipino American Al Robles, pays tribute to the International Hotel, known as the

I-Hotel, which was the last remnant of San Francisco's Manilatown. Activists battled for nine years to save the hotel from being torn down due to urban renewal plans before the elderly Filipino residents were physically removed from the building in 1977. Robles participated in these protests, and he uses his poem to honor the *manongs*, older migrant laborers, and to celebrate their Filipino heritage.

Documents 5 to 9 discuss examples of more recent Asian American activism. Althea Yip recounts in Document 5 the story of Vincent Chin, a Chinese American engineer, who in 1982 was beaten to death in Detroit with a baseball bat because he was mistaken for a Japanese person. Yip argues that Chin's murder inspired Asian Americans to develop new advocacy organizations to fight for civil rights, lobby politicians and the press, and monitor hate crimes. In Document 6, Urvashi Vaid, an attorney and LGBT activist, speaks at a 1999 Michigan State University conference about the need for racial justice movements to address structural economic inequality and sexism. Calling for a re-evaluation of heterosexism, patriarchy, and discriminatory notions of family, Vaid maintains that an inclusive and anti-homophobic movement requires a transformation of conceptions of Asian family and culture. In Document 7, activists Annalisa V. Enrile and Jollene Levid describe how GABRIELA in the Philippines and GABRIELA Network (GABNet) in the United States developed a transnational alliance to promote public awareness about the trafficking of women and children in the Philippines. Document 8, by journalist Jeff Yang, explores how multiracialism has reconfigured Asian American identity. Noting that multiracial Asian Americans are projected to comprise more than a third of the population by 2050, Yang looks at how these individuals connect with their multiple heritages. Document 9 disputes the Pew Research Center's 2012 model minority portrayal of Asian Americans as a homogenous and successful group because of their "emphasis on traditional family mores." Citing critics of the report, sociologist C.N. Le, argues that biased survey questions misrepresented the diversity of Asian Americans, ignored continuing prejudice, and disregarded income differentials within the community.

1. Malcolm Collier and Dan Gonzales Recount the Origins of the San Francisco State Strike, 1968 (2009)

Three Asian American student organizations formed in 1967 and 1968: the Intercollegiate Chinese for Social Action (ICSA, 1967), the Philippine (later Pilipino) American Collegiate Endeavor (PACE, 1967), and the Asian American Political Alliance (AAPA, 1968), the latter of which had a largely, but not exclusively, Japanese American membership at San Francisco State. Unlike preexisting student groups, these were politically-charged organizations....

"Origins: People, Times, Place, Dreams," in *At 40, Asian American Studies at San Francisco State University*, eds. Malcolm Collier and Dan Gonzales (San Francisco, CA: Asian American Studies, 2009). Reprinted by permission.

Most of the Chinese American students in ICSA were nominally "second generation": they were born in the United States, the children of families formed by the arrival of wives from China, who were sometimes accompanied by older children. These wives joined husbands who had come earlier, often twenty years or more, usually as "paper sons." Some ICSA members, however, were third, fourth, and even fifth or more generation Chinese Americans. Some were born in China, having come to San Francisco in the 1950s....

Most had parents who worked in sewing factories, restaurants, and small stores, or ran small businesses. Only a few had parents with better paying jobs in mainstream employment. All were the first generation in their families to attend college, most were working their way through school, and many still lived with their families in their local community.

PACE members had somewhat similar backgrounds: most were children of men with earlier histories in the United States who, because of changes in immigration laws in 1946 and their US military veterans' status, were able to bring wives from the Philippines and start families after World War II. In 1968, there was a near even distribution in PACE between members born in the Philippines and those who were second generation.... Like their Chinese American counterparts, they too had an awareness of the earlier "bachelor society" Filipino American experience. Most were also working their way through college.... Their activism was informed by the farm labor movement which was, as is now often forgotten, started by groups with Filipino leaders and majority members (the Agricultural Workers Organizing Committee) that were later joined by the better-known Mexican American union (the National Farm Workers Association) to form the United Farm Workers. They were also intensely curious about the colonial history of the Philippines and the impact of America's relatively recent colonial control on Philippine and Filipino American culture and society....

AAPA was mainly, though not totally, a Japanese American organization. Unlike PACE and ICSA, most AAPA members were [third generation] sansei and their family backgrounds were more varied in economic status, occupations, and schooling, although almost all their families had the World War II "camp experience" in common. AAPA members seemed often more ideologically grounded and were more likely to espouse a pan-ethnic "Asian American" perspective (as reflected in the name of the organization) than the other two groups.

The three organizations saw themselves as community-focused, not simply traditional campus student groups. Prior to the Strike for example, ICSA was primarily concerned with community activities and engaged in a variety of social service endeavors. These included academic tutoring programs, social and recreational work with youth groups, and issue-based community advocacy intended to draw public and governmental attention to needs for improvements in public housing and the development of more social services in Chinatown. Consequently many ICSA members were more involved with the community service element of the organization than with on-campus activities.

AAPA members were developing community-based concerns and activities related to redevelopment and issues associated with wartime internment. They

were also involved in the then very new concept, "Asian American," and the related developments of cultural and political consciousness and the growing movement stemming from them.

PACE actively supported the I-Hotel resistance to eviction that began in 1968 and advocated for community opposition to the destructive effects of business-oriented development both north and south of Market Street. They encouraged intergenerational political activism and organized youth groups.... Some PACE members developed a critical perspective of the Philippine government, particularly the Marcos administration – well before the 1972 declaration of martial law – while the Marcos family enjoyed tremendous popularity in the Philippines and among Filipino communities the world over. When anti-Marcos critics, including some members of PACE, began to voice their criticisms publicly, they were soon labeled "communist-inspired" radicals by the conservative leadership elite of their own ethnic community.

Community activism and service had substantial formative influence on all three organizations, which, despite the overlay of ideological rhetoric, were shaped by the pragmatic needs and immediate issues of their respective communities. ICSA, PACE, and AAPA members tended to identify as community people who were going to college, and not as college students who were going back to the community....

Ideology

The public language of those involved in the Strike, including many from the Asian American student groups, was often phrased in the ideological style of the time, with references to Mao Zedong (spelled Mao Tse-tung at the time), Frantz Fanon, and Malcolm X. This language, together with the radical nature of some of their demands, disguised the actual diversity of political perspectives within the three Asian American student groups. There was something of a shared "Third World" perspective, an identification of racism as a major problem in American society, and a strong emphasis on development of a "social consciousness," but the ideological forms expressed and applied by the student organizations and their members differed among and between them.

The demand for and eventual creation of an Asian American Studies program with Chinese, Filipino, and Japanese American components reflected an element of cultural nationalism that was largely driven by the desire for more knowledge about their own communities and cultures that had been previously denied them. This produced a clear "anti-assimilation" perspective, which conflicted not only with the very real pressures to assimilate and acculturate in the United States but also with universalistic tendencies within Marxism that promise superficial recognition of cultural minorities while limiting their access to power. Our ideological perspectives were correspondingly complex.

Some members of the three groups saw themselves as revolutionaries, influenced by international Marxism or domestic militant socialist groups. Others were inspired by the Civil Rights Movement and related traditions, by political

movements in Asia, by local activism around issues affecting their own communities and families, or by familial environment.

None of the three groups forced a strict orthodoxy on their members, instead tolerating a range of eclectic personal political perspectives and beliefs. The core standard was a commitment to community and to the particular goals of the organizations. At San Francisco State, whatever the rhetoric, the reality was that the dominant ideological perspective was idealistic, democratic pragmatism....

The Strike

As the fall term opened in 1968, the skeleton of an agenda shared among the student organizations in the TWLF [Third World Liberation Front] directly addressed the deficiencies of SF State. The immediate triggers of the Strike were disputes over treatment of Black lecturers working in support programs for EOP students. The Black Student Union (BSU) and TWLF quickly articulated a wider range of issues that reflected collective anger and frustration caused by the inability or unwillingness of the institution to deal with the needs of minority students and communities....

The most important demand was the first TWLF demand that "a School of Ethnic Studies for all of the ethnic groups involved in the Third World Liberation Front be set up with the students in each particular ethnic organization having the authority and control of the hiring and retention of any faculty member, director, or administrator, as well as the curriculum in a specific area of study." At that time, a "school" was a separate academic administrative unit within the larger San Francisco State College. What the demand sought was the establishment and enabling of an academic unit with a substantial degree of control and autonomy over its internal processes. This demand for a "school" flowed from the TWLF's core principle of self-determination. More importantly, the demand demonstrates that the TWLF member groups understood the need for as much autonomy and independence as they could acquire within the larger college structure. It is this demand and its ultimate partial acceptance by the administration that made the development of Ethnic Studies programs, especially Asian American Studies, unique in comparison to related efforts at other colleges and universities....

Although alternately and appropriately called the "Third World Student Strike," not all third world students supported or participated in it. For a variety of reasons, many continued to go to class and, conversely, the greater number of students who did strike and walk the picket lines were white, as were the great majority of faculty who supported the strike demands. It was a complex affair in complex times.

The many communities of the Bay Area were also very much involved in the Strike, though most treatments of Strike history focus disproportionately on campus activity. At the start of the Strike, the TWLF immediately moved to seek outside support. ISCA, PACE, and AAPA engaged in meetings and held forums intended to cull support from individuals and organizations in their respective

ethnic communities. Some of these forums, especially those held in Chinatown, drew large crowds and significant press coverage. Community leaders supporting the Strike, and student strikers themselves, presented the Strike to the public as being far more than a student-versus-college administration affair. Growing numbers of leading community figures began to show up on the campus picket lines. Several unions also publicly supported the Strike and sent members to join the picket lines. The intent, which was successful, was to define the issues to the public in larger political terms and to prevent the students from being isolated and vulnerable to police attacks.

The college administration and the TWLF both experienced many internal disagreements. Neither had full control of their supporters' actions....

The TWLF experience was positive in many respects, providing important practical learning and an exciting sense of collective effort and success that many participants remember with considerable fondness and which have continued to shape their political perspectives to the present. The camaraderie and productive interactions with people from different student groups enriched inter-group understanding and provided very valuable lessons in the building of a political movement. Collaboration among the students and community activist groups, however conflicted and imperfect, demonstrated a potential for future collective actions.

Conversely, it sometimes seemed that the operative word in "Third World Liberation Front" was "front" – behind which discord, mutual misperceptions, and other problems festered.... Each group had its own agenda and frequently had only limited understanding of the needs and positions of the other groups....

There were also obvious and serious gender issues. The leadership of TWLF and the public leadership of the various student organizations were overwhelmingly male and some of the men did not treat the women with respect. This led to conflict and frustrations for the women activists during the Strike. There was a general failure to address their concerns and to recognize the full extent, substance, and value of their contributions....

The gains of the Strike came with substantial cost. Many strikers and some community supporters were arrested, spending varying amounts of time in jail and in court. Others were beaten by the police. One unfortunate member of ICSA was overlooked in the chaos following a day of mass arrests and languished in jail for weeks as his relatives refused to bail him out and the student organizations assumed he had been bailed out by relatives. This is just one example of tensions with family that some members of ICSA, PACE, and AAPA experienced as they were castigated and ostracized by family members for their activism. While the student organizations received some community support, they were also subject to extreme criticism from many other segments of their communities who encouraged the authorities in their attempts to suppress the Strike by whatever means....

The Relevance and Legacy of the Strike Today

On a broad scale we wanted the college to become a place in which Asian American history, culture, and communities – which is to say the realities of

the Asian American experience – would be accepted as legitimate areas of study at the university level. This was a dream, a push for inclusion and redefining what is American. We wanted Asian Americans to be seen as Americans, not at the price of assimilation and "acceptance" but through a change in the conception of America to one that was broader and more varied in its character. We saw this as an issue of equity; if college is intended to provide students with knowledge and understanding of their society and culture, then it should include ours. But there was a pragmatic aspect to this dream too. We believed that if Asian American students could be provided with a solid understanding of Asian American realities, past and present, that they/we emerge both better individuals and better prepared to help provide for the needs of our communities....

We were seeking a change in the character and focus of the college, of academia in general. We wanted a connection between college and communities, believing, hoping, that such connections would be to the long-term benefit of the communities and, secondarily, the college. We wanted the college to serve the communities, not to remove or "rescue" students from their communities.

2. Activist Amy Uyematsu Proclaims the Emergence of "Yellow Power," 1969

Within the past two years, the "yellow power" movement has developed as a direct outgrowth of the "black power" movement. The "black power" movement caused many Asian Americans to question themselves. "Yellow power" is just now at the stage of "an articulated mood rather than a program—disillusionment and alienation from white America and independence, race pride, and self-respect." Yellow consciousness is the immediate goal of concerned Asian Americans.

In the process of Americanization, Asians have tried to transform themselves into white men—both mentally and physically. Mentally, they have adjusted to the white man's culture by giving up their own languages, customs, histories, and cultural values. They have adopted the "American way of life" only to discover that this is not enough.

Next, they have rejected their physical heritages, resulting in extreme self-hatred. Yellow people share with the blacks the desire to look white. Just as blacks wish to be light-complected with thin lips and un-kinky hair, "yellows" want to be tall with long legs and large eyes. The self-hatred is also evident in the yellow male's obsession with unobtainable white women, and in the yellow female's attempt to gain male approval by aping white beauty standards. Yellow females have their own "conking" techniques—they use "peroxide, foam rubber, and scotch tape to give them light hair, large breasts, and double-lidded eyes."

The "Black is Beautiful" cry among black Americans has instilled a new awareness in Asian Americans to be proud of their physical and cultural heritages.

From Amy Uyematsu, "The Emergence of Yellow Power in America," Gidra, October 1969, from *Roots: An Asian American Reader.* Copyright © 1969 Regents of the University of California. Used with permission.

Yellow power advocates self-acceptance as the first step toward strengthening personalities of Asian Americans.

Since the yellow power movement is thus far made up of students and young adults, it is working for Asian-American ethnic studies centers on college campuses such as Cal and U.C.L.A. The re-establishment of ethnic identity through education is being pursued in classes like U.C.L.A.'s "Orientals in America." As one student in the course relates:

"I want to take this course for a 20–20 realization, and not a passive glance in the ill-reflecting mirror; the image I see is W.A.S.P., but the yellow skin is not lily white... I want to find out what my voluntarily or subconsciously suppressed Oriental self is like; also what the thousands of other (suppressed?) Oriental selves are like in a much larger mind and body—America... I want to establish my ethnic identity not merely for the sake of such roots, but for the inherent value that such a background merits."

The problem of self-identity in Asian Americans also requires the removal of stereotypes. The yellow people in America seem to be silent citizens. They are stereotyped as being passive, accommodating, and unemotional. Unfortunately, this description is fairly accurate, for Asian Americans have accepted these stereotypes and are becoming true to them....

The yellow power movement envisages a new role for Asian Americans:

"It is a rejection of the passive Oriental stereotype and symbolizes the birth of a new Asian—one who will recognize and deal with injustices. The shout of Yellow Power, symbolic of our new direction, is reverberating in the quiet corridors of the Asian community."

As expressed in the black power writings, yellow power also says that "When we begin to define our own image, the stereotypes—that is, lies—that our oppressor has developed will begin in the white community and end there."

Another obstacle to the creation of yellow consciousness is the well-incorporated white racist attitudes which are present in Asian Americans. They take much false pride in their own economic progress and feel that blacks could succeed similarly if they only followed the Protestant ethic of hard work and education. Many Asians support S.I. Hayakawa, the so-called spokesman of yellow people, when he advises the black man to imitate the Nisei: "Go to school and get high grades, save one dollar out of every ten you earn to capitalize your business." But the fact is that the white power structure allowed Asian Americans to succeed through their own efforts while the same institutions persist in denying these opportunities to black Americans.

Certain basic changes in American society made it possible for many Asian Americans to improve their economic condition after the war. In the first place, black people became the target group of West Coast discrimination. During and after World War II, a huge influx of blacks migrated into the West, taking racist agitation away from the yellows and onto the blacks....

The other basic change in society was the shifting economic picture. In a largely agricultural and rural West, Asian Americans were able to find employment. First- and second-generation Japanese and Filipinos were hired as farm

laborers and gardeners, while Chinese were employed in laundries and restaurants. In marked contrast is the highly technological and urban society which today faces unemployed black people. "The Negro migrant, unlike the immigrant, found little opportunity in the city; he had arrived too late, and the unskilled labor he had to offer was no longer needed." Moreover, blacks today are kept out of a shrinking labor market, which is also closing opportunities for white job-seekers.

Asian Americans are perpetuating white racism in the United States as they allow white America to hold up the "successful" Oriental image before other minority groups as the model to emulate. White America justifies the blacks' position by showing that other non-whites—yellow people—have been able to "adapt" to the system. The truth underlying both the yellows' history and that of the blacks has been distorted. In addition, the claim that black citizens must "prove their rights to equality" is fundamentally racist.

Unfortunately, the yellow power movement is fighting a well-developed racism in Asian Americans who project their own frustrated attempts to gain white acceptance onto the black people. They nurse their own feelings of inferiority and insecurity by holding themselves as superior to the blacks....

A united black people would comprise over ten percent of the total American electorate; this is a significant enough proportion of the voting population to make it possible for blacks to be a controlling force in the power structure. In contrast, the political power of yellows would have little effect on state and national contests. The combined populations of Chinese, Japanese and Filipinos in the United States in 1960 was only 887,834—not even one-half percent of the total population.

However, Asian Americans are not completely weaponless, in the local political arena. For instance, in California, the combined strength of Chinese, Japanese, and Filipinos in 1960 was two percent of the state population. Their possible political significance lies in the fact that there are heavy concentrations of these groups in San Francisco and Los Angeles....

In city and county government, a solid yellow voting bloc could make a difference....

Although it is true that some Asian minorities lead all other colored groups in America in terms of economic progress, it is a fallacy that Asian Americans enjoy full economic opportunity. If the Protestant ethic is truly a formula for economic success, then why don't Japanese and Chinese who work harder and have more education than whites earn just as much? ...

The myth of Asian American success is most obvious in the economic and social position of Filipino Americans. In 1960, the 65,459 Filipino residents of California earned a median annual income of $2,925, as compared to $3,553 for blacks and $5,109 for whites. Over half of the total Filipino male working force was employed in farm labor and service work; over half of all Filipino males received less than 8.7 years of school education. Indeed, Filipinos are a forgotten minority in America. Like blacks, they have many legitimate complaints against American society.

A further example of the false economic and social picture of Asian Americans exists in the ghetto communities of Little Tokyo in Los Angeles and

Chinatown in San Francisco. In the former, elderly Japanese live in rundown hotels in social and cultural isolation. And in the latter, Chinese families suffer the poor living conditions of a community that has the second highest tuberculosis rate in the nation.

Thus, the use of yellow political power is valid, for Asian Americans do have definite economic and social problems which must be improved. By organizing around these needs, Asian Americans can make the yellow power movement a viable political force in their lives.

3. Asian Americans in Los Angeles Protest Against the Vietnam War, Late 1960s



Courtesy of Photographic Collections, Visual Communications.

Asian Americans protest against the Vietnam War.

4. Al Robles Celebrates the Manongs and the International Hotel, 1970s (2002)

International Hotel—in the mongo [mung beans] heart & isda mind of the Philippines—where old & young Pilipinos live, hang, & roam around all day like carabaos [water buffalos] in the mud: eating, sleeping & working. Pilipinos scattered all over—brown faces pied high, moving like shadows on trees, concrete doorways, pool halls, barber shops. Guitar music echoes thru—down deer

"Coming Home to Manilatown, International Hotel," *Amerasia Journal* 28, no. 3 (2002): 181–194. Reprinted by permission.

in your mongo heart & isda mind. Chinatown across the way. Sixty-thousand or more live in rooms the size of tea pots, stretching east, west, north & south. Thousands are crammed in damp basements, alley ways, behind run-down barrels of ancient Chinese mountain wine. Thousands of Chinese children run along soy sauce streets—long black hair glistening like a cool stream—a quiet moon watches. Short crop of hair—morning spring faces—underneath fresh-soaked clouds. All those tiny footsteps keep the winter belly warm.

All night session—ocean of words
Legaspi—Frank—Bob—Bill Sorro—Mee Har—Me
& somebody else.
Early start at Legaspi's UFA mountain fortress
Put down your white mind
with your eyes behind brown skin
brown=brown=brown=brown
fallen coconuts on a cold
cold winter day.
brown=brown=brown=brown
fish drying
in the hot summer sun
Bill Sorro: "You know, when I go into the pool halls
& see my Pilipino brothers, I want to say to them:
'you know I know how you feel; I know how you think.' I want to say to them,
Manong [older brother], manong, manong, don't you know
you are being fucked."
"I am brown, I am together, I am beautiful"
Come down from those white flaky hills
the smell of the carabao shit stills
the mind
keeps the pampano [fish] swimming
in your belly.
Put down your knives & forks
and eat rice & fish
with brown winter-soiled hands.
jump and wallow
in the mountain-grass heap shit
of the carabao.
Ah, Pilipinos
IF you only knew how brown you are
you would slide down
from the highest
mountain top
you would whip out your lava tongue
& burn up all that white shit
that's keeping your people down.
Don't you know
you smell like

the deep brown earth
if you only knew
if your eyes were
only opened
you would see the sun
come down

5. Althea Yip Remembers the Legacy of the Death of Vincent Chin, 1997

It was an unlikely place for a pivotal point in Asian American history. A young draftsman named Vincent Chin was attending his bachelor party at a suburban Detroit strip club called Fancy Pants. With the party in full swing, Chin and Ronald Ebens, a white autoworker, began trading insults across the bar. "It's because of you little motherfuckers that we're out of work," witnesses later remembered Ebens yelling at Chin.

Chin struck Ebens, and an altercation ensued. Ebens' stepson, Michael Nitz – who had been recently laid off from his job at an autoplant – jumped in. But it was soon broken up by a parking attendant. Chin and his friends left the bar and went their separate ways. Twenty minutes later, Ebens and Nitz caught up with Chin in front of a fast-food restaurant. Ebens grabbed a baseball bat and delivered a blow to Chin's leg. Nitz held the wounded Chin, while Ebens struck his head with the bat, bashing his skull in.

Before he slipped into a coma, Chin murmured to a friend, "It's not fair." Four days later – and five days before his wedding – Chin died as a result of the injuries he sustained during the beating.

The incident on June 19, 1982, seemed an almost perfect metaphor for anti-Asian sentiment in America. It was ignorant; Ebens and Nitz presumed Chin, a 27-year-old Chinese American, was Japanese. It was economically motivated; the two autoworkers blamed the Japanese – and, mistakenly, Chin – for the ailing U.S. auto industry and the consequential loss of jobs. And it was horribly violent; the use of a baseball bat as a murder weapon was a brutal act and an equally brutal reminder of Americana.

But if the beating itself was emblematic of the racial problems in America, the subsequent trial challenged many Asian Pacific Americans' faith in the American way.

Ebens and Nitz were charged with and pleaded guilty to manslaughter. For this, they each received a sentence of three years probation and a $3,000 fine – a sentence that many APA community leaders perceived as a slap on the wrist.

Later federal civil-rights cases brought against the two defendants were appealed, and the juries acquitted each of them. Neither served a jail sentence.

The first judgment against Ebens and Nitz outraged a group of APAs and motivated them to form American Citizens for Justice (ACJ), a pan-Asian American activist group that mobilized to demand a retrial against the two men....

"Remembering Vincent Chin: Fifteen Years Later a Murder in Detroit Remains a Turning Point in the APA Movement," *AsianWeek*, June 19, 1997, 12. Reprinted by permission.

Vincent Chin became a contemporary martyr of the APA movement. Fifteen years later, his death remains a turning point for many Asian Pacific Americans.

"I think that the Vincent Chin case ... was a watershed moment for all Asian Americans," said Helen Zia, a longtime community activist and ACJ co-founder. "Previously, there were mostly college and progressive activists who had taken up the name 'Asian American,' but as far as the average person in the Chinatowns, Japantowns, Koreatowns, they considered themselves their own ethnicity.

"For the first time, we considered ourselves as a race, a minority race in America that faced discrimination and had to fight for our civil rights. The Vincent Chin case marked the beginning of the emergence of Asian Pacific Americans as a self-defined American racial group." ...

The five-year legal battle that followed the shock of the initial verdict was conducted by APA advocates who had little experience dealing with national civil-rights cases, said Stewart Kwoh, executive director of the Los Angeles-based Asian American Legal Center, which was organized the same year the Chin case went to court....

In the first trial in Wayne County Criminal Court in 1983, the prosecutor of the case did not show up for the sentencing hearing; there were no advocacy groups present; and neither Lily Chin, Vincent's mother, nor any of the witnesses was called to testify.

With only the defense lawyer making a case for his clients, Judge Charles Kaufman handed down his verdict of a $3,000 fine, $780 in court fees, and three years probation for each of the men. Kaufman reasoned that Ebens and Nitz did not have criminal records and were not likely to violate the terms of their parole. And at the same time, Kaufman ignored the pre-sentence report that identified Ebens as an alcoholic with a history of alcohol-related problems. The report also recommended that in addition to incarceration, Ebens undergo detoxification and counseling for his problem.

The decision sent shock waves throughout the national APA community. Civil-rights leaders interpreted Kaufman's decision as judicially condoning anti-Asian violence.

"It was an intense time," said Henry Der, a longtime community activist and then-executive director of San Francisco-based Chinese for Affirmative Action (CAA). "Here these murderers were sitting out there literally smirking at the whole situation.

"Before Vincent Chin, people dealt with hate violence at the local level. But Vincent Chin galvanized the political consciousness among Asian Americans – that's the only way it can be described. The lack of a meaningful penalty for the murder was egregious. It was something that could not be ignored."

ACJ, with help from several other APA groups – including CAA, Japanese American Citizens League, Organization of Chinese Americans, Filipino American Community Council of Michigan, and Korean Society of Metropolitan Detroit – staged rallies, organized demonstrations, and launched a massive letter-writing campaign. They wrote to politicians, the press, and the U.S.

Department of Justice demanding that the two men be charged with violating Chin's civil rights.

Lily Chin, who barely spoke English, traveled the country raising money to pay the costs involved in bringing about a civil suit. Many credit her appeal to the APA community for bringing forth seniors and immigrants – who could identity with her – into the movement.

After an FBI investigation that was ordered by the Department of Justice gathered sufficient evidence, federal charges were filed and a federal grand jury indicted the men in November 1983 on two counts: one for the violation of civil rights, the other for conspiracy.

In June 1984, Ebens was found guilty only on the first count and sentenced to 25 years in prison. He also was told to undergo treatment for alcoholism, but was freed after posting a $20,000 bond. Nitz was cleared of both charges.

But in September 1986, Ebens' conviction was overturned on a legal technicality; one of the lawyers for ACJ had been accused of improperly coaching the prosecution's witnesses.

The Justice Department ordered a new trial in April 1987, but this time in a new venue: Cincinnati. But while the change in venue was meant to increase the chances of a fair trial, in some important ways it made that almost impossible.

Cincinnati was, in the early '80s, a city that had had little exposure to Asian Pacific Americans. Out of 200 prospective jurors interviewed, only 19 said that they had ever encountered an Asian American. They were quickly dismissed.

According to Zia, the actual jury had little if any understanding of the hostility people in Detroit harbored against Japanese cars and Japanese-looking people. The nation's trade imbalance with Japan had been blamed for the closing of or cutbacks at many auto plants in Detroit.

"The whole mood was total anti-Japanese," Zia said about Detroit, where she lived when Chin was killed.

"People who had Japanese cars were getting their cars shot at, and it didn't matter if they were white. And then if you were Asian, it was assumed that you were Japanese just like Vincent and there was personal hostility toward us.

"So, when Vincent was killed it was a confirmation to all Asian Americans there in Detroit, the antagonism that we were feeling. I felt totally like a moving target."

In May 1987, the jury of 10 whites and two African Americans acquitted Ebens of all charges. He never served a jail term for his crime.

The whole experience had taken its toll on Lily Chin. Disheartened, she left the U.S. and returned to her native village in the Guangzhou province in China.

Later in 1987, a civil suit ordered Ebens to pay $1.5 million to Chin's estate. But shortly before the verdict, Ebens had disposed of his assets and fled. He has been evading officials for the past 10 years....

Today, things are different, said Roland Hwang, current board member and former president of ACJ. Now the APA community has national lobbying organizations based in Washington, D.C., and several agencies throughout the country that investigate and follow hate crimes against APAs locally....

Cases that are currently on the radar screens of national APA advocacy groups include the recent assault on a group of APA students outside of a Denny's restaurant in Syracuse, N.Y.; the fatal shooting of a Chinese American man in Rohnert Park, Calif., by a police officer; and the stabbing death of a Vietnamese American man in Los Angeles....

For Karen Narasaki, who was in law school when Chin was killed, the case helped her decide to use her law degree to fight for civil rights.

"It was such a powerful story that brought home how fragile our existence here as Asian Americans is and the need to be vigilant," said Narasaki, executive director of the National Asian Pacific American Legal Consortium [NAPALC]. "I know that the incident shaped a lot of people who are currently involved in civil rights, including myself."

Liz Ouyang, a staff attorney at the New York-based Asian American Legal Defense and Education Fund, who was also inspired by the incident to work in the civil-rights field, felt a personal connection to the Chin case.

"When I heard about Vincent Chin, it made me think of my brothers," said Ouyang, who was a senior at the University of Michigan in 1982.

Growing up in Rochester, N.Y., Ouyang recalls the neighborhood bully taunting her brothers with racial slurs.

One day the bully attacked one of her brothers, tying a lasso around his neck and dragging him down the street when he tried to flee.

When the Chin case drummed up memories of what happened to her brother, Ouyang knew what she had to do.

"The legacy of Vincent Chin has left very deep impressions on my work today," she said. "It clearly has influenced me in what I am doing today, representing victims of anti-Asian violence and police brutality. And I tell my clients, 'I will represent you like you were my brother,' because, in a way, they are."

6. Urashi Vaid Criticizes Heterosexism and Patriarchy in Racial Justice Movements, 1999

I want to talk today about the limits of racial identity politics and the real challenge embedded in "including" sexuality. My talk uses examples from the immigrant Asian experience so bizarrely idealized and distorted last night by Dinesh D'Souza.

First, I believe that we are at a moment where the paradigm of ethnic and race based organizing needs to be examined and questioned – across the board, as does the framework of identity based to question the meaningfulness and even the racial content of concepts like "South Asian" and "Asian Pacific American" identity. Instead of a nationalist or ethnic based model, we need an economic model of organizing because that provides more fruitful opportunities to challenge racism and to start to connect in issues of gender, sexual orientation and the problem of challenging supremacy. Certainly, I believe that racism is a serious reality

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"Race and Sexuality in the 21st Century," by Urvashi Vaid, April 9, 1999. Retrieved from uvashivaid.net. Reprinted by permission.

and obstacle for Asian Pacific Americans and for the political movements we are building in the US, but I think that immigrant communities and even the movement for racial justice in this country deploy ethnicity as a device to build a false racial solidarity, which conveniently ignores the currents of gender, sexuality, and class differences that run underneath. This deliberate strategic avoidance of anything but race was evident yesterday when Bill Wilson spoke about needing to stay away from issues that would divide the multi-racial coalition he proposed.

Second, the lessons of history teach us that on their own creating identity-based politics does not lead to liberationary outcomes. But this conclusion begs the question of what is the goal of an Asian Pacific American politics? Or a black-movement politics? What are we trying to achieve by attempting POC [people of color] movements? Do we agree on our goals and will we ever agree? Would the goals of ending economic and structural inequality be better served by organizing a movement that is not-identity based?

Third, I want to propose that in order to both address racism, structural economic inequality and sexism and in order to "include" sexuality in a racial justice movement at every level, people of color communities must be willing to engage in a drastic re-consideration of the heterosexism, of patriarchy in our communities, of our notions of family: for example, no inclusive, anti-homophobic Asian movement can emerge without such a re-visioning of Asian family and culture. And I am not at all confident that we are at a place where such questioning and revisioning and redefinition are possible or even taking place:

Overall what I want to argue is that while racial identity-based organizing and maintaining identity have been vital strategies that retain relevance, they are not on their own enough to end racism. The inclusion of sexuality within the POC context will engender a willingness to accept some discomfort and has encountered stiff resistance. The truth is – for those of you have been waging the effort in POC organizations and communities – in coalitions or in churches, or in APA organizations – that seeking inclusion and awareness are the easy parts. Transforming the institutions of family, relationships, gender and power dynamics in communities of color – which is what sexuality brings in the door still lie ahead of us.

As Dana Takagi has noted in her essay in the book Asian American Sexualities, the adding-on or adding-in of sexuality into the *melange* of Asian identities in America is on its own, not enough. If sexuality is submerged into the pre-existing, hierarchical ethnic based narrative, we are not redefining very much and not in fact opening up very much space for queer Asians like me, nor are we making real social change.

The Ethnic Model: APA Organizing

We live in a moment in which the effects of racism on people of color are visible everywhere, and yet we are urged to ignore them and re-interpret them from the lens of a libertarian ideology that argues that inequality is not a byproduct of the failure of an economic system, but the failure of an individual and the collapse of the "traditional" family structure that individual comes from. Racism in the disguise of "race-neutral" policies is dominant.

The goal of this resurgent racial bias is to re-impose white supremacy in the workplace, in the award of government contracts, in the allocation of public resources. Conservatives want you and me to believe that by erasing race, by getting rid of affirmative action, people of color will be "freer" but this nonsense obscures the truth about how institutionalized and embedded racial prejudice is and how linked racism is to class. Few of us are "free" to move up the ladder of success, business, and educational hierarchy on our merits alone – opportunity and freedom are conditioned by economic privilege. Few are "free" to go to college without financial assistance; few of us are "free" to break out of the class-lines assigned us by our race and our class-of-birth. Merit for POC in America is a cigarette, not the way the system works for us – the facts do not support the libertarian nonsense of people like D'Souza.

The idea of an Asian Pacific American political movement is rooted in the particular experiences of prejudice faced by Asians and immigrants in the US, and it borrows heavily from the model of ethnic based organizing that has characterized the civil rights struggle in the US. Ethnic or race based organizing has been an effective strategy in American politics to assert political power, to secure public policy solutions that meet the needs of the particular constituencies that are organizing and perhaps most importantly to develop a stronger sense of self and self-worth in a context that whitens all difference. Organizing as racial or ethnic based groups has been useful and it is this reason that many Asians are adapting the race based model of organizing today. There are very good reasons we are organized around and by ethnicity or nationality. But I remain skeptical of this strategy as a panacea or even the best model. My skepticism about ethnicity or nationality as the basis for organizing is best elaborated through the Asian Pacific American political movement that I see emerging around me.

The challenge I see about organizing as APAs comes in three forms. For one, economics as much as race conditions the experience of racism of APs in America. Our APA movement thus far has had little to say about economic justice. Second, the irony of the framework of APA is that American defines and unites us far more than 'Asian' or 'Pacific'. And third, the model of race-based or ethnic-based or even identity based organizing is very valuable in terms of definition, individual empowerment and community organizing. But it is of limited value as a transformational device.

My parents, like many Asian and South Asian and Pacific people came to America for "economic opportunity" – we came by choice but others came as economic slaves (laborers) building up American railways and infrastructure at the turn of the century and serving the households of immigrant families as indentured slaves today. Asians in this country have by and large completely bought into capitalism. This despite the fact that capitalism is now strip mining the economies of many of our countries of origin, has not provided relief to the millions in the world who are poor and living at subsistence levels; has created enormous disparities in freedom, opportunity and power between rich, middle class, working class and poor.

We are model minorities in our acquiescence to the system staying the same. So in this country, the same immigrants who are suffering from the racist immigration policies of the Republican right staunchly oppose health care reform or a social safety net. Indians in the US – at least of my parents' generation – are quite conservative and more often than not republican (although being democrat these days offers little solace to those of us who are progressive).

Many people I know believe that if you work hard, anyone can get ahead; that people who are poor and on welfare are shiftless; that economic security and property are the ultimate goals of life (all framed in the guise of providing for your family, but at its core no different from the insatiable greed that motivates all capitalists). Ironically, the condition of Asians and Pacific people in America is more linked to economic forces and the ups and downs of capitalism than they are to the deep well of racism that is a part of the American psyche. American labor is already resentful of immigrant labor. Pat Buchanan's message resonated well with many people in this country. If jobs tighten up in the US, the visas will dry up for immigrants. The boom in hi tech jobs which has created great opportunities for Asian engineers and programmers hinges on the success of speculative and volatile markets which have inflated the value of internet and computer stocks, creating a wealth that cannot last for most and will benefit only a very few. I do not see a progressive Asian Pacific American movement dealing with these and other economic contradictions and tensions.

A second reason I am skeptical of the term Asian Pacific American is that it means so little. We are more tied together by our shared experiences or marginalization in white America than we are by our Asian American-ness, or our links nationally, historically, linguistically or culturally. Most of us do not know a thing about each other's countries of origin or histories. For second and third generation Asians in America, it's enough of a challenge to learn about our own ethnic and cultural heritage. To forge a sense of common solidarity with each other has thus been difficult. I do not believe that the large numbers of Indians in America feel a sense of kinship with Japanese Americans or with Chinese Americans or with Filipinos. Instead, they feel kinship along the tradition bound lines we have always followed: family, caste, state or origin, language – the conventional links. Given this truth are we in fact trying to force on to our wildly diverse immigrant cultures a commonality that will never be shared? Is the commonality more about expediency in American politics – the need to be counted, to be able to marshal votes etc – than it is about reality: will we ever be able to deliver a voting bloc as Asians given our radical diversity?

And this brings me to a final point for us to consider as we think about the racial identity formulation from the perspective of the Asian experience in America today: does identity politics work? The answer is it depends on your goal in using it. For what does it work and for what does it fail? I think it works to create self-esteem, empowerment, and visibility in the American political system, and it works for community building and organizing. But it fails as a vehicle to revamp the social service system in this country. Ideology based movements are more valuable than identity based ones.

Lessons from the Queer Context

The queer movement is facing an analogous cross roads in its reliance on identity as the principle means of organizing. Structural heterosexism, or institutionalized racism explains why we have single-issue movements dedicated to the eradication of these forms of prejudice. Pervasive prejudice, violence and discrimination are why we have a GLBT movement. But the GLBT movement today confronts two dilemmas: on one hand is its profoundly radical challenge to the most basic and intimate forms of human life – desire and family. How do we make our selves appealing when we are indeed really unsettling to the order of heterosexism. On the other hand we confront the same limits of organizing along the ethnic-model of organizing – without an ideological unity, without an economic policy agenda, with only our sexual orientation to connect us to each other, we never seem to really get to the heart of the structural problems we encounter. Let me elaborate for one minute.

The queer movement is one whose full acceptance will require deep changes in society's treatment of sex, desire, gender, human relationship and family. It is a movement that raises the most extreme kinds of psychological reactions in people – because they can in some sense see themselves affected by desire, touched by it and it makes them uncomfortable. It is a movement condemned by some of the most powerful texts and contexts in America – religion. And in order for GLBT people to be fully accepted in America it will require what theologian Bob Goss calls the sexual reformation of the church. In short the GLBT movement is not a safe or easy or simple movement.

On the other hand, the queer movement, like the emerging APA movement has reached the same dilemma that confronts each civil rights movement today. We begin to approach the point of partial fulfillment, where the system accommodates somewhat to admit us, to change some laws, to open up a little bit, but the underlying prejudice and structural barriers to full equality remain in place. We create zones of freedom inside a fundamentally intransigent system – family, marriage, state and economic order. In terms of public policy, we end up working piecemeal on small solutions that benefit particular communities in the short run while not making systematic changes that could benefit society in the long run.

And that is because we do not have an ideological basis for our social justice movements.

We find ourselves at a crossroads as a gay and lesbian movement, and while both roads are legitimate, one leads farther than the other. Down one road lies the direction we have been pursuing – of working solely or exclusively within the lesbian, gay, bi, transgender context, on so-called gay rights issues working solely on issues that affect "us" as queers. Down the other road lies the project of not just trying to fit in, but trying to change the world and institutions we encounter. If we walk down this second road, we quickly realize that our fight to end discrimination on the basis of sexual orientation intersects with women's effort to overturn our second class status, with the struggle for racial justice and equality, and with the quest for a fairer economy and a

cleaner environment. What we attempt in walking down the second road is the project of building a kind of political and social change movement than the civil rights movements we have built thus far – we must build a movement that is all about economic change and through that we will create massive social change.

Let me stress, neither choice – single-issue politics, nor multi-issue politics – is right or wrong: they are however quite different. Let me also stress that I am not arguing that we must abandon all the single-issue or identity based work we are doing – just that we have got to supplement it with new organizing that we are not doing. I want a movement that is not just focused on identity but that is engaged in defining what the kind of society we want to move into as we move into the 21st century.

Is this possible? I don't know. Is this necessary? Yes. Why? It is necessary to create this common movement because we face a totalizing right/opposition that is not capable of being defeated by anything but a systematic counter mobilization. Right wing ideas about public policy and the ordering of cultural life are not merely cyclical swings in the historic pendulum of policy ideas. They represent a serious effort to restore the very values and hierarchies that social justice movements have struggled to transform, and to construct something that has not before existed in America – a theocratic state. In place of gender equality, the right advocates male supremacy. In place of remedies aimed at addressing centuries of racial discrimination against African Americans, the right proposes policies blind to the impact race plays on economic opportunity. In place of a social welfare role for the state, the right proposes either the elimination or privatization of all government service programs. These ideas are antithetical to the policies and values of social democrats and to social justice movements.

How are we organized to deal with these huge and complex changes? If we are to be honest with ourselves, we must answer that we are not well organized and not handling these changed circumstances very well. Why? If we look at our work historically, we can understand that we have not paid attention to the most basic kinds of lessons: to thrive, every movement must have a strong and motivated base. And the organizing and motivation of such a base is not something that just happens by osmosis or on its own, or through a media campaign. It happens through systematic and creative grassroots community organizing – something that too few of our civil rights organizations do even to this day.

The problem that exists lies squarely in the realm of constituency support for these ideas. Because of the way we are structured – issue by issue, or identity by identity – social justice movements cannot boast the kind of ideological or political unity that is found on the conservative right. Because we have invested less time and skill to organizing, social justice movements seem to have less clout to deliver on our goals (as setbacks at the ballot box on affirmative action, immigration, gay rights suggest).

This is precisely the gap at which racial justice and civil rights movements of the 21st century must take aim. We can and we must rebuild a constituency for social justice. Tremendous and creative work can be done to expand the capacity of social justice movements in various fields to defend their policies and to

increase their reach. New ways to forge constituency among social justice organizations working on discrete issues can be attempted. We can and must make a new structure out of the way we now operate to succeed nationally and locally. We can and we must have the courage of our values to take the risk of joint action and new cooperation. We can and we must take the leap of faith in order to build the trust that common purpose requires.

And constituency building to oppose the right requires us to not be limited to a movement built around racial identity, ethnic identity or gender or sexual orientation alone. My point is this, we cannot build a common movement unless we look honestly at both the good things and the bad things we get by organizing issue by issue, color by color, identity by identity.

Queering APA Organizing

This conference is to be commended for acknowledging that the only sexuality in Asian and Pacific communities is not heterosexual. This is a truth denied in most Asian contexts. All too often, one still hears the canard that homosexuality is a western thing or a corruption of truly Asian values. The histories of Asian sexualities in each of our countries of origin remain to be discovered and uncovered by scholars of your generation in the years ahead. The truth that I know is that of course there is a rich tradition of same-sex love and experience in every culture and continent of the world. Whether it understands itself as "gay" or "lesbian" or "transgender" or bisexual" is debatable but the existence of same-sex behavior and same-sex love the world over ought not to be obscure to any one. It is not just a western or white thing, never was.

Certainly you all know that queers in America face tremendous barriers to fully living our lives: discrimination, violence and prejudice is the pervasive and is the norm. Whether the context is employment discrimination, family recognition, criminal law, immigration, health care, HIV, military issues, hate violence – GLBT people face a lot of problems and challenges. I am quite able to detail the specific forms and statistics that document this and to cite you to volumes that will help you understand these realities. But I do not want to take my time to that right now.

The point I want make is two fold: (1) yes, indeed, a progressive racial justice movement ought to take up the challenge of being allies to the GLBT movement. We need to recognize that ending prejudice based on sexual orientation is a progressive stand and one that is integral to movements based on the values of justice. The unpopularity of homophobia does not justify anyone's silence. As you see embodied in me and the other panelists, for queers like us, a multi-issue movement is essential. This first level of inclusion is where we find ourselves today – still arguing for the most basic kind of recognition from communities of color. The specifics of the fight vary race and ethnicity by race – the level of visibility of queer poc varies in each community of color – for example South Asian GLBT people have only emerged in our communities in the past 9 years, while an organized African American GLBT movement has existed for arguably over 20 years.

The deeper challenge that queerness poses to POC communities, and to the society at large, it is similar to the challenge that feminism poses: and this is a challenge I am not so sure our people – even progressives are willing to take up. The challenge is to the notions of family that we are raised with and to their unyielding patriarchal, hetero-sexist and authoritarian terms.

If any of you read the *New Yorker* in mid February of 1999, you would have read a wonderful example of what I am talking about in the Asian context in the story of the 20-year-old Indian woman from Queens. Her struggle to determine a life for herself and to please her parents and fulfill their expectations for her is heartbreakingly familiar to each of us who are Asian in this room. She is expected to be married, to accept that without question, to settle on the person her father selects, to produce children, to be the good and obedient daughter, to be the subject of statements like this one from her father "When you are married, my life will be complete". This story is typical and it is contemporary. The Indian family exerts this kind of pressure and control inside it, and is coded with enormous heterosexist expectations. The Latino, Black and other family structures would have their own gender and heterosexist codes and norms.

What does it mean that we are all raised in families where compulsory marriage and compulsory heterosexuality (as Adrienne Rich named it so eloquently) is the unquestioned norm? Where to stand against that is to be ostracized by all family, community, and in some instances to be killed by one's own father for disobedience? Why do we tolerate and accept the blatant double standard in Asian families for girls and boys? Why do young Asians in America feel they must go along with this and that they have no recourse – short of radical rebellion and acting out? What does it mean that the dominant critique of family in the black community that is not feminist, but comes out of right wing or liberal think tanks? How can gay, lesbian bisexual or transgender person be accepted into this old conception of family?

We need to create ways to organize around the so-called private family issues – to publicize what has been privatized, questioning and take it as disrespect instead of frank interrogation and disagreement. But this to me is the undone work of "internalizing" the meaning of movements for women's liberation and sexual freedom into the APA (or any other context). There can be no more than token integration of these issues unless we are willing to examine the gender biases of the families and communities we come from.

Conclusion

Gandhi wrote that morality consists of doing what we ought to do. He argued that mere observance of custom and usage was not morality. That moral actions are those guided by justice and respect for the divine will. That moral acts involve no coercion and are not motivated by self-interest. If I help my neighbor because he is suffering, I commit a moral act. If I help my neighbor because I want credit for helping him through his suffering, my action may still be a good deed, but in Gandhi's argument it is not moral.

Merely by pursuing our own liberation and freedom we are not engaged in a moral course. If we place our liberation movement in the service of building a

more just society then we will be a movement that is unstoppable because our course will be spiritually and politically just. Additionally, merely by adding sexual orientation as a category to the line-up of things racial or ethnic, we will not actually change a great deal at all.

7. Annalisa V. Enrile and Jollene Levid Describe GABRIELA Network's Transnational Sisterhood and Organizing, 2009

For decades, women's organizing has been predominately territorial-bound and geographically placed. However, since the 1990s there has been a shift to broader theorizing of global sisterhoods and the opportunity for solidarity, especially around gender justice and liberation movements. The United Nations Decade for Women (1976 to 1985) opened a dialogue of North/South and First World/Third World dichotomies. The 1995 Fourth United Nations Conference on Women and NGO [nongovernmental organization] Forum in Beijing, China brought the issue of solidarity practices to the forefront. The rise of international women's conferences has aided in the push for more transnational feminist organizing and the need to address economic, political, and social arenas of women's struggle.

Transnational feminism, or international feminism, began as collective actions found themselves crossing border-states and countries. However, transnational feminism has grown to transcend the familiar boundaries of nations and race, emphasizing instead, the common visions and goals of women engaged in political struggles. This border crossing reflects women's struggles against racism, sexism, colonialism, and imperialism, and recognizes interlinked inequalities rather than generic commonalities. What feminist theorists have thus called "imagined communities" have created a deep, horizontal comradeship. It is only within this praxis that solidarity may be achieved and global sisterhood achieved....

Members decided that GABNet would fulfill a dual role—that of a support network and a national mass organization comprised of chapters in the major cities of the U.S. (New York, Chicago, San Francisco were original chapters). While a national organization could operate on its own and provide material resources as well as launch political campaigns for its international counterpart; there was also a need for the women doing the work in the United States to be more than just a support group. Just as one would take precaution against falling into the role of a "rescuer," women must also avoid falling into the role of "provider" with no political growth and empowerment of their own. Thus, a plan for mass organizing was drafted which served as the foundation for chapters to be set up. A group of women organized into a chapter would then be mass organizing around women's own political education and training, campaigns, and movement building, as well as providing support for the Philippines. Local chapter organizing would address the immediacy of issues occurring at the local/city/community level and the recognition

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GAB[riela]Net[work]: A Case Study of Transnational Sisterhood and Organizing, *Amerasia Journal* 35, no. 1 (2009), 92–107. Reprinted by permission.

that the concrete circumstances of each area might be vastly different from one city to another. Local chapters would have the autonomy to launch local campaigns. At the same time, national leadership would coordinate chapters and national campaigns as well as be the liaison for international relations with the Philippines. Notwithstanding its growing pains, the national leadership of GABNet reached an integrated work pace—balancing the need to address local issues, project a national character, and mediate international needs. This type of organizing model attracted women inside and outside of the Pilipino community committed to the idea of doing international work that was integral and tied to their own lives in the U.S. Women were also drawn to GABNet for their own development and empowerment.

Despite the quasi-autonomous nature of GABNet, the organization still carried the ideological line of its Philippine counterparts. Some points of unity included a strong anti-imperialist stance, while some points were specific to the Philippines, such as the call from the Philippine Left for national democracy. GABNet supported both. The distinctive feature of this political ideology is the "national" aspect, which underscored the issue of sovereignty and a removal of foreign control in all aspects of Philippine life. In other words, this ideological line determines a course of relationships that must be attuned to the nature of power, particularly sensitive to the threats of colonial mentality and practices. As stated earlier, if not, there is a threat of falling into the trap of colonial provider and overseer of work. It cannot be emphasized enough that transnational feminist activism faces the difficult task of historicizing and denaturalizing the values of global capitalism in order to expose the underlying exploitative social relations and structures.

Having grappled with the organizational structure and reaching consensus about the political ideology, GABNet was left to create a practice of transnational work which would manifest itself into solid campaigns, relevant to the Philippines and the United States. The system for work became this: an annual meeting with GABRIELA Philippines in which their current yearly plan of action would be shared. For example, they could indicate a need to do a campaign on militarism because of an upcoming policy that would activate U.S. military bases or a campaign on migrant labor because of a global trend of recruitment for Pilipina nurses. After their one-year plan was laid out, a discussion ensued as to what would be the best way for GABNet to carry out these campaigns in the U.S. Because GABNet is not a chapter formation of GABRIELA, the freedom to articulate and interpret international campaigns became the backbone for successful campaigns in the United States...

Purple Rose Campaign (1998 to present)

The Philippines is one of the top three source countries for trafficked women and children. Although there were existing anti-trafficking campaigns, especially around forced prostitution and mail order brides, no campaigns specifically targeted the general public. The Purple Rose Campaign thus aimed to raise public critical awareness of the commodification of women and children, to ask the

public to consider the factors contributing to trafficking—including national sovereignty, patriarchy, and economic stability.

The Purple Rose was chosen as the icon of this campaign, because this flower was artificially created and exoticized, for no other purpose than to satisfy desire. It is no different from other roses and yet remains apart, because it does not exist in nature and is not a product of evolution. So are women in the sex trade: artificially created and exoticized and willed to be apart and different. A pin in the image of the purple rose icon is sold as a statement of support for the campaign. The campaign was conceived in the United Stated and tested out countrywide during 1998.

In the summer of 1998, GABNet formally presented the Purple Rose Campaign to GABRIELA Philippines and its allied organizations during an international women's conference. It was at this time that the Purple Rose Campaign was adopted internationally. The planning meeting in the Philippines was composed of actual concrete planning and actions to be coordinated in all countries on specific days (October 28—Philippine Women's Day of Protest; November 25—Day Against Violence towards Women; March 8—International Women's Day) as well as activities that could be held specific to each area. Activities ran the gamut from fundraising dinners, to movie showings, to community forums. The Purple Rose Campaign also launched a media blitz of public service announcements, testimonials via print media, and an online website.

The Purple Rose Campaign is incorporated into every major holiday. For example, purple roses were delivered for Valentine's Day, and supporters wore purple leis for graduation. A public service announcement on the Purple Rose Campaign has been distributed and shown on various television channels, including the Discovery Channel, Lifetime TV for Women, and TLC. Mainstream venues such as parties, poetry readings, and even beauty pageants have served as vehicles for the campaign to gain momentum.

The Purple Rose Campaign's success lies in its appeal to a broad range of concerns: violence towards women and children as well as the nature of its issues being at the same time political, economic, and social. Gloria Steinem wore the Purple Rose pin during a Baltimore meeting of the Feminist Majority. The campaign has helped organizations meet the challenge for innovative, groundbreaking campaigns that challenge the status quo as well as expose the sex industry....

Twenty Years of Struggle

In 2009, GABNet celebrates its twentieth anniversary. The past twenty years have been full of struggle and of sisterhood. Since its inception, GABNet has grown to over eleven chapters (Seattle, Portland, San Francisco Bay Area, Santa Barbara, Los Angeles, Orange County, San Diego, Chicago, Boston, New York, and New Jersey) with a membership of hundreds of women. The work of GABNet has been conducted with many lessons learned, the most salient of which is the ability to be independent and develop a course of work that best fits with the environment. In doing so, GABNet has been able to make a true contribution to the women of the Philippines, conceptualizing such campaigns as the Purple

Rose Campaign which moved the anti-prostitution and anti-trafficking issues of Pilipina women worldwide to new arenas and pushed the issue into the mainstream. The success of GABNet must be attributed to its ability to develop its own strategies for working within U.S. society, building new pathways and new formulations.

As U.S. imperialism tightens its grip on neocolonies like the Philippines, the talons of oppression will be felt all the way to immigrant communities in America. Therefore, the work of an organization like GABNet can never hesitate or turn complacent....

While GABNet will continue to do work in solidarity with the Philippine women, it cannot ignore its responsibilities to respond to shifting world contexts and situations, which demand the maximization of women's organizing to achieve liberation. The transnational sisterhoods GABNet has created must now transcend the U.S. and the Philippines, declaring, "For liberation, Women of the World unite!"

8. Jeff Yang Discusses Multiracialism and Asian American Identity, 2011

As multiracial identity becomes the Asian American mainstream – by 2020, it's projected that one out of five Asians in the U.S. will be multiracial; by 2050, that ratio will exceed one in three – the population of persons with one-fourth Asian heritage or less is poised to spike.

"I'm half Japanese, and my husband is all Irish," says sociologist Dr. Rebecca Chiyoko King-O'Riain. "Our kids have very Celtic coloration – pale skin and fair hair. They're not obviously Asian in appearance at all, and yet they still feel very connected with that part of their heritage. And that's becoming more common, particularly among Japanese Americans, where multiracial identity is so common. There's even a term for it I heard in California: 'Quapa.' If hapas are half Asians, quapas – like my kids – are quarter-Asians."

Quapas have an overwhelmingly non-Asian ancestry; many don't look Asian and don't have Asian surnames. Yet anecdotal evidence suggests that as Asian America becomes more multiracial, a growing number of quapa Asians are affirmatively reconnecting with their Asian heritage, and actively embracing a sense of Asian American identity – challenging society's conventional means of defining race in the process.

Japanese and Damn Proud

For rising folk-pop star Meiko – just the one name – embracing the culture of her Japanese grandmother Chikako was both an homage to a woman who'd played an outsized role in her life, and a way of turning her feelings of being different from a liability into an asset. The singer-songwriter, whose eponymous

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"Mixing It Up: Multiracialism Complicates Asian American identity," *SF Gate*, February 11, 2011. Retrieved from http://www.sfgate.com. Reprinted by permission of Jeff Yang.

first album made her a critics' darling and a top iTunes download, grew up in Roberta, Ga., a tiny town in rural Crawford County.

"Roberta only had about 800 people, and it was pretty much split down the middle, half black and half white," says Meiko. "I think there was one Mexican girl who came in as an exchange student when I was in 9th grade; other than that, my sister and I were the only ones who didn't fit on either team. But my grandmother taught me that being a quarter Japanese was something that made me special, and that's what I always felt...."

Meiko asserted her Japanese American identity in other ways as well. "When I was in middle school, we had this Veteran's Day assembly, and these really old soldiers came to tell us war stories. Well, they kept using the word 'Jap,' and every time they did, I cringed," she says. "At the end of the assembly, it was question time, and I went up to the mike and I said, 'Yeah, I have a question: Why do you keep referring to Japanese people as 'Japs'?' It kind of blew things up, and I ended up getting suspended. They're being racist and I'm the one who gets in trouble! But you know, small town, small minds. I'm still happy I did that."

Meiko now lives in Los Angeles, a considerably bigger and more diverse place than her rural Georgia hometown (with better sushi) – and though she's no longer the only Asian girl for miles, she continues to find her Japanese heritage to be a source of strength and a creative inspiration....

Chinese in the Heart

Author Lisa See ("Snow Flower and the Secret Fan") has similar feelings about her heritage: Even though it's not evident in her strawberry-blonde, green-eyed features or obvious from her name – she notes that people are more likely to think she's connected to the candy business than Chinatown – her sense of being Chinese is still at the core of her self-identity.

"In my first book, I wrote a line that sums up what I feel: 'I don't look very Chinese, but I'm Chinese in my heart,'" she says. "And every interview, every book event I've ever done, that's still the first thing everyone asks about. But the fact is, even though I'm only one-eighth Chinese, I grew up as a part of a very large Chinese American extended family – I have around 400 relatives, and they're still my mirror; when I look inside myself, they look back."

See's great-grandfather on her father's side was one of the grand patriarchs of Los Angeles's Chinese community, and as a result, their family's store was a regular gathering place for Chinatown's most notable and colorful personalities....

Those stories eventually inspired See to write her first book, "On Gold Mountain," a memoir of her family's history. It took a lot of convincing to get her relatives to give her the permission to write it: Like many Chinese families that lived through the Exclusion Acts, the Fong See clan was forced to break America's laws simply to live as Americans – falsifying names in order to enter the country, purchasing land under the table to evade the ban against Chinese owning property, living without legal marriage because of the laws against miscegenation. "If those laws hadn't been broken, I wouldn't even exist, but there

was still a lot of shame and fear about it," she says. "And my side of the family, the white side, felt that was something you had to keep absolutely secret."

But once See broke the dam holding them back, the stories flooded out. Many of them ended up in "On Gold Mountain"; others inspired her later novels, which have led her deeper into her ancestral culture even as they've scaled higher up the bestseller lists....

Inside but Out

Multiracial individuals note that mixed identity requires a constant negotiation of insider-outsider status; belonging to both can often mean feeling at home in neither. But for mixed-race individuals with less than half Asian ancestry, actual programmatic boundaries exist to inclusion. Some Asian American cultural and civic activities are restricted to those who have 50 percent Asian heritage or more – for example, San Francisco's Cherry Blossom Queen pageant, which has been a fixture of the Japanese American community in Northern California since 1968.

"Racial eligibility rules were originally put in place because Asian Americans faced discrimination – it was a way for these communities to say, hey, our women are beautiful too," says Dr. King-O'Riain, whose book "Pure Beauty" explores the history of Japanese American beauty pageants. "But now you have a problem, because on the one hand, there are fewer and fewer Japanese American girls who meet that 50 percent standard, and on the other, the community's old guard is concerned that throwing open the racial eligibility rules will lead to blond-haired *hakujin* women becoming Cherry Blossom Queen, and then where would you be? So even though there's this debate about lowering the racial percentage to 25 percent or getting rid of it entirely, I personally think the people running the pageant will shut it down before they do that."

Of course, these concerns sidestep the fact that not all multiracial Japanese Americans are blond, blue-eyed and white. Among the dozens of pageant participants Dr. King O'Riain interviewed were a handful whose mixed heritage was black or Latino. "I interviewed two girls who were half African American, whose mothers were from Japan, who'd lived in Japan, who spoke Japanese beautifully," she says. "They had a deeper sense of the culture than most of the 'pure' Japanese candidates. And yet they didn't win, and they felt there was unquestionably discrimination against them. In the Los Angeles Cherry Blossom pageant, there's actually a no-tanning rule – you have to stay out of the sun. And the reason they give is that dark skin doesn't look good with a kimono."

Sheena Quashie, a Chinese-Caribbean journalist who proclaims herself a "proud blasian," says that that sense of rejection is a fundamental part of black-Asian mixed-race identity. "You do sometimes feel very rejected," she admits. "I'm one-quarter Asian, but Asian people look at me and just see this big, tall black girl. And sometimes they'll actually ask me to defend my Asianness – like I need to present a receipt or something! And I'm like, 'Man, what golden treasure do I get for lying about being it?'"

Nevertheless, Quashie – whose family name was Au-Yeung before her father changed it – remains resolutely connected to her roots. "Who I am is who I am,"

she says. "I've been through my angry period, and I'm done with it. I'm Trinidadian, and I'm proud of that. And I'm Chinese, and I'm proud of that."

More than the Sum of Our Parts

The mainstreaming of multiracialism hasn't just made it harder to define identity; it's raised the question of whether it makes sense to try to define it at all. More and more mixed-race individuals are calling for an end to the tyranny of racial algorithms, of the blood quantum that measures us by inherited fractions.

They're not, however, suggesting that race should be erased entirely: Attempts at "colorblindness" miss the practical realities that lie behind racial identities – the historical narratives they recount in shorthand, the social and political challenges they serve to benchmark, the cultural contexts they illuminate and enrich. As Quashie points out, race may simply be a construct, but so is a brick wall – and you ignore either at your peril.

There are other ways, as my friend TzeMing Mok notes; in her native New Zealand, the Maori determine identity not by name, appearance or percentage, but by *whakapapa* – the act of narrating lineage.

To be accepted as Maori, you must be able to recount your ancestral line back up to an *iwi* – a tribe – and then beyond that, to the *atua,* the gods. You can be 1/1024th Maori by blood, but if you can speak the story of your family's descent from the Earth Mother Papatuanuku to the present, you're as Maori as anyone. It's a viral rather than dilutive interpretation of race; a way of looking at identity as a story, of which each individual is a chapter.

The bottom line: Race is complicated, and only getting more so. Why shouldn't it be an essay question, rather than multiple choice?

9. C.N. Le Criticizes the Pew Report's Depiction of Asian Americans as Model Minorities, 2012

For those who missed it, the Pew Research Center recently released a report titled, "The Rise of Asian Americans" that, among other things, attempted to provide a demographic, socioeconomic, and cultural summary of the Asian American population, using a combination of Census data and the Pew's own telephone survey of over 3,500 Asian American respondents. Some of the report's notable findings are:

- In terms of total population, there are over 18 million Asian Americans as of 2011 and they represent 5.8% of the total U.S. population.
- Asian Americans are the fastest-growing racial/ethnic group in the U.S. in terms of percentage growth. This is also reflected in the most recently-available data from 2010 that shows that 430,000 Asians (legal and undocumented) immigrated to the U.S., compared with 370,000 Latinos.

"Pew Report on Asian Americans: A Cautionary Tale," *The Color Line,* July 24, 2012. Reprinted by permission of Dr. C.N. Le.

- Confirming current patterns, Asian Americans also have the highest proportion of adults 25 years or older who have a college degree and have the highest median household income.

The Pew report also spends much of its time discussing the "cultural" characteristics of Asian Americans and unfortunately, it is at this point where things start to hit the fan. As the *New York Times* summarizes:

> *In the survey, Asians are also distinguished by their emphasis on traditional family mores. About 54 percent of the respondents, compared with 34 percent of all adults in the country, said having a successful marriage was one of the most important goals in life; another was being a good parent, according to 67 percent of Asian adults, compared with about half of all adults in the general population.*
>
> *Asians also place greater importance on career and material success, the study reported, values reflected in child-rearing styles. About 62 percent of Asians in the United States believe that most American parents do not put enough pressure on their children to do well in school.*

Soon after its release, numerous Asian American scholars, community organizations, and academic associations began roundly criticizing the report. For example, the Japanese American Citizens League stated, "While our community reflects diversity, this research does not; instead, it sweeps Asian Americans into one broad group and paints our community as exceptionally successful without any challenges. This study perpetuates false stereotypes and the model minority."

Another nationally-recognized Asian American group, the Organization of Chinese Americans, wrote:

> *"What is particularly disturbing is that these types of broad generalizations can have serious implications in public policy, civil rights, as well as perpetuation of bias, discrimination, and racial tension between communities of color. Even though the study fills a void for more statistics and information on the APA community, the framing of the contextual data in the report is troublesome.... The assertions that our community enjoys an exaggerated level of privilege are simply and unfortunately not the case.*

Other statements of criticism and even condemnation of the Pew report came from organizations such as the Association for Asian American Studies, the Asian American Pacific Islander Policy and Research Consortium, the Asian & Pacific Islander American Scholarship Fund, the National Commission on Asian American and Pacific Islander Research in Education, Leadership Education for Asian Pacifics, and numerous Asian American Studies departments and programs around the country, to name just a few.

Perhaps the best critique came from Professor Karthick Ramakrishnan, Associate Professor of Political Science at the University of California Riverside, and ironically, a member of the Pew's faculty advisory board on Asian American issues:

> *Unfortunately, [the report] prioritized questions asked of Asian Americans—regarding their parenting styles and their own stereotypes about Americans—that*

seemed more concerned with Amy Chua's Battle Hymn of the Tiger Mother than with the priorities of Asian Americans themselves, either as revealed in past surveys or as articulated by organizations serving those communities....

More concerning than the Pew report, however, was the sensationalist headline on the press release that introduced the study to news media: Asians Overtake Hispanics in New Immigrant Arrivals; Surpass US Public in Valuing Marriage, Parenthood, Hard Work. These few words carried sway in hundreds of newspaper articles in the first two days of the report's release, provoking outrage among broad swaths of the Asian American community, including many researchers, elected officials, and community organizations....

As one of 15 advisors to the project, I felt blindsided by the press release. Words failed me as I read it for the first time, as we had not gotten a chance to review it. The dominant narrative in the release reinforced the frame of Asians as a model minority, stereotypes that the advisors had strongly objected to in the only meeting of the group two months ago.

Generally, the Pew Research Institute produces useful, informative, and reliable data and reports. However, as Prof. Ramakrishnan points out in the full text of his critique, this is not the first time that Pew has mischaracterized, sensationalized, or even misinterpreted its own data. Further, as I pointed out before, on occasion, Pew has inexplicably excluded Asian American respondents in some of its previous studies.

With that point in mind, I suppose we should be somewhat thankful that Pew has been more inclusive of Asian Americans as a valuable source of study lately. Nonetheless, simply including Asian Americans is not the same as accurately representing our community.

Pew might argue that their methodology and data are valid. Technically, I suppose they are. But as the above-referenced criticisms consistently point out, many of the questions they asked were sensationalist and not representative of the real, substantive issues and concerns that the Asian American community have identified themselves.

In the end, this Pew report teaches us a couple of valuable lessons. First, that biases can come in many different forms. That is, most of us thinking of biases in the form of direct and blatant statements that clearly favor one ideological viewpoint over another. But the Pew report shows us that biases can also manifest themselves in the questions researchers ask and how they frame the results of their data, based on the misfocused questions, to emphasize certain interpretations over others.

Second, the Pew report shows us that even something that is initially framed as a positive portrayal of Asian Americans can turn out to be just the opposite—a skewed misrepresentation that actually reinforces negative and damaging stereotypes. This lesson is at the core of the model minority image of Asian Americans and how some naively think that they are paying Asian Americans a compliment by commenting how well-educated we are, or how we're so good at math or science, or how hard we tend to work. While there is obviously some truth to these observations, the problem is that such characterizations are easily and often

generalized to the entire Asian American population. When that happens, they mask the demographic, socioeconomic, and cultural diversity among Asian Americans and marginalize the continuing discrimination, inequalities, and injustices we still experience.

The Asian American community deserves to be represented better than this and research organizations such as Pew need to do a better job at asking us about the issues that we, not they, care about.

ESSAYS

These two essays analyze how Asian American activists during the Vietnam War and more recently promoted different interpretations of the history of racial discrimination against Asian Americans. The first essay, by Judy Tzu-Chun Wu, a University of California, Irvine, historian, documents the foreign travels of antiwar activists to Vietnam and explores how exposure to Vietnamese people, politics, and culture shaped their perception of internationalism and solidarity with Third World nations. Providing a transnational, gendered, and racially comparative analysis, Wu discusses why antiwar activists viewed Asian revolutionary women as inspirational role models and exemplars of "radical Orientalism." The second essay, by Ellen Wu, an Indiana University, Bloomington, historian, recounts battles against government and media model minority depictions of self-sufficient, educated, family-oriented, and politically moderate Asian Americans. These activists drew attention to structural racism and urged Asian Americans to support victims of oppression within the community and to model themselves on African American civil rights, black power, and anti-imperial activists.

Journeys for Peace and Liberation: Third World Internationalism and Radical Orientalism During the U.S. War in Vietnam

JUDY TZU-CHUN WU

One of the greatest thrills of being a historian is to uncover a compelling and unexpected story while sifting through vast amounts of paper in an archive. I came across one such treasure during my last visit to the Swarthmore College Peace Collection. On January 19, 1973, the Washington, D.C., branch of the Women's International League for Peace and Freedom (WILPF) received an urgent cable from the Union of Vietnamese Women (VWU), an organization based in Hanoi. The message, written in French and translated into English, invited a small delegation from WILPF to visit the capital of North Vietnam for a week, beginning on January 27. WILPF, an international organization founded by Jane Addams in 1915 and dedicated to promoting peace, had a

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history of corresponding with individual women and women's organizations in both North and South Vietnam. Members of WILPF also had visited both nations during the long and destructive U.S. war in Southeast Asia (1965–1973). Consequently, even though the American travelers had only eight days to prepare for their journey and were not provided with a reason for their visit, WILPF accepted the invitation. Upon their arrival, the delegates from WILPF discovered that they were joined by "five women representing the Women's International Democratic Federation, one each from Argentina, Russia, India, France, and the Republic of Congo. To our knowledge, we were the only two visiting Americans in Hanoi for the signing of the Peace Accord," which formally ended direct U.S. military involvement in the war.

This story is provocative in and of itself. The popular narrative of the American antiwar movement has tended to focus on the theatrics of the 1960s generation, particularly the long-haired and militant young men who burned their draft cards and refused to fight. Yet, this account of international solidarity indicates that the only American friends present in Hanoi to celebrate the ending of the U.S. war in Vietnam were women. Furthermore, they were elderly women affiliated with an organization widely regarded by baby boomers as "out of touch." Compared to a younger generation of women who became politically active through the Civil Rights Movement, the New Left, and Women's Liberation, WILPF members were viewed as "traditional," upper-middle-class, and, of course, predominantly white. Consequently, the 1973 journey to Hanoi becomes even more intriguing in light of the fact that one of the travelers was a Japanese American woman named Marii Hasegawa. While previous antiwar delegations to Hanoi attempted to include non-whites, particularly African Americans, Hasegawa's presence was not just a token gesture: She was actually the president of the U.S. Section of WILPF and consequently at the helm of arguably the most historically significant women's peace organization of the twentieth century.

Unexpected historical actors like Marii Hasegawa, who formed political relationships across racial and national boundaries, play a large role in my current research. Her life raises questions about how the experience of travel fostered and solidified a sense of internationalism, a conviction of political solidarity, with Third World peoples and nations among U.S. activists of varying racial backgrounds. Because antiwar protesters tended to be suspicious of government-issued reports and mainstream media representations of the war, they sought alternative sources of information. Traveling outside the United States and learning from those who had direct experience with the war became valuable avenues for those seeking greater knowledge about the Vietnam War. Furthermore, these journeys facilitated international exchanges of ideas that I believe fundamentally shaped the political understanding, identities, and agendas of American travelers. The reports of what they perceived in turn nurtured an antiwar movement that eventually helped to end the U.S. war in Vietnam.

Studies of politics and travel like mine build on recent trends in Asian American history and contribute to the scholarship on social movements during the "long decade" of the 1960s in four major ways. First, they offer an

international interpretation of the antiwar movement. Along with a variety of other fields, Asian American Studies has increasingly sought to emphasize and analyze the flows of people, ideas, and goods across national boundaries. This transnational turn serves as the foundation for my study, which highlights the travels of U.S. protesters not only to Hanoi but also to South Vietnam, Cambodia, North Korea, the People's Republic of China, Canada, and Europe. One of the goals is to go beyond an American-centered perspective by illuminating the intentions of Asian representatives in establishing contacts with U.S. activists. The relationships that developed between these two groups suggest that the Asian opponents of the American government actively cultivated connections with members of the U.S. citizenry as part of their strategy to end the war. The Americans who traveled outside of the United States did not have the formal authority of state-designated diplomats. However, they either represented significant social, political, or religious organizations and movements or had the ability to mobilize these sectors of American civil society politically. My project, for instance, builds on the efforts to internationalize the study of American history by portraying the antiwar movement in the United States as part of a global political dialogue. I do so by exploring the travels of Americans abroad as well as of Asians to Europe and North America.

While I am interested in understanding how people build connections across borders, I also analyze the partial representations and misconceptions of such encounters. In other words, I examine how Asian anticolonial liberation struggles held a sense of "romance" for American antiwar activists. Even as U.S. organizers sought the "truth" about the military and political conflicts in Southeast Asia, they tended to idealize Ho Chi Minh, the National Liberation Front, and socialist Asia more generally. I propose the concept of *radical Orientalism* to describe the phenomenon of American activists of the baby boom generation continuing the practice of cultivating visions of the "Orient" as the polar opposite of the Occident.

Edward Said conceptualized Orientalism as a system of knowledge that the West developed about the East as the Occident engaged in a colonizing project of the Orient. Within this framework, the East historically has served as a contrasting and, not coincidentally, inferior image to the West. This polarization not only created the Orient in the Occidental imagination but also defined the West to itself. Asian American historians and American Studies scholars have increasingly utilized the concept of Orientalism to examine the ways in which Americans perceive, imagine, and understand Asia, its culture, and its peoples. Under this rubric, studies of Asia and Asian Americans are not as easily marginalized within the broader field of U.S. history. Instead, these topics assume more central prominence in defining what it means to be an American.

Especially for the Gold War era, Christina Klein has revised Said's thesis to provide an interpretation of American Orientalism in the context of containment politics. She has argued that middle-brow culture emphasized the similarities between the East and West in order to distance the United States from an overtly imperialist project and to evoke a sense of integration and connectedness between America and its potential Asian allies. The activists who constitute the

focus of my own study wanted instead to name U.S. imperialism and oppose its destructive reach. They also sought an identification and connection with Asia but specifically with revolutionary Asia. In order to critique the perceived corruption of Western society, they highlighted the differences between "radical" Asia and mainstream America. However, instead of denigrating the East, they sought inspiration *from* Asian countries and peoples.

While the formation of Third World internationalism (a conviction of political solidarity) might be perceived as being at odds with radical Orientalism (a romantic projection of revolutionary desire), I want to argue that these two phenomena are actually intertwined. The perceptions of the "Radical Orient" were not necessarily accurate or complete depictions of these dynamic societies undergoing complex political, military, and social changes. By serving as a source for alternative cultural and political values, however, these idealized depictions of revolutionary Asia assisted American activists in imagining the possibilities of new political identities and new ways of organizing society.

In studying Third World internationalism and radical Orientalism, my project also offers an analysis of relational racialization and coalition formation by examining how individuals of diverse backgrounds interacted and understood one another in the context of 1960s activism. While Asian American history has increasingly gained academic recognition and institutionalization, popular and academic understandings of "race" still tend to be conceived in black and white. I hope to challenge the predominant image of the antiwar cause as a "white" movement and also go beyond the usual binary paradigm for understanding American race relations. The 1960s and 1970s witnessed the emergence of a variety of racial liberation movements that shaped the political discourses about equality and justice. It is especially valuable to highlight and contextualize the role of Americans of Asian ancestry in these efforts. Just as African Americans organized and made public demands for civil rights, economic justice, and political power during the mid-1960s, the popular media and sociological studies constructed an image of Asians in the United States as "model minorities"—passive, non-complaining, but nevertheless successful individuals whose achievements stemmed not from protest but from hard work and strong family values. By the late 1960s, however, an Asian American movement had emerged, modeling itself on Black Power and drawing political inspiration from the national liberation struggles in Vietnam and socialist Asia more generally.

My own work seeks to understand how the antiwar movement fostered multiracial coalitions and connected domestic aspirations for racial justice with global critiques of imperialism. Recent efforts by Max Elbaum, Daryl Maeda, Laura Pulido, and Cynthia Young likewise reinterpret the period of the late 1960s and 1970s. Their works challenge the depiction of this era as one of fragmentation and decline, an interpretation that lauded the Civil Rights and early New Left movements as the high points of the 1960s. Instead, these authors point to the continued political ferment during the latter part of the decade with the emergence of a "Third World left." This formation developed mainly among people of color in the United States who were inspired by one another

and by socialist movements in the Third World. I hope to contribute to this growing literature by examining the efforts to build multiracial and international antiwar coalitions before, during, and after the rise of racial liberation movements. This entails an exploration of political and personal relationships between white and nonwhite activists as well as within the category of Third World people.

Finally, gender analysis provides insight into the dynamics of international and multiracial interactions. The antiwar movement has commonly been represented as male-dominated. In fact, feminist scholars point to the chauvinism within these circles as a catalyst for the emergence of a separate women's liberation movement. I seek to examine the gender dynamics between men and women who worked together to critique American foreign policies in socialist Asia. Specifically, how did women and men experience their politically motivated travels differently, and how did romantic encounters and sexuality shape their understandings of cross-cultural contact? In addition, I also stress women's peace efforts that were more independently enacted from men. Female activists from a variety of organizations and movements traveled internationally to dialogue with their counterparts in decolonizing Asian countries. These exchanges provide an opportunity to examine the dynamics of an international and multiracial movement based on the ideal of a "global sisterhood."

This concept has been critiqued by various Third World and First World feminists for masking inequalities between women of different racial, national, and class backgrounds. Certainly some North American women during the Vietnam War exhibited a sense of condescension toward their Third World sisters. They condemned the repressive gender hierarchies that they described as characterizing traditional Asian societies. In addition, they highlighted the roles that First World women could perform in rescuing their less fortunate Third World sister. During the Vietnam War, however, North American women of varying racial backgrounds also exhibited a deep sense of admiration for their Asian "sisters." Through travel and correspondence, they learned to regard Third World female liberation fighters as exemplars of revolutionary womanhood. This admiration was in turn communicated to the broader antiwar movement through activist newspapers. Throughout the late 1960s and early 1970s, the figure of the Vietnamese female peasant was widely circulated. Frequently depicted with a baby in one hand and a rifle in the other, she served as one of the primary symbols of Third World resistance against the most powerful and technologically advanced nation in the world. Furthermore, Asian women served as role-models due to their positions of leadership, not only in the military and the family but also in the government and the workplace.

These idealized depictions of Asian revolutionary womanhood were central to the phenomenon that I have identified as *radical Orientalism*. These female warriors countered classical Orientalist depictions of exotic, sexualized, and victimized Asian women. Nevertheless, these radical portrayals tended to serve an Orientalist purpose by representing a contrasting image to Western women's critiques of gender roles in North American societies. The dichotomy between the oppression that they identified in the West and the revolutionary hope that they

perceived in the East helped North American women to redefine their own identities and political goals.

In this study of travel and politics, Asian American subjects are both foregrounded and contextualized. Americans of Asian ancestry constitute significant historical actors in an ensemble cast. Their political activism and importance are analyzed in relation to individuals of varying racial, ethnic, and national identities. To understand why Marii Hasegawa was in Hanoi at the signing of the Peace Accords necessitates a reinterpretation of the history of WILPF, which, according to Hasegawa, was "one of the few organizations which had passed a resolution against the concentration camps in which Japanese and their citizen children were held in WWII" by the U.S. government. To help support Japanese American internees seeking to resettle outside of the designated internment zones on the West Coast, WILPF supported a hostel in Philadelphia where Hasegawa found a place to stay after she left camp.

In addition to this historical narrative that ties the history of Japanese Americans and hence domestic racialization to WILPF, I suspect that Hasegawa's participation in the organization also is connected to the group's international agenda related to nuclear weaponry. Like other women's peace organizations and eventually like Asian American movement organizations, WILPF sponsored annual commemorations of the bombing of Hiroshima and Nagasaki. They sought to raise awareness of the destructiveness of the atomic age and facilitated international dialogue and exchanges with Japanese women's peace organizations. These reminders of Asia and Asian bodies as the victims of American foreign policy most likely facilitated the political involvement and leadership of Asian Americans and helped lay the basis for WILPF's eventual peace campaigns on behalf of Vietnam and Vietnamese people.

However, before Hasegawa arrived in Hanoi in 1973, she also expressed her concerns about social injustice in the American context. In 1969, at the annual meeting of the U.S. Section of WILPF held in Atlanta, Georgia, she successfully introduced a resolution on racism. She called on WILPF to study the "Black Manifesto," a statement issued by James Forman demanding reparations for African Americans due to the history of slavery and institutionalized racism. Hasegawa also asked WILPF as a peace organization to understand seriously the "rhetoric of violence of the oppressed," explaining that "if in answer we say, 'Let them do their own thing,' without scrutinizing our own role in the struggle, we are acting in a racist manner. We have to stop the rhetoric of violence from becoming reality." Her words and the support that her resolution received from the predominantly white, "traditional," upper-middle-class, and elderly membership of WILPF indicate that the standard narrative of 1960s movements and of their "fragmentation" and "decline" during the late 1960s needs to be reexamined.

These intertwined stories of multiracial and international political formation center Asia and Asian America in the historical narrative of Cold War America. They illuminate the ways the circulation of people and knowledge across various boundaries shaped the political imagination and identities of diverse American activists. In Benedict Anderson's now famous phrase, the nation is an "imagined

community," because "all communities larger than primordial villages of face-to-face contact ... will never know most of their fellow-members.... yet in the minds of each lives the image of their communion." My study seeks to analyze how individuals who experienced moments of heightened nationalism imagined themselves as members of communities that crossed national boundaries. A study on travel provides the opportunity to analyze the face-to-face contacts that inspired the international expansion of political communion.

Protest Against the Model Minority Myth

ELLEN D. WU

By the twilight of the civil rights era, the success stories of Japanese and Chinese America had themselves become success stories. The cross pressures of exigencies and desires both within and beyond the ethnic communities had effectively midwifed the rebirth of the Asiatic as the model minority. Since then, the model minority has remained a fixture of the nation's racial landscape, ever present yet constantly evolving to speak to a host of new imperatives in the late twentieth century and early twenty-first. Recent iterations depart from the original in notable ways, but retain many of the themes that first coalesced in the postwar period: self-reliance, valorization of family, reverence for education, and political moderation. The persistence of these features suggests that the model minority's durability—like its origins—is about more than just race. Its longevity derives from its ability to adapt to changing historical circumstances. Far from being an outdated vestige of the mid-twentieth century, its periodic resuscitation effectively commands attention because of its flexibility and capaciousness, shape-shifting to respond to the nation's most pressing questions. The reproduction of the model minority as racial truth has posed new obstacles to freedom and equality for Americans from all walks of life. Yet it has also contained the seeds of its own critique, paradoxically serving as a rallying point for the formation of an innovative racial identity—Asian American—grounded in dreams of a different kind of world.

The mid- to late 1960s witnessed the convergence of the postwar trajectories of Japanese and Chinese American racialization. World War II had set the two peoples on distinct, albeit imbricating, paths; both were remade from indelible aliens into assimilating Others in the crucibles of racial liberalism, cultural conservatism, and global wars, although their respective transformations were occasioned by circumstances unique to each. While their merging into definitive not-blackness was neither predictable nor predetermined, it was also not without precedent. White Americans had historically been of divided mind about their samenesses and differences, acknowledging the inimitabilities of the Japanese and Chinese in their midst, while simultaneously conflating them as Orientals, the yellow peril, and aliens ineligible to citizenship. In hindsight,

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The Color of Success: Asian Americans and the Origins of the Model Minority Myth (Princeton University Press, 2014), 242–258. Reprinted by permission.

the consolidation of the two into a single cluster of consummate colored citizens was in a sense a mid-1960s' update of an ingrained American Orientalism that held that all Asians really did look—and act—alike.

Subsequently, watchers tagged Japanese and Chinese Americans as model minorities in the same breath with greater frequency, as when the *Senior Scholastic* attributed their concurrent "reversal of fortunes" to a shared reverence for the family and "near-religious belief[s] in formal education as the best ladder for advancement." Cold War imperatives continued to frame these acclamatory portraits. Speaking before Honolulu's East-West Center in 1966, President Johnson noted that the "promise of Asians at home" boded well for "new surge of promise in Asia," especially Vietnam, to modernize under the tutelage of the United States.

Observers increasingly lumped the two together through their descriptions of a categorical not-blackness (and sometimes not-brownness). In myriad meditations about race in the United States, Japanese and Chinese Americans jointly assumed the position as exemplars of colored mobility. At times the comparison was implied, as when a *Chicago Tribune* reader mused, "There is *another* race that has been subjected to even greater prejudice and discrimination—the Asians." Yet through "quiet dignity," "hard work," and an "order of good citizenship higher than the average white," Asian children stayed in school, were not born out of wedlock, and did not grow up to become criminals or "create slums." More often, the contrast was explicit. Charting the many grievances of America's racial minorities, *Ebony* acknowledged that Orientals faced intermittent barriers in house and job hunting, but concluded that they were "more acceptable to white people" than Native Americans, Mexicans, Puerto Ricans, and blacks. *Pittsburgh Courier* columnist George Schuyler compared the greater economic vitality of the Chinese to his own African American community, provokingly noting, "They talk little, picket nobody, hold no mass meetings, denounce none." In *Beyond the Melting Pot,* one of the era's seminal studies of ethnicity in the United States, sociologist Nathan Glazer accentuated the sluggishness of Puerto Ricans' socioeconomic motility by juxtaposing them with Japanese and Chinese. Puertorriqueños' lack of the "more tightly knit and better integrated systems" as seen in Asian immigrant communities had hobbled their group advancement....

The easy cachet of model minority typecasting rested uncomfortably with many Japanese and Chinese Americans, however. Internal quarrels over such comparisons had brewed for years, reflecting a diversity of opinion about the best way to achieve racial equality. As the 1963 controversy over Imazeki's advice that blacks do some "soul searching" had shown, there was certainly no shortage of individuals who disagreed with the black freedom movement's emphasis on direct action....

But for all those who disapproved of the thrust of 1960s' civil rights activism, countless others felt a kinship with African Americans. Since World War II, numerous Japanese Americans had cultivated ties with blacks in solidarity against racial oppression. Individual community members devoted their energies to such causes as the Congress of Racial Equality and interracial Freedom Rides. Regional organizations including New York's Japanese American Committee for Democracy had made African American civil rights a top priority. On the

national scene, JACL had stood at the forefront of this alliance in the postwar period, working with the NAACP on landmark civil rights cases (including *Shelley v. Kramer* [1948] and *Brown v. Board of Education* [1954]) and serving as the lone Asian American founding member of the Leadership Conference on Civil Rights lobbying coalition.

Chinese Americans cultivated fewer bonds to the African American civil rights establishment, turning most of their political attention to China politics, US-China relations, and immigration reform between the 1940s and mid-1960s. Local-level clashes over issues such as the integration of Chinatown's new public housing projects in San Francisco, boycotts of Chinese businesses for their hostile treatment of black customers or failure to hire black employees, and the punishing social costs of black-Chinese relationships in places like Mississippi's Delta region had also impeded sustained cooperation. Still, some championed African Americans' quest for freedom. San Francisco's *Chinese World* occasionally ran editorials supporting black civil rights activists. Journalist Gilbert Woo, a staunch critic of US race relations, steadily alerted readers of the *Chinese Pacific Weekly* to antiblack racism, including discriminatory behaviors perpetrated by the Chinese. "We must sympathize with and support the exceptional black struggle for equality. This is the only way, and we are duty bound to follow it," he insisted, praising Chinese clergy who had recently sided with black protesters. Others joining in such coalition-building efforts included San Francisco's Chinese American Democratic Club, which spearheaded a fund-raising drive for the NAACP in 1963. As club president Harry W. Low urged, "In the past decade, Chinese-Americans have gained many new civil rights. Many of these gains are the result of vigorous efforts on the part of Negro leadership.... The work of all racial minorities for equality continues."

These earlier rumblings erupted into the grassroots political mobilization known as the Asian American movement between the late 1960s and mid-1970s. Inspired by the era's militant struggles against racism and imperialism at home and abroad, thousands of participants nationwide spiritedly questioned existing arrangements of power and authority. They advanced alternative modes of community living through such diverse actions as opposition to the Vietnam War, worker organization, artistic production, and demanding affordable housing for the poor and elderly. Just as important, movement activists reenvisioned their own racialization as a significant facet of this "one struggle, many fronts." Embracing a new, pan-ethnic "Asian American" identity, they consciously rejected the model minority label as an insidious instantiation of the prevailing racist order. Amy Uyematsu expressed this view in her 1969 manifesto, "The Emergence of Yellow Power in America." In this call to arms, Uyematsu argued that Asians in the United States suffered from problems of "self-identity" by assuming the values and attitudes of the white middle class. She criticized Asians for their complicity in perpetuating racial oppression by "allow[ing] white America to hold up the 'successful' Oriental image before other minority groups as the model to emulate. White America justifies the blacks' position by showing that other nonwhites—yellow people—have been able to 'adapt' to the system," she charged. The "Myth of Asian American Success," furthermore, harmed not only others but also themselves by glossing over continuing disparities between Asians and

whites. Residents of urban "ghetto communities" remained vulnerable to poverty, tuberculosis, and social isolation. The time had come for the rise of "yellow political power" to address injustices "unique" to Asian Americans.

Uyematsu's dictum signaled the Asian American movement's turn away from racial liberalism and its attendant endorsement of US Cold War hegemony as the ideological grounds on which to claim full citizenship. "Today we question whether we want to accept or be accepted by a society whose values are corrupted by greed, who [sic] perpetuates racism, war, and oppression.... We question our 'success' when we see young Asian brothers and sisters getting strung out on drugs, getting busted, fighting each other, and even committing suicide," espoused the Asian American Student Alliance of California State University at Long Beach. Likewise, members of the University of California, Santa Cruz's Third World Political Alliance expressed skepticism about the possibility of unmitigated equality under an assimilationist paradigm: "[We] are allowed to succeed economically, academically, and socially—but only to a certain extent. By an unspoken but real consensus, Asian Americans have not been completely acceptable regardless of how long they have been in this country." Calling attention to Asian America's myriad problems, activists noted that even escape from the traditional inner-city enclaves—the very symbol of assimilation—had not guaranteed dignity and freedom. A feature on Nikkei [Japanese Americans] of Gardena, California, in *Gidra,* the movement's leading publication, drew a portrait of "middle class miseries" plaguing suburban youths, including alienation, an obsession with materialism, and psychological pressures to achieve—the combination of which had led to mounting drug use and suicide.

The movement's repudiation of the model minority and its assimilationist origins necessitated a critical reimagining of the relationship between Asian Americans and other communities of color. Believers deliberately inverted the trope of not-blackness and instead embraced affinities with African Americans, Native Americans, Chicanos, and Puerto Ricans, locating commonalities in their respective histories of exploitation as well as their shared desires for liberation and self-determination. Asian Americans throughout the country were greatly influenced by black thinkers such as Malcolm X and Franz Fanon, and backed an array of causes directly impacting "Third World" populations at home and abroad, ranging from antiprison work and Puerto Rican independence to indigenous sovereignty and especially ending the terrible brutalities in Vietnam. To be sure, cross-racial and transnational identifications were not unheralded. But the political framework within which these linkages were forged was original: Asian Americans made these connections as an integral part of their dual critique of US racism and imperialism in its various guises, including military interventions and anti-Communist nationalism. In connecting the plight of Asian Americans to other racial minorities in the United States and nonwhite peoples everywhere, they exposed the inextricable interdependencies of domestic and foreign structures of power during the era of Cold War liberalism.

Thus Asian American identity was constituted in significant part by the model minority, even if Asian Americans explicitly denounced the model minority's racist logic. While the model minority gave rise to novel modes of racial

subordination, it also opened up new possibilities for racial justice by catalyzing the rise of an Asian American political consciousness. By refusing to allow themselves to be used in upholding the distinction between good and bad minorities, those who adopted an Asian American identity articulated a critique of white supremacy and imperial domination—an intent that was the precise opposite of the ideological work of the model minority.

Animated by these imperatives, one of the most enduring legacies of the movement was the creation and first-phase institutionalization of Asian American studies. Students at San Francisco State College struck in November 1968 to demand the rights of all "Third World" peoples to higher education as well as a curriculum that they considered relevant to their communities. Alongside peers of various races, Asian Americans pushed for open admissions, student control of the hiring process, and the implementation of ethnic studies courses. After five contentious and violent months, the students wrested a monumental, if partial, victory when administrators agreed to open the nation's first School of Ethnic Studies. Actions at other campuses soon followed. Demands for an Asian American Studies Center at the University of California, Los Angeles explicated the desire to generate scholarship that more accurately reflected Asian American realities. "Much has been written and said about the 'success' of the 'Orientals.'... But the real experiences of the Asians in this country ... have received no serious attention." By 1973, movement campaigns had resulted in the opening of Asian American studies courses and programs across the nation—no small victory. But although such programs managed to gain an institutional foothold, they were unable to banish completely the model minority from the nation's racial topography....

Model minority discourse of the late twentieth and early twenty-first centuries simultaneously resembles and revises its original, Cold War–era formulations. Once again, contemporary mass media and academicians buttress the gravity of the state's hand in shaping the construction of Asian America. Journalists have maintained their leading role in vivifying the model minority concept in popular thought. Television programs and periodicals have extolled "America's Super Minority" outpacing all others in the classroom and labor force. As with their midcentury progenitors, these updated versions of the nation's "greatest success story" have emphasized the causal role of Asian-Confucian culture, especially reverence for the family, in Asian American achievement. Social scientists, too, have continued to shore up these claims with their findings....

At a time of general unease about the decline of the United States' world stature, economic instability, and widening social inequalities, these anecdotes sustained the nation's mythology as a land of opportunity for all.

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CHAPTER 12



Post-1965 Immigration and Asian America

The Immigration and Nationality Act of 1965 dramatically reshaped Asian American communities by allowing streams of new immigrants to enter the United States from countries throughout Asia. Also known as the Hart–Celler Reform Act, this legislation was part of a wider package of civil rights laws in the mid-1960s banning racial discrimination in voting, education, and other areas of public life. The landmark legislation abolished the 1924 national origins system that heavily favored northern Europeans and severely restricted Asian as well as southern and eastern European immigrants. The new immigration act set a quota of 170,000 immigrants from the Eastern Hemisphere, with no more than 20,000 from a single country, and a quota of 120,000 from the Western Hemisphere, without any country limitation. The law also established a preference system for family members of citizens and resident aliens as well as for individuals with educational or job skills needed in the United States.

The new legislation allowed Asian spouses, unmarried minor children, and parents of U.S. citizens to enter as nonquota immigrants without any numerical limits. Naturalization classes quickly filled with Asian immigrants who took the oath of citizenship and then sent for their relatives abroad. Policymakers never anticipated that large numbers of Asians and Latin Americans would use these family reunification provisions to swell the ranks of new immigrants. In the mid-1960s, citizens of Asian ancestry constituted only 0.5 percent of the U.S. population, but by 2010 they grew to 5.6 percent. New immigration fueled the growth of the Asian American population, which expanded from 490,000 in 1940 to 3.5 million in 1980, to 17.3 million in 2010. During the first decade of the twenty-first century, the Asian American population grew faster than any other racial group in the United States, although it remained much smaller than the country's African American or Hispanic populations. The dramatic increase in the number of Asian Americans resulted from immigration patterns that the architects of the 1965 immigration reform never envisioned.

Infusing new life into old ethnic enclaves, this wave of Asian immigrants also established new settlements and changed the ethnic composition of the Asian American

population. Before the 1960s, most Asian immigrants were of Chinese, Japanese, or Filipino ancestry, although there were small communities of Korean and Indian immigrants. The arrival of large numbers of immigrants from the Philippines, Korea, China, and India after 1945, along with the influx of Southeast Asian refugees after 1975, made more apparent the remarkable ethnic diversity among Asian Americans. This diversity is matched by differentiation within ethnic groups based on generation, class, gender, sexual orientation, educational backgrounds, language skills, political views, and a multitude of other factors. Even generational status, once a useful category to distinguish the experiences of immigrants and their American-born children, now belies simple generalizations. Chinese immigrants now include politically conservative presidents of multinational corporations, radical gay activists with PhDs, and struggling day laborers. Indian immigrants own successful high tech companies, work as low-paid computer assemblers, and produce leading feminist scholarship. In the twenty-first century, the constant movement of capital, trade, technology, people, and ideas across countries and continents challenges any fixed notions of stable, homogenous ethnic identities.

Despite their differences from the older Asian American immigrants, the new Asian immigrants continued to experience devastating racial conflict. The most powerful example occurred in Los Angeles the week after four police officers were acquitted, on April 29, 1992, for using excessive force in the beating of Rodney King. Angry protesters looted or burned South Central Los Angeles and then went to Koreatown in Central Los Angeles and destroyed approximately 2,300 Korean-owned stores. After Korean radio programs called for volunteers to protect Korean stores that had been abandoned by the police, many armed Korean immigrants rushed to their defense, but in many cases they were too late. A week after the conflict, about 30,000 people joined a Koreatown peace march to clean up the area, denounce police violence, and mourn the death of Eddie Kim, who was mistaken for a looter and shot by Koreans.

DOCUMENTS

Documents 1 to 8 reveal how legislation and political, social, and economic relations between sending countries and the United States shape post-1965 Asian immigration. Document 1 excerpts the Immigration and Nationality Act of 1965, which replaced the national origins quota system with a seven-category system of preferences and sparked a new wave of immigration from Asia.

Documents 2 to 4 recount examples of conflict and cooperation between Asian Americans and other racial groups as new immigrants settled in the United States. In Document 2, Korean Americans commemorate the twentieth anniversary of Sa-I-Gu (four-two-nine or April 29), also known as the Los Angeles riots and Los Angeles uprising, by remembering the devastation to Korean-owned businesses. Document 3 describes how Asian American and Latino American politicians have collaborated to develop training programs to help college students and young professionals become community leaders and strengthen cross-racial alliances. Document 4 presents the Oak Park Tenants Association in Oakland, California, as a model of multiethnic and religious organizing.

Documents 5 to 8 examine Asian immigrant experiences. Document 5 describes how Indian immigrants and their family members own and run about half of all motels in the United States. Using personal networks to become ethnic entrepreneurs, many try to hide their role in the business by employing white staff to interact with customers.They also conceal evidence that they cook and live in the motels. In Document 6, Filipino American and Pulitzer Prize–winning journalist Jose Antonio Vargas testifies before the Senate Judiciary Committee about his life as an undocumented immigrant and urges support for the DREAM Act to provide undocumented immigrants with a path to citizenship through education or military service. Document 7 examines the "brain drain" from Asian countries—caused by the outmigration of highly educated workers—as an asset rather than a liability for developing nations. Menderes Candan and Uwe Unger note that, since the 1990s, increasing numbers of educated professionals from India have invested in their homeland and provided a "brain gain," especially in the information technology industry. The article notes how high immigrant return rates, large remittances, and technology transfers have helped the economies of Korea, the Philippines, China, and Taiwan. Document 8, by a coalition of Asian American and Pacific Islander civil rights and higher education groups, calls for support of affirmative action. Denouncing the model minority myth, the coalition argues that many educationally disadvantaged Filipino, Southeast Asian, and Pacific Islander students could benefit from affirmative action and that all students benefit from diversity in the classroom.

1. The Immigration and Nationality Act Repeals Discriminatory Policies Toward Asian Immigrants, 1965

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That section 201 of the Immigration and Nationality Act ... be amended to read as follows:

Sec. 201. (a) Exclusive of special immigrants defined in section 101 (a) (27), and of the immediate relatives of United States citizens specified in subsection (b) of this section, the number of aliens who may be issued immigrant visas or who may otherwise acquire the status of an alien lawfully admitted to the United States for permanent residence, or who may, pursuant to section 203 (a) (7) enter conditionally, (i) shall not in any of the first three quarters of any fiscal year exceed a total of 45,000 and (ii) shall not in any fiscal year exceed a total of 170,000.

(b) The "immediate relatives" referred to in subsection (a) of this section will mean the children, spouses, and parents of a citizen of the United States: *Provided,* That in the case of parents, such citizen must be at least twenty-one years of age....

From Immigration and Nationality Act of October 3, 1965, 79 Stat. 911.

Sec. 2. Section 202 of the Immigration and Nationality Act ... is amended to read as follows:

(a) No person shall receive any preference or priority or be discriminated against in the issuance of an immigrant visa because of his race, sex, nationality, place of birth, or place of residence, except as specifically provided in section 101 (a) (27), section 201 (b), and section 203: *Provided,* That the total number of immigrant visas and the number of conditional entries made available to natives of any single foreign state... shall not exceed 20,000 in any fiscal year....

(b) ... For the purposes of this Act the foreign state to which an immigrant is chargeable shall be determined by birth within such foreign state....

Sec. 3. Sec. 203 of the Immigration and Nationality Act ... is amended as follows:

Sec. 203 (a) Aliens who are subject to the numerical limitations ... shall be allotted visas or their conditional entry authorized, as the case may be, as follows:

(1) Visas shall be first made available, in a number not to exceed 20 per centum [one hundred] of the number specified in section 201 (a) (ii), to qualified immigrants who are the unmarried sons or daughters of citizens of the United States.

(2) Visas shall next be made available, in a number not to exceed 20 per centum of the number specified in section 201 (a) (ii), plus visas not required to be classes specified in paragraph (1), to qualified immigrants who are spouses, unmarried sons or unmarried daughters of an alien admitted for permanent residence.

(3) Visas shall next be made available, in a number not to exceed 10 per centum ... to qualified immigrants who are members of the professions, or who because of their exceptional ability in the sciences or arts will substantially benefit prospectively the national economy, cultural interests, or welfare of the United States.

(4) Visas shall next be made available, in a number not to exceed 10 per centum ... to qualified immigrants who are the married sons or married daughters of citizens of the United States.

(5) Visas shall next be made available, in a number not to exceed 24 per centum ... to qualified immigrants who are the brothers or sisters of citizens of the United States.

(6) Visas shall next be made available, in a number not to exceed 10 per centum of the number specified ... to qualified immigrants who are capable of performing specified skilled or unskilled labor, not of a temporary or seasonal nature, for which a shortage of employable and willing persons exists in the United States.

(7) Conditional entries shall next be made available by the Attorney General, pursuant to such regulations as he may prescribe and in a number not to exceed 6 per centum ... to aliens who satisfy an Immigration and Naturalization Service officer at an examination in any non-Communist or non-Communist-dominated country, (A) that (i) because of persecution or fear of persecution on account of race, religion, or political opinion they have fled (I) from any Communist or Communist-dominated country or area, or (II) from any

country within the general area of the Middle East, and (ii) are unable or unwilling to return to such country or area on account of race, religion, or political opinion, and (iii) are not nationals of the countries or areas in which their application for conditional entry is made; or (B) that they are persons uprooted by catastrophic natural calamity as defined by the President who are unable to return to their usual place of abode.

2. Korean Americans Describe the Los Angeles Riots, 1992 (2012)

The events of April 29, 1992, have been referred to as a riot, a rebellion, an uprising, a civil unrest. For many Koreans, it's always been 4.29, following the standard cultural shorthand for the dates of historic tragedies. Yet over the past 20 years, the primary narrative of 4.29 has rarely included Korean American perspectives beyond stereotyped notions of victims or vigilantes. This oral history seeks to rectify that in some small measure, and to give those who didn't witness the traumatic days and nights of fires, chaos and violence a sense of what Korean Americans went through. The events, after all, have been referred to by some as the birth of Korean America, a characterization that isn't far off.

In the period leading up to 4.29, the mainstream media had fed the public a series of stories on the rising tensions in South Central Los Angeles between African American residents and the Korean merchant class that had become a fixture there. Then, in March 1991, Soon Ja Du, a Korean immigrant store-owner, shot and killed Latasha Harlins, a 15-year-old African American customer, following a violent scuffle between the two at Du's South Central liquor store, worsening an already strained situation. Just 13 days earlier, the brutal beating of African American motorist Rodney King by four white Los Angeles Police Department [LAPD] officers vividly demonstrated the iron-fisted tactics under then-Chief Daryl Gates. The social, economic and political structures seemed aligned to oppress, and the city waited uneasily on April 29, 1992, for the verdict in the excessive force case against the police officers who beat King.

*(Editor's Note: The titles of subjects in the narrative reflect their age and status in April 1992. Organization names are based on what they were called in 1992. *Quotes indicated by asterisks were translated from Korean.)*

April 29, Wednesday

I. RIPE TO EXPLODE

JET LEE

Owner of a liquor store in Compton

In everybody's mind, it was ripe. To be explode. [My customers] were telling me, "Be careful." One of my customers came [the] day before 4.29 and said,

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Eugene Yi, "LA Riots, in Our Own Words," *KoreAm*, April 29, 2012. Reprinted by permission.

"Don't stay open too late tomorrow. And listen to the radio, what they gonna say about the verdict."

RAPHAEL HONG

UCLA student

Even before the verdicts came out, some younger blacks were coming in [to my parents' toy store in an Inglewood swap meet] and saying, [if the LAPD officers are found not guilty,] "You guys better leave this town or else you guys are going to be in trouble." Everybody [in my family] was already tense and kind of worried, so what they did was close the doors early, and they went home....

II. ACQUITTED

At 3:15 p.m., three of the LAPD officers were acquitted, and one was partially acquitted. Unruly crowds chanted "No justice, no peace!" around Parker Center, LAPD's headquarters, as well as the courthouse where the verdict was issued, and the intersection of Florence and Normandie, in South Central Los Angeles. Violence erupted. Mobs dragged motorists out of their cars and beat them. Looting began.

JAY LEE*

Owner of a furniture store on Florence and Normandie [Avenue]

[Crowds swarmed his store, and he hid in the attic with his co-workers.]

They broke glass table tops, carried off ensembles, capped off gunshots. I could see it all from my vantage point.... It was incredible. I told [my wife] to close up [her clothing] shop and go home. "Call the police and tell them we are trapped."... We hid for three hours while people laughed and stole and rioted. That whole time, I kept thinking the police were coming.

HYUNGWON KANG

Photographer, *Los Angeles Times,* South Bay bureau

I distinctly remember hearing the LAPD police scanner telling all LAPD patrol vehicles to evacuate the intersection of Florence and Normandie. They were no longer engaged in controlling or restoring order. They were ordering their officers to evacuate for their own safety.

JET LEE

Compton merchant

When I heard that the verdict [was] not guilty, I said, "Shit." Excuse my language, that's exactly what I said. I had a kind of fear it might happen like this. I called all my relatives to get the hell out of there. I closed my store down, and on the way home, I heard the news that [at] Normandie and Florence, [an] incident was going on.

HYUNGWON KANG

Photographer

Someone hit my right rear window with a beer bottle. I was on Florence, going eastbound. The intersection was messy with debris rioters threw on the

pavement. Shortly afterwards, other people on the sidewalk also started walking towards my car. As I was pulling away from the intersection, there was a call for help on the company radio—[*Times* photographer] Kirk McCoy was stranded, away from his car.

After receiving Kirk's location from [photographer] Bob Chamberlin, I had to re-enter the intersection to get to Kirk.

Looters were all over the road, blocking moving traffic and carrying boxes of liquor from the liquor store at the intersection. My car was again struck with beer bottles, two or three times. One looter pointed a finger at me and started chasing me. I drove on the opposite side of the road, went through the red light and outran the guy....

RAPHAEL HONG

UCLA Student

I'm [in my apartment] watching the news. My parents are watching at [their] home, and we were just communicating over the phone. Helicopters are flying over, and you see the burning buildings [on TV]. They flew by our [swap meet] building, you know, and, oh my God. That's the swap meet. Some guy came, like a year before, and painted all the items that they sell in the swap meet. It says, "Inglewood Swap Meet," and there was a hat, a jacket and toys and all kinds of stuff painted on there. I knew that was our building because of the painted walls. My parents kind of went into shock. They saw the building, and they lost everything. My father wanted to go to the store, and I said, "No way. Don't get out of the house. Stay where you are. Don't even go near L.A."....

RICHARD CHOI

[Kee Whan Ha] said, "You keep telling people to flee, to go home, but how can we leave Koreatown? We came to this country and we worked like crazy and we made this town, our town. But if we leave, they're going to burn it down. Don't we have to protect our town? Can't you say that on the radio?" And he offered to show us around so we could see what was going on. I couldn't leave because I had to stay on the air, but Jang-hee Lee went out with Ha. And Lee came back and told Ha, "You're right."

KEE WHAN HA

So I went on radio, and I said, "Don't go home. Protect your business. Your business is your life. All your rifles. All your weapons, bring everything out."...

HYUNGWON KANG

Photographer

California Market on 4th and Western was under attack. When I went there, I saw the owner of the shop with his semi-automatic pistol shooting into the air to fend off potential looters who were throwing Molotov cocktails to burn some of the shops. On 6th and Western—that shopping mall was already being torched. This California Market was trying to survive that attack. That's when I realized that Korean Americans were being targeted....

JAMES KANG

They were shooting to kill us. They didn't have the right to shoot to kill, even if we were looters. We weren't on their premises. We were about 30 yards away. If we were any closer, we would have all died ... The gunfire wouldn't stop. There was no place to hide ... It was the most painful feeling ... The hole I got shot in was the size of a silver dollar. I could stick three fingers in it. ... Koreans in [a passing] car and we were making eye contact. Eddie and I were trying to ask for help. But I couldn't talk, make a sound because my mouth was so dry ... They were so close to us, but they just left. I wish I could have gotten down their license plate numbers. Since the time Eddie got shot at, he was alive for another 30 minutes. He was a fighter, he didn't want to die. I know Eddie. You could tell he was fighting for his life ... All I remember is going into the emergency room and seeing all the lights. I was then knocked out.

Eddie Lee became the sole Korean American fatality of the riots.

3. Latinos and Asian Americans Form Political Alliances in San Jose, 2006

One emigrated from Hong Kong, the other from Jalisco. One led an upscale, high-tech South Bay community, the other a working-class town.

But former Cupertino Mayor Michael Chang and current East Palo Alto Mayor Ruben Abrica have much in common when it comes to leadership, including that their election to local government reflected major demographic shifts in their respective suburban communities.

Now the two, both faculty members at De Anza College, are teaching a new leadership training program through the **Asian Pacific American Leadership Institute**, known as APALI, that targets Latinos as well as Asian-Americans.

It is the first known official collaboration between the South Bay's two largest ethnic groups, which make up two-thirds of the valley's population but far fewer of its officials. Chang and Abrica personify the rapid growth and change in both communities as immigrants who—in less than a generation—became elected leaders.

"What's innovative and cutting edge is nurturing Asian-American and Latino leaders together to prepare them for leading very diverse populations," said Chang, 49, who founded APALI in 1997. "It goes to the heart of a multicultural democracy."

The De Anza-based Civic Leadership for Community Empowerment, a 10-week seminar that will start next Jan. 10, is designed to prepare Asian and Latino young professionals and college students for leadership posts in non-profit organizations, appointed boards and commissions, and elected office.

Building bridges

More important, it aims to fortify ties between two groups around issues both care about, such as anti-immigration or English-only movements. It also can

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Katherine Corcoran, "Two Cultures, One Goal: Leadership; Latino and Asian-American Officials Join to Promote Political Participation," *San Jose Mercury News*, July 19, 2006. Reprinted by permission.

help build bridges in areas where they might be at odds, including affirmative action and allocation of public school resources.

"In politics there is always conflict," said Abrica, 57, who teaches Chicano studies. "If you establish one-on-one, personal relationships, you can call on each other to help mediate."

The two groups have connected around specific issues in the past, going back to the days when Cesar Chavez worked with Filipino-Americans in organizing farmworkers. The Asian Pacific American Institute for Congressional Studies and the National Association for Elected Latino Officials have arranged joint leadership training.

And there are countless local political links. U.S. Rep. Mike Honda, D-Campbell, is an Asian-American who speaks Spanish and maintains strong ties with the Latino community, while Margaret Abe-Koga, an Asian-American candidate for Mountain View City Council, joined the Latino community group, Mesa de la Comunidad, in that city last year.

"This reflects what's really new in ethnic politics, say, in the last 10 years," said Louis DiSipio, professor of Chicano/Latino studies at University of California-Irvine. "It's a building of the base beyond national origin, the first step, and pan-ethnic, such as Asian, the next step, to now coming up with common voices across ethnic groups."

The new program marks an expansion at APALI, which already offers a youth leadership academy, public service training and a Senior Fellows program for Asian-Americans.

Chang was elected in 1997 as the first Asian-American mayor of Cupertino, a town that has moved from majority white to roughly half Asian during the past 20 years. Abrica is the first Latino mayor of East Palo Alto, which moved from majority black to majority Latino in roughly the same period.

The dynamics of integrating the old and new power structures have been virtually the same in the two cities, even though they differ in income and education levels.

Bones of contention

In Cupertino, white and Asian residents have sparred over issues from Chinese-language signs on businesses to putting an Asian donor's name on a public library. In East Palo Alto, black and Latino residents have split along racial lines over board appointments and affordable-housing slots. Asian and Latino immigrants in both communities have been criticized for not getting involved in their neighborhoods or schools.

"There's a misunderstanding between immigrants and institutions," Abrica said. "Immigrant communities participate, but they're under the radar. They're not recognized."

The challenge for APALI to expand to Latinos was originally put out by advisory board member Hsing Kung, a high-tech entrepreneur and community leader known as a bridge-builder in Silicon Valley. "It makes sense," said James Lai, a Santa Clara University political-science professor. "If you work together,

people don't see everything as a zero-sum game: 'If we win, you lose.' It's key to the future of California politics."

Kung's idea "took some time to process," said Chang. But ultimately, said Mae Lee, APALI associate director for leadership training, "When we had the conversation philosophically and in the spirit of what APALI has always done, which is work with underrepresented communities, there was no reason why it didn't make sense."

The program will include speakers, networking, field trips and history and case studies in the two communities. Chang said the program is open to people of any ethnic background who want to learn more about issues in Latino and Asian communities.

At a community meeting last week, Chang invited civic groups, such as Foro Latino and Asian Americans for Community Involvement, to De Anza to introduce the concept and encourage them to enroll candidates.

The commonalities poured forth with little effort.

Tamon Norimoto, who was promoting First Thursdays, a monthly forum for Asian-American concerns, discovered Foro Latino does the same for the Latino community.

The July topic for both groups: immigration.

Norimoto, of the Japanese American Citizens League, and Abrica, a founder of Foro Latino, perked up at the coincidence.

"How do you pronounce your first name?" Abrica asked Norimoto by way of introduction.

"Tah-MONE. Like *jamon* with a 'T,' "Norimoto replied—using the Spanish word for "ham."

4. The California Health Report Talks with Families About Faith-based, Multiethnic Tenant Organizing in Oak Park, 2007

In the past three years, two bullets shattered the front window, a teenager was shot just outside and the downstairs neighbor was mugged. Before that, a woman's lifeless body was unearthed from a trash bin less than a block away.

But that part of East Oakland—where the neighborhoods of Fruitvale and San Antonio meet—is where Dr. Joan Jie-eun Jeung has chosen to live with her husband and their 6-year-old son.

"I just can't imagine living anywhere else," the 39-year-old pediatrician said. "Once I became a mother, I struggled with it.... We know we're putting our son in harm's way and wonder if he'll forgive us.... Some members of our church told us they'd be out of here if they could, and they don't understand why we choose to live here."

Their home is where 25 percent of the population lives below the poverty line and barely 50 percent of the adults graduated from high school. There are

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"Christian Activists Show Faith in East Oakland" by Hillary Abramson. Retrieved from http://www.sfgate.com. Also Russell Jeung, "Faith-based, Multiethnic Tenant Organizing: The Oak Park Story," ed. Pierrette Hondagneu-Sotelo, *Religion and Social Justice for Immigrants* (Rutgers, 2007), 59–73. Reprinted by permission.

people who only go outside in daylight. But with more than 40 percent of the residents foreign-born, the community has African American, Latino and Tongan churches, Southeast-Asian American shopkeepers and European Americans.

This community is what Joan (pronounced Jo-ANNE) Jeung and her husband, Russell Jeung, 47, a professor at San Francisco State University, crave.

UCSF Med School Grad

She graduated from UCSF School of Medicine, earned a master's degree in social medicine from UC Berkeley and a bachelor's degree from Harvard. He received his education at Harvard, Stanford and UC Berkeley. But the last thing they want for their son is a sense of entitlement....

The Jeungs are joined by other educated and employed parents who helped establish New Hope Covenant Church. A storefront church, it has activist roots in the neighborhood dating back to the 1980s.

"We're all asking what it means to be a good neighbor," said Joan Jeung, who is Korean American. "If you want to say you care about community, you have to share in the good and the bad."

Good happens for them every Sunday morning, where an average of 45 adults and children come together in a large meeting room at the offices of the Youth Employment Partnership on International Boulevard.

The congregation has included social workers, high school dropouts, Ph.D.s, ex-gangsters, teachers, refugees from Southeast Asia and Latin America, and "refugees from the suburbs" who, as Joan Jeung puts it, "are looking for a more radical and meaningful life."

Unable to find an evangelical Christian service like it, many of them drive there from other neighborhoods.

There is Dan Schmitz, 48, lay pastor of the congregation, who remembers calling his hometown—Burlingame—"Boringame" because "nothing happened there," he said. His father was an engineer at Bechtel Corp. They were Catholics, he said, "who talked about the poor when we went to church but there weren't any poor people around."

Getting Apartments Fixed

There is Carlos Flores, 39, a health educator at nearby La Clinica de la Raza, who grew up in "a somewhat privileged home" in San Jose and graduated from UC Berkeley with a political science degree.

Among others, including two Jeung house roommates who work in public-interest law and a Christian ministry, there is a commitment to this neighborhood that spans 15 years. It started with Schmitz, Russell Jeung and Flores living with Cambodian and Latino families in the Fruitvale Oak Park Apartments, where the landlord ignored raw sewage floods, leaky roofs, infestations of vermin and mold.

With a slew of attorneys, the tenants organized the others to file a lawsuit. In 2000, 45 resident families shared a $1 million settlement. The apartments were rebuilt, and the church transformed the crack house facing the apartments into a preschool.

Schmitz was the first non-refugee resident and only white person. Then came Russell Jeung, who moved into the apartments to study Asian youth gangs for his master's thesis in sociology and helped organize tenants against drug dealers. Joan Jie-eun moved into the neighborhood in 1999 and joined them tutoring, mentoring, cooking, praying and founding New Hope.

At first, Tracy Saephan viewed her neighbors as outsiders. Born in Thailand, she was raised and lived in the East Oakland neighborhood most of her life.

"I was young when I met them but I wondered what they wanted, what their ongoing commitment was," said Saephan, 33. "Long term was five years to me, and I wondered if they were in it for the short term. A lot of us who grew up in the neighborhood were exposed to things to make money, like gangs, prostitution, drugs—easy stuff. For me, it was OK to have sex before marriage, not like what we want now for our children. We were surviving, not knowing what doing 'the right thing' was.

"It didn't take that long to see that this group came in full of mercy for the community," she said. "You could feel their generosity. We started meeting at individuals' homes. Maybe there were 10 or 12 of us. They had the heart to bring us together. In time, there was such a big transformation with the Oak Park Apartments that it was clear they weren't outsiders any more. They wanted to be with us. They were gifts to the neighborhood."

Today, Saephan lives with her husband and three children near Dimond Park in East Oakland's foothills. She sells real estate and her husband runs a company that sweeps parking lots at night. On the church board of directors, she prays with her old neighborhood friends every Sunday.

Accepted as Neighbors

Neighbors who are neither religious nor members of New Hope Covenant Church also accepted the Jeungs and their educated friends, according to Tane Oubkeo. Born in Thailand, the unemployed auto mechanic lived in the neighborhood since he was 5.

"After people experienced the incredible change with Oak Park, they accepted them as neighbors," said Oubkeo, 28. "Before Russell and Joan, you wouldn't see white people walking around and saying 'Hi' to neighbors. Today, it's more of a reality. There's a block party every year, and you can tell that that the founders of New Hope are neighbors, like everyone else."

Before he met his wife and started attending the church, Oubkeo said, he was a teenager involved in "drug dealing, gang banging, robbing, stealing cars." He could have lost his life "maybe five or six times," he said. He witnessed a friend get shot in the head.

These days, Oubkeo lives near Lake Merritt with his wife, Keo Kong, who grew up in the Oak Park Apartments, and their infant son and 5-year-old daughter. They visit her parents often in the neighborhood and attend the church every Sunday.

The Christian activists turn the tables on the stereotype that configures an Ivy League education into a formula for fame and fortune.

5. Pawan Dhingra Describes Indian Motel Owners' Life Behind the Lobby, 2012

Nothing could be more American than road trips and motels. It's also true, though less widely known, that the owners and operators of about half of all motels in the United States are immigrants from India (or their descendants). "Chances are that anyone who has stayed in motels in the last decade has stayed in at least one owned by an Indian American," writes sociologist Pawan Dhingra in his new book "Life Behind the Lobby" out this month from Stanford University Press.

The total number of motel rooms owned by Indian Americans is nearly two million, with property values exceeding $100 billion. The vast majority of these motel owners come from the same Indian state, Gujarat. Even more remarkably, 70 percent of them share the same surname, Patel—an extremely common name in India—though they are not all related.

This dominance of the motel business by Indian Americans has been viewed as a characteristically American success story—the American dream realized. The neoliberal state theorizes entrepreneurs as ideal citizens, as Dhingra points out in the introduction to his book, since they are self-reliant workers who expect little or no help from the government. But the brightly shining rhetoric conceals a less sunny reality, since Indian American motel owners are also viewed as second-class citizens, subject to racial and cultural prejudice that sometimes translates into real inequality. (Indian American owners are concentrated in the bottom half of the industry, in lower- and mid-budget motels.)

"There are two schools of thought about ethnic entrepreneurs," Dhingra says. "Ethnic entrepreneurship is a difficult road, but it does lead to mobility, and it's basically a pathway for a group to uplift itself from difficult conditions. Others argue that ethnic entrepreneurship actually is a subtle form of exploitation—it's the long hours; it's the low wages; it's the need for family resources. Those are the two schools of thought. So where does this population fit in?"

The success of Indian Americans moteliers is, in fact, downright staggering. They came to this country with little knowledge of the motel industry, and yet have come to dominate a quintessentially American business. Yet it's also true that the recession has hit motel owners hard, especially those at the lower end of the industry, who often don't have the financial resources necessary to weather the storm.

Rather than locating them in either mainstream or margin, Dhingra sees them as the "margins in the mainstream," he says. "All that success is real in many ways, and you don't want to take away from what they've done. You don't want to emphasize their problems and take away from their success. The success is real. But they've been successful because they've learned ways to manage the problems they keep encountering, and the way they

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Greg Varner, "How a Staple of Americana Became the Indian American Dream," *Colorlines*, April 27, 2012. Reprinted with permission of RaceForward.org, publisher of Colorlines.com.

manage the problems is not necessarily helping to overcome them." Asked for examples of some of the ways Indian American motel owners might purchase short-term convenience at the cost of long-term gain, Dhingra doesn't hesitate.

"For those who can afford to hire staff," he says, "what staff they hire, and for what hours, to do what jobs, is a very strategic decision. This is not universal, but often they will hire whites to be their desk clerks during check-in hours in the afternoon. That way, when someone comes to their motel, the visitor won't know that it's owned by an Indian. This is one of the subtle ways that they diffuse any possible tension. They're not ashamed of being owners, but why draw attention to it? Why create possible problems?"

Dhingra's empathy for the motel owners he has interviewed is obvious in the easy way he begins to speak in their words, whether quoting directly or simply imagining himself in their shoes. "The visitor who comes in may still stay at our hotel if they see us behind the desk," he says, "but you don't want to give them any kind of negative impression, because then they'll start looking for problems. You want to avoid any of that and just have as non-foreign a motel as you can. That strategic decision about who they hire helps them in the business. It also reenforces this notion of whiteness as better than brownness. It reenforces the hierarchy. The success is real, but so are the hierarchies they've got to navigate. Both of these narratives work together."

Many owners live in their motels, especially in the low-budget, independent places, which helps save money on rent but complicates their domestic life.

"They may cook their Indian food at a different time of day than they want to, so that the smell of Indian food doesn't permeate the lobby and make people wonder what's going on," Dhingra says. Again, the awareness that what the customer expects to see may not be in sync with who they are racially and culturally prompts some motel owners to place self-imposed constraints on their identity. Not surprisingly, Indian American motel owners have banded together to form a lobby group, the Asian American Hotel Owners Association (AAHOA), which Dhingra explains has virtually all-Indian membership. To give two examples of its official positions, it is pro-immigration but against increasing the minimum wage.

In "Life Behind the Lobby," Dhingra, who was born in India but grew up in the U.S., tells how Indian Americans came to dominate the motel business. First, an undocumented immigrant from Gujarat leased a residential hotel—organized along the lines of a contemporary youth hostel, with shared bathrooms and so on—in San Francisco in the 1940s. From that small beginning, an empire has grown. While it would be an exaggeration to say it all sprang from a single person, Dhingra explains how this unlikely empire arose, mostly having to do with personal networks and the professional opportunities that did—or did not—present themselves.

"Back in the 1940s, motels were not as common. Around 1946, some Gujaratis came in and this guy was already here in San Francisco, who had sent letters home. Social networks play a huge role. A Gujarati moves to the U.S. and he can choose any business, but will go into motels. Why? Because he knows

people in the business who can help him out. The sense of community facilitates his entry into that business. He owns a motel, and he works there with his wife and kids, and then his relatives come over, work with him and live with him. They save a lot of money that way, and will then purchase their own motel. And they'll bring other family members, and then five years later, the same thing happens again."

Another factor, Dhingra explains, is a cultural preference for self-control in the workplace. This may spring, in part, from the experience of generations of farmers in Gujarat, who became accustomed to working for themselves. They like the sense of security in controlling their own fate, and being able to grow as much as they want to grow.

6. Pulitzer Prize Winner and Undocumented Immigrant Jose Antonio Vargas Refuses to Leave the United States, 2012

Thank you Chairman [Patrick] Leahy, Ranking Member [Charles] Grassley, and distinguished members of this Committee.

I come to you as one of our country's 11 million undocumented immigrants, many of us Americans at heart, but without the right papers to show for it. Too often, we're treated as abstractions, faceless and nameless, subjects of debate rather than individuals with families, hopes, fears, and dreams.

I am in America because of the sacrifices of my family. My grandparents legally emigrated from the Philippines to Silicon Valley in the mid 1980s. A few years later, Grandpa Teofilo became a U.S. citizen and legally changed his name to Ted after Ted Danson in "Cheers." Because grandparents cannot petition for their grandkids and because my mother could not come to the United States, grandpa saved up money to get his only grandson, me, a passport and green card to come to America. My mother gave me up to give me a better life.

I arrived in Mountain View, Calif. on August 3, 1993. One of my earliest memories was singing the National Anthem as a 6th grader at Crittenden Middle School, believing the song had somehow something to do with me. I thought the first lines were, "Jose, can you see?"

Four years later, I applied for a driver's permit like any 16 year old. That was when I discovered that the green card that my grandpa gave me was fake.

But I wanted to work. I wanted to contribute to a country that is now my home. At age 17, I decided to be a journalist for a seemingly naive reason: if I am not supposed to be in America because I don't have the right kind of papers, what if my name, my byline, was on the paper? How can they say I don't exist if my name is in newspapers and magazines? I thought I could write my way into America.

As I built a successful career as a journalist, paying Social Security and state and federal taxes along the way, as fear and shame, as denial and pain, enveloped

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Senate Judiciary Commission Testimony: Jose Antonio Vargas.

me, words became my salvation. I found solace in the words of the Rev. Martin Luther King, quoting St. Augustine: "An unjust law is no law at all."

Ultimately, it took me 12 years to come out as an undocumented American because that is what I am, an American. But I am grateful to have been able to tell the truth. And in the past few years, more undocumented people, particularly young DREAMers, are coming out. Telling the truth about the America we experience.

We dream of a path to citizenship so we can actively participate in our American democracy. We dream of not being separated from our families and our loved ones, regardless of sexual orientation, no matter our skill set. This government has deported more than 1.6 million people, fathers and mothers, sons and daughters, in the past four years.

We dream of contributing to the country we call our home.

In 21st century America, diversity is destiny. That I happen to be gay; that I speak Tagalog, my first language, and want to learn Spanish, that does not threaten my love for this country. How interconnected and integrated we are as Americans makes us stronger.

Sitting behind me today is my Filipino American family, my grandma Leonila, whom I love very much; my Aunt Aida Rivera, who helped raised me; and my Uncle Conrad Salinas, who served, proudly, in the U.S. Navy for 20 years. They're all naturalized American citizens.

I belong in what is called a mixed status family. I am the only one in my extended family of 25 Americans who is undocumented. When you inaccurately call me "illegal," you're not only dehumanizing me, you're offending them. No human being is illegal.

Also here is my Mountain View High School family, my support network of allies who encouraged and protected me since I was a teenager. After I told my high school principal and school superintendent that I was not planning to go to college because I could not apply for financial aid, Pat Hyland and Rich Fischer secured a private scholarship for me. The scholarship was funded by a man named Jim Strand. I am honored that Pat, Rich and Jim are all here today. Across the country, there are countless other Jim Strands, Pat Hylands, and Rich Fischers of all backgrounds who stand alongside their undocumented neighbors. They don't need to see pieces of paper, a passport or a green card, to treat us as human beings.

This is the truth about immigration in our America.

As this Congress decides on fair, humane reform, let us remember that immigration is not merely about borders. "Immigration is in our blood ... part of our founding story," writes Sen. Ted Kennedy, former chairman of this very Committee, in the introduction to President [John F.] Kennedy's book, "A Nation of Immigrants." Immigration is about our future. Immigration is about all of us.

And before I take your questions, I have a few of my own: What do you want to do with me?

What do you want to do with us? How do you define "American"? Thank you.

7. Menderes Candan and Uwe Unger Review Examples of the Brain Drain and the Brain Gain, 2013

Over decades it was a dominating theory in the field of migration research that the emigration of highly qualified employees from developing countries to developed countries is a loss for the economies and societies of the developing countries (so called brain drain). The argumentation was that the emigration of the very best leads to mitigation of innovation and development in country of origin. After the turn of the millennium, the view gained increasing acceptance that emigration of highly qualified from developing countries to developed countries does not only have negative aspects. As soon as migrants establish themselves in the host country, reach high positions in their occupational field, gain competences and accumulate capital, they start to transfer their knowledge and capital to their home countries. Therefore, the initially occurring brain drain turns into a gain (so called brain gain) for the country of origin.

The development of India is an ideal typical example for this phenomenon. India was hit by a large brain drain in the 1970s and '80s. Hundreds of thousands of the highly skilled left the country towards North America and Europe. They were able to establish themselves succesfully in their host countries. In the course of the economic opening of the country at the beginning of the 1990s many members of the Indian diaspora used their know-how, capital, and networks they built up in the countries of residence to invest in India. In doing so, they contribute to the development of the Indian economy. In particular, the development of the IT sector is a perfect example for a development from a brain drain to a brain gain. Indians who once left India for the US have started to build successful companies in the Silicon Valley and established branches of these companies in India. They took advantage of the more favorable production costs (especially labor force) to produce their goods in India, and sold them on the US market. In the meantime, India is leading in the IT sector worldwide. More than half of the IT companies in India were founded by Indians in the USA or, at least, are managed by them. More than two third of their gains are generated in the US market.

The Indian government is aware of this trend, and has already initiated an active policy to stimulate the brain gain of their highly skilled expatriates. The "Ministry of Overseas Indian Affairs" (MOIA) was established in 2004. The MOIA "focuses on developing networks with and amongst Overseas Indians with the intent of building partnership with the Diaspora." Moreover, Indians abroad gained special legal status by the Indian government. One of these legal statuses is the "Non Resident Indian" (NRI). Another one is the status of "People of Indian Origin" (PIO). These two statuses mark quasi dual citizenship. Furthermore, Indians who gained one of these two statuses benefit from many legal

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Menderes Candan/Uwe Hunger, "Brain Drain and Brain Gain Debate," *The Brain Drain and Brain Gain: The Recent Debate*, 2013 Network Migration in Europe e.V. www.network-migration.org. Reprinted by permission.

as well as investment appreciations. In addition, there exist different state policies to facilitate investments.

Several sectors followed the example of the IT sector. Doctors, for example, who previously emigrated to the USA and Great Britain, returned to India and built hospitals there. Scientists, who do research in the field of biotechnology, also returned to India to found companies. Every year, many million members of the Indian diaspora transfer billions of US-Dollars as remittances to their country of origin. The annual amount of remittances is constantly rising; for instance from $53.6 billion in the fiscal year of 2009/10 to $55.6 billion in 2010/11, and to $66.1 billion in 2011/12.

This transformation from brain drain to brain gain is not a unique or isolated process in India. Similar trends can be observed in other developing and emerging countries, which formerly suffered from a large emigration of its highly qualified (brain drain), and now are trying to benefit from their offshore population (brain gain). East Asian migration to the United States, for example, which started already in the 19th century, is still increasing and plays an important role in the developing process of these countries. Asian immigrants surpassed even Latin American immigration in 2012. Many of the Asian immigrants come as natural science students and stay as successful members of [the] upper-middle class in the United States. At the same time, they contribute to the development of their home countries over generations: There are high return rates to Korea, large remittances to China and the Phillipines (China is the second and the Phillipines is the fourth largest recipient country of remittances next to India and Mexico), and a wide transfer of technology to Taiwan. This trend seems not to decrease, but rather increase in the future. Collectively, worldwide remittances ($372 billion in 2011), for example, constitute an important proportion of the GDP of many emerging countries and exceed, for example, the amount of the official worldwide development aid ($135 billion in 2011).

8. Asian Americans Support Affirmative Action, 2014

Many Asian American and Pacific Islander (AAPI) Groups Face Low Representation

As noted in the National Commission on Asian American and Pacific Islander Research in Education (CARE) "iCount" report for the White House's Initiative on AAPIs, lack of disaggregated data "conceals the unique challenges faced by AAPIs" and "the aggregation of AAPI sub-groups into a single data category is a civil rights issue for the AAPI community." Specific examples from the iCount report included a case study of UC based on newly available disaggregated data, finding that many groups were below their proportion of the state population in UC Berkeley's applicant pool: **"Low representation among AAPI applicants is a particularly problematic trend for Pacific Islanders (Samoans,**

Asian Americans and Pacific Islanders in California: How Higher Education Diversity Benefits Our Communities, March 2014, 1–5. Reprinted by permission of Asian Americans Advancing Justice.

Guamanians, Tongans, and Native Hawaiians), Southeast Asians (Laotians, Cambodians, Hmong, and Vietnamese), and Filipinos." The report found similar patterns in UCLA's admit pool.

Pacific Islanders, for example, face extensive barriers to opportunity in higher education, and have among the lowest rates of college-going and degree completion nationwide and in California. The chart below illustrates this challenge, and confirms that over an eight year span, Pacific Islanders' admission rates to the UC system were the same as the groups traditionally defined as "underrepresented minorities" (URMs) – i.e., African Americans, Latinos and American Indians combined – and at UC Berkeley, the most selective campus, Pacific Islander admission rates were lower than URM rates.

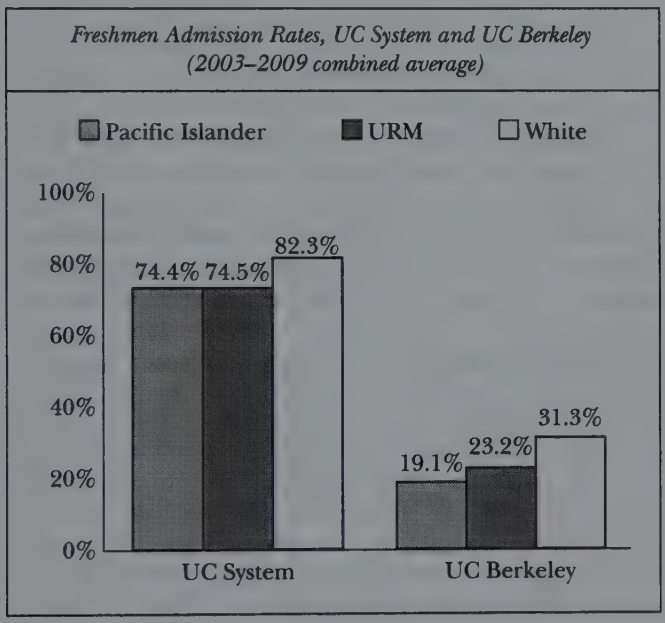


FIGURE 12.1

AAPIs and Others Share Educational Benefits

In *Grutter v. Bollinger,* the U.S. Supreme Court recognized that student body diversity "promotes 'cross-racial understanding,' helps to break down racial stereotypes, and 'enables [students] to better understand persons of different races'" and the Court found that these benefits "are substantial." 539 U.S. 306, 330 (2003). An extensive body of social science research corroborates these benefits for students, including AAPI students. For example, students attending institutions that are more engaged with diversity exhibit higher levels of personal change in their knowledge of people of different races or cultures and in their ability to get along with people from different racial or cultural backgrounds.

Large-scale studies analyzing and synthesizing the research literature ("meta-analytic" studies) document the following benefits in higher education:

- Diversity experiences are positively related to cognitive skills development.
- Greater intergroup contact is associated with lower levels of prejudice.
- Cross-group friendships promote positive intergroup attitudes.

Enhanced "pluralistic orientations" and cross-cultural competencies are critical to the success in the global economy.

AAPIs directly benefit from diversity in the classroom and surrounding informal learning environments in college. AAPIs also benefit from diverse learning environments in *indirect* ways. For instance, one important study found that college seniors who interacted more frequently with students of other races exhibited the following patterns, "Black students' contact with Asians was related to improved attitudes toward Hispanics and Whites, and their interactions with Hispanics and Whites were both related to improved attitudes toward Asians." AAPIs' attitudes about others also improve through the same process.

In light of the above evidence, it is not surprising that AAPI college students' support for affirmative action *increases* as they progress from being freshmen to seniors. And racial diversity is particularly important in professional schools settings where the negative impact of Prop 209[1] has been the most dramatic. Several studies show that diversity in the classroom helps AAPIs and others enhance their competencies as future physicians and as future lawyers and community/civic leaders.

Higher Education – An Investment in Our Young People and California's Economic Prosperity

Higher education is a "positive sum game" for our students and our society. Investment in California public higher education pays off not just for students who receive a college education; the State's (and the taxpayers') investment is returned several times over through increased tax revenues and lowered costs for prisons and other programs. Accordingly, AAPIs have a strong interest in ensuring that the overall public higher education system is sound and capable of meeting the needs of California's future economy. While Proposition 30[2] is an important indicator that we have begun to turn a corner, this comes against a backdrop in which California's General Fund spending on prisons increased three times faster than for higher education (UC and Cal State) since the 1990s. Such long-term disinvestment in higher education has troubling enrollment consequences for California students from all backgrounds (including AAPIs).

One concrete example where disinvestment impacts AAPIs is that the UC system is carrying thousands of "unfunded" California resident students who are not supported by the State. A few years ago UC Berkeley significantly scaled

[1]A California ballot proposition approved in 1996 that banned state governmental institutions from considering race, sex, or ethnicity, in public employment, public education and public contracting.

[2]A California ballot proposition in 2012 that increased taxes to prevent $6 billion in cuts to California State schools.

back on the number of unfunded students it would enroll, and the number of California resident AAPIs in the freshman class dropped from 1,776 annually in 2006–09 to 1,440 annually in 2010–13 (a 19% decline). To place things in perspective, this drop of 336 AAPI students is more than double the total number of African American and American Indian California resident freshmen enrolling annually at UC Berkeley in recent years. These figures are a reminder of the fact that misplaced attacks on diversity efforts distract us from our more fundamental challenge: As Californians all of us, including AAPIs, must come together to expand and support our excellent universities in order to secure a brighter future for our young people.

ESSAYS

After the 1965 Immigration and Nationality Act provided a clause encouraging the migration of skilled workers to fill labor shortages in the United States, the Philippines became the nation's biggest provider of nurses. In the first essay, Anna Romina Guevarra, a sociologist and interdisciplinary scholar in Asian American Studies at the University of Illinois, Chicago, discusses the transnational support networks and identity of nurses from the Philippines she interviewed in Texas and Arizona. While many nurses celebrated the lifestyle they can afford and their contributions to their families back in the Philippines because of their higher incomes, they also expressed feelings of guilt, loneliness, and disappointment. The second essay, by Edward Taehan Chang, a professor of ethnic studies at the University of California, Riverside, examines the legacy of Sa-I-Gu. His essay looks at structural inequality, entrepreneurship, generational differences, and political lessons learned by Korean Americans during the twenty years that followed America's first multiethnic civil unrest.

Filipina Nurses in Arizona and Texas Look for the American Dream

ANNA ROMINA GUEVARRA

In a 2007 *New York Times Magazine* news article, we meet Rosalie Comodas Villanueva, a Filipina nurse working in Abu Dhabi who has relieved her migrant worker father from being the family's primary breadwinner, a position he had held for almost two decades. Not only does she dutifully remit four hundred dollars a month to her parents; in addition, through her generosity her parents have a home equipped with luxuries atypical of the average Filipino household; a patio, tiled flooring, two kitchens, and flushing toilets. The pages of a new magazine, *Philippine Nurses Monitor*, which professes to serve the Filipino nurse communities in the United States, are filled with information about the many ways

Marketing Dreams, Manufacturing Heroes: The Transnational Labor Brokering of Filipino Workers (Rutgers 2010), 1–21. Reprinted by permission.

that nurses can enjoy the economic fruits of their labor. From taking advantage of the "special no down payment package for OFWs (overseas Filipino workers]" to buying a luxury condo in the Philippines, to receiving tips for leisure and travel from their peers, to learning how to become "nurse entrepreneurs," readers can dream or, perhaps, *fantasize* about the things they can consume or business ventures they can pursue.

Similarly, nurses I interviewed in Texas and Arizona such as Gabriela and Kitty boast the material rewards of working overseas and the pleasures of owning and purchasing commodities of which they can only dream in the Philippines. Being able to own a home or to purchase a car produces celebratory images that reflect the very promises that the state and employment agencies broker to the nurses I interviewed and those that govern their professional consciousness as overseas workers seeking employment in the United States. But these images hide the contradictions and tensions in those promises—the simultaneous gains and losses behind a professional consciousness rooted in chasing the American dream of consumption. America may encapsulate their dream opportunity when it comes to material acquisition, but often, behind these representations is loneliness and estrangement, which this pursuit often veils.

CULTIVATING AMERICANIZED NURSING SUBJECTS

Gabriela and Kitty's presence in the United States defies the kind of economic logic of poverty and any global labor market rationale that labor recruiters proclaim are the driving forces for pursuing overseas employment in the United States. The two women came from middleclass families and did not pursue nursing simply as a mode of economic survival. Rather, nursing was their ticket to work in the United States, a place they perceived would reward them with earnings commensurate to their training and endow them with an elevated social status—an issue I take up later. But this pursuit was made possible by colonial relations between the United States and the Philippines.

Choy's seminal work illustrates how these relations have contributed to the institutionalization of nursing, creating a foundation upon which Filipinos became technically and socially suited to work in U.S. health care settings. The implementation of an Americanized nursing training, the use of English as the language of instruction, and the promotion of an Americanized nursing work culture provided the necessary historical "preconditions" driving the mass migration of Filipinos to the United States beginning in the mid-1960s. Colonial relations between the two countries led to educational and training opportunities, such as the *pensionado* and the Exchange Visitors Program (EVP), that had been a vehicle for Filipino nurses to go to the United States since the 1950s. These programs served as tools for establishing the cultural and intellectual supremacy of U.S. institutions and ultimately were instrumental in shaping familiarity with the Filipino nursing workforce on the part of contemporary foreign employers.

Indeed, an unintended consequence of these colonial relations, as Choy argues, is the mass migration of Filipino nurses to the United States in the second

half of the twentieth century. Between 1956 and 1969, following implementation of the EVP, more than eleven thousand Filipino nurses left for the United States; nurses made up more than 50 percent of the total number of exchange visitors from the Philippines. The momentum was maintained by the 1965 Immigration Act, which provided two occupational preference categories reserved for highly skilled migrants, which Filipino nurses were able to use as a means for entering the United States. They also took advantage of the H1-B visas that allowed them to come as temporary workers....

FROM PROVIDING LAVISH RECRUITMENT PACKAGES TO CREATING FILIPINO ENCLAVES

In the recruitment seminars that U.S.-based employers conduct in the Philippines, Filipino nurses are already bombarded with images that suggest that working in the United States will lead to a significant transformation of economic status. They are reminded that this employment opportunity is not only about immigrating to the United States and attaining the rights and privileges afforded to all its permanent residents, but also about partaking in the material rewards of their earnings. The tourist-directed brochures that recruiters distribute and the token Filipino representatives who are paraded as economic success stories and who attest to the glamour of working overseas are supposed to ingrain in the minds of Filipino applicants the reasons why working in the United States is *the* ultimate opportunity.

To further reify this point, recruiters effectively promote an enticing "hiring package" to their applicants. In contrast to earlier waves of foreign nurse recruitment in which H1-B visas were used, in present recruitment efforts many hospitals offer immigrant or green card visas in the form of employment-based visas such as the EB-3, which ultimately carries the promise of U.S. citizenship. Unlike the H1-B visa, the EB-3 allows employers to sponsor a nurse job applicant (and her or his family) for permanent residency (that is, give her or him a green card). Once they are permanent residents, nurses are eligible to apply for U.S. citizenship, after five years of continuous residency in the country. All the nurses I interviewed fit into this pattern, which set them apart from the nurses who had come before them. They had left the Philippines with the express intention of becoming permanent U.S. residents and, ultimately, U.S. citizens....

Nurses I interviewed in Texas and Arizona earned between thirteen and thirty-four dollars an hour. Notwithstanding the cost-of-living indexes in these two places, and the cut that agencies take from nurses' pay, as in the case of some of the nurses in Arizona, their wages seemingly depend on their employers, years of work experience, and the type of specialty care provided (wages of emergency room nurses and cardiac care unit nurses are slightly higher than those of medical oncology nurses). They perceived this salary to be well above anything they could possibly earn in the Philippines and therefore found them sufficiently enticing. According to Pia, a nurse with five years' nursing experience, the 5,000 pesos a month ($116) she would be earning in a provincial hospital in the Philippines could not compare with the $18 an hour ($1,152 a month)

offered to her in Texas. Michelle, another nurse in Gray Meadows, recounted that her initial contract offered $13 an hour, an amount that seemed low given that she had been working as a nurse for ten years. However, this rate, upon conversion to Philippine pesos, would allow her, as the eldest daughter, to fulfill her family obligations to put two of her siblings through college. As is clear from this example, employers benefit from the power of the U.S. dollar conversion in the Philippines and the relative competitiveness of U.S. nursing salaries compared with those that Philippine hospitals can offer.

Many Philippine-based agencies that work with U.S. hospitals or staffing registries are able to secure packages (called a surety bond) that include the stipulation that employers pay for the exams required of nurse applicants, airfare and other travel costs for the journey abroad, and all other immigration-related fees. This was the case for one of the employers of nine nurses I interviewed in Gray Meadows. The attractiveness of this employer was based on its ability to shoulder what is typically the costly aspect of a job application to the United States. A typical contract for the nurses employed by this employer included other perks, such as three months' "free" housing in a fully furnished apartment, a relocation bonus of $4,500, a sign-on bonus of $2,000, a $225 gift certificate to purchase hospital uniforms, and a transportation allowance of $4,500. This kind of package has become a source of tension for Filipino nurses in Gray Meadows who work for another employer or who came at a different period, when such perks were not yet offered. While nurses in Arizona did not have the same kind of extensive package, they also received one month of free housing.

Both groups of nurses recounted that upon their arrival in the United States, they were assisted by a representative from their employers who helped to process numerous types of employment-related paperwork, including that needed for their Social Security cards; took them to the bank to open an account; and generally oriented them in affairs of daily living. Above all, however, what was especially helpful for these nurses was the strategic ways in which employers created a sort of mini-Filipino enclave by placing similar workers in the same housing complex. For example, in Texas, I found that one apartment complex was home to all the newly arrived nurses and to a few "old-timers"—those who had been in Gray Meadows for at least two years and who decided to stay in that housing complex. The apartment complex was not only located about two to three miles from the two hospitals where the nurses worked but also situated two blocks from the only Filipino restaurant in town. This restaurant was the heart of this Filipino nurse community. Its owners provided much needed familiar hospitality and its food had become essential for nurses who stopped by before or after their shifts to pick up home-cooked meals that their schedules do not permit them to prepare at home. Similarly, in Arizona, the nurses I interviewed were placed in an apartment complex with a significant concentration of Filipino nurse residents who were working for the same hospital, which was located in close proximity.

This strategy of creating a Filipino nurse mini-enclave is advantageous for employers, who can take credit for fulfilling their promise to nurses—to give them a kind of home away from home where newly arrived nurses can feel that they are in an environment with other nurses who are their peers but at the same

time can provide them mentorship and emotional support. This is precisely what has happened in both Texas and Arizona. Filipino nurses themselves have created a support system that at least tries to mitigate the transportation problems that they all face. In both sites, employers provided nurses, in their initial few months, with a financial allowance or a bus card that they could use for public transportation. However, taking public transportation to work became cumbersome for the night shift nurses, who did not feel safe waiting at a bus stop alone, or for those who did not feel comfortable facing the oppressive summer heat. Grocery stores, churches, and shopping centers were not within walking distance from the apartments. Therefore, nurses who owned their cars often reached out to newly arrived nurses either by offering free rides to places to which they were going to already or by establishing official carpooling services for a fee.

Such a community of support is instrumental in relieving the home-sickness that many nurses encounter and in alleviating their fears about a new work environment....

WE ARE BORN TO HAVE THE AMERICAN DREAM

Thanks to transnational corporations, globalized media, and migrant transnational social networks, the images that travel and get imported globally portray the United States as a place of wealth, cosmopolitanism, and limitless opportunities. Another nurse, who will be called HB and who works in Arizona, recounted how as a young child in the Philippines, she perceived her aunts and cousins who worked as nurses in the United States as being able to "buy whatever they wanted" by virtue of the things they brought back on their trips home to the Philippines. The United States is supposed to be *the* place to satisfy one's career and educational aspirations.

But working in the United States is also about having a "voice." Thus Pia, a nurse working in Gray Meadows, observed, "People seem to have more voice here. Whatever they want to say, they can say it. Your rights prevail. In the Philippines, whoever has money, they are the one with rights."...

HEROES TO THEIR FAMILIES

When I met Mabolo in 2004, she had been working in Texas for about four months. During our meeting, she was particularly jovial because of the increasingly real possibility that she would finally be reunited with her husband and four children. She had left them behind because she had not had money then to finance the cost of processing their visas and airfare, a cost that employers typically do not cover. Now, she had saved enough money from the overtime hours she had put in to bring them to the United States, buy a minivan to drive them around in, and even plan to purchase a home before they arrived.... Mabolo's ability to provide her family with these kinds of lifestyle changes redefined her position as her family breadwinner, through her ability to purchase material goods, at the same time that the gratitude that she receives from her children alleviated her sense of guilt and pain that was brought on by familial separation....

Behind the so-called glamorous lifestyles that employment agencies sold the nurses was a sense of loneliness and alienation that gave pause about whether this

dream was worth pursuing after all. As Gabriela noted, "You can buy everything you want in America. But it is a lonely place. Although I feel full from the things that I buy, I still feel unhappy.... In the Philippines, while you have very little money, you are happy."...

Many say, *Masarap ang buhay sa Pilipinas* (Life is good in the Philippines) as a way of expressing a sense of pride and longing for a place that they seemingly did not always appreciate as such. They express disdain for the fast-paced world of work that the United States demands and because of which few moments are left for leisure. They are disappointed with how friendships develop and the formal arrangements needed for social gatherings. They all learn very quickly that in the United States, time is like gold and that Americans are obsessed with managing and protecting their time. They also feel socially constrained in workplaces that they think discourage casual and informal conversations on the job and contribute to the social distance they feel from their colleagues.

While there are certainly some nurses who do not wish to return to the Philippines because they have become accustomed to the U.S. lifestyle, most whom I interviewed discussed plans of returning and retiring there. Juxtaposed with their determination to chase the American dream was a fundamental longing to return "home." Many were especially fearful of what they observed was a lack of respect for the elderly, who they saw facing the fate of ending up in a nursing home instead of being under the care of their family....

Contrary to the general perception that agencies promote Filipinos working overseas, many workers are actually committed to returning to the Philippines and see it as their ultimate home. As Justin noted, "Life is good and enjoyable in the Philippines but life is nicer here in America [in terms of material rewards]. These are two different things." This kind of realization and distinction challenges the notion of immigrants as being driven by the desire for material consumption; it paints a richer and more complicated picture of what comes to be defined as "the good life." That is, the promise of the American dream, the good life that nurses imagined they would find in the United States falls short of their expectations, and for many nurses, this unexpectedly propels them back to the Philippines.

CONCLUSION

...Toward the end of our interview, I asked Gabriela to reflect upon her life and career in the United States thus far and offer some "words of wisdom" for nurses who wished to take a piece of this American dream: "Life is good here in terms of the fact that you can do what you want. Just work hard and don't let your emotions take over you. You need to be brave. You come here to get wealthy so don't think of anything else; otherwise, why come here at all? Just work hard. Pray and don't forget why you came here. You will get what you want."

The statement that Gabriela made, imbued with notions of promise and prescription at the same time, bears a striking resemblance to what labor brokers themselves pitch to prospective migrants. But as Gabriela's story has revealed, the cautionary tone behind her statement also unveils the disappointment, estrangement, and loneliness that come with living this dream. The American

dream may guarantee economic advancement, but it does not guarantee that Filipino nurses in the United States will live happily ever after.

Confronting Sa-I-Gu: Twenty Years After the Los Angeles Riots

EDWARD TAEHAN CHANG

Twenty years ago on April 29, Los Angeles erupted and Koreatown cried as it burned. For six-days, the LAPD was missing in action as rioting, looting, burning, and killing devastated the city. The "not guilty" Rodney King verdict ignited anger and frustration felt by South Los Angeles residents who suffered from years of neglect, despair, hopelessness, injustice, and oppression. In the Korean American community, the Los Angeles riot is remembered as Sa-i-gu (April 29 in Korean). Korean Americans suffered disproportionately high economic losses as 2,280 Korean American businesses were looted or burned with $400 million in property damages. Without any political clout and power in the city, Koreatown was unprotected and left to burn since it was not a priority for city politicians and the LAPD. For the Korean American community, Sa-i-gu is known as its most important historical event, a "turning point," "watershed event." or "wake-up call." Sa-i-gu profoundly altered the Korean American discourse, igniting debates and dialogue in search of new directions. The riot served as a catalyst to critically examine what it meant to be Korean American in relation to multicultural politics and race, economics and ideology.

So does race matter in America anymore? On the 20th anniversary of the Los Angeles riots, the answer may depend on whom you ask. We still disagree on how to name what happened on April 29, 1992. Was it a riot? Uprising? Civil unrest or rebellion? A year after the Los Angeles riots in 1993, I along with others tried to organize a symposium to understand what happened and facilitate dialogue between different racial and ethnic groups in Los Angeles. We debated and struggled on how to name Sa-i-gu, and we came up with the term "political-protest-turned-into-riot." Twenty years later, we are still debating how to name the six days of violence that burned Los Angeles in 1992. The argument about how to name the six days of violence symbolizes a still divided city that is "separate and unequal."

Sa-i-gu served as an impetus for fundamental changes in Korean American identity and provided guidance for the future direction of the community. Many observers commented that the "Korean American was born or reborn on April 29, 1992." The Korean American community also began to reevaluate its economic, cultural, and political positions in America. What does it mean to be Korean American in multiethnic and multiracial America?...

According to the U.S. Census (1990), the City of Los Angeles had become truly multiracial and multiethnic: the Latino population constituted 40 percent,

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Young Oak Kim Center for Korean American Studies, November 2012, http://yokcenter.ucr.edu. Reprinted by permission.

whites 37 percent, African Americans 13 percent, Asian Americans 9 percent and Native Americans 1 percent....

Indeed, the Los Angeles civil unrest of 1992 was America's first multiethnic civil unrest (Chang 1994). Interestingly, Chinese and Japanese Americans practiced ethnic dis-identification and distancing as they blamed Korean immigrants for causing racial unrest in Los Angeles. Assimilated Chinese and Japanese Americans felt uncomfortable being lumped together with Korean immigrants as Asian Americans. Asian American history is replete with examples of each Asian ethnic group shying away from each other whenever there is racial trouble, in the wishful hope that they are identified as a singular group and not lumped together with other Asian groups.

With the breakdown of legal and residential barriers, middle-class African Americans began to move out of urban ghettos into suburban neighborhoods; this has had a dramatic impact on the demographic composition of South Central Los Angeles which- has traditionally consisted of "black neighborhoods." In the 1980s, the African American population increased only by 13%, but the Latino population increased by 53% and Asian Americans by 108% in South Central Los Angeles. As a result, the Latino community in South Central Los Angeles grew from 6% in the 1970s to roughly 40% in the 1990s. These demographic changes along with the restructuring of the American economy have had a profound impact on racial and ethnic relations in Los Angeles as well as other major metropolitan areas in the form of increasing inter-minority conflicts and white backlash against minority groups....

In particular, the Korean-African-American conflict emerged as one of the most visible and urgent problems of urban America as conflict intensified between the two minority groups during the late 1980s and the early 1990s. Boycotts and protests against Korean immigrant store owners broke out in major cities in the United States throughout the 1980s. The Red Apple boycott (January 18, 1990) in the Flatbush section of Brooklyn, New York pitted Korean immigrants against African Americans as it became a symbol of racial conflict in America. During the early 1990s, the so called "Korean-black conflict" replaced white-black tension as the Red Apple boycott lasted for almost 15 months....

Two distinct characteristics set Korean immigrants apart from other Asian Americans: a church-centered community and entrepreneurship. The church is the most numerous and dominant institution in the Korean American community. Studies have shown that approximately 70 percent of Korean immigrants are regular churchgoers. Korean American churches are the most important social, cultural, and economic institutions that serve the needs of Korean immigrants. Church is a place where recent Korean immigrants can worship God and share their immigrant experiences and cope with language and cultural barriers in a new society.

Since Korean immigrants view small business as an avenue for success in America, Korean immigrants have been actively developing and cultivating a niche in the small business sector. This may explain the reasons why Korean immigrants have the highest self-employment rate in the US. Korean Americans ranked the highest in self-employment in 2007 (12.8%). A combination of factors facilitates high self-employment rates among Korean immigrants. Cultural misunderstanding, language barriers, and unfamiliarity with American society put Korean immigrants at a disadvantage in the U.S. labor market. Korean

immigrants also find it difficult to find jobs commensurate with their education level. Korean immigrants come to the US with "ethclass" (ethnic and class) resources because of American immigration policies that encouraged Koreans with capital to immigrate to the United States. Korean immigrants are and were in an advantageous position to enter small businesses by utilizing their ethnic and class resources and networks. In particular, Korean immigrants opened grocery markets, liquor stores, nail salons, garment subcontracting firms, restaurants, and laundry businesses. Furthermore, racial discrimination and structural factors seem to push Korean immigrants as shop owners or "middleman minority" serving largely minority (African American and Latino) clientele. Korean immigrants function as the "middleman minority" as they are heavily concentrated in retail and service industries.

The proliferation of Korean-owned businesses in the African American community during the 1980s exacerbated conflicts between the Korean American and African American communities. Several highly publicized boycotts of Korean-owned businesses by African American residents intensified racial conflict between the two communities during the 1980s and the early 1990s. Cultural misunderstandings and culture clash fueled antagonism between Korean immigrant merchants and African American residents. As a "middleman minority," Korean merchants acted as a buffer between dominant (white) and subordinate (African American and Latino) group conflicts in American society. The middleman minority theory predicts friction between immigrant-seller and poor-minority-buyer relationships in America's inner cities. Volatile relations between Korean American and African American communities in Los Angeles exploded into mass destruction of properties and loss of lives on April 29, 1992....

Sa-I-Gu

Historically, most of the US media has portrayed Asian Americans in general as the "model minority," forcing them into the role of the "middleman minority." This image pits Asian Americans against other minority groups and has fueled resentment particularly toward Korean Americans. By praising Korean immigrant merchants in Los Angeles as a shining example for other minorities to emulate, the press, before Sa-i-gu, implied that African Americans had no one but themselves to blame for their circumstances. Both the "model minority" and the "middleman minority" concepts imply racial stratification, creating a three-tier system with whites on the top, Asians in the middle, and Latinos and blacks at the bottom. As journalist and author Helen Zia noted in *Asian American Dreams* in 2000, Sa-i-gu demonstrated that "... the model minority was taking a beating from blacks, whites, and Latinos who seemed only too glad to deliver their comeuppance." Zia also commented that in Los Angeles, Korean Americans "had taken the hit for all Asian Americans." The mainstream media did nothing to cover the Korean American perspective during and after the riots. Thus, Korean Americans were not only denied the legitimization of political grievances, their grief was entirely unacknowledged. Historical misrepresentations of Asians and Asian Americans had residual effects that continue to this day.

These images have had significant impact on how others see Asian Americans and how Asian Americans see themselves.

Within the Korean American community, Sa-i-gu served as an impetus for a fundamental change in identity, which many observers believe occurred on April 29, 1992. The Korean American community also began to reevaluate its own economic, cultural, and political positions in America. What does it mean to be Korean American in multiethnic and multiracial America? Sa-i-gu also exposed many problems and challenges for the Korean American community: a lack of leadership and political power, generation split, and lack of contact with other communities.

The community did not passively accept riots. Within a matter of days, more than 30,000 Korean Americans in Los Angeles came together for a "Peace March" that is said to be the largest gathering of Asian Americans in all of Asian American history. Also, with an increased awareness of the importance of a Korean American identity was the awareness that the 1.5 and second generations play a critical role in the community. It is the younger generation that will present the community's identity to society at large by getting involved in politics and the media to increase the voice and representation of the community. For second generation Korean Americans, the civil unrest gave them a new sense of belonging and ethnic pride as they participated in relief efforts and peace marches.

Despite suffering and hardship, Korean Americans have learned many valuable lessons from the 1992 Los Angeles riots. Ironically, Sa-i-gu brought visibility to the Korean American identity as they were prominently featured by both ethnic and mainstream media. On May 31, 1994, I published an op-ed piece titled "An Emerging Minority Seeks a Role in a Changing America" in the *Los Angeles Times*. Very few people knew about the plight of Korean immigrants before Sa-i-gu. In the aftermath of Sa-i-gu, many readers were interested in knowing who Korean Americans were. Twenty-years later, I published another op-ed in the *Los Angeles Times*, with the title "A Community Coalesces." The article talks about how the Korean American community is now embraced as an integral part of Los Angeles' diverse mosaic. In particular, Koreatown has emerged from the ashes, resurrected as a vibrant, successful transnational enclave I concluded, "it is proof, one more time, that Los Angeles is anything but black and white." Korean Americans learned that they must politically empower themselves. Korean Americans had no allies in city hall, Sacramento, or Washington D.C. because they solely focused on economic security and betterment in American society. No one cared for the Korean American community, as politicians retreated to their own respective communities. Korean Americans learned the hard way that little would be done for them and they must empower themselves politically. Korean immigrant churches also need to play proactive roles in educating, informing, and transforming the Korean immigrant consciousness. Korean immigrant churches have been static, conservative, and traditional in dealing with community issues. Korean immigrant churches must provide a new leadership and the spirit of community activism to promote peaceful co-existence with different racial and ethnic groups in America. One of the important lessons of Sa-i-gu was to reach out and build a multiethnic and multiracial community in

LA. How can we get along as neighbors, and yet protect our own civil rights and basic needs that may be contradictory to our neighbor's needs and interests? It is a long and painful process, but it must start now. Korean Americans must seek a new role in creating an inclusive, multiracial, and multiethnic America.

Sa-i-gu was not just a wakeup call for Korean Americans alone. It was a wakeup call for Asian Americans and all minorities who are struggling in the economically depressed and crime-ridden inner-city districts. And yet, we still have not learned all the meanings and lessons from Sa-i-gu. The problems and structural conditions that ignited Sa-i-gu still continue in South Los Angeles as well as in impoverished neighborhoods in the United States. Economic disparity between haves and have-nots, poor education, high unemployment rates, police brutality, and racial discrimination were the main causes of Sa-i-gu. Twenty years ago, many observers described Los Angeles as "a keg of dynamite ready to explode" anytime. The Los Angeles civil unrest of 1992 brought major social issues to the surface: racism, class, language, culture, new immigrants, violence, crime, the urban underclass, and ethnic tribalism; but these forces have never been addressed or even discussed not only by the powers that be but by the established minority leadership or new ethnic power elites.

Reflections on Twenty Years Since the LA Riots

Twenty years later, Los Angeles is still divided along racial and ethnic lines and struggling. We have not made any substantial changes and improvements with the structural conditions that caused the LA riots of 1992. Although we are far more accepting of differences and tolerant toward others, it seems that we have a long way to go to improve race relations. We do just enough to get along.

And yet we do not hear much about the so-called "black-Korean conflict" twenty years later. There seem to be several reasons for this change. First, Korean Americans no longer dominate mom-and-pop stores in the South Los Angeles area. During the height of "black-Korean conflict" in the 1980s, the majority of mom-and-pop stores in black communities were owned and operated by Korean immigrants. Recently, however, Southeast Asian refugees. Arab Americans, and Latino businessmen moved into South Los Angeles areas. For example, approximately 30-40% of liquor and grocery markets in South Los Angeles are owned and operated by non-Koreans according to Byung Han Cho of the International Korean Grocers' Association. In particular, middle-eastern business owners are aggressively taking over liquor and grocery stores in South Los Angeles. As a result, Korean immigrant owned stores are no longer singled out or the target of boycotts and racial conflict. The demographic shifts in South Los Angeles have also helped to reduce tensions between Korean immigrant merchants and African American customers. Since 1992, the combination of "black-flight" and the influx of the Latino population in South Los Angeles dramatically altered the landscape of the area. Many blacks relocated to the Inland region of San Bernardino and Riverside counties, and others returned to their roots in the South. More importantly, Latino immigrants moved in and began to compete for scarce resources and services which heightened tensions between the two racial minorities. It appears

that tensions between Latino immigrants and black residents of South Los Angeles are more urgent issues than the so-called Korean-black conflict.

Attitude and behavioral changes of both Korean Americans and African Americans may have also eased tension between the two groups. As both Korean immigrant merchants and black residents suffered during and after the Los Angeles riots of 1992, they realized how dependent they are on each other. During the riots, many Korean stores were burned down and African American residents had to walk several more miles to shop and get their basic needs such as milk, diapers, and bread. Korean immigrants also realized that they have to reach out and become part of the community if they wanted to succeed in their businesses. As a result, both Korean immigrant merchants and African American customers became more courteous to one another, and it may have diffused tensions between the two groups.

For Korean Americans, much has changed in the last twenty years. An ethnic minority once virtually invisible in American society – and often mistaken for either Chinese or Japanese Americans – has emerged as an economic and political force in Los Angeles civic life. Korean Americans learned that they had to become politically active and empower themselves. Before Sa-i-gu, Korean Americans had no allies in city hall, Sacramento, or Washington, D.C. Their lack of political clout became apparent as their businesses were abandoned to looters and arsonists during the riots....

Twenty years after Sa-i-gu, Los Angeles still struggles with the issues that led to the devastating riots-economic disparity, poor education, impoverished neighborhoods, high unemployment, police brutality, and racial discrimination. That cannot continue, just as progress in race relations must not be allowed to languish as we continue to grow as a diverse community....

Conclusion

As we commemorate the 20th anniversary of Sa-i-gu, this is an opportune time to launch dialogue among diverse communities, and engage in serious policy formulation on how to address the socio-economic, racial, and political conditions we face today. Some aspects of this work may already be in progress, but now it is time to act for change.

Korean immigrants painfully learned the importance of breaking out of ethnic isolation and reaching out to other communities to forge working and harmonious relations....

Globalization and internationalization also are profoundly influencing younger generations who have grown up with different attitudes, interests, and norms. Hopefully, they will influence racial and ethnic relations in America, making Americans of all kinds more open to diversity and are more willing to embrace people of dissimilar ethnic and racial backgrounds as friends and marriage partners. Young Americans grew up with the Internet and international social networking, so they are more informed and accepting of diversity, pluralism, and multiculturalism. Although America has a long way to go in battling racism, hopefully the future is bright, as our youth no longer see America as simply black and white.

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CHAPTER 13



Refugees and Southeast Asian Communities

Unlike most immigrants, refugees, who began arriving from Southeast Asia in the mid-1970s, were forced to leave their native countries with little notice or advance planning. Many suffered extreme physical, emotional, and psychological trauma before and during their escape as well as painful memories that haunted them in the United States. Refugees from Vietnam, Cambodia, and Laos fled countries devastated by decades of war. Their accounts vary depending on their political, educational, and cultural backgrounds. For example, many of the 130,000 refugees who fled Vietnam as part of the "first wave" in 1975 were South Vietnamese government and military personnel who were more likely to be urban, Catholic, well-educated English speakers with American contacts. As a result, many of these individuals and their family members were airlifted out of the country by U.S. helicopters and escaped before the fall of Saigon to the Communists in 1975.

Refugees who fled after the Communists assumed power throughout Vietnam, Cambodia, and Laos in 1975 endured the loss of businesses that were nationalized by the government, physical and psychological abuse within Communist "reeducation" camps, and forced migrations to the countryside. Cambodians under the Khmer Rouge suffered from mass executions, starvation, and disease, which killed somewhere between half a million to 3 million people in a country that had a total population of 7 million in early 1975. Hmong hill tribespeople in Laos were targeted for reprisals by the Communist regime for participating in a secret army of 40,000 organized by the U.S. Central Intelligence Agency (CIA) in the 1960s.

A "second wave" of refugees began in 1978 and included "boat people" from Vietnam and land refugees from Cambodia and Laos who had fled to Thailand. This second wave was both ethnically and economically more diverse than the first wave. Approximately 70 percent of the Vietnamese boat people were ethnic Chinese, and the Laotian refugees included lowland Lao and highland Hmong. Second-wave refugees, who disproportionately came from rural areas, were typically Buddhists or animists and spoke little English. Not surprisingly, many of these refugees had greater difficulty finding jobs and adjusting to life in America. Congress passed the 1980 Refugee Act to limit the massive influx of refugees and provide

funding for resettlement programs. Setting an annual quota of 50,000 refugees, the act reimbursed state spending on refugees for a period of up to thirty-six months. In 1982, the time limit was reduced to eighteen months, after which refugees became eligible for welfare benefits from the U.S. government.

U.S. officials initially tried to prevent Southeast Asian refugees from congregating in ethnic enclaves once they were settled in the United States because they assumed that scattering them throughout the country would facilitate their assimilation into American society. The officials also resettled nuclear family units without recognizing the importance of extended kinship ties for the refugees. But many Southeast Asian refugees remigrated to form ethnic communities and to reunite extended families. Vietnamese refugees, for example, established Little Saigons in places like Westminster, California, and the Hmong created vibrant communities in Minneapolis, Minnesota, and other areas.

DOCUMENTS

Documents 1 to 3 reflect the diverse backgrounds and experiences of Southeast Asian refugees. In Document 1, Lang Ngan describes being airlifted out of Vietnam in July 1975 as part of the first wave of refugees. Ngan notes that she and her English-speaking siblings have had a much easier time than her parents in adapting to the United States. A ninth-grader when Saigon fell in 1975, Le Tan Si, in contrast to Ngan, left his family and his country as a boat person in 1979. Excerpts from his college essay depicting harrowing encounters with pirates during his escape are included in Document 2. Sen Chul, a Cambodian student, tells an American embassy officer about life under the Khmer Rouge in Document 3. He describes the targeting of ethnic Chinese and students, mass executions, and the intense fear he experienced before he fled to Thailand in 1978. In Document 4, Lieutenant Colonel Wangyee Vang testifies before Congress in 2000 and recounts the bravery and patriotism of Hmong and Lao combat troops who served alongside Americans during the Vietnam War. After U.S. troops withdrew and the Communists took control throughout Indochina, the Hmong and Lao troops were hunted and many were killed. This prompted them to trek through the jungles with their families to find safety in Thailand. Calling on the United States to honor its commitment to these soldiers, Vang urges Congress to help them and their families become U.S. citizens by waiving the five-year residency requirement. He also calls for providing interpreters for their naturalization tests.

Documents 5 and 6 discuss the enduring impact of homeland politics on Southeast Asian American activism. In Document 5, radio host Ira Glass interviews Madison Nguyen about election controversies she faced in 2008 and 2009 after being elected as the first Vietnamese American member of the San Jose city council. A sector of the Vietnamese American community denounced her as a Communist traitor and held mass demonstrations against her because she supported naming an area the Saigon Business District instead of Little Saigon, the traditional name of anti-Communist exile communities. In Document 6, Laotian American Channapha Khamvongsa, executive director of Legacies of War,

testifies before Congress in 2010 about how Laos became the most heavily bombed nation in the world during the Vietnam War and how 75 million bombs continue to lurk underground and threaten to maim and kill civilians. He calls on the U.S. government to fund bomb-clearing programs and provide support for the people injured by these bombs in Laos.

Document 7 explores different views of Hmong culture and identity. Rutgers anthropologist and Hmong media expert Louisa Schein interviews Bee Vang, who played the Hmong lead Thao Vang Lor in Clint Eastwood's 2008 film *Gran Torino*. Only sixteen when he acted in the film, Vang explains why he was dismayed at the way Eastwood portrayed Hmong culture and his character's masculinity.

1. Lang Ngan, a First-Wave Refugee, Compares Life in Vietnam and the United States, 1975 (1991)

On April 25th, near the end of the war, my supervisor called me in, and told me that by six o'clock that evening, we had to meet, to get to the airport by nine the next morning. I had worked for the U.S. Embassy in Saigon for seven years. If we had stayed, we would have been persecuted by the new government.

There was no time to talk to friends or relatives because the evacuation was supposed to be secret, and we were not allowed to tell our relatives. We couldn't even take our money out of the bank. We weren't prepared to come to this country. It was a last minute thing. We had to make our decision overnight. We didn't have any time to think about it.

I was allowed to take my family, because I was single. My father, my mother, myself and six brothers and sisters—the nine of us. We were so frightened because we didn't have any friends or relatives in this country to help us. We couldn't sell our property. We literally left with the clothes on our backs. I was twenty-nine when I came to the U.S., one brother was twenty-three, and one was nineteen. The youngest was only eight. The rest were in their teens.

I didn't have the Golden Mountain dream [a Chinese term for America, where making lots of money fast is believed possible]. I knew life wouldn't be easy, especially since we didn't receive a high education in Vietnam. I told my brothers and sisters on the plane coming here that I didn't know whether I could support all of them. If not, then I would have to give them up for adoption. They said they understood but asked that before I left, I give them my address so that when they grew up, they could look for me.

We were transported by military cargo plane. At the time, the evacuation was so sudden the U.S. government didn't have a chance to prepare for our

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From Lang Ngan, "The Success Story" from *Asian American Experiences in the United States: Oral Histories of First to Fourth Generation Americans from China, the Philippines, Japan, India, the Pacific Islands, Vietnam, and Cambodia.* © 1991 Joann Faung Jean Lee by permission of McFarland & Company, Inc., Box 611, Jefferson, NC 28640. www.mcfarlandpub.com.

arrival. So we were taken to a military camp in the Philippines for a few days. From there, some of the refugees were sent to Guam. We were sent to Wake Island, and screened for admittance. We left Vietnam April twenty-fifth. We arrived at the camp in Arkansas on May fourth.

At the beginning, there wasn't enough food. There was a shortage because the U.S. government wasn't prepared for us. But really it wasn't bad. It was actually much better than the first asylum camps in Malaysia and Thailand. We felt we were the luckiest. A month later, the government contracted a company to provide food for us, so after that, there was plenty of food. The living situation wasn't bad. The housing was used by soldiers in training, and the facilities were good like staying in dorms. There were bunk beds. The volunteer agencies—refugee resettlement agencies—started sending people to process us. Some of the agencies, such as the one I work for now, are partially funded by the State Department. Currently they provide five hundred twenty-five dollars for the initial resettlement cost. Part of the funding is also provided by public donations, or foundations. These resettlement agencies and the immigration office sent people in to screen us, to see if the refugees have relatives or friends in the country they could go to, and to process them. Because I could speak English, I started helping many of those who couldn't, translating for them. I met the representative from the International Rescue Committee, and started to work as a volunteer for IRC. I ended up in New York because the IRC offered me a job. Southeast Asian refugees were calling the office, and no one could understand what they were saying. I was so happy that I could get a job right away. I asked my boss if he thought that I alone could support a whole family of nine. And he said, "Probably not. Why don't I hire your sister, too?" She was only nineteen at the time, and we've worked for the IRC ever since.

My sister and I left the camp first, and we started work as soon as we got to New York. We started looking for apartments, but at the time, my salary was only one hundred fifty dollars a week, and my sister made one hundred twenty-five dollars. Someone took us to look for an apartment in Flushing, Queens. A two bedroom was two hundred fifty dollars, and a one bedroom was one hundred ninety dollars, and even with a family of nine, we took the one bedroom, because we tried to save as much as possible. Fortunately, the building superintendent was a refugee—from Cuba—and he helped us. He said he wouldn't tell the landlord that there were nine people living there as long as we didn't make any noise, and kept the children quiet. So he helped us get the apartment. He lied to the landlord for us by saying there were only two girls in the apartment—my sister and myself. The superintendent was very helpful. He tried to get some used furniture for us, and used clothes and dishes. He collected them from other tenants and his friends. That is how we started.

Half a month later, we had the rest of our family join us. Even though there was only my sister and I working to support nine, life wasn't bad. We were quite happy. But the only frustration was our parents. They had a lot of difficulty adjusting. They felt isolated, because there were no Cantonese-speaking people in the building, and in the daytime, when all the children were in school, there

was nothing for them to do but sit. In the beginning, I wanted to go back to Vietnam, because life was easier there. Here, we had no friends or relatives, and the lifestyle was so different. Even the mailbox was different. Every evening, we opened it and it was full of papers and envelopes. I was afraid to throw away anything in case it was important, so I would read every word—thinking they were letters—not realizing that this was advertising, junk.

As for my siblings, they knew that if I couldn't support them I would give them away. So they were very happy when I didn't have to do that. They felt lucky. So they worked hard. They didn't think about many of the things children think about today—expensive toys, expensive clothes, fixing their hair. We wore whatever people gave us. Today I tell my refugee clients, I wore the same used clothes people gave me until two years ago. I finally threw them out because they were so worn.

The first books we bought were dictionaries. We got three or four of them. We used them a lot. We didn't have any friends or relatives here, but at least we were together as a family. The children studied very hard to catch up in school. We had only one table, and they all had to study together around the same place, and all of them still feel this closeness to this day. We helped each other. I helped the children at that time, but not now. Now they correct my accent.

We had no furniture—just a few chairs and a used sofa that the supervisor gave us, and broken TV. And the rest were mattresses. We had no beds, only mattresses. In the evening, we had to carry all the mattresses to the living room for the males to sleep. All the females slept in the bedroom. And we lived in this condition for two and a half years, until we were able to get a two-bedroom apartment. We waited till we felt financially secure to do this. We had saved some money over the two and a half years, and because I was getting married, I felt that with my husband's income, we could afford to move. My husband and I got a one bedroom apartment and my family moved to a two bedroom place in the same building. We were very happy. We felt that we were one family unit. We were really together, and sharing. There was no privacy, but we all remembered the times we had gone through together, and we were able to work things out with each other without problems.

All my younger sisters and brothers have done very well in school. And the teachers and school counselors have shown them what is the best way for them to go. Actually, we didn't give them that much counselling. They all got it from school. Even though they don't act the same way I did when I was going to school in Vietnam, they still have certain values—such as respect, and obeying teachers, and therefore the teachers liked them, and tried to help them. My sister got a full scholarship to MIT from Bell Labs. I have one brother who got an electrical engineering degree from Columbia, and the other finished at City College. One other brother is going to medical school at New York Med.

I think the problems we had when we first came to this country helped our success. We're not like other people who were born here, and had everything. We went through all those difficulties, so when we have a chance, we grab it. We now own a two family house. My husband and I live in one side, my parents in the other.

2. Le Tan Si Writes a College Essay About His Terrifying Escape by Boat from Vietnam, 1979 (1989)

Around 9:00 P.M. on June 4, 1979, our boat departed in good weather with fifty-eight people on board. Our boat operated safely for the next two days. However, although I had paid for my trip I starved on those days. The trip was full of hardship. Around 2:00 A.M. on June 6, 1979, the overworked engine broke down. Our boat drifted downwind, and so did my life. During this period, I left my life to chance. Early the morning of June 7, the weather changed suddenly. It was raining and the wind was blowing and, because our boat's engine was broken, the boat bobbed up and down with the waves. We were frightened because we had no control over our boat with a dead engine; we prayed to God for help in the heavy rain. Meanwhile, we anchored to make the boat safer. I thought and thought about my life, parents, and friends, and I also wondered if my death was near. Our supply of food and water was gradually decreasing as our boat drifted on the sea, so we starved. We prayed for a savior who could help and rescue us from this hardship.

Around 11:00 A.M. that day, a strange boat came toward our boat. It was a Thai boat in which there were six Thai fishermen. The Thai fishermen tried to help us repair our engine, but they were not able to; however, they took our engine apart. Then they gave us lunch and some cans of water, and they told us that they would help us. By noon, the Thai fishermen towed our boat to Malaysia after they and Vinh, the boat's owner, talked over our situation.

Our boat passed into Thailand's territorial waters. Ten minutes later, the Thai "fishermen" displayed guns, knives, and hooks in order to frighten us. We understood then that the Thai fishermen were pirates. They quickly took our valuables, such as rings, earrings, chains, watches, and bracelets, because they saw another boat coming toward us. Perhaps the pirates were afraid that it might have been a Thai patrol boat, so they left right after they robbed us. However, this other boat was also a fishing boat. They passed by our boat without pity; in fact, they laughed at us, because they perceived that we had been robbed recently. I had not been robbed by the pirates, because I had hidden my gold ring in my mouth, but I was a little scared by the pirates. Almost all of us were flabbergasted at the recent occurrence. We understood that we were faced with Thai pirates and would probably die next time.

"Thai pirates" are words I will never forget for the rest of my life. I don't like to remember why. In fact, they were simple fishermen but they availed themselves of the opportunity of becoming pirates. More than one thousand Vietnamese were killed or committed suicide when confronted by such robbers. From the Vietnamese newspaper I learned that pirates captured over one hundred Vietnamese girls and women and took them to a deserted island to rape them. Some of those females killed themselves. Others contracted venereal

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disease. The pirates raped the Vietnamese girls and women on our boats, and killed the people who struggled with them....

The pirates, the same we had encountered that morning, jumped aboard. I was the first person who dove into the ocean when I heard someone call "jump," and then others followed. I was in the water a few minutes with fear, because I realized that if I stayed long in the ocean I might be a shark's prey, so my people and I swam back to our boat. Then the pirates checked everyone elaborately and robbed some more of our valuables. Next, the pirates ordered us to get in the front of our boat, where almost all the people fainted from gasoline vapors. The owner of our boat told us that someone had emptied out the gas tank because he wanted to be supported with that tank in the sea.

Those real situations made me think about death, which seemed to lessen my own energy. Besides, I thought that if I were to have an easy death I would have to pass out. Pass out ... the phrase haunted my mind continually until I heard someone laughing. The laughter became fainter and fainter in my ears, and I lost consciousness.

The day after, I woke up and I was very happy that I had not died that night. The pirates left us an hour after they had robbed us. Then I went back to the cabin and found my ring, which I had thrown into the engine room. So I was not robbed the second time either. After that, I had my property in the corner of our boat. I felt starved again, so I thought in my starved mind that the pirates came to us, because we had some food and water.

Around 10:30 A.M. on June 9, other pirates came to rob us, and they gave us some food and water. They left us after they took a gold ring from us, but they refused to help us by towing our boat to land or to Malaysia. We despaired and could not do anything with our boat, so everyone prayed again to God to help us. A few hours later it rained, so we had some rainwater by using a parachute to catch it. The rain stopped around 3:00 P.M., but we had no control over our boat. We would sail by the parachute, and our boat would drift to our country or Cambodia in one or two weeks, but we would probably die of starvation before then while our boat floated on the sea. No one had a choice. Everyone's life was left to chance. Fortunately, a Thai boat came toward us after we sailed about ten minutes. They were saviors. They let us have a night on their boat, gave us some soup and water, and tried to repair our engine. Before I slept, I checked my ring for security, and I saw some Thai fishermen check our property. I was silent. On June 10, the Thai fishermen drew our boat to Malaysia. When we spotted the Malaysian islands, they left us after they gave us some food and water. Then we thanked God and our saviors from the bottom of our hearts before we joyfully sailed our boat to Malaysia.

We arrived at the shore about 5:00 P.M. on June 11, and our engine was broken again. We then stopped at the Malaysian seashore and spent a night there. During our time on the island, we exchanged gasoline for some food, packs of cigarettes, and water. Next day, June 12, a Malaysian patrol boat came toward us and towed us toward them. The captain promised us that they would take us to the Malaysian refugee camp on the next day; we were pleased with that news....

About 10:00 A.M. on June 13, the patrol boat's captain refused to guide our boats to their refugee camp, because their government had stopped accepting refugees. There were about thirty thousand Vietnamese refugees in the refugee camp, so the camp was full. Then the captain ordered his patrol boat to tow our boats to Singapore. That news disappointed us and struck us with consternation.... However, they towed us for only about thirty hours; then they left us after they told us to navigate our boats to some islands. We again resigned ourselves to our fate. I thought about death again because our engine was broken....

Finally, our boat came to the unknown islands about 9:00 P.M. on June 14. I saw that there were many Vietnamese people on those islands, and then I learned that I had arrived in Indonesia. I really had survived, because I was a legal refugee in the Indonesian refugee camp when I landed on those islands.

I had a miraculous escape, but my mind was still haunted by death. I did not lose my golden ring, which helped me buy some food in the refugee camp. In January 1980, approval was given for me to migrate to the United States. I lived in the KuKu and Galang refugee camps [in Indonesia] for fourteen months under the support of the United Nations. On August 20, 1980, I set foot in Seattle. I then really had freedom and a new life in this country.

3. Sen Chul Tells an American Embassy Officer of Life and Death Under the Khmer Rouge in Cambodia, 1978

Interview with Cambodian Refugee in Surin, Thailand, Conducted by American Embassy Officer in June 1978

Account of Sen Chul*

Sen Chul, 27, came from Koukman village, Ampil District, Oddar Meanchey Province. He studied eleven years and attended college at Samrong one year, where he received a diploma. He was in Samrong when the Khmer Rouge took over and subsequently returned home to Koukmon. After the takeover, the Khmer Rouge held mass meetings in which everyone was told to identify himself. Chul admitted that he was a student. Chul arrived in Thailand in February 1978.

Conditions of living in Democratic Kampuchea.—"Life was better in Koukmon than in other places. In the mobile youth group in which I worked, we had enough to eat. We had plenty of rice but no fish or meat. In the village, where my family lived, and I lived with my wife after we got married, food was also adequate but limited to rice. The crop was better this year than last year when we had a drought.

"Account of Sen Chul," Interview with Cambodian Refugee in Surin, Thailand, Conducted by American Embassy officer in June 1978. From Indochina Hearing, August 21, 1978. Committee on Foreign Relations, Subcommittee on East Asian and Pacific Affairs.

*(Refugee agreed to use of his name in public document.)

"We were issued one set of clothes when we could no longer mend the ones we had been wearing. For those who worked hard, the clothes wore out in about four months. To get a new set, you had to present concrete evidence that your present ones were worn out. This was easy since they were usually rags. We got one scarf and a set of black pajamas.

"We worked from 0400 to 1100, 1300 to 1700 and 1900 to 2200 each day since 1975.

"I was with a mobile youth until 1976 when I got married. After that I moved to the village and worked as a farmer. Once or twice a year we had a 'mating period.' For two days, while also working, young men and young women were allowed to talk with each other. Except during the mating period, young men and women were not allowed to talk with each other, day or night, except for talk about developing the country. If the Khmer Rouge knew that you had violated this 'ethics code' you would both be executed immediately. I knew of about twenty young men and women caught flirting, who were executed. No romantic chit-chat is allowed. After the two day mating period, you report to the authorities that you have found a suitable partner. Aside from the mating period, you cannot tell a girl that you like her. You must go to the village chief and tell him. If you tell her directly, you will be killed. In either case, if the chief agrees, you must wait until the mass marriages are held about every six months at the same time as the mating season.

Girls have no right to refuse. Even if the man is crippled, had one hand, or is ugly, the girl must accept. She is summoned and told that she must marry. If she refuses, she will be executed. In some cases, she and her family are told that they must be 'relocated' far away. In 1976 about fifteen families of girls who refused to marry were relocated. But, in fact, the Khmer Rouge escorts returned the next day with all their clothes and distributed them to others. Everyone thought that the families were executed. Being 'relocated' frequently means being executed."

Executions.—"The Khmer Rouge have executed all the former soldiers and government officials they can identify. They also forcibly relocated the families of former soldiers. I knew of about fifty families of former soldiers who were sent to the northern district, but everyone thinks they were also executed.

"In 1978, the Khmer Rouge started executing former students, former members of village defense forces, or former militiamen. They started with the leaders and with those who studied to higher grades. In January and February, about twenty students, who had studied five years or more and had then been assigned to the mobile youth, and about thirty former militiamen were executed. I know of thirteen young men, some of whom were my friends, who were killed. The Khmer Rouge tied their hands behind them and took them to the forest. The next day I saw 13 fresh mounds. No one knew of any reason why they would have been killed except that they were former students.

"The worst crime is criticizing the way people are being treated and administered. If you do so, the Khmer Rouge say, 'you are a bad element' and 'do not support Angka'. If they want to kill anyone, the Khmer Rouge merely say, 'you are supporting the enemy' or 'you are a spy.' These are only pretexts. These charges are made either before you are executed or afterward. Before killing

students, there were usually no meeting. The Khmer Rouge would just round up ten or so and take them away.

"In Koukman now there are only one fourth as many men as women. There are many, many widows. In 1975 there were 2500 people in my village. There are only 1500 now. More than 250 were killed; others fled to Thailand. Others were assigned to the mobile youth groups.

"There were not many Chinese in my village, only three families. They were all killed in 1978. Friends from other villages told me the same thing, that many Chinese families were executed in January 1978. The Khmer Rouge said, 'the Chinese used to exploit the Cambodian people.'

"I had two cousins killed in 1978. They were Chhum Bu, about 50, and Sin Sok, about 45. After they were executed, their families were taken away to be 'relocated.' We believe that all eleven members of their families were also executed. There were about 60 families 'relocated' since 1975."

Human, civil and political rights.—"There are no rights or freedoms in Cambodia. The Khmer Rouge have clamped down on every facet of life. The central government's policy is to exterminate all the old people to have a new generation of Cambodians who have never known a good life. Their policy can be compared to burning a field of grass so that new grass can replace the old. They are succeeding very well because they are killing everybody."

4. Lao Veterans of America President Colonel Wangyee Vang Requests Naturalization Rights, 2000

Mr. Chairman, I want to extend my deepest gratitude to you and the distinguished members of the Immigration Subcommittee for holding this crucial hearing on H.R. 371, The Hmong Veterans' Naturalization Act of 1997. For many years, the Hmong people have enjoyed the staunch and tireless support of Congressman Bill McCollum, Congressman Henry Hyde, Congressman Steve Chabot, Congresswoman Zoe Lofgren and many other members of the Judiciary Committee in the struggle against genocide and human rights violations in communist Laos. We are, indebted to Congressman Bruce Vento for his leadership role in introducing this important legislation that, if enacted, will help Hmong veterans who faithfully served in the U.S. Secret Army in Laos finally become U.S. citizens.

Because of a number of key individuals, many Hmong veterans and their refugee families are fortunate to enjoy freedom in the United States of America and to attend this historic occasion before the U.S. Congress. I would like to mention Major General Vang Pao, former commander of the U.S. Secret Army in Laos; Theodore G. Shackley, former Central Intelligence Agency (CIA) Station Chief in Laos and South Vietnam; Mr. Philip Smith, former Legislative Assistant for U.S. Congressman Don Ritter and Washington Director for

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Hmong Veterans' Naturalization Act of 1997; and Canadian Border Boat Landing Permit Requirements: Hearing on H.R. 371 Before the Subcommittee on Immigration and Claims, 105th Cong. (June 26, 1997) (Washington, D.C.: Government Printing Office, 1997).

the Lao Veterans of America; Brigadier General Paul Carroll, USAF–Ret.; Major General Ronald Markarian, USA–Ret; Colonel James Arthur, USAF–Ret.; Jack Matthews, former CIA officer in Laos; Dr. Jane Hamilton-Merritt, distinguished journalist and scholar; and, other dedicated individuals.

Mr. Chairman, the Lao Veterans of America, Inc. (LVA), like the American Legion and the Veterans of Foreign Wars (VFW), represents veterans who served the United States honorably. It is the largest veterans organization of its kind in the United States and includes tens of thousands of Hmong and Lao veterans and their families who played a critical role in the U.S. covert war in Laos and Vietnam. It is a non-profit corporation—with chapters organized throughout the United States in states such as Alabama, California, Florida, Georgia, Hawaii, Iowa, Illinois, Kansas, Louisiana, Massachusetts, Minnesota, Nebraska, North Carolina, Oklahoma, Ohio, Pennsylvania, Rhode Island, South Carolina, Washington and Wisconsin. The LVA membership include significant numbers of women who served in combat, and combat support roles.

The LVA and its work have been honored by Members of Congress as well as current and former U.S. military and intelligence officials. Members of the LVA have been presented the Vietnam Veterans National Medal as well as other military honors. The LVA has received bipartisan support on Capitol Hill for its efforts. It has been singled out with Congressional awards and citations as well as being honored in Congressional Record statements. In recent years, the Hmong and Lao veterans—and their leadership—have also been cited in Congressional hearing testimony by former CIA Director William Colby and by Dr. Jane Hamilton-Merritt.

Mr. Chairman and Honorable Committee Members, just last month, on May 14–15, after over two decades of silence since the end of the Vietnam War, the Hmong and Lao veterans who served in the U.S. Secret Army were honored for the first time nationally at the Vietnam War Memorial and Arlington National Cemetery. The national news media recorded this historic occasion—"The Lao Veterans of America National Recognition Day." I would urge the Chairman and Members of this committee who did not have the opportunity to attend these national recognition and memorial services to review the public record about these events. Then, please join us in visiting Arlington National Cemetery. The monument that the Department of Defense and Arlington National Cemetery authorized reads: "Dedicated to the U.S. Secret Army, Laos 1961–1973. In memory of the Hmong and Lao combat veterans and their American advisors who served freedom's cause in Southeast Asia. Their patriotic valor and loyalty in the defense of liberty and democracy will never be forgotten. You will never be forgotten (In Lao and Hmong), Lao Veterans of America, May 15, 1997."

Mr. Chairman and Honorable Committee Members, I would urge you to carefully examine the newly declassified information regarding the heroic sacrifices that Hmong special units made on behalf of U.S. national security interests.

Secret, classified studies conducted by the defense policy think-tank RAND [Research And Development], for the Department of Defenses' (DOD) Advanced Research Projects Agency [(ARPA) *since renamed DARPA*] have

recently been declassified. *Organizing and Managing Unconventional War in Laos, 1962–1970,* published in 1972, outlines the special case history of the Hmong tribal people. This and other RAND/DOD/ARPA studies reveal the critical role the Hmong played in support of U.S. clandestine and military activities in Laos—and how this force was specially created by the United States government. The unique role played by the Hmong in the U.S. Secret Army is important and relative to the legislation before the Subcommittee today.

Hmong of all ages—men, women and children fought and died alongside U.S. clandestine and military personnel in units recruited, organized, trained, funded, and paid by the United States CIA, U.S. Air Force and others agencies.

It is estimated that during the United State's involvement in the Vietnam conflict, 35,000 to 40,000 Hmong veterans and their families were killed in combat; 50,000 to 58,000 were wounded; and 2,500 to 3,000 were missing. When the United States withdrew from Southeast Asia, genocide followed the Hmong—thousands of Hmong were murdered by the Communists or fled to neighboring Thailand.

Edgar Buell, for U.S. AID [Agency for International Development]/CIA official working with the U.S. Secret Army in Laos during the war years, said on *60 Minutes,* on March 4, 1979: "Everyone of them that died (Hmong), that was an American back home that didn't die, or one that was injured that wasn't injured. Somebody in nearly every Hmong family was either fighting or died from fighting.... They became refugees because we (United State Government) ... encouraged them to fight for us. I promised them myself: 'Have no fear, we will take care of you.'"

About April 1975, the United States withdrew its troops from Indochina. From May 12–14, 1975, the CIA evacuated about 2,500 Hmong officers and their families from the secret base at Long Cheng in Laos (Headquarters of Major General Vang Pao—the combined base for the Hmong, CIA, Air America, and U.S. Air Force "Ravens") to the U.S. air base Namphong, Khonekene, Thailand. The rest of the Special Guerrilla Units (SGUs) and other special units who were left behind began to walk to the Mekong River and crossed to Thailand. Thousands of these soldiers and their families were killed by the Communists forces. During the Communist forces or died of starvation as they fled toward the security and freedom on the other shore of the Mekong river. Thousands drowned in the river before reaching the Thai border. Even today, despite official denials at senior levels of the Pathet Lao government, the Communist regime in Laos continues to persecute and discriminate against the Hmong because of their role in the U.S. Secret Army.

Currently, the majority of these former soldiers and their refugee family members who are now in America cannot become U.S. citizens, because they lack sufficient English language skills to pass the naturalization test. The intense and protracted clandestine war in Laos and the exodus of the Hmong and Lao veterans into squalid refugees camps, or internment in reeducation camps, did not permit the veterans the opportunity to go to school. Once in America, they have led a difficult life—often in poverty-stricken inner-city conditions, raising large families, not permitting them sufficient opportunity to formally

study English. Cultural barriers and the fact that a written Hmong language was not used in much of Laos until late in its history have compounded the problems of literacy for the Hmong and taking the U.S. citizenship test in English.

Mr. Chairman and Honorable Committee members, the Hmong soldiers did not come to America as economic migrants; they came to America as political refugees because they were veterans of the U.S. Special Guerrilla Units and other special units in the United States' Secret Army in Laos. The United States has a special obligation to them.

Some 20,000 Hmong veterans—most elderly and aging—will likely achieve citizenship if you act positively on this legislation. On behalf of the Hmong and Lao veterans, I ask that this be done so that America can honorably close this chapter in its history and honor the commitments and pledges it made to care for the Hmong people—and not forsake them.

Thank you.

5. San Jose City Council Member Madison Nguyen Fights a Recall and Charges That She's a Communist, 2009

Ira Glass

This is Councilwoman Madison Nguyen. The San Jose politician at the center of all this controversy. She says that although a vocal portion of her Vietnamese constituents definitely preferred Little Saigon, Vietnamese-Americans only make up a third of her district. Non-Vietnamese people and businesses in the district wanted other names. And she thought it would be better to avoid a name that was so political. So she chose what she thought was a compromise.

Madison Nguyen

And so I thought, OK, well both names have the name Saigon in it, and this is a business district designation. Why don't we just called it Saigon Business District and hopefully that will make everyone happy.

Ira Glass

I want to play you a recording from this six and a half hour City Council meeting about this. And it's many people standing up, saying that they don't want this name. And here's one man and—there's a point in the tape where he says if Madison wins, what he means is if you get your way and the community is not called Little Saigon. Here let me play this for you.

[AUDIO PLAYBACK]

-Before 1975, I was Ranger Commander in Vietnam. I was in jail nine year. Tonight I come here to request only one vote from you for Little Saigon.

"Turncoat", *This American Life*, May 22, 2009. Retrieved from http://www.thisamericanlife.org. Used with permission.

I strongly support you from the beginning. But if Madison win, we stay away from her, because she's pro-Communist. Thank you.

[END AUDIO PLAYBACK]

What's your reaction to that kind of thing?

Madison Nguyen

It was torture to have all these people, who are pretty much at the age of my parents or grandparents, coming up and looking you, staring you in the face, in your eyes and said we no longer trust you. You're not one of us. We regret that we ever supported you. To hear that over, and over, and over, and over again. I mean it's painful.

Ira Glass

Then there's the fact that she was being called a Communist, widely.

Madison Nguyen

The first time I heard it, I was very hurt. I felt that—I came here as a boat child back in the late 1970s. I escaped Communism in Vietnam and I came here. We pretty much risked our lives to come to this great country. And to have this particular group of people in the Vietnamese community label me as a Communist sympathizer, I thought was really beyond absurd.

Ira Glass

Madison is convinced that if she had been a non-Vietnamese City Councilperson suggesting the exact same name, Saigon Business District, it never would have gone this far. No protest. Nobody would have been labeled a Communist.

People felt betrayed, she says, because she was one of them. They expected her to do what they wanted. And they couldn't believe it when she didn't. To them, she was a turncoat. What strikes deeper than that?

Act One. Code Red.

My Thuan Tran

If you listen to Vietnamese radio during that time period, a lot of people would come out and say they believe she was a Communist.

Ira Glass

Again, reporter My Thuan Tran.

My Thuan Tran

I just felt that it was a really interesting case because it kind of showed the challenges of being a Vietnamese-American politician. That you kind of had to navigate among all these lingering emotions from this war that had ended 34 years ago.

Ira Glass

Yeah, you wrote, "The rules of politics are different for a Vietnamese-American politician. Even business owners, reporters, and pop singers carefully tiptoe around inferences and innuendo that can cast a person as being soft on Communism. A misstep can launch vocal protests and accusations. Reputations can be tarnished. People must bow to the pressure."

My Thuan Tran

Right. I think it's a surprise for many people who are kind of unfamiliar with the Vietnamese-American community how much this name-calling and suspicion still resonates. I think some people feel like it looks like out of the McCarthy era when they view the Vietnamese-American community.

Ira Glass

There are tons of examples of this kind of red-baiting. The first Vietnamese Superintendent of Schools in the Westminster School District in Orange County was removed a week after she was appointed, she says, because an activist lobbied school board members, saying she was a Communist. In Saint Paul, Minnesota, when a Catholic bishop visited from Vietnam, he asked that [he] not be photograph with anything political. So his Vietnamese-American host in Minnesota, a man named Tuan Pham, took down the flag of the old country of South Vietnam which was in many exile communities. Tuan Pham was vilified as a pro-Communist because of that.

Protests at his store were so intense that customers stopped coming. His business went bankrupt. Tuan Pham not only battled the Communists as a soldier during the war, but was held in one of their prison camps for two years.

My Thuan Tran

There's another interesting example I wanted to bring up. There was a Vietnamese-American pop singer named Tommy Ngo. And in one of the posters for a concert, he's wearing a belt with the word L-O-V-E on it. And the O has a star in it. And the word "LOVE" is in red and the star is white, but on the poster it kind of looked like the star was yellow. And a yellow star on a red background is actually the symbol of the official Vietnamese flag, which is known as the Communist flag. So, even that concert was protested against, and Tommy Ngo was protested against. And a lot of people didn't end up going to the concert.

Even one of the contributors to our radio show, Thanh Tan, who is a reporter from Boise Public Television, has watched as her dad, who runs a Vietnamese community organization in Olympia, Washington, has been red-baited. It's particularly galling to her, she says, because she spent her childhood resenting how much time her dad spent at anti-Communist demonstrations.

Thanh Tan

It's just really upsetting to hear these accusations against somebody who—his idea of fun with the family was to take us to a protest in Seattle, and to wave around the old nationalist flag, the yellow flag with the three stripes.

Ira Glass

You mean an anti-Communist protest?

Thanh Tan

Yeah. Like, I grew up on that. I have pictures of me when I was like, six years old, holding a sign that says Ho Chi Minh is a criminal.

Ira Glass

Thanh's dad has now won a defamation against the activists who called him a Communist sympathizer. The Thurston County Court awarded him and his organization $310,000. But Thanh says that the stress of all this has hurt her parents' marriage and her dad's health. And somehow her family doesn't feel a sense of victory after all this.

Thanh Tan

You know, I don't just because like right after the trial, like within a week, I saw a television, like a Vietnamese television report where the defendants were interviewed. And the main guy, he said that my dad—he said something along the lines of Communists don't wear their badge on their chest. And to me that just said going through this whole trial, three week trial was not enough to prove to him that my dad apparently is not a Communist. And that really was pretty upsetting.

I mean my mother, she calls me, and she just said Thanh, what do we do? Like, what we do? Like, the Vietnamese media is still reporting that your dad could be a Communist. Like, I don't know what to do.

Ira Glass

I understand that there's a Vietnamese phrase for red-baiting that's used here in the States.

Thanh Tan

Mm-hmm. It's called "chup mu."

Ira Glass

And what does it mean literally?

Thanh Tan

It literally means to put the Communist hat on someone.

Ira Glass

The City Councilwoman in San Jose, Madison Nguyen, faced a recall election and she won. Mainly, she's just tired of the red-baiting. At the height of all the protests she wondered, is this why we came to this country? So we could fight over who's a Communist?

Madison Nguyen

Even now, which is really sad, but I'll share with you anyways. My in-laws, they're still living in Vietnam right now, and I was recently married. And my father-in-law had a stroke about two months ago. And so, I wanted to have the opportunity to go back. But I can't, because I know that if I go back now, imagine what's going to happen when I come back here to San Jose.

Ira Glass

You can't say you're visiting a relative?

Madison Nguyen

Yeah, good luck.

Ira Glass

Why? What will they say?

Madison Nguyen

I mean, I really—and when I tell people, I tell my friends that, they're like, there's no way you can go because if you go, the first thing that's going to happen when you come back is that, oh look! She's going back there. She's probably trying to connect with the Vietnamese government, or get in some kind of relationship.

And so it's just—and so, here I am thinking like, am I ready to put up another fight?

Ira Glass

She says she doesn't want to put her supporters through all that again. So she's careful. But she wants to be in politics, she says. With so many people ready to see her as a traitor. And that's just how it's got to be.

6. Channapha Khamvongsa Calls on Congress to Fund the Removal of Unexploded Bombs in Laos, 2010

Statement of Channapha Khamvongsa
Executive Director
Legacies of War

Committee on House Foreign Affairs
Subcommittee on Asia, The Pacific, and The Global Environment

April 22, 2010

Thank you Chairman [Eni] Faleomavaega, Subcommittee Members, ladies and gentlemen. First of all, I would like to extend my sincere thanks to Chairman Faleomavaega, the Subcommittee and its wonderful staff for organizing this historic hearing entitled "Legacies of War: Unexploded Ordnances in Laos."

From what I understand, this is the first U.S. House of Representatives hearing on the scourge of unexploded ordnance (UXO) in Laos, a legacy of the U.S. bombing of Laos during the Vietnam War. Tragically, more than four decades after the end of the bombing, more than 300 Lao people, one third of them children, continue to be killed or injured by UXO every year.

Just this year, on February 19, 2010, eight children from Champassak Province came upon a cluster bomb in the rice paddies near their home. Like many bombs this deadly weapon resembled a toy, and the children tossed it around in play. The bomb exploded; two children survived, one was severely injured, and five were killed. They lived in an area not identified as having been bombed; there had been no UXO risk education in their village and the children suffered for it. Beyond this terrible human toll, UXO continues to hamper economic development in one of the poorest countries in the world.

Today is also significant because exactly 39 years ago this week the U.S. Senate held an historic hearing on the status of refugees in Laos. This hearing, chaired by the late Senator Edward M. Kennedy on April 21 and 22, 1971, helped expose the U.S. secret bombing of Laos. The bombing had begun in 1964 and had displaced hundreds of thousands of civilians within Laos but had never been disclosed to Congress or the American public....

The 1971 hearing and a peace treaty between the U.S. and North Vietnam finally brought a halt to the bombings in Laos in 1973. This was the same year I was born in Vientiane, the capital of Laos. When I was six years old, my family left Laos due to the country's political instability. We spent a year in a Thai refugee camp and eventually resettled in Virginia. Many of the 400,000 Lao refugees who now reside in the U.S. have similar stories. We were fortunate to resettle in America, but were sad to leave behind family members and friends who we feared we might never see again.

Statement of Channapha Khamvongsa, "Unexploded Ordnances in Lao," April 22, 2010, Committee on House Foreign Affairs, Subcommittee on Asia, The Pacific, and The Global Environment, Committee on Foreign Affairs Serial No. 111–117, http://congressional.proquest.com:80/congressional/docview/t05.d06.2011-h381-28?accountid=14523

Much has changed since then. Over the past ten years, improved relations between the Lao and U.S. governments have allowed me to travel back to Laos numerous times. Like thousands of other tourists who visit Laos every year, I feel a deep affection for the people, culture and land that I barely remember from my childhood.

Reconnecting with my Lao heritage included discovering the dark history and lingering effects of what is often referred to as the Secret War in Laos. This discovery led me to establish Legacies of War ("Legacies"), where I currently serve as executive director. Legacies is the only U.S.-based organization dedicated to raising awareness about the current devastation that has resulted from the Vietnam War-era bombing in Laos. Our mission is to advocate for the clearance of unexploded bombs and provide space for healing the wounds of war. Since our founding in 2004, we have worked with LaoAmericans, bombing survivors, veterans, artists, non-governmental organizations and others to establish a credible voice for reconciliation and justice.

The 1971 Senate hearing began to expose the bombings in Laos, but it would be decades before declassified U.S. military data revealed the true extent of the bombing and the ongoing devastation from UXO in Laos.

Background

We now know that Laos is the most heavily bombed country per capita in history. U.S. Vietnam War-era bombings from 1964 to 1973 left nearly half of Laos contaminated with vast quantities of unexploded ordnance. At least 25,000 people have been killed or injured by UXO in Laos since the bombing ceased.... I would like to share with you some other disturbing facts about the U.S. bombing of Laos and its tragic aftermath;

—260 million cluster bombs were dropped on Laos during the Vietnam War' ... (210 million more bombs than were dropped on Iraq in 1991, 1998 and 2006 combined)...

An estimated 75 million cluster bombs did not detonate, scattering throughout Lao villages, rice fields, schoolyards, pastureland and forests....

During the bombing, the equivalent of a planeload of bombs was dropped every eight minutes, 24-hours a day for nine years.

—About one-third of the land in Laos is littered with UXO.

The Clean Up So Far

For more than 20 years after the war ended, Lao villagers struggled to survive among vast quantities of unexploded ordnance without any organized technical assistance or clearance program. The relationship between Laos and the U.S. was strained, and there were no humanitarian demining programs operational in the Lao NGO [Non-governmental organization] sector. In the 1970s and early 1980s, about 1,000 casualties from UXO occurred every year. This number declined slowly, and has remained at about 300 casualties per year through the 1990s and 2000s....

The humanitarian demining program in Laos began in 1994 under the auspices of the Lao National Committee for Social and Veterans Affairs, as a result of an initiative from the U.S.-based Mennonite Central Committee with technical support and training provided by the UK-based Mines Advisory Group. Each of these organizations has provided testimony to the Subcommittee today.

In the 15 years since the demining program began, it has grown, employing Lao nationals in nine Lao provinces. Undoubtedly, thousands of lives have been saved and injuries avoided as a result of this work. Yet fewer than 500,000 of the estimated 75 million unexploded bomblets remaining at the end of the war have been destroyed, and less than 1% of the contaminated land has been cleared....

Initially, I was surprised by the small percentage of land that has been cleared. Then, during a trip to Laos in 2008 as part of a Legacies of War delegation, I observed a clearance team working in the field. I witnessed the slow, dangerous, tedious process of surveying, detecting and detonating UXO. Over the last four decades, many of the cluster bomblets have become deeply embedded in the earth-waiting for an unsuspecting farmer to place a shovel in the earth or the Monsoon rains to uncover them. It often takes several visits to one village to detect and clear all the bomblets. I was humbled by the men and women we met during our visit to Laos, who risk their lives daily to make the land safe for others.

Clear Problem, Effective Solution

Formal UXO clearance work in Laos is now done under the auspices of the Lao government's National Regulatory Authority (NRA), with several dozen partner organizations and international donors that support the UXO clearance, victim assistance and risk education.

The UXO clearance sector has built up a well-trained and experienced work force. Through new, more effective equipment and careful planning, clearance teams have dramatically improved their efficiency. An official of the State Department's Office of Weapons Removal and Abatement (WRA) has called the National Regulatory Authority UXO program in Laos "one of the best programs in the world – the gold standard.

The NRA's newly completed strategic plan, entitled Safe Path Forward.-2010–2020, offers clear, achievable goals:

1. Reduce the number of UXO casualties from 300 to less than 75 per year
2. Ensure that the medical and rehabilitation needs of all UXO Survivors are met in line with treaty obligations
3. Release priority land and clear UXO in accordance with National Standards and treaty obligations
4. Ensure effective leadership, coordination and implementation of the national program
5. Establish sustainable national capacity fully integrated into the regular set-up of the Government
6. Meet international treaty obligations

In addition to its domestic leadership, Laos was one of the first nations to sign and ratify the Convention on Cluster Munitions, an international agreement signed by 106 countries to ban the production, transfer, and sale of cluster munitions and to destroy current stockpiles.... In addition, participating countries must clear cluster munitions from the land and provide victim assistance. The agreement emphasizes the need for increased international financial support to Laos.

The Convention enters into force in August of this year, and Laos will host the First Meeting of the State Parties in Vientiane in November to discuss implementation of the agreement. Laos' leadership in gaining international approval of the Convention and hosting the First Meeting of the State Parties signals its shift from mere victim of cluster munitions to key voice for their eradication.

Funding Requirements

According to the NRA, during each of the past three years, a total of $12 to $14 million was spent for clearance goals.... Funding for clearance comes from international donors, including the U.S., but the NRA estimates that the UXO sector will need at least double that amount per year to meet its ten-year goals. As it always has been, the problem for UXO clearance in Laos is the absence of a consistent, long-term funding commitment that matches the scale of the problem. In order to buy equipment and train and maintain adequate staffing, clearance organizations working in the field must have assurances of a continued, reliable stream of funding.

Consistent, increased international support for clearance would dramatically reduce the impact of UXO in Laos. With this kind of consistent support, the casualty rate would fall from hundreds a year to dozens or less, and the highest priority clearance projects would all be accomplished.

We recommend a U.S. commitment of $7 million to support UXO clearance in Laos in FYI [fiscal year 1] 1, a measured increase from this year's allocation of $5 million. Thereafter, we recommend an annual U.S. commitment of $10 million over the next 10 years to strengthen and secure the UXO sector's capacity and bring its already effective programs to scale. This ten-year $100 million commitment to UXO removal in Laos would total less than what the U.S. spent in one week bombing Laos....

I have focused primarily on UXO clearance in this statement, but I also want to note the related need for victim assistance. Close to 40% of UXO accidents result in death, leaving many families without the primary breadwinner or caregiver. For the 60% who survive, their lives will never be the same. Almost 14,000 injuries have resulted in the loss of one limb, while close to 3,000 victims have lost two limbs.

Many gave been blinded. In Laos, the vast majority of the population is dependent on subsistence farming. UXO accidents leave many farmers unable to work in their fields. There is a serious need for better emergency health care after accidents occur as well as longer term needs for prosthetics, physical rehabilitation and vocational retraining....

According to the NRA, only $2.5 million a year currently goes towards victim assistance needs in Laos. Agency staff estimates that at least $5 million a year will be required to adequately help victims and their families....

Current U.S. Funding Support

The U.S. spent $17 million a day (today's dollars) for nine years bombing Laos. However, the U.S. has provided on average only $2.7 million per year for clearance in Laos over the past 15 years. Put another way, the U.S. spent more in three days dropping bombs on Laos ($51 million in today's dollars) than they have spent in the last 15 years ($40 million) cleaning them up.

In Fiscal Year 2010, Congress designated $5 million specifically for UXO clearance in Laos, the largest amount allocated in any given year to date....

We applaud this specific allocation. It represented a tremendous step forward – or so we thought. Unfortunately, despite a specific Congressional mandate for $5 million for bomb removal in Laos this year and in subsequent years, the Department of State is only requesting $1.9 million for next year (FYI 1)....

Conclusion

It has been nearly 40 years since the secret U.S. bombing campaign in Laos was finally revealed to Congress and the American public. Yet, all these years later, massive quantities of UXO remain a dangerous threat to the daily lives of the people in Laos.

This is Mol, a five-year-old Lao girl from Thajok Village in Xieng Khouang Province. Unlike hundreds of Lao children who have been killed or injured by cluster bombs each year, Mol is still alive and healthy. But she lives and plays among these deadly weapons every day. She has never known a bomb-free backyard. We must do what we can to protect children like Mol and clear the land so that when she walks to school, her family plows their fields, or her neighbor forages for bamboo in the forest, everyone returns home safely at the end of the day. We should want this for Mol and the generations that will follow her.

The problem of UXO in Laos has been allowed to persist far too long. Too many innocent lives have been lost. Too many farmers and children have been left disabled, their lives forever changed. But it is not too late to stop this senseless suffering. This is one of those rare tractable problems with a clear and effective solution. The U.S. has a responsibility to clean up the unexploded bombs it left behind in Laos and to provide support for those who have been harmed since the end of the war. It would require only a relatively modest increase in U.S. funding to dramatically improve clearance activities and victim assistance in Laos.

If we had the cure for a disease, would we let people continue to suffer and die from it? Clearing cluster bombs in Laos and supporting those injured by them is an act of humanity and decency. It is the right thing to do.

The State Department must make a sustained commitment to solving this problem. We recommend an allocation of at least $7 million next year followed a subsequent increase to $10 million per year over the next 10 years. With this kind of

consistent support, the casualty rate would fall from hundreds a year to dozens or less, and the highest priority clearance projects would all be accomplished.

Thank you Chairman Faleomavaega and Subcommittee Members for the opportunity to offer our statement today. We appreciate the attention you have brought to this important issue.

7. *Gran Torino*'s Hmong Lead Bee Vang Comments on Film, Race, and Masculinity, 2010

LS (Louisa Schein): *So what went through your head when you started to hear about Gran Torino?*

BV (Bee Vang): I never thought I would try out. I heard about the story and the "sides"—the excerpts from the script that were used for auditions—and I was just really repulsed by what I read. I tried to make sense of the characters and their lines. But there were things I couldn't figure out about the relations between Walt and the Hmong characters. For instance, at some point Thao tells Walt "Go ahead. I don't care if you insult me or say racist things, because you know what? I'll take it." I didn't understand why a character like Thao would say that. Why wouldn't he object to being insulted? What does "taking it" even mean? What was intended by the screenwriter or was this just careless writing?

LS: *The story, as we know, takes place in Detroit and centers on a white man who is probably dying and doesn't have much time left. His Asian neighbors are a backdrop to his search for redemption from acts in the Korean war—*

BV: Of course, those Asians are nothing but FOBs [fresh off the boat] or youth on the streets killing each other...

LS: *Right. So Walt has to teach them the "right" way to behave, and to save the good ones from the bad. In the process, he valiantly takes the fall. Talk about your impressions of the plot, the script itself.*

BV: The thing is, the story can't take place without those Hmong characters, especially mine. But in the end, it's Walt that gets glorified. We fade out in favor of his heroism. I felt negated by the script and by extension in my assuming the role. It's almost like a non-role. Strange for a lead...

LS: *What about the script's portrayal of Thao's masculinity?*

BV: Well first off, the girlfriend part is totally crazy....Walt and the gangsters and the grandma—all of them have nothing but insults about Thao's manliness—or lack thereof. He doesn't cut it in any way and he's not super-hot. So why is it that the gorgeous girl decides to pick him over all the other guys?

"Hmong Lead Bee Vang on Film, Race, and Masculinity: Conversations with Louisa Schein," *Hmong Studies Journal* 11 (Spring 2010): 2–10. Reprinted by permission of the author and the *Hmong Studies Journal*.

LS: *It sends an incoherent message, doesn't it?*

BV: That the dumb, passive, quiet, loner guy can still get the best girl. It pained me that Thao let his masculinity suffer so badly over the course of the story....

LS: *So you were uneasy about the lines and character descriptions. Why did you audition and ultimately take the part?*

BV: Friends kept pushing me to try out. I didn't take it seriously. Didn't think I'd get the part. But when I was called back for another round of auditioning, I realized I wanted to be part of the hype, because this would become a great cultural event of our time, especially for Hmong. Most importantly, my intentions were, as I continued to audition and do my best, to try to improve on the script and the ways Hmong were portrayed. I wanted to create a character that people could love. I decided to commit to developing the role of Thao, making him more complex and credible. I imagined a guy who would chafe at his subordination more. So even when he had to obey, he did it with more attitude.

LS: *Did you feel you succeeded in creating this character?*

BV: I added a lot of intonation and gestures to try to give Thao some dignity. For instance, when my sister is offering me to work for Walt, I raised my voice to a shout to indicate I hated the idea of slaving for Walt. That outburst wasn't in the script. But most of the script was not very open to interpretation and it was premised on his not having any dignity. He needs to be clueless and have no self-respect in order for the white elder man to achieve his savior role. He has to hang his head and absorb abuse. So it makes me wonder how a character like Thao could bring any change to Walt....

LS: *Were you able to draw on parts of yourself or your experience for this role?*

BV: Well that was the idea, from what I could tell. The production process didn't include rehearsals or coaching. Eastwood didn't want us to consult with him. He just wanted us to be ourselves. The plan was for us to be so-called "natural actors," just stepping out of our lives and into the frames. This way the production could move efficiently. So we didn't get the scripts until a week before the shooting started and had no prep time to get into the psychology of the character.

LS: *What did this mean in terms of your process, then?*

BV: The roadblock for me was that I couldn't identify with Thao as the demeaned boy that he was. All the while, hearing that my performance was to be as a so-called "natural," I found myself resisting the character more and more. So I had to draw instead on my best acting skills to counter my feelings about Eastwood's lack of direction. I had to put aside my doubts about the character,

and create a contradictory guy who was sometimes just submissive and sometimes struggled to stand up for himself. I wanted him to have depth and complexity. I had to make that up myself... to the extent that it was possible within the script....

LS: *Say more about the role itself.*

BV: But then I think that maybe it's not about the quality of my acting. It's the fact of the character being unsympathetic because of his weakness. It's an odd thing, as a first time actor, to have to step into a role that's disparaged by the script and humiliated by the other characters. Playing him well is like making a deal with the devil. To the extent that I did a good job, I reinforced that image of effeminate Asian guys who are wimps, geeks and can't advocate for themselves.

LS: *Does Thao become a man in your opinion? Does he get stronger?*

BV: I worked on that. It wasn't easy because the scenes were shot completely out of sequence so it was hard to get a sense of the continuity and the progression. I tried to show Thao's change through the physicality of my performances. I hung my head less and less. In the barbershop scene, I made my voice get a bit raspier and more like Eastwood's as they tried to "man me up." I threw in some sassy gestures. By the time I was getting the job at the construction site, I added more of a swagger to my walk. Things like that.

LS: *So did this mean he was achieving manhood?*

BV: I'm pretty iffy about that. For instance, at the end of the barbershop scene, the humor comes from the fact that Thao doesn't know what he's saying. He supposedly tries to talk like the older white men, but stupidly comes up with a line that makes him out to be an object of male gang-rape or something. What the barber and Walt laugh at him for is that he doesn't even know what he's saying. This relies on a kind of a dumb refugee image. The line he says—'boy does my ass hurt from all the guys at my construction job'—is just nonsensical to him. Only the white guys get the homophobic joke. So, Thao really doesn't grow in this scene; for some reason, the scene ends and segues to the construction site scene. Only there does Thao put what he learned to use, which I find is strange.

This kind of scene could have been done so much better. The script would have been so much tighter if Thao had understood what he was saying and come up with a line that showed that part of his becoming a man was being able to craft his speech to show it. How does that laughable line indicate he's ready to go get a construction job?

LS: *Did you feel like you were playing Hmong in Gran Torino? At what points in the story, if any, did you feel you drew on your Hmong identity to play the role?*

BV: I know there were a lot of Hmong references and scenes in the film, but I didn't feel it in my character. What I felt was being called on to perform the pan-Asian stereotype of the submissive, kow-towing geek with no girlfriend. Plus there's no real reason for us to be Hmong in the script. We could be any minority. And not only that, but Walt is always confusing us with Koreans and other Asians. Even with the enemies he fought in Korea. So Hmong culture, Hmong identity didn't end up seeming so relevant.

LS: *How do you feel about what audiences reflect back to you regarding the film?*

BV: Y'know a middle-aged white guy was telling me the thing he loved most about *Gran* Torino was the interactions between Walt and the Hmong people—that the film "rings true" to him in some kind of way. A lot of people say this. Well—"rings true" for who? Maybe to people who live in a world where whites are the only heroes. Or to those who take the film as a documentary about Hmong culture. Even other Asians do this a lot. And then they tell me how much they learned about my culture. Meanwhile, what a lot of us Hmong feel is that the film is distorting and *un*-true. I guess watching *Gran Torino* is really subjective. People get all sorts of different things out of it.

LS: *You've said a lot about the Asian masculinities portrayed in mainstream media. Talk about your own background, how you were brought up, what kind of male role models you had...*

BV: When I was young, my Dad was a very important figure in my life. I was expected to follow him around to funerals and weddings and other rituals and help him with whatever he was doing. Through him and my other male relatives, I was learning to be strong and respectable, to shake hands and be good with words, I saw how to be polite, especially to elders—even to ancestors. It was very important to be able to speak well, including in front of groups, and not make an ass of yourself.

LS: *Would you describe these things as part of masculinity?*

BV: Yes, an alternative masculinity you could say.... Y'know helping is a big part of it. There are different takes on helping. Remember the scene in *Gran Torino* where the old white lady neighbor spills her groceries? Thao helps her pick them up, which is nice and Walt is impressed. *But* Thao is contrasted with two other Hmong guys who pass by her and don't help and even make humping motions behind her back. This kind of shameless macho seems more white to me and it makes Thao's helping seem more effeminate. In Walt's eyes, Thao's helping makes him a good kid, but also makes him less masculine. That's the turning point, where Walt decides to make an effort to man him up. To me, it's also where Walt starts imposing his

version of white masculinity on Thao. He sees that Thao has the impulse to be respectful and help. But it's not just anyone he helps—it's a senior white lady. At this point Walt *also* sees that Thao can subordinate himself to a white person by picking up her groceries. So he decides that Thao could bend over to take Walt's instruction too...

LS: *Say more about what's white about that masculinity.*

BV: In my own upbringing, helping—especially helping elders—just didn't feel this way at all. It didn't have any association with femininity.... My Dad is a shaman. His sons are supposed to assist him in ceremonies and it's an honor to do that. I felt that a lot growing up. We would carry his stuff and set up for him. We would bow at the right times and we would support him to make sure he was safe when he was in trance. We would sacrifice chickens for him while he communicated with the spirits. I loved doing all that. I will miss it.

LS: *What about helping in relation to women and girls?*

BV: Well, one thing is that men who are courting or married are supposed to convey their caring by helping women with their work. It's not about becoming emasculated and doing women's work. It's about showing consideration and respect ... about being thoughtful and helpful with whatever her burden is.... Instead of showing himself off in terms of the individual qualities he's supposed to be proud of in himself, it's about a man showing how he can subordinate all this to the relationship. Guys who do this well are *more* desirable to women, not *less* masculine.

LS: *Say more about what your home life was like.*

BV: Growing up I had five brothers and only one sister. So we five boys had to pitch in to make things work around the house. In *Gran Torino* there's all those lines about "women's work" when Thao does the dishes or does gardening. I don't know: Sometimes when we'd have a lot of people in the house for a ceremony or something, I'd be the one washing the vegetables—and it was no big deal. The work just needs to get done. My Dad would pitch in too.

LS: *So there was no stigma—it didn't make you seem effeminate or gay to do that stuff?*

BV: Well maybe for some people who choose to see these differences. But that's so retro. I love deliberately crossing gender lines and messing with social boundaries. And I actually like cleaning house and washing dishes. It doesn't feel scary femme to me.... Also it really annoys me that it would be associated with homosexuality. What does housework have to do with sexual partners anyway? Asians have enough to deal with being framed

as homosexual in the American racial scene. If it's so hard for the mainstream to see us as straight, the last thing we need to do [is] call *each other* gay for irrelevant reasons. Also where does that leave Asians who actually want to be comfortable in gay identities? There's no space for them to own their sexuality....

LS: *Yes of course.*

BV: The thing is, it makes all of us guys who are in school feel invisible. Maybe those *other* Asian Americans are supposed to value education and be super-achievers, but that one little line defines Hmong boys as the opposite. It's like Hmong will always be nothing more than peasants and footsoldiers. In America we'll turn into manual laborers and gangsters. It's like our past determines us forever. I mean, jeez, my parents had basically no education, and that hasn't stopped *us.*

LS: *What do you think of the fact that Sue is the one who says this line?*

BV: It compounds the problem. A lot of Americans—even Hmong—say that she is describing a "truth" of Hmong refugee social life. It makes me so angry! The fact that a Hmong girl says it makes it seem like it's not racist to say such a thing. But those lines were put in her mouth by a non-Hmong writer who invented her. I wish audiences were not so passive and could remind themselves more often about the authorship here...

LS: *What's next for you?*

BV: I have a lot of ideas. I'm on my way to college at Brown in Rhode Island. I'm going to study filmmaking and pursue my acting. And I'm also going to study Chinese and see where it all takes me. Whatever I do, I want to keep social justice work in the mix.

LS: *What are your social justice issues?*

BV: In terms of my own activism, I've been working on Hmong and Asian visibility stuff. I've done a lot of public speaking on *Gran Torino,* and I try to increase awareness of some of the racial issues in the film ... and in the production too. I'd like to get more audiences to see that films can't help being about race if there are immigrants and minorities in the mix. They can never be simply universal human stories about heroes who get redeemed or whatever.

LS: *Other issues you try to make visible?*

BV: Well, there's also the issue of class and mobility for minorities. I feel like the racial barriers to economic improvement that exist in the US are not acknowledged enough. You can see this in *Gran Torino* too—in the scenes where Walt implies that all Thao has to do to be good enough for a job is to become manly like a white guy. If you look at the lines in the barbershop scene though, it's all premised on his being ethnically different and not getting the jokes. By the end of the scene, he's still the clueless immigrant

kid. The film acknowledges that he's not just like them in terms of his job prospects, but then it denies that difference by having him go and get a job successfully....

LS: *Say more about the future you envision for Hmong filmmaking.*

BV: Since *Gran Torino* there are lots more Hmong Americans in their twenties and thirties making their own amateur films. And also applying to film programs. Some of these people are getting their works into film festivals and distributing in Asia. This is promising because we have a lot of stories to tell. And they'll be Hmong stories, but not just *the* Hmong story. We need great scripts, complex, relatable characters, and high production values. Controlling the images of Hmong people *in* the films is just the first step. Our films also need to be high quality and show the level of art we are capable of. For me, I'm looking for substance, deep ideas and amazing performances...

ESSAYS

These two essays analyze how Southeast Asian communities have been sources of support and conflict for refugees. In the first essay, a team of Asian American scholars critiques model minority depictions of the Vietnamese American community's return to New Orleans and rapid rebuilding after Hurricane Katrina. The scholars analyze the role of religious leaders and familiarity with government assistance programs and note how the community joined with African Americans to shut down the creation of a landfill and develop a cooperative rebuilding program. The second essay, by Chia Youyee Vang, a University of Wisconsin, Milwaukee, historian, discusses how Hmong New Year celebrations have evolved in Minnesota from small potluck dinners to major extravaganzas held in convention centers. As the celebrations have grown to include dances from Bollywood and China, nontraditional clothing, beauty pageants, and even hip-hop performances, organizers have increasingly disagreed about the "authenticity," commercialism, and political implications of these celebrations.

A Critique of Model Minority Portrayals of Vietnamese Americans in New Orleans After Hurricane Katrina

KAREN J. LEONG, CHRISTOPHER A. AIRRIESS, WEI LI, ANGELA CHIA-CHEN CHEN, AND VERNA M. KEITH

As the floodwaters have receded from New Orleans and rebuilding has begun, new stories of race relations have emerged and new histories are being written. One is the history of a predominantly Catholic Vietnamese American community located in eastern New Orleans. Before Hurricane Katrina, Vietnamese

"Resilient History and the Rebuilding of a Community: The Vietnamese American Community in New Orleans East," Karen J. Leong, Christopher A. Airriess, Wei Li, Angela Chia-Chen Chen, and Verna M. Keith, *Journal of American History* 94 (December 2007): 770–79.

Americans constituted less than 1.5 percent of the city's population. Since Katrina, the small Vietnamese American community in eastern New Orleans has received significant press coverage due to its members' high rate of return and the rapid rebuilding of their community. This essay will explore how shared refugee experiences, the leadership role of the Catholic Church, and the historically specific circumstances of Vietnamese immigrant settlement in eastern New Orleans contributed to this community's mobilization and empowerment. Some might attribute the community's ability to recover so quickly to a strong work ethic and an innate identity—both features of the myth of Asian Americans as "model minorities." That myth is a 1950s and 1960s construction that has since been deployed to justify racist assumptions about African Americans, Hispanics, and American Indians. It also obscures historical processes. This essay argues that the eastern New Orleans Vietnamese American community's response to Katrina is clearly rooted in its particular history and collective memory. As the experience of the Vietnamese American community in Village de L'Est demonstrates, history and memory are more than analytical artifacts—they are political resources....

This particular Vietnamese American community, a legacy from the refugee resettlement beginning in the 1970s, is located in a residential suburb known as Village de L'Est in easternmost New Orleans. In the aftermath of the Vietnam War, the United States government relied on nongovernment and faith-based organizations to help relocate refugees from Vietnam in the United States across 821 zip codes. The Associated Catholic Charities of New Orleans, for example, relocated Vietnamese in New Orleans and found federally subsidized, low-income housing for 1,000 refugees in 1975 at the Versailles Arms Apartments. Chain migration—in which initial immigrants attract further migration of friends and family from the same place of origin—resulted in 2,000 more Vietnamese moving into the neighborhood near the apartments from their initial settlement locations. The Vietnamese population grew to nearly 5,000 by 1990.

The influx of Vietnamese refugees and the white flight that began in the 1980s significantly changed the complexion of the neighborhood. By 1990 the neighborhood's population was almost equally divided between African Americans and Vietnamese Americans.

Due to Katrina, the dynamics of eastern New Orleans have been altered yet again. By spring 2007 over 90 percent of the Vietnamese American residents but fewer than 50 percent of the African Americans had returned to Village de L'Est. For African American renters the unavailability of affordable rental housing has constituted a barrier to return; three apartment complexes had housed nearly 40 percent of the African American population in the neighborhood. During the first year of recovery, the Vietnamese American survivors' early and high rate of return heightened their visibility and political leverage. By early December 2005, two months after Mayor C. Ray Nagin declared New Orleans safe for return, church leaders estimated that about six hundred individuals had returned and had begun cleaning and repairing Vietnamese American-owned homes in the neighborhood. The visible turnout of residents forced the city to provide dumpsters, and a petition signed by residents who stated their commitment to

return to the neighborhood persuaded the utility company to restore power in mid-October 2005.

To survive after Katrina, residents in this eastern New Orleans community had to establish themselves as active stakeholders both in their community and in the city. Fears that the city would not support efforts to rebuild its eastern part seemed confirmed in February 2006 when the mayor authorized the opening of a hurricane debris landfill less than two miles from Village de L'Est. Already faced with the burden of rebuilding their lives, residents had to organize quickly and collaboratively to oppose the landfill. Protest against the Chef Menteur landfill united Vietnamese Americans, African Americans, environmentalists, other social justice advocates, and elected officials in the multiethnic Coalition for a Strong New Orleans East, which brought such pressure to bear on the city that the mayor chose not to renew the landfill contract in August 2006. The coalition's political success, coupled with the relatively rapid repopulation of the isolated suburb with little city government assistance, became a highly popular Katrina story for national media outlets including the *New York Times*, CNN, and NBC *Nightly News*.

National media coverage of the "Vietnamese Versailles community" generally presented a narrative that fit the stereotypical Asian American model-minority myth: in less than three generations the New Orleans Vietnamese refugees had seemingly mastered the political system and overcome Katrina through the self-sufficiency and hard work associated with Asian Americans in general. One New Orleans blogger observed in February 2006, "The story of this community is being touted across the city and region as an example of the power of 'anchoring' in the redevelopment of New Orleans neighborhoods." Media reports emphasized individual choice and community cohesion without noting the lack of rental units, racial discrimination, or differences in environmental impact that prevented others from returning. Participants in online discussion boards drew comparisons between the Vietnamese American community and "the African American community in New Orleans," even if media reports did not. One online participant stated, "These vietnamese folks are self-starters the *last* thing they want is more governmental interference. NOLA's blacks, on the other hand, would rather sit around and wait for the government to save them." The *New Orleans Louisiana Weekly*, a local African American newspaper, in January 2006 hailed "The Miracle of Versailles: New Orleans Vietnamese Community Rebuilds" and ultimately concluded, "Perhaps the most important key to their success is that the Vietnamese community refused to place its salvation into the hands of the government. They simply came home." Such emphasis on self-sufficiency ignores the voices of some members of the Vietnamese American community who have stated—echoing some African American community members—that federal government assistance is critical to rebuilding. Indeed, in separate interviews held in early 2006, Vietnamese American and African American residents of New Orleans East agreed that their community had received inadequate assistance in rebuilding from the state and city.

This immigrant story is not simply one of resolve and initiative nor of the faith and community emphasized in media reports, but of a cultural hybridity and historically specific transformation that preceded migration. A historical perspective on the Village de L'Est Vietnamese American community's faith

and cohesion demonstrates how collective history and memory, in addition to the spatial concentration of this small Vietnamese American community, contributed to the ability to rebuild so quickly after Hurricane Katrina. Father The Vien Nguyen, the pastor of Mary Queen of Vietnam Church, explained that the central role of the church in the community was not a postmigration phenomenon; it grew out of a pattern of church leadership that had developed in Vietnam over several hundred years. Catholicism, a foreign faith, was introduced into certain villages and transformed over time into a form of local leadership, subsequently motivating villagers to flee their homeland for fear of religious and political persecution. Spanish and Portuguese colonizers brought Catholicism to Vietnam in the sixteenth century. Vietnamese suspicion of foreign influences resulted in the persecution of Catholic Vietnamese in the early nineteenth century, and the persecution resulted in increased French intervention. After French colonial rule was established in the late nineteenth century, Vietnamese Catholics were free to worship. Initially, when Ho Chi Minh's resistance army overthrew Japanese forces in 1945, the Catholics strongly supported his government, which benefited from nationalist sentiment that united the Vietnamese populace. That unity, however, soon unraveled after the formation of the second Ho Chi Minh government following national elections in 1946, as divisions increased between the Communists (Viet Minh) and noncommunists. This split fully manifested itself with the third Ho Chi Minh government, formed in November 1946, in which Communists dominated an overwhelming majority of the offices. By the 1950s Vietnamese Catholic leaders increasingly and openly condemned the Communist government of Ho Chi Minh.

The 1954 Geneva agreements split the country into two—with Communists governing the north and the noncommunists the south. Many Vietnamese Catholics had moved north, and now, under Clause 14d of the agreements, had a limited period—the time the troops took to assemble in their respective locations—to move to the opposite zone if they so chose. As a result, some nine hundred thousand refugees, mostly Catholics, fled from their villages in the Red River delta diocese of Bui Chu to the south. In rural areas the priest was often the only source of leadership and assistance for a community. After the siege of Saigon in 1975, many Vietnamese in South Vietnam attempted to flee, and some of those who succeeded found shelter in refugee camps lining the South China Sea coast and processing centers in Guam or the Philippines. Of those who arrived in the United States, research suggests that at Camp Pendleton [Virginia] half the refugees (55 percent) were Roman Catholic and that at Fort Indiantown Gap [Pennsylvania] 40 percent were. The majority of refugees who left the camps were sponsored by families or groups. The U.S. Catholic Conference accounted for 35 percent of the group sponsorships.

After visiting the refugee camps, Archbishop Philip M. Hannan of New Orleans invited priests he met there to establish resettlement communities in New Orleans. He asked the Associated Catholic Charities of New Orleans to assist in finding Section 8 housing for the refugees. Vietnamese refugees in Village de L'Est originated from villages in the vicinity of Vung Tau city or the nearby village of Phuc Tinh, both located in the Ba Ria–Vung Tau province some 120 kilometers southeast of

Saigon. In 1985 the community founded its own ethnic parish, centered on Mary Queen of Vietnam Church. The religious faith, church leadership, and social organization that informed the migration decisions of these Vietnamese refugees and immigrants have contributed to a strong community identity.

The concentrated settlement pattern of Vietnamese Americans in Village de L'Est, 75 percent of whom are Catholic, facilitated the implementation of the leadership structure and village-based community in the New Orleans neighborhood. The primary adaptation among the immigrant community has been that "the involvement of laypeople in meeting the needs of the community has increased since migration to the United States." As he did in Vietnam, the priest serves as the primary leader not only of religious life but also of the parish community. He is supported by a council that makes parish decisions, with each member representing a specific zone within the parish (in Village de L'Est, there are seven designated zones). Each zone, in turn, is divided into street units called "hamlets," with their own representatives and saints. The celebration of feast and saints' days facilitates community building among neighbors. The representatives have increasingly brought the political and social concerns of their constituents to the attention of the council. The council has responded by organizing committees to take care of specific community needs, including raising funds for burial expenses or assisting newcomers.

The preexisting leadership structure was one of the most important community resources in the rebuilding process, allowing the church to keep track of its members' locations in Katrina's diaspora. Community members largely relied on their own social networks to evacuate with family and friends and to locate temporary housing in shelters or in other Vietnamese communities throughout the nation. The church choir, for example, caravaned as a group out of New Orleans days before the hurricane. The parish priests cared for the remaining elderly and those unable to evacuate on their own until they were all able to evacuate the flooded neighborhood. The community's limited size allowed Father Nguyen to visit parish members scattered throughout various states and set up a recovery network. He recalled, "My people were scattered in Austin, San Antonio, Dallas, Houston, and Arkansas.... My people were in California, Georgia, Florida, Washington, Minnesota, Michigan, and the Carolinas. They even went so far as New Hampshire and Connecticut." The pastor asked available council and hamlet representatives to meet in Houston to plan for the return to the parish as soon as permission was granted for people to reenter New Orleans. According to Nguyen, on October 5, the first day people could return to the city to begin the cleanup, more than three hundred parish members did so. It must be noted that the pastor has been a prominent source of information about the community. His role in narrating the Vietnamese community's collective dispersal and return to New Orleans serves to define both a cohesive faith identity for the Catholic Vietnamese Americans and a broader refugee identity of survival and sociocultural adjustment that includes all Vietnamese American residents regardless of religion.

The Vietnamese American community in New Orleans East possesses social and cultural capital that is based on its members' lived experience and historical memory. Because migration occurred within the past three generations and under the conditions of war, the community has sustained the strong social

networks that operated during the refugee and migration experience as well as confidence in the efficacy of those networks. Members of the community exhibit a sense of strength derived from their experiences as war refugees or as recent immigrants. When asked about the difference between leaving Vietnam and evacuating from New Orleans, one person who had just arrived in the United States in 2004 and had not yet returned to New Orleans from Houston by March 2006 noted that the former was much more dangerous: "It is harder leaving from your culture. Hurricane is nothing. In the hurricane, you have your family with you all the time." Observing that "our life is not as hard as it was before," this individual, like many others in the community, perceived the evacuation and rebuilding of New Orleans as less difficult than complete relocation from one's place of origin. That memory, along with the experience of adjusting to the United States, is shared by Catholic and Buddhist Vietnamese Americans and further contributes to a collective community identity.

In addition to the role of religious faith in shaping immigrant life and ethnic community, the particular timing of Katrina also afforded the Vietnamese American community certain resources. Local activists had been working within the community to develop homeowner associations in response to concerns about community safety and had been attending city council meetings to articulate those concerns. National networks that had originated with the first waves of Vietnamese refugees arriving in the United States, such as Boat People SOS, also offered their assistance to evacuees as they negotiated the bureaucracy of Federal Emergency Management Agency (FEMA) claims, insurance claims, and food stamps. Although those networks did not limit their assistance to Southeast Asian Americans, they built on their knowledge of those communities, familiarity in guiding recent immigrants through paper work, and ability to speak in various Asian languages, and they operated mainly in locations with high concentrations of Southeast Asian evacuees. In other words, having as refugees developed a community with limited (but not insignificant) federal and local government assistance, community members can draw on their relatively recent experience in rebuilding yet again.

Over the two years since Katrina made landfall, the community has gained confidence as it successfully leverages its newly found political power. Neighborhood Catholic and Protestant churches have worked together since the hurricane to forge multiracial cooperation in the rebuilding of the community. The *Oakland Tribune* reported that Mary Queen of Vietnam provided volunteers to assist the primarily African American churches in the neighborhood with their cleanup. In May 2006 the Vietnamese American and African American Village de L'Est community joined with representatives of the Southern Poverty Law Center, a civil rights organization, to demand the closing of the Chef Menteur landfill. All those efforts appear to be creating a new, more extended form of community. One African American focus group participant recalled that "those Vietnamese spent like 20 hours came to our church, clean our church and prepare for us" and that the priest had visited the service to talk about the Vietnamese American community. Another observed of the Vietnamese American community, "These people can teach us different things, they can teach us things ... like I'm saying ... they'll all become the real community." When asked if the possibility for Vietnamese Americans and African

Americans to work together had increased, focus group participants agreed that Katrina "brought us closer." The most recent New Orleans rebuilding plan proposed by Mayor Nagin and Dr. Ed Blakely, director of the city's Office of Recovery Management, in April 2007 listed the area among the top seventeen neighborhoods that will receive further assistance as a result of the recognized high return and rebuilding rates. Local Vietnamese American leaders consider making the list a collective victory in deciding the fate of the community.

The newly forged history of working together to survive sudden change and uncertainty provides a shared hope for this neighborhood, and even for the city. Cynthia Willard-Lewis, an African American member of the city council who represents the neighborhood (and in April 2006 hired a Vietnamese American to work in her office), suggested that the cooperation and rebuilding exhibited by the Vietnamese American community "can be a model for other communities. They are fighting to stay united and connected." This community unity is already being mobilized to face a new challenge. In late August 2007, two weeks of deadly shootings and robberies suggested that Village de L'Est is now a target for violence, perhaps as a result of the publicity surrounding the community's success in rebuilding. Willard-Lewis, Father Nguyen, and other community leaders have responded by working to increase police response time and protection for residents.

Historians are well aware that historical memory can be, and has been, mobilized in dangerous ways. Yet the experience of this Vietnamese community in eastern New Orleans in the aftermath of the catastrophe of Hurricane Katrina is a powerful reminder that memories and knowledge of the past can also function as a significant source of community resilience and transformation.

Continuity and the Reinvention of Hmong New Year Celebrations

CHIA YOUYEE VANG

In the late 1970s, when few Hmong families lived in Minnesota, the New Year celebration was a small event but one with great significance for its participants. As part of the first family to arrive in Minnesota in December 1975, Dang Her remembers yearning for opportunities to connect with other people from his ethnic group. He explains the driving force behind the initial diasporic New Year celebrations: "We missed our friends and families so much that when we learned about other Hmong families in Minnesota, we immediately tried to contact them. The New Year celebration was quite different from what you see today. Each family contributed some food. It was a potluck. We were all just happy to be with other Hmong families."...

The continued flow of Hmong refugees throughout the last quarter of the twentieth century permitted the celebrations to increase in size, scope, and frequency.

From *Hmong America: Reconstructing Community in Diaspora*. Copyright 2010 by the Board of Trustees of the University of Illinois. Used with permission of the University of Illinois Press.

Although New Year celebrations were celebrated during slightly different times in Laos, a shared country of origin inspired Hmong and ethnic Lao refugees in Minnesota to create interethnic solidarity by co-hosting a celebration. Tong Vang, a former board president of Lao Family Community of Minnesota Inc., recalls, "When we first got here, we actually started an organization with the Lao refugees because we [all came] from the same country.... We had one New Year celebration together, then when we started the Hmong Association, we began to have our own celebrations. It was small. We did wear our traditional clothes and ate great Hmong food." The Lao New Year is celebrated in April, so perhaps the time difference influenced the decision to no longer collaborate. A closer examination, however, suggests that ethnicity and religion may have further divided the two ethnic groups. Although some of the early refugees from both ethnic groups had converted to Christianity in Laos, many Hmong practiced ancestral worship, which differed greatly from most Lao following Buddhist traditions. One can further speculate that because the growth of the Hmong population in Minnesota surpassed that of the Lao, Hmong community leaders no longer needed to collaborate since their population was large enough to allow them to hold events specifically for their own ethnic group.

The process by which the Hmong in Minnesota expanded their celebrations would reflect their population increase in the state. As the demand for activities beyond tossing ball and singing folk songs increased, organizers developed additional ways to attract attendees of all ages. Music and dance competitions provided an avenue for musicians and artists to exhibit their skills. Beauty pageants permitted young Hmong women to display their beauty and talents. Vendors set up booths in the hope of making a profit. Ly Vang, a Hmong American woman and community leader who had been involved with New Year event planning since the late 1970s, reminisces about the evolution of diasporic New Year celebrations: "In 1977, we gathered a lot because we were all still dealing with loss of our own family support. I think 1978 was the bigger New Year celebration. I think there were about twenty-five families. Then we started to move to churches in St. Paul, then International Institute [of Minnesota]. The first big New Year was 1983, and 1984 we had the first beauty pageant."

When the population was very small, families would gather at individual homes. As the number of people grew, so did the spaces from private homes to church banquet rooms to community centers to hold the celebrations. The events eventually moved to large convention centers. In 1980 with the largest arrival of Hmong refugees to the United States, the critical mass enabled Hmong Minnesotans to expand their New Year celebrations to the civic center, as a staff member for the *Association of Hmong* newsletter reveals: "It has been many long days plan for the Hmong New Year 1980–81. Many Hmong and their leaders in the Twin Cities did not have enough time to sleep and enjoy their families as usual. They put a lot of effort to make the New Year possible for the Hmong people to chase away bad luck and ugly thoughts that they have in mind and heart during the past twelve months, and to welcome the New Year with new hope, new spirit, best luck and good opportunities for the incoming year.... Over 6,000 (six thousand) Hmong were gathering at the St. Paul Civic Center to cheer each other as a traditional celebration."

The passage shows that at the outset, the event was as much a community-building effort as it was a means for cultural preservation. The event is envisioned as a display of Hmong unity where attendees come and "cheer each other": "To share their happiness, Mr. Ly Teng, the President of the Lao Family Community in Minnesota, and the Hmong also invited the Honor of Mrs. and Mr. [George] Latimer, the Mayor of the City of Saint Paul and many other high rank officers from various departments in the State of Minnesota as well as many Americans in the area along with General Vang Pao, the International Chairperson of the Lao Family Community Inc. from California and many other fellow Hmong from other neighboring states of Minnesota to share the happiness together. To open the New Year Celebration, Mr. Ly Teng briefly expressed that the Hmong New Year cannot be celebrated on the exact date of the traditional calendar because we have to wait for the weekend and the availability of spaces to get together for a long time." This practice of inviting elected and appointed officials and General Vang Pao to deliver speeches has continued to the present. The distance from which the New Year celebrations drew their participants over the years has increased significantly with the change in Hmong American economic status. In the early years, most attendees were residents of the state or from neighboring Midwestern locations. Today, it is common to see participants from all parts of the United States and from other countries of resettlement. Occasionally, some Hmong from Laos attend if they visit family members in the state.

An ongoing question about New Year celebrations is whether transformations occurred only in the United States or were there changes prior to migration out of Laos. Many in the general immigrant population assign blame partially to American society for the lack of understanding and the devaluing of Hmong traditions. However, a closer historical analysis reveals that changes in New Year traditions, in large part, stem from the relocation of displaced Hmong during the war years and from Hmong exposure to Lao cultural practices. Ly Vang shares her observation, "I saw the changes. Back then [in Laos], we do a lot of things based on traditions. In rural areas, your frame of reference is very narrow. So, you have bullfights, folk songs, *qee*. [an instrument made from six bamboo pipes attached to a wooden wind chamber]. No dance. Those are the traditions they learned from agricultural way of life. Not much room for incorporation of others. After 1970, changes began to emerge. In Long Cheng, the urban settlement allowed for beauty pageants to be added. I think there were two or three pageants that were held. In that historical moment, we began to add dance performances to the New Year. But, they did classical Lao dance." Ly Vang's statement reveals that the New Year as celebrated in isolated village contexts before the Vietnam War era changed when Hmong became exposed to other forms of entertainment. As time progressed and new additions became common practices, people then began to appropriate them as Hmong traditions.

The practice of borrowing from other cultures seems to have been an integral part of Hmong history as the Hmong migrated from one area to another. The process of becoming a refugee and the displacing effects of refugee camps further facilitated the transformation of old and the invention of new traditions. Critiquing the claim that the "traditional" dance commonly used to entertain

Americans was a Hmong tradition, former Hmong artist and entertainer Yia Lee comments, "I was one of the first Hmong to learn *laavong* [classical Lao dance]. There is no Hmong *laavong*. But, there was dancing prior to migration. What we call Hmong traditional dance is in fact not Hmong. We learned from the Lao. I don't mind the use of all kinds of popular art at the Hmong New Year. It's natural. I know this. All these new art forms are fine. What troubles me a lot is that artists don't know how to compose their own music. They would write the lyrics and then use other peoples' tunes. This is sad." Yia Lee, known for taking risks in art and entertainment, elaborates, "In Laos when we first started to sing modern songs, I was criticized. In the refugee camp, people laughed at our Western-style music." Ly Vang agrees that modern Hmong music and dance expanded in the refugee camps. Amidst the significant boredom of camp life emerged new cultural expressions. The refugee state of confinement, loss, and uncertainty ironically energized camp inhabitants to create new meanings for themselves through art.

Shong Yang, who is a prominent businessman and former chairman of the Hmong American New Year (HANY) in Minneapolis, believes that differences in New Year celebration practices between the United States and Laos are due to rules and regulations in American society that prevent certain religious rituals from occurring in public spaces: "[In Laos, there] were no contests, either beauty pageants or music. Part of this has to do with the fact that few people were educated. In this country, one of the activities missing is the bullfights because we can't do that here. We still *lum qaib* [conduct chicken ceremony], ball toss, sing folk songs. We have added new activities that are available to us because of technology, such as music and beauty pageants like other people. Additionally, we have added sports competitions at the Minneapolis New Year. All of these activities are new."

Hmong Americanization has come to signify increasing American cultural and economic influence. Technology, education, and capital all seem to contradict tradition. Many Hmong Americans contend that New Year celebrations have become too commercialized. They negatively view charging money because it takes away the fun elements of New Year celebrations that are free for all and because they believe that the event organizers tend to be more concerned with making money than with preserving culture. Other community members require higher-quality performances and activities because they pay a fee to enter. Many call for greater accountability by New Year organizers in addition to using proceeds to better the community.

There appear to be two competing perspectives about performances at New Year celebrations. One is that the current performances have abandoned Hmong culture and its traditions, attributed both to the borrowing of other cultures' arts and to the lack of interest in traditional activities. The other perspective is that a balance needs to be kept between culture and entertainment. In the former, a lack of control over the content and types of performances frequently places organizers in uncomfortable positions. As Ly Vang explains, "You can't really turn performers away but you don't have a way to determine the content of their performances. It's sometimes frustrating because we have a lot of political leaders who attend and some things may not be appropriate, but we don't know how to control that." Here, inappropriateness refers to the poor-quality

performances of both genders and to young women dressing in provocative clothing. Often, the performances would be more appropriate in a nightclub scene than in a cultural event with a diverse audience of small children, elderly grandparents, and distinguished guests from the larger community. Shong Yang cautions against the incorporation of other cultural forms: "In terms of traditions, I want to see young people maintain as much Hmong cultural practices as possible. If they are going to sing, sing in Hmong. I can't control what people prefer to use as examples of their skills, but I hope that they do not replace Hmong culture." His suggestion privileges Hmong language as the true Hmong culture. It seems that, to him, artistic style is less important than the need to ensure that Hmong language is used in the performances.

With respect to the perspective of balancing culture and entertainment, many interviewees are open to change. Chou Vang believes that the performance of dances borrowed from Bollywood and China is inevitable: "How can you stop the kids? They live here. They grow up here. That's what they like. Soon after we all die, they will not know much anymore. You can't stop them from doing whatever they like." As one of the women who had received an education in Laos and was active in organizing diasporic New Year celebrations during her early years in the United States, Chou argues that the younger generation will become less interested and knowledgeable about Hmong traditions. She indicates that they should create something that is meaningful to them. Daobay Ly, former chair of the St. Paul New Year committee, adds, "That's part of encouraging the youth to be expressive in whatever they like.... What is amazing is that some youth are appreciating Hmong culture and traditions, except that they have different ways of expressing them. While we do have young people who just don't want anything to do with the 'old ways,' there are others who amaze the elders by learning folksongs and being confident enough to perform in front of thousands." Daobay Ly is a member of the one-and-a-half generation Hmong Americans. He has observed a difference in how young people are perceived by their peers and by the immigrant generation. Although some youth regard their peers who embrace Hmong traditions as old-fashioned, the young people who follow tradition are highly regarded by the older generation, who see such an act as evidence of their Hmongness.

What can one expect to experience at the large New Year celebrations? It is common to see Hmong American women wear costumes from their Hmong coethnics throughout Asia alongside those wearing prom dresses, business suits, and torn blue jeans. The ethnic costumes include coins dangling from all sides of the body, silver necklaces, turbans, and high heels. Women and girls wrapped in shawls walk through the parking lot in cold weather, because their heavy costumes prevent them from wearing winter coats. The dress of men and boys varies from jeans to casual shirts with slacks to business suits. Those who wear Hmong costumes, however, usually do so with a Western-style shirt worn underneath a vest covered all over with coins. After standing in line to purchase tickets, attendees are expected to pass through the security station. Then, they may proceed toward the auditorium. Entrepreneurial elderly women spread their important, dried herbal medicines, jewelry, and handicrafts throughout the hallway. The new arrivals are soon consumed by the smell of homemade sausages, compounded with those of

papaya salad and fried chicken. Vendors sell items ranging from amateur videos, clothing, music albums, and toys to photography booths with the latest technology to ensure that attendees are able to preserve memories of having attended the celebration. Although attendees are overwhelmingly Hmong Americans, non-Hmong people are present at these celebrations. Often, they are individuals who work with and/or are friends with Hmong individuals. Occasionally, one will encounter others who attend out of curiosity.

In the main auditorium, elected and appointed officials focus on "cultural performances" by youth of all ages. Performers enter and exit the stage. Young women dressed in provocative outfits performing to music by such American artists as Janet Jackson and Madonna can be immediately followed by another group of females, dressed in sweat pants and dancing to Korean hip-hop music. When the group finishes its performance, another troupe, dressed in Asian Indian clothes, dances to a Bollywood tune. The next group, dressed in beautiful Lao clothes, performs a classical Lao dance. The evening may end with a Chinese dance performance, which has become a vibrant component of diasporic New Year celebrations.

Politics and Economics

Critics of diasporic New Year celebrations often question the authenticity of the various elements now referred to as Hmong tradition. Determining celebration components' authenticity is further complicated because of the commercialization and political activities embedded in diasporic celebrations. Regarding larger community politics, candidates seeking office in the urban districts, both St. Paul and Minneapolis, and in state and federal offices often attend Hmong New Year events. Some have booths and distribute literature, while others attend either to deliver speeches or to be recognized for their status as politicians, regardless of their rank within government entities.

The presence of non-Hmong individuals suggests that race plays a contradictory role in this semipublic context. Because the event is attended predominantly by Hmong Americans, non-Hmong, in particular those of European descent, sometimes regardless of their socioeconomic status, are honored by organizers. They are treated as distinguished guests, while Hmong Americans of similar or higher status are not honored in the same manner. Organizers seem to go out of their way to display Hmong culture in honoring these non-Hmong individuals. From the outset, New Year celebrations were used as a forum to acknowledge Hmong Americans' alliance with Americans during the Vietnam War, as evidenced by the frequent appearance of men dressed in military uniforms. One political candidate and/or elected official after another has publicly thanked the Hmong people for their contributions to America before they even set foot in the United States. While elected and appointed officials from the larger community consistently praise the Hmong American community publicly during their speeches at New Year celebrations, these praises are heard only by those who physically attend—almost all of whom are Hmong Americans. Although these politically inspired words of thanks may serve to gain Hmong support, they do not, in fact, bolster mainstream public sentiment toward Hmong people because these sentiments are rarely heard by the

American public. Mainstream-media coverage of the celebrations almost always zooms in on the exotic elements of Hmong culture and its traditions, in particular the colorful clothing worn by women.

In addition to the contradictions above, organizers are frequently questioned about their business practices and accountability. A perception of organizers receiving personal financial kickbacks has plagued those involved in celebration planning, despite the fact that many others profit from the existence of these events. Organizers do charge an entrance fee, but they suggest that the fees help to pay for costs associated with holding the event....

Gender Inequality

Community politics and controversies over both the process and outcome of New Year celebrations have become more evident as the size of the events has increased. The first sign of dissatisfaction came from the leaders within the Women's Association of Hmong and Lao (WAHL), which was established in 1979 to support Hmong women and give them voice. Discussing the ways in which she and other progressive Hmong women leaders tried to influence New Year celebration practices, Gaoly Yang, a former WAHL executive director, states, "From the very beginning, Lao Family was pretty open. We partnered. Our board members helped to volunteer, and the organization benefited from participation. But, all along, we had an issue. Again, it's about radical feminist thoughts. We just didn't agree with the pageant. They said it was just entertainment. We've always known that Hmong men have abused Hmong women, and this is something that we would be perpetuating by supporting the celebrations." Early New Year celebration planning attempted to operate in a democratic fashion. The celebration chair position rotated annually among the half-dozen sponsoring organizations. The disagreements intensified one year in the mid-1980s, when WAHL chaired and attempted to reorder the celebration program. In addition to contradicting the religious order, WAHL's leaders also opened the door to Christian groups to sing songs. Gaoly Yang further explains the contentious situation, "When we chaired, we did let everything happen. Because we changed the order of events, they didn't like that. They wanted to have the New Year rituals before anything else. They said you have to *Iwm taws qaib* (chicken-sacrifice ritual) before you celebrate the New Year. We actually celebrated the New Year before we had the rituals. In retrospect, I think we probably overdid it. We crossed the line because it was religion. We probably should have stayed out of it altogether." Still, these missteps were not central to WAHL ceasing its cosponsorship of the St. Paul celebrations. The primary reason for this action was in protest to the Miss Hmong Minnesota pageant, which WAHL members believed to be demeaning of Hmong women and girls....

Prior to their emigration, Hmong in Long Cheng had held a couple of beauty pageants (*xaiv ntxhais nkauj ntsuab*), thereby familiarizing local Hmong with this concept. In fact, only young women from wealthy families were able to participate in those earlier pageants, thereby rendering the event a marker of social class. Although beauty pageants were not completely new diasporic

cultural inventions, progressive Hmong women criticized the objectification of women....

In addition to this portrayal of Hmong women, Ly Vang recalls women's designated peripheral role in organizing diasporic New Year celebrations during the earlier years in America: "When we first got involved in 1983, I think we got kicked out a lot. We were denied a lot. The men didn't think we had the capability, the vision, and strength to put everything in place for the New Year. Women volunteered a lot, and when they see the value of women, then we got invited to participate. When they saw that women had a lot of skills, and their participation benefited the community, they then let us join. If was not open. It was tight. It took a lot of time for those men to realize our contributions." She remembers negotiating with Lao Family's board president: "We said that if Lao Family was not open for the whole community to enjoy the New Year, then we would have one in Minneapolis, too." As the negotiations proceeded, those involved decided that they did not want the community to be divided and that it was important for everyone to work together. It was agreed upon that as a community event, the New Year planning process would become more inclusive.

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CHAPTER 14



Memory Politics, Redress Campaigns, and International Relations

In the 1980s and 1990s, Asian American activists launched various campaigns to redress historical injustices. Popular images of Asian Americans as a model minority incited angry demonstrations in the 1960s and 1970s but also gave more conservative Asian American leaders political clout among the white American majority. The division between Japanese American progressive and more conservative factions mobilized different parts of the community in the struggle to redress the World War II mass incarceration. Japanese American protesters criticized ethnic leaders for cooperating with the government during the war and called on former internees to break decades of silence about the deep wounds left by internment. A group of Japanese American activists filed a $27 billion class action lawsuit against the U.S. government for the internment. Another group sought to vacate the wartime convictions of a handful of Japanese Americans who had challenged the mass removal and internment orders. Initially hesitant to "rock the boat," more conservative Japanese American leaders played critical roles in lobbying Congress to pass legislation, first, to investigate the causes of mass removal and internment and, second, to implement the commission's recommendations to provide an apology, individual compensation payments of $20,000, and a public education fund in the Civil Liberties Act of 1988.

A total of 2,264 Japanese Latin Americans who had been held in U.S. "enemy alien" camps were left out of the Civil Liberties Act because they were not permanent residents or citizens of the United States. Initially held as hostages to exchange for U.S. civilians held captive by the Imperial Japanese, these internees had to fight U.S. orders to deport them to Japan at the end of the war. While Japanese Latin Americans have testified before Congress to secure reparations, they have yet to obtain commission hearings to examine their claims.

Other groups fought to make the United States fulfill wartime promises to reward military service. During World War II, the U.S. government promised Filipino soldiers naturalization rights and full veterans' benefits but allowed only a small number of them to become U.S. citizens before the Rescission Act halted this process in 1946. More recently,

activists have fought to make the U.S. government keep its wartime promise. In 2009, President Barack Obama signed the American Recovery and Reinvestment Act, providing a one-time, lump-sum payment to Filipino veterans who were members of the Commonwealth Army, scouts, or guerilla fighters before July 1, 1946. Veterans who were U.S. citizens were paid $15,000, while noncitizens were paid $9,000.

Hmong American and Lao American veterans of the Vietnam War supported the activism by Filipino war veterans because they too felt inadequately compensated for fighting alongside U.S. troops during the "secret war" in Laos from 1961 to 1975. As a result of Hmong and Lao activism, President Clinton in 2000 signed the Hmong Veteran's Naturalization Act, facilitating their naturalization by waiving the English language requirement and providing special consideration for the civics requirement. Hmong veterans' spouses and spouses of veterans killed in Laos, Thailand, or Vietnam also became eligible for U.S. citizenship.

In more recent years, Asian Americans have joined with activists in Asia to pursue redress claims as a result of atrocities committed during World War II. For example, Asian American support has grown for Korean women who suffered as sexual slaves, euphemistically known as "comfort women," for the Japanese military during World War II. Throughout the 1990s, the redress effort for these women focused on legal claims filed in Japanese and U.S. courts that ultimately were dismissed and on criticism of the Japanese government's creation of the Asian Women's Fund, a private foundation, in 1994. Some of the former sex slaves refused to accept the fund's private "charity" of approximately $20,000 because it was not official government compensation. The struggle continued and intensified as women's rights and human rights activists in Japan, Korea, China, and the United States focused on passing government resolutions, building memorials, and revising history textbooks to publicize the women's wartime suffering to the international community. In 2015 an agreement between Japan and South Korea made Japan's culpability more explicit through its direct apology and payment of $8.3 million to the few surviving victims.

The U.S. Congress apologized to the Native Hawaiian people in 1993 for the military's role in overthrowing indigenous rule and acknowledged that Native Hawaiians never gave up claims for sovereignty. This action revitalized sovereignty claims by Native Hawaiian activists who have refused to subsume Pacific Islanders as part of the Asian American community and who argue that Asian Americans have also colonized and oppressed Native Hawaiians. In 1959, the people of Hawai'i voted to become a U.S. state. Activists attacked the election because it failed to include the option of becoming an independent nation. Some campaigned for a UN hearing on Hawaiian decolonization, while others pushed for federal funds for Native Hawaiian health, education, and housing.

Activists in Guam have also criticized the history of U.S. colonial rule. In 1951 the United States signed a peace treaty with Japan that barred Guamanians from directly seeking redress for war crimes Japanese soldiers committed during World War II. Seventy years after the war ended, activists continue to lobby the U.S. Congress to resolve these war claims. Other Guamanians have attempted to expose the history of the U.S. discrimination of the indigenous Chamorro population. Some groups have campaigned for the U.S. territory to become a commonwealth or a state. Other activists have fought for complete separation from the United States and the removal of U.S. military bases.

DOCUMENTS

These documents demonstrate the diverse campaigns for redress by Asian Americans and Pacific Islanders. Many Japanese American former internees found it too painful to remember or discuss their wartime experiences until 1981 when a government commission held twenty days of hearings throughout the country. The commission's report, excerpted in Document 1, proclaimed that the internment was unjustified and caused tremendous suffering. Document 2 provides excerpts from the 1984 decision by District Court Judge Marilyn Hall Patel that vacated the wartime conviction of Fred Korematsu for violating mass removal orders on the grounds that the Justice Department had deliberately concealed FBI, military intelligence, and Federal Communications Commission evidence from the Supreme Court.

In Document 3, Haunani-Kay Trask, a Native Hawaiian activist and professor of Hawaiian studies at the University of Hawai'i, Manoa, criticizes Asian American scholars and activists for framing the struggle for Hawaiian sovereignty as a domestic civil rights issue rather than as an international human rights issue. Denouncing "Asian settler" scholarship for assuming the authority to speak for and about Native Hawaiians, Trask calls for an acknowledgment of the role of Asian Americans in the oppression of Native Hawaiians.

Documents 4 to 7 address grievances beyond Japanese American redress that stemmed from mistreatment during World War II. In Document 4, Franco Arcebal urges Congress to pass the Filipino Equity Act to make up for the U.S. government's failure to adhere to its promise to treat Filipinos as American veterans. A guerilla intelligence officer, Arcebal was tortured, sentenced to death, escaped, and helped liberate the Philippines from Japanese occupation. In Document 5, Yong Soo Lee, a former Korean sex slave of the Japanese military, urges Congress to pressure Japan to formally and unequivocally apologize for coercing young women into sexual slavery. She describes being beaten and repeatedly raped for three years and enduring this trauma in silence and shame for decades later. Lee asks Congress to pass House Resolution 121, presented in Document 6. Introduced by Representative Michael Honda, the resolution calls on Japan to formally and unequivocally apologize for coercing young women into sexual slavery. Honda, a third-generation Japanese American and former internee, spearheaded the campaign because he viewed the suffering of military sexual slaves as a crime against humanity. Document 7 excerpts the 2009 testimony of Japanese Peruvian internee Libia Yamamoto, who requests that Congress create a commission to investigate why she and her family were kidnapped and imprisoned without trial during World War II. Yamamoto was seven years old when she and her family left everything they had in Peru and took only what they could carry to join her father at the Crystal City camp in Texas. After confiscating their passports and other forms of identification, the U.S. government branded them all "illegal aliens" and tried to deport them to Japan after the war.

Documents 8 and 9 reflect the impact of activism on self-determination campaigns in Guam and Hawai'i. Document 8 excerpts public statements by

Hope Alvarez Cristobal, a Chamorro and former senator in Guam, in which she asks a UN Special Committee to recognize that the United States has a history of violating Chamorro sovereignty and should make amends by recognizing Guamanian independence. Criticizing plans to rebase U.S. marines from Japan to Guam, Alvarez denounces the impact on population growth, local infrastructure, and the environment. Document 9 reprints Kana'iolowalu Act 195, a 2011 Hawaiian state law that supports the development of a reorganized Native Hawaiian governing entity. Kana'iolowalu is the Hawaiian name for the Native Hawaiian Roll Commission that, on July 10, 2015, certified a list of more than 95,000 qualified Native Hawaiians to participate in future nation-building campaigns.

1. A Government Commission Proclaims Internment a "Grave Injustice," 1982

The exclusion, removal and detention inflicted tremendous human cost. There was the obvious cost of homes and businesses sold or abandoned under circumstances of great distress, as well as injury to careers and professional advancement. But, most important, there was the loss of liberty and the personal stigma of suspected disloyalty for thousands of people who knew themselves to be devoted to their country's cause and to its ideals but whose repeated protestations of loyalty were discounted—only to be demonstrated beyond any doubt by the record of Nisei soldiers, who returned from the battlefields of Europe as the most decorated and distinguished combat unit of World War II, and by the thousands of other Nisei who served against the enemy in the Pacific, mostly in military intelligence. The wounds of the exclusion and detention have healed in some respects, but the scars of that experience remain, painfully real in the minds of those who lived through the suffering and deprivation of the camps....

The Effect of the Exclusion and Detention

The history of the relocation camps and the assembly centers that preceded them is one of suffering and deprivation visited on people against whom no charges were, or could have been, brought. The Commission hearing record is full of poignant, searing testimony that recounts the economic and personal losses and injury caused by the exclusion and the deprivations of detention. No summary can do this testimony justice....

The promulgation of Executive Order 9066 was not justified by military necessity, and the decisions which followed from it—detention, ending detention and ending exclusion—were not driven by analysis of military conditions.

From Commission on Wartime Relocation and Interment of Civilians, *Personal Justice Denied: Report of the Commission on Wartime Relocation and Internment of Civilians* (Washington, D.C.: U.S. Government Printing Office, December 1982), 3, 10–11, 18.

The broad historical causes which shaped these decisions were race prejudice, war hysteria and a failure of political leadership. Widespread ignorance of Japanese Americans contributed to a policy conceived in haste and executed in an atmosphere of fear and anger at Japan. A grave injustice was done to American citizens and resident aliens of Japanese ancestry who, without individual review or any probative evidence against them, were excluded, removed and detained by the United States during World War II.

2. A District Court Acknowledges Government Misconduct Before the Supreme Court During World War II, 1984

[19] The substance of the statements contained in the documents and the fact the statements were made demonstrate that the government knowingly withheld information from the courts when they were considering the critical question of military necessity in this case. A series of correspondence regarding what information should be included in the government's brief before the Supreme Court culminated in two different versions of a footnote that was to be used to specify the factual data upon which the government relied for its military necessity justification. The first version read as follows:

> The Final Report of General DeWitt (which is dated June 5, 1943, but which was not made public until January 1944) is relied on in this brief for statistics and other details concerning the actual evacuation and the events that took place subsequent thereto. *The recital of the circumstances justifying the evacuation as a matter of military necessity, however, is in several respects*, particularly with reference to the use of illegal radio transmitters and to shore-to-ship signalling by persons of Japanese ancestry, *in conflict with information in the possession of the Department of Justice. In view of the contrariety of the reports on this matter we do not ask the Court to take judicial notice of the recital of those facts contained in the Report.*
>
> Petitioner's Exhibit AA, Memorandum of John L. Burling to Assistant Attorney General Herbert Wechsler, September 11, 1944 (emphasis added).

The footnote that appeared in the final version of the brief merely read as follows:

> The Final Report of General DeWitt (which is dated June 5, 1943, but which was not made public until January 1944), hereinafter cited as Final report, is relied on this brief for statistics and other details concerning the actual evacuation and the events that took place subsequent thereto *We have specifically recited in this brief the facts relating to the*

From *Korematsu v. United States*, United States District Court, Northern District of California, 1984 584 F. Supp. 1406; reprinted in *American Justice: Japanese American Evacuation and Redress Cases*, ed. Nobuya Tsuchida (Minneapolis: University of Minnesota, Asian/Pacific American Learning Resource Center, 1988), 129–131.

justification for the evacuation, of which we ask the Court to take judicial notice, and we rely upon the Final Report only to the extent that it relates to such facts.

Brief for the United States, *Korematsu v. United States*, October Term, 1944, No. 22, at 11.

The final version made no mention of the contradictory reports. The record is replete with protestations of various Justice Department officials that the government had the obligation to advise the courts of the contrary facts and opinions. Petitioner's Exhibit A-FF. In fact, several Department of Justice officials pointed out to their superiors and others the "willful historical inaccuracies and intentional falsehoods" contained in the DeWitt Report....

... Omitted from the reports presented to the courts was information possessed by the Federal Communications Commission, the Department of Navy, and the Justice Department which directly contradicted General DeWitt's statements. Thus, the court had before it a selective record.

Whether a fuller, more accurate record would have prompted a different decision cannot be determined. Nor need it be determined. Where relevant evidence has been withheld, it is ample justification for the government's concurrence that the conviction should be set aside. It is sufficient to satisfy the court's independent inquiry and justify the relief sought by petitioner.

3. Hawaiian Sovereignty Leader Haunani-Kay Trask Criticizes Asian "Settler" Privilege and Collaboration with Colonialism, 2000

After nearly two thousand years of self-governance, we were colonized by Euro-American capitalists and missionaries in the eighteenth and nineteenth centuries. In 1893, the United States invaded our nation, overthrew our government, and secured an all-white planter oligarchy in place of our reigning *ali'i*, Queen Lili'uokalani. By resolution of the American Congress and against great Native opposition, Hawai'i was annexed in 1898. Dispossession of our government, our territory, and our legal citizenship made of us a colonized Native people.

Today, modern Hawai'i, like its colonial parent the United States, is a settler society. Our Native people and territories have been overrun by non-Natives, including Asians. Calling themselves "local," the children of Asian settlers greatly outnumber us. They claim Hawai'i as their own, denying indigenous history, their long collaboration in our continued dispossession, and the benefits therefrom.

Part of this denial is the substitution of the term "local" for "immigrant," which is, itself, a particularly celebrated American gloss for "settler." As on the continent, so in our island home. Settlers and their children recast the American

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"Settlers of Color and 'Immigrant' Hegemony: 'Loeals' in Hawai'i," by Haunani-Kay Trask from *Amerasia Journal* 26, no. 2. Copyright © 2000. Reprinted by permission of the Regents of the University of California. Reprinted by permission.

tale of nationhood: Hawai'i, like the continent, is naturalized as but another telling illustration of the uniqueness of America's "nation of immigrants." The ideology weaves a story of success: poor Japanese, Chinese, and Filipino settlers supplied the labor for wealthy, white sugar planters during the long period of the Territory (1900–1959). Exploitative plantation conditions thus underpin a master narrative of hard work and the endlessly celebrated triumph over anti-Asian racism. Settler children, ever industrious and deserving, obtain technical and liberal educations, thereby learning the political system through which they agitate for full voting rights as American citizens. Politically, the vehicle for Asian ascendancy is statehood. As a majority of voters at mid-century, the Japanese and other Asians moved into the middle class and eventually into seats of power in the legislature and the governor's house.

For our Native people, Asian success proves to be but the latest elaboration of foreign hegemony. The history of our colonization becomes a twice-told tale, first of discovery and settlement by European and American businessmen and missionaries, then of the plantation Japanese, Chinese, and eventually Filipino rise to dominance in the islands. Some Hawaiians, the best educated and articulate, benefit from the triumph of the Democratic Party over the *haole* Republican Party. But as a people, Hawaiians remain a politically subordinated group suffering all the legacies of conquest: landlessness, disastrous health, diaspora, institutionalization in the military and prisons, poor educational attainment, and confinement to the service sector of employment.

While Asians, particularly the Japanese, come to dominate post-Statehood, Democratic Party politics, new racial tensions arise. The attainment of full American citizenship actually heightens prejudice against Natives. Because the ideology of the United States as a mosaic of races is reproduced in Hawai'i through the celebration of the fact that no single "immigrant group" constitutes a numerical majority, the post-statehood euphoria stigmatizes Hawaiians as a failed indigenous people whose conditions, including out-migration, actually worsen after statehood. Hawaiians are characterized as strangely unsuited, whether because of culture or genetics, to the game of assimilation....

Against this kind of disparaging colonial ideology, Hawaiians have been asserting their claims as indigenous people to land, economic power and political sovereignty for at least the last twenty years. Hawaiian communities are seriously engaged in all manner of historical, cultural, and political education. *Hālau hula* (dance academies), language classes, and varied resistance organizations link cultural practice to the struggle for self-determination. In this way, cultural groups have become conduits for reconnection to the *lāhui*, or nation. Political education occurs as the groups participate in sovereignty marches, rallies, and political lobbying. The substance of the "nation" is made obvious when thousands of Hawaiians gather to protest the theft of their sovereignty. The power of such public rituals to de-colonize the mind can be seen in the rise of a new national identification among Hawaiians. After the 1993 sovereignty protests at the Palace of our chiefs, Hawaiians, especially the youth, began to discard national identity as Americans and reclaim indigenous identification as Natives....

On the international stage, the vehicle which has represented Hawaiians most effectively is Ka Lāhui Hawai'i [a native sovereignty organization]....

... [T]he goals of Ka Lāhui Hawai'i are simple: final resolution of the historic claims of the Hawaiian people relating to the overthrow, State and Federal misuse of Native trust lands (totaling some two million acres) and resources, and violations of human and civil rights. Resolution of claims will be followed by self-determination for Hawaiians; Federal recognition of Ka Lāhui Hawai'i as the Hawaiian Nation; restoration of traditional lands, natural resources, and energy resources to the Ka Lāhui National Land Trust....

Asians and *haole* have been thrown into a cauldron of defensive actions by our nationalist struggle. Either they must justify their continued benefit from Hawaiian subjugation, thus serving as support for that subjugation, or they must repudiate American hegemony and work with the Hawaiian nationalist movement. In plain language, serious and thoughtful individuals, whether *haole* or Asian, must choose to support a form of Hawaiian self-determination created by Hawaiians.

4. Filipino Veteran Franco Arcebal Calls on Congress to Restore the Citizenship He Was Promised During World War II, 2007

Mr. Arcebal. Honorable Chairman and Members of the House Committee on Veterans' Affairs, good morning, and Happy Valentine's Day.

Thank you for including me in this panel today. My name is Franco Arcebal, a Filipino World War II veteran, and the Vice President of Membership of the American Coalition for Filipino Veterans, Incorporated.

Our nonprofit, nonpartisan advocacy organization has more than 4,000 individual members in the United States. I am now 83 years old and a retired sales executive. I reside in Los Angeles.

Thank you for holding this early hearing on the equity bill, House Resolution 760 for Filipino World War II veterans. Never in the history of our long quest for recognition has this hearing been scheduled within 2 weeks after it was introduced. We owe this to the Honorable Bob Filner, our undaunted and tireless champion.

May we have an applause for him. [Applause.] The Chairman. You are all out of order. [Laughter.]

Mr. Arcebal. With twelve of my comrades for this allegiance, when we chained ourselves in front of the White House in July 1997—that is almost 10 years ago—sadly, we were unable to convince the Clinton Administration to support our bill.

I am honored to present the appeal of my comrades today. Like all of us, we have personal stories to tell about the war, and I want to give you a brief one.

Equity for Filipino Veterans: 'Hearing Before the Committee on Veterans' Affairs, U.S. House of Representatives, One Hundred Tenth Congress, first session, February 15, 2007, Volume 4, Serial No. 110–3, 1–2.

During the second World War, I was a guerrilla intelligence officer. I was caught and severely tortured by the Japanese soldier as a spy. I was sentenced by decapitation. Lucky for me, during the rainstorm at night, I was able to escape and fought again in the liberation of the Philippines against General Yamashita for seven continuous months in north Luzon until he surrendered in September 1945.

In 1997, I became a new U.S. permanent resident. At that time, I had a painful dental problem. I sought treatment at the Los Angeles VA clinic. I was terribly shocked when I was told my service in the U.S. Army forces was by law deemed not active service for the purposes of VA benefits.

I concluded that the United States whom I served loyally and risked my life did me injustice. I felt discriminated against. The denial of my benefit was a result of the "Rescission Act" of February 18, 1946, 60 years today this month. This law was enacted over the objection of President Truman.

Before this law, Filipino veterans were recognized as American veterans and entitled to all benefits. And today I expect many credible witnesses to present testimonies in favor of our bill. And I join this Colonel because it is my duty to speak on behalf of my comrades who are now elderly, disabled, and poor.

Over the past decades, our coalition mission was to restore full U.S. Government recognition and win equitable VA benefits. We believe that by passing the "Filipino Equity Act" or the realistic bill of our sponsors, we can finally overcome the discriminatory effects of the "Rescission Act."

We estimate that about 4,000 Filipino veterans in the United States and about 10,000 in the Philippines may benefit if this bill is approved.

Mr. Chairman, there are three requests I would like to make today from this Committee. First, pass an authorizing language of the equity bill, House Resolution 760, with a strong bipartisan support from this Committee.

Second, obtain an estimated budget of no less than $18 million from the Appropriations Committee with the support of President Bush and the support of our VA Secretary Nicholson that would provide an equitable VA benefit monthly in the amount of $200 per month for us low-income veterans.

Third, and this is very crucial to us, create a task force of representatives of the House Veterans' Affairs Committee, representative of the Secretary of the Veterans' Administration, a representative of the Philippine government, Philippine Embassy, and the leaders of key groups.

This task force should determine within 45 days the accurate number of living World War II Filipino veterans in the United States and in the Philippines, assess their economic and health needs, actual needs, and recommend a realistic budget. We must solve this national travesty now.

Let me close by quoting President Truman on February 20, 1946, when he objected to the "Rescission Act." And he said, I quote, "I consider it a moral obligation of the United States to look after the welfare of the Filipino veterans."

Thank you.

5. Yong Soo Lee Testifies Before Congress About Being a Military Sexual Slave of the Japanese During World War II, 2007

I remember crawling towards the bathroom, throwing up as I went along, when I was grabbed by a man and dragged into a cabin. I tried to shake him off, biting his arm. I did my best to get away. But he slapped me and threw me into the cabin with such force that I couldn't fight him off. In this way I was raped. It was my first sexual experience. I was so frightened that what actually happened didn't sink in at the time. I vaguely thought that this man had forced me into the room just to do this.

People kept shouting that we would all die since the ship had been torn to pieces. We were told to put life-jackets on and to stay calm. We thought we were going to drown. Dying seemed better than going on like this. But the ship somehow managed to keep going. Later I found out that I was not the only one who had been raped. Punsun and the others had also suffered that same fate. From then on, we were often raped on the ship. I wept constantly, until my eyes became swollen. I was frightened about everything. I think that I was too young to hold a grudge against my aggressors, though looking back I feel angry and full of the desire for revenge. At that time I was so scared I didn't even dare look any man squarely in the face. One day I opened the window of our cabin and tried to jump into the water. It would have been better to end my life then and there, I thought. But the water, blue-green and white with waves, scared me so much that I lost the courage to throw myself out.

Eventually we arrived in Taiwan. When we disembarked I couldn't walk properly as my abdomen hurt so much. My glands had swollen up in my groin, and blood had coagulated around my vagina. I could walk only with great difficulty, since I was so swollen that I couldn't keep my two legs straight.

The man who had accompanied us from Taegu turned out to be the proprietor of the comfort station we were taken to. We called him Oyaji. I was the youngest amongst us. Punsun was a year older than me and the others were 18, 19 and 20. The proprietor told me to go into a certain room, but I refused. He dragged me by my hair to another room. There I was tortured with electric shocks. He was very cruel. He pulled out the telephone cord and tied my wrists and ankles with it. Then, shouting '*honoyaro*!' he twirled the telephone receiver. Lights flashed before my eyes, and my body shook all over. I couldn't stand it and begged him to stop. I said I would do anything he asked. But he turned the receiver once more. I blacked out. When I came round my body was wet; I think that he had probably poured water on me.

Life in the Comfort Station

The comfort station was a two-storey Japanese-style building with 20 rooms. There were already many women there when we arrived. About ten, all of

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House of Representatives, Subcommittee on Asia, the Pacific, and the Global Environment, Committee on Foreign Affairs, 110th Congress, Feb. 15, 2007, 19–23.

whom looked much older than us, wore kimonos. There was a Japanese woman, the proprietor's wife. We changed into dresses given to us by the other women. The proprietor told us to call them '*nesang*,' 'big sister' and to do whatever they told us to. We began to take turns to wash their clothes and cook for them. The food was again not enough. We ate gruel made with millet or rice. I was terrified of being beaten; I was always scared. I was never beaten by soldiers, but I was frequently beaten by the proprietor. I was so frightened that I couldn't harbor any thoughts of running away. After having crossed an ocean and not knowing where I was, how could I think of escape?

The rooms were very small. Each was big enough for two people to lie down in. At the entrance of each hung a blanket in place of a door. The walls and floor were laid with wooden boards, and there was nothing else. We were each given a military blanket and had to sleep on the bare planks. One day, a man came in and asked my name. I was still frightened and just sat in a corner shaking my head without answering. So he said he would give me a name, and began to call me Tosiko. After that day I was always called Tosiko in the station.

We mainly had to serve a commando unit. They were not in the slightest way sympathetic towards us. They wore uniforms, but I had no idea whether they were from the army, navy or air force. I served four or five men a day. They finished their business quickly and left. Hardly any stayed overnight. I had to use old clothes, washed thoroughly, during my period. Even then I had to serve men. I was never paid for these services.

There were frequent air raids, and on some days we had to be evacuated several times. Whenever there was a raid, we were forced to hide ourselves in mountain undergrowth or in a cave. If the bombing ceased, the men would set up make-shift tents anywhere, on dry fields or in paddies, and they would make us serve them. Even if the tents were blown down by the wind, the men didn't pay any attention but finished what they were doing to us. Those men were worse than dogs or pigs. They never wore condoms. I don't remember ever having a medical examination.

One day, while we were in an underground shelter, the comfort station collapsed in a bombing attack. Our shelter was buried under the rubble. We dug through the soil, trying to get out. After a while we saw light through a small hole. I was incredibly relieved to be able to look out and shouted 'At last I can see outside!' Then I smelt smoke, and blood gushed out of my nose and mouth. I lost consciousness. The proprietor's wife and mistress both died. As the house had collapsed, we were moved into a bomb shelter at the foot of a hill, and there we again had to serve the men. After a while, the proprietor got hold of some material and built a rough and ready house. It didn't take him long. We continued to serve the men. In the end I was infected with venereal disease and the proprietor gave me the injection of the serum known as No. 606, which was used before penicillin became widely available. The fluid had a reddish tint. The disease stayed with me for a long time because I had to continue to serve men before I was clear. So I had to have constant injections. There was no hospital or clinic in the vicinity. Medical care—such as it was—was haphazard.

Apart from going to the bomb shelters we weren't allowed out at all. We were warned that if we tried to venture beyond the confines of the station we would be killed, and I was sufficiently scared not to try anything. The men we served in the unit were all young; they seemed to be 19 or 20 years old, not much older than we girls were.

One evening, a soldier came to me and said he would be in combat later that same evening and that this battle would mark the end of his early life. I asked him what his commando unit was. He explained that one or two men would fly an airplane to attack an enemy ship or base. They would be suicide pilots. He gave me his photo and the toiletries he had been using. He had come to me twice before and said he had got venereal disease from me. He said he would take the disease to his grave as my present to him. Then he taught me a song:

I take off with courage, leaving Sinzhu behind,
Over the golden and silver clouds.
There is no one to see me off:
Only Tosiko grieves for me.

Until then I had known we were somewhere in Taiwan, but because we were kept in such close confinement and isolation, I had no idea of exactly where. From his song I learned we were in Sinzhu.

When we were evacuated to avoid the bombing we stole sugar cane. We were that hungry. But if we were caught we were beaten. We were not allowed to speak in Korean. Again, if we were caught doing so, we were beaten.

The War Ends

One day, one of the older girls who normally hardly spoke a word to us announced that she, too, was Korean. She told me, in Korean, that the war was over. We hugged each other and wept with joy. She held my hand tightly and told me I must return to Korea. We could hear people shouting and running about. This confirmed to us that the war was really over. By the time we had calmed down, the proprietor and the other women who had been at the station before us were nowhere to be found. We walked to a refugee camp by the pier. It looked like a warehouse. We were given balls of boiled rice which had dead insects mixed in. We waited for a ship. I was scared even then that someone might drag me away, so I sat, shaking with fear, in a corner wrapped in a blanket. I kept crying so much that my small eyes got even smaller.

We finally got a ship. When it arrived in Pusan, the barley was green. As we disembarked, someone sprayed us with DDT and gave us each 300 won. There were four of us: Punsun, two other girls, and myself. We said farewell and went our separate ways. I got a train to Taegu. I kept weeping and tried to hide myself from other passengers in fear that someone might take me away again. I found my house, just as run down and poor as before. My mother asked if I was a ghost or a real person and fainted.

After my return, I couldn't dare think about getting married. How could I dream of marriage? Until recently I had suffered from venereal disease. My parents and brothers did not know what I had been through; I could not tell them. My father was upset merely because his only daughter wouldn't get married. Both my parents resented the fact that they weren't able to see me hitched before they died. I worked in a drinking house which also sold fishballs, and I ran a small shop on the beach in Ulsan. For some time I ran a small market stall selling string. Then I worked as a saleswoman for an insurance company. I gave up when I began to get too old.

Return My Youth to Me!

In 1992, encouraged by the existence of the Korean Council for the Women Drafted for Military Sexual Slavery by Japan, I told my story. It poured out from me and I felt so relieved, but I was also faced with the question, How many more years can I live?

I am grateful that the Korean Council is trying to help us. These days I hum a song, Katusa, putting my own words to the tune: 'I am so miserable; return my youth to me; apologize.... You dragged us off against our own will. You trod on us. Apologize ... This lament, can you hear it, my mother and father? My own people will avenge my sorrows.'

I visited my parents' graves the other day. I said to them: 'Mother, I know you won't come back to life however much I may wish for it. My own people will avenge me. Please close your eyes and go to paradise.'

Mr. Chairman, members of the subcommittee, thank you again for this opportunity to appear before you and tell my story. I am happy to answer any questions you might have.

6. House Resolution 121 Urges Japan to Apologize for Coercing "Comfort Women" into Sexual Slavery During World War II, 2007

In the House of Representatives, U.S.,

July 30, 2007.

Whereas the Government of Japan, during its colonial and wartime occupation of Asia and the Pacific Islands from the 1930s through the duration of World War II, officially commissioned the acquisition of young women for the sole purpose of sexual servitude to its Imperial Armed Forces, who became known to the world as *ianfu* or "comfort women";

Whereas the "comfort women" system of forced military prostitution by the Government of Japan, considered unprecedented in its cruelty and magnitude, included gang rape, forced abortions, humiliation, and sexual violence resulting

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House of Representatives, Subcommittee on Asia, the Pacific, and the Global Environment, Committee on Foreign Affairs, 110th Congress, July 30, 2007.

in mutilation, death, or eventual suicide in one of the largest cases of human trafficking in the 20th century;

Whereas some new textbooks used in Japanese schools seek to downplay the "comfort women" tragedy and other Japanese war crimes during World War II;

Whereas Japanese public and private officials have recently expressed a desire to dilute or rescind the 1993 statement by Chief Cabinet Secretary Yohei Kono on the "comfort women," which expressed the Government's sincere apologies and remorse for their ordeal;

Whereas the Government of Japan did sign the 1921 International Convention for the Suppression of the Traffic in Women and Children and supported the 2000 United Nations Security Council Resolution 1325 on Women, Peace, and Security which recognized the unique impact on women of armed conflict;

Whereas the House of Representatives commends Japan's efforts to promote human security, human rights, democratic values, and rule of law, as well as for being a supporter of Security Council Resolution 1325;

Whereas the United States-Japan alliance is the cornerstone of United States security interests in Asia and the Pacific and is fundamental to regional stability and prosperity;

Whereas, despite the changes in the post-cold war strategic landscape, the United States-Japan alliance continues to be based on shared vital interests and values in the Asia-Pacific region, including the preservation and promotion of political and economic freedoms, support for human rights and democratic institutions, and the securing of prosperity for the people of both countries and the international community;

Whereas the House of Representatives commends those Japanese officials and private citizens whose hard work and compassion resulted in the establishment in 1995 of Japan's private Asian Women's Fund;

Whereas the Asian Women's Fund has raised $5,700,000 to extend "atonement" from the Japanese people to the comfort women; and

Whereas the mandate of the Asian Women's Fund, a government-initiated and largely government-funded private foundation whose purpose was the carrying out of programs and projects with the aim of atonement for the maltreatment and suffering of the "comfort women," came to an end on March 31, 2007, and the Fund has been disbanded as of that date: Now, therefore, be it

Resolved, That it is the sense of the House of Representatives that the Government of Japan—

(1) should formally acknowledge, apologize, and accept historical responsibility in a clear and unequivocal manner for its Imperial Armed Forces' coercion of young women into sexual slavery, known to the world as "comfort women," during its colonial and wartime occupation of Asia and the Pacific Islands from the 1930s through the duration of World War II;

(2) would help to resolve recurring questions about the sincerity and status of prior statements if the Prime Minister of Japan were to make such an apology as a public statement in his official capacity;

(3) should clearly and publicly refute any claims that the sexual enslavement and trafficking of the "comfort women" for the Japanese Imperial Armed Forces never occurred; and

(4) should educate current and future generations about this horrible crime while following the recommendations of the international community with respect to the "comfort women."

7. Japanese Latin American Libia Yamamoto Remembers Being Held as a Hostage During World War II, 2009

Finally, after an entire month of excruciating mental anguish during which we heard no news of him, we received a letter from my father. The timing was perfect; it came on my sister's birthday: February 13th. He wrote telling us that he was OK and in Panama. For my sister, he enclosed some pressed flowers as a present to her. He apologized for not being there for her or having a gift for her on her birthday but hoped that those pressed flowers would do. That was the best present my sister and the entire family could have had on that day. We were just so happy to hear that he was alive and that he was OK. It was only later on that we found out that he and the others were working digging ditches in a military army camp; many of them were terrified at the idea that they were digging their own graves.

Fortunately, they were not, and my father and the others were taken to Department of Justice camps in Texas. There, their passports and paperwork were confiscated. It is in these camps that my father found out that they were going to be shipped to Japan in a prisoner exchange program. This news terrified my father and the others, and they began protesting because they knew that being sent to Japan would certainly mean separation from their families.

A 'compromise' was reached and the so-called 'solution to this problem' was to reunite these men with their families in Department of Justice camps. I think the U.S. government did not mind this solution because, in effect, it provided more persons for the hostage exchange program with Japan. In most cases after the initial separation of fathers from their families, they were reunited in Crystal City camp. However, there were some families who were never able to reunite. My heart goes out to those who had family members just disappear, never seeing their father, or mother, sister, or brother or other close relatives.

In this respect, I was one of the 'lucky ones.' Somehow, my father was able to communicate to my mother instructions on how to get rid of the inventory from the store, and as I recall she went to work, fast and furious....

We left Peru from the Port of Callao [Peru] in July of 1943, bringing only what we could carry. Boarding the ships in Callao was horrifying because there were soldiers on those ships pointing their big guns at us. We had never seen guns that close to us, and even worse, pointed at us as if we were horrible people.

"Libia Yamamoto Testimony," March 19, 2009, Hearing on: The Treatment of Latin Americans of Japanese Descent, European Americans, and Jewish Refugees During World War II, 2–7.

The entire trip last 21 days, and we were not allowed to leave our cabins, which were unbearably small and cramped. We were not allowed on deck, so we could not see what was going on outside. Many folks got seasick in the cabins, which made the situation even worse. I especially remember the ship going through a very strong storm, which made almost everybody sick.

When we got to New Orleans, we were finally allowed off the ship. There, officials inspected all the belongings that everybody had brought. My mother had to take my sister to the bathroom, so she told me to look after all our luggage. While my mother was gone, I saw the inspectors go through people's luggage, taking things and throwing them in the water. The water was full off boxes, memories, and people's valuables. I was frightened at what they were doing. As for myself, I only had one object that was important to me. It was the doll my father had brought me while I was sick at three-years-old. Back in Peru, my mother had told my siblings and me that we could only bring one thing that was ours to the U.S. There was nothing for me to think about. This was the only possession that mattered to me because it represented the love of my father and everything he meant to me. I silently pleaded: "Take anything, just not my doll." My mother was still in the bathroom when the inspectors reached me. To this day, I am not certain as to why, but the inspectors did not throw the doll away, in fact they did not do a very thorough search. Maybe they felt sorry for me, a seven-year old girl guarding her family's luggage with fear in her eyes.

When we finally reached Texas, we expected to see my father, but didn't. We were told that we would see him in one week. I remember when I did see him for the first time and being so happy and hugging him. He had lost a lot of weight. He said he was fine, but he didn't look fine. Even so, we were just so glad to see him. Reuniting with him after such a long time felt so good that the guard towers with the machine guns pointed at us didn't seem that bad. Still, in all our relief, I remember it was made very clear to all of us not to get too close to the fence because we would get shot.

I think that life in the camps was a lot tougher for my parents than it was for us children. Our parents made it so that the children could have as normal a life as possible in the camp. Most of all, being reunited with my father seemed to be enough to help my family get through this difficult time.

At the end of the war, we faced even more trying times. The U.S. government told us to leave the country in which we had been imprisoned against our will. They told us we were "illegal aliens." But how could we be "illegal aliens" when they were the ones who brought us here and confiscated our passports? It was all very frustrating and infuriating. It was like we had no rights; we were treated like we were not even human beings, and they could do with us as they pleased. We could not go back to Peru, as the Peruvian government refused to take back the Japanese folks it had sent to the U.S. There was no choice but to go to Japan. My sister and her family went to Japan first, and we knew things were not bright due to the devastation the war had caused. My sister wrote to us that her family had to pull out weeds from the ground just to feed themselves and little Sumiko, her five-month-old baby, died from malnutrition.

When it was our family's turn to leave, my father became very ill, and our deportation to Japan had to be cancelled. But by this time, the government said that if we could find our own sponsors to stay in the U.S., we could stay. Fortunately, we had relatives in Berkeley who sponsored us. However, we had to pool together our own travel money. My father used what little money he had been fortunate to earn doing underpaid work in the camps. We left camp in 1947. By this time, I had reached twelve-years-old.

Once in Berkeley, we couldn't find a place to stay. But my relatives talked to their church and the church allowed us to use two rooms in the church's basement as bedrooms. We lived there for eleven months. Because my parents didn't speak English, they both had to take whatever job was available to them. For my parents, this whole transition was very, very difficult. They found themselves doing the kind of work that they were not used to doing. In Peru, they had been the ones hiring domestic workers, and now they were doing that work themselves. This made my parents think more and more about everything they had lost in Peru. Not just the financial success, but the prestige and status they held in the community as well.

The transition was very tough for me as well. Because my parents were always working, I had to do all the heavy housework and take care of my younger siblings. So, at the age of twelve, I had to do the family laundry by hand, with a dashboard. My hands weren't very big, and it took a lot of effort and time for me to do it. I also had to change the dirty water I used to wash the laundry, and this was way too much weight for my 12-year-old body.

At school, learning English proved a harrowing task. I vividly remember kids making fun of my imperfect pronunciation, asking me to repeat a word over and over again just because they were amused by the way I said it. I felt like an outsider and was completely mortified.

But we all got through it by working hard. My father always told me that no matter what I did, I should always do my best. He'd say, "Nobody can say anything if you do your very best." This life lesson carried me through adulthood. No matter what I did I always tried to do my best.

As difficult as things were for them during this time, my parents would prepare care packages to send to our relatives in Japan who were less fortunate. My parents always sent them coffee, tea, candy – all kinds of things.

The fall from what our lives had been in Peru to what they became in Berkeley seemed precipitous. We became very poor and struggled all the way through. As a family with five children, it was very rough for all of us. Father was never able to get back what he had accomplished in Peru. He and mother would be stuck doing manual labor until their retirement....

I just wonder when reflecting upon all of this ... was it really necessary to turn our lives upside down? For ten years, after being forcibly removed from our home country and taken to the United States, we lived as a people without a state, labeled as "illegal aliens." We had been living a good life in Peru, a country that was not involved in the war. So to remove us from our country, where I was born, to bring us to a strange land and force us to live in a concentration camp... I don't know if it was absolutely necessary. We didn't commit any crime, and they would never charge us with anything. We had no trial.

All we are asking for here today is a much needed investigation into our experience and the experiences of so many other Latin Americans of Japanese descent who were also kidnapped from their homes in twelve other Latin American countries. I come here today to ask that you consider this bill that would only bring justice to those who were affected by shedding light on these WWII violations that remain with so many of us today and with this nation.

8. Hope Alvarez Cristobal Argues for Guamanian Self-Determination and Decolonization, 2010

What we find unacceptable, Mr. Chairman, is that the administering power's WWII adversary, Guam's brutal occupier of WWII, Japan, is now complicit in Guam's modern day colonization and militarization through its joint Bi-lateral Agreement with the U.S. With respect to Guam, the Special Committee's work was not only stymied; rather, it has been made to fail in its mission to make colonialism a fact of the past—in not having developed a programme of work for the decolonization of the NSGT [Non-Self-Governing Territory] of Guam in view of the US's active, massive militarization plans. Included is the failure in dispatching a UN visiting mission at the time Guam was actively negotiating its political status over two decades ago; and today, with US plans for our militarization.

For 21st century Guam, it is déjà vu old-style colonialism again. This time it is not 17th C. Spain but the US administering Power utilizing its military forces in a kind of "*reduccion*" process of "subduing, converting and gathering the natives through the establishment of missions and stationing of soldiers to protect those missions." The exploitation of our colonial status as a people, U.S. militarization, assimilationist immigration policies, the rising tide of cultural genocide, environmental degradation and contamination, the dispossession of our lands, etc., are direct violations of our rights as NSG people....

Clearly, the US continues to behave contrary to its concrete UN obligations as the administering Power over Guam. There is no mistaking that US dominance and subordination of Guam is a consequence of US military power dynamics over the Asia-Pacific region. And, without the United Nations assertion of its moral authority and oversight of its non self-governing territory of Guam, our home island and our people will continue to be treated as inferior having no sovereignty or agency in relation to US foreign policy and security interests. Gone unchallenged, the possibility of a free, decolonized and self-governing Guam will be sealed and buried under by our own administering Power.

At his opening statement of the House Armed Services Committee hearing on March 25, 2010, Congressman Ike Skelton spoke about the rebasing of U.S. Marines from Japan to Guam as "one of the largest movements of military assets in decades"—estimated to cost over ten billion dollars. He further stated that the

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Hope Alvarez Cristobal, "The Question of Guam," Statement of the Guahan Coalition for Peace and Justice and the Chamorro Studies Association, Before the United Nations Special Committee on the Situation with Regard to the Implementation of the Granting of Independence to Colonial Countries and Peoples (C-24), 2010 Pacific Regional Seminar, May 18–20, 2010, 3–8. Reprinted by permission.

changes being planned as part of that move will not only affect U.S. bilateral relationship with Japan; they will shape U.S. strategic posture throughout the critical Asia-Pacific region for 50 years or more. Congressman Skelton stated that the US "must be proactively engaged in the Asia-Pacific region on multiple fronts," and that U.S. actions may well influence the choices and actions of others." For Guam, our exclusion from the decision made about the massive militarization of our island home through US military expansion and restructuring of its bases and military operations is unconscionable. Moreover, we have had no choice and no options offered vis-à-vis our colonial status or US actions having political implications on our colonial status....

On The Human Environment

Mr. Chairman, the U.S. military's militarization plans bodes great harm for the people and our island home environment. These plans include the construction of facilities and structure to support the full spectrum of warfare training for some 8,600 marines (and their dependants) being relocated from Okinawa to Guam; the construction of a deep-draft wharf in Guam's only harbor to provide for nuclear-powered aircraft carriers, destroying over 287,000 sqm (71 acres) of healthy and endangered coral reef; the construction of an Army Missile Defense Task Force modeled on the Marshall Islands-based Ronald Reagan Ballistic Missile Defense Test Site, for the practice by US military personnel of intercepting intercontinental ballistic missiles; the forcible land-grabbing of an additional 2,200 acres of indigenous Chamorro land; the desecration of Pagat, one of Guam's oldest ancient villages dating back to 2,000 B.C.; the dangerous overtapping of Guam's water system to include the drilling of 22 additional wells; and the denial of the most fundamental human right of the Chamorro people of Guam to self-determination.

The militarization plan calls for an alarming 80,000 new residents within the next five years. These new residents include the 8,600 Marines and 1,000 Army troops with 9,000 of their dependents and large numbers of construction workers that will add to our current 180,000 residents. This is obviously not about demographics alone as we see US hegemony flourish and cultural genocide work for the administering power. As non-US citizens after WWII, we were over 95% of the population. As United States citizens 50 years later, our population is reduced to 42% (2000 Census). Five years ago, we comprised some 35% of our home population. But with the new US plan, the Chamorro population can be expected to drop to around 24%! This is perhaps the most plausible reason why all information impacting our people's lives were kept secret until the official release of the draft environmental impact study last November 20, 2009....

The selective and exclusive sharing of information on the military's plans prevented our full participation and served to silence our voices in this critical process. The community scrambled to respond to the 11,000-page report within the rigid schedule. The "record speed" of a two-year environmental impact study for such unprecedented militarization of a non self-governing territory was obviously suspect. We were not told about the 80,000 people or that the

US had planned to go outside their existing footprint. At the public outreach meetings, hundreds spoke resoundingly against the military's plans. At the close of the public comment window, the military received over 10,000 comments from various indigenous Chamorro groups, community members and stakeholders and other external stakeholders.

The fear of being overwhelmed by the construction of a new US Marine base has permeated the community. In reference to the local government's costs grossly underfunded in the plan, Lt. Governor Michael Cruz, M.D. who himself is a Colonel in the Army National Guard, stated "Our nation knows how to find us when it comes to war and fighting for war, but when it comes to war preparations—which is what the military buildup essentially is—nobody seems to know where Guam is." Government officials put the total direct and indirect costs of coping with the military buildup at about $3 billion, including $1.7 billion to improve roads and $100 million to expand the already overburdened public hospital.

Three days after the DEIS [Draft Environmental Impact System] was released, the Pacific Daily News conducted a straw poll asking, "Do you support the Guam buildup?" Of 773 respondents, 55% stated "No" and 45% stated "Yes." Since then, the community has been flooded with all kinds of pro-military community relations activities. We have also seen a steady stream of federal officials and Japanese officials visit our island.

Last January 22, the 30th Guam Legislature adopted a resolution expressing the "strong and abiding opposition of the Guam Legislature and the People of Guam to any use of eminent domain [condemnation] for the purpose of obtaining Guam lands for either the currently planned military buildup or other U.S. Federal Government purposes, or both." Copies were transmitted to the President of the United States, the Speaker of the House of Representatives of the United States, the President Pro-Tem of the U.S. Senate, to UN Secretary General, Ban Ki-moon, and other officials....

Of grave concern is the fact that Chamorro self-determination and decolonization was not even addressed by the military in the DEIS and the fact that decisions have been made in the context of a huge power imbalance in which the US has the ultimate decision-making power with the social, cultural and political implications to the Chamorro community being grossly understated. It is no secret that the US and its military representatives are fully cognizant of the irreversible and significant consequences that their decision will have on its colonial people. Broad concerns relating to local infrastructure, environmental, labor and workforce, socioeconomic and health and human services are being discussed among government and military officials. But the difference is: The US has completely ignored the negative implications to its colonial people's human, political and legal right to self-determination. Just as select private businesses collectively predict positive gain by Guam's militarization, the Chamorro people alone have historically and will predictably bear the unequal proportion of the burden.

On the last day of the public comment period, the federal Environmental Protection Agency issued the lowest possible rating of the DEIS of "environmentally

unsatisfactory" and providing "inadequate information." In its strongly worded six-page letter, the US EPA stated that "The impacts are of sufficient magnitude that ... action should not proceed as proposed and improved analyses are necessary to ensure the information in the EIS is adequate to fully inform decision makers." Specifically, the EPA stated that the military's plan would lead to:

a. A shortfall in Guam's water supply, resulting in low water pressure that would expose people to water borne diseases from sewage.
b. Increased sewage flows to wastewater plants already failing to comply with the Clean Water Act regulations.
c. More raw sewage spills that would contaminate the water supply and the ocean.
d. "Unacceptable impacts" to the 287,000 sqm (71 acres) of a high quality coral reef.

But even with this indictment of its draft EIS, the military continues with its military expansion and restructuring plans today....

Obstacles/Opportunities/Recommendations

The Question of Guam shall remain a question of Chamorro self-determination and decolonization for Guam. As a process of decolonization, the exercise of Chamorro self-determination must necessarily occur outside the influences of the administering Power and with the cooperation of the United Nations.

We make the following recommendations to this seminar:

1. That the inalienable right of the Chamorro people of Guam to self-determination in conformity with all relevant UN documents be given utmost priority by the Special Committee on Decolonization in view of the administering power's massive militarization planned from 2010 to 2014.
2. That a *customized* process of decolonization for the Chamorro people of Guam be immediately adopted in view of the severe irreversible impacts on Guam by the US administering power.
3. That an investigation be conducted as to the compliance of the administering power with its treaty obligations under the Charter of the United Nations to promote the economic and social development and to preserve the cultural identity of the Territories as related earlier in this text.
4. That a study be conducted on the implications of US militarization plans on Guam's decolonization and that UN funding be allocated immediately.
5. That the UN denounce the militarization of the non-self-governing territory of Guam without the consent of the people of Guam due to irreparable harm to the inalienable human rights of the Chamorro people and interests of the people of Guam.
6. That a work programme be adopted by the Special Committee to carry out its objectives for the decolonization of Guam.

Closing

Thank you, Mr. Chairman and delegations for the opportunity to make this presentation. My people's journey towards decolonization is at a very critical juncture. We can only rely on the United Nations to assure that the US live up to its obligations under the United Nations Charter and to its promise of self-determination and decolonization for the people of Guam.

9. Hawaiian State Law, Act 195, Creates a Commission to Enroll Native Hawaiians to Organize a Sovereign Government, 2011

KANA'IOLOWALU Act 195

SECTION 1. The legislature finds that the State has never explicitly acknowledged that Native Hawaiians are the only indigenous, aboriginal, maoli [native] population of Hawai'i.

Native Hawaiians are the indigenous, native people of the Hawaiian archipelago and are a distinctly native community. From its inception, the State has had a special political and legal relationship with the Native Hawaiian people and has continually enacted legislation for the betterment of their condition.

In section 5(f) of the Admission Act of 1959, Congress created what is commonly known as the ceded lands trust. The ceded lands trust, consisting of lands, including submerged lands, natural resources, and the proceeds from the disposition or use of those lands—purportedly ceded to the United States by the Republic of Hawai'i—is for five purposes, one of which remains the betterment of the conditions of native Hawaiians.

At the 1978 Constitutional Convention, the delegates proposed a constitutional amendment to establish the office of Hawaiian affairs. The amendment was ratified by the voters on November 7, 1978, and codified as article XII, sections 5 and 6 of the Hawai'i State Constitution, and in chapter 10, Hawai'i Revised Statutes.

The State's designation of the office of Hawaiian affairs as a trust vehicle to act on behalf of Native Hawaiians until a Native Hawaiian governing entity could be reestablished reaffirmed the State's obligations to the Native Hawaiian people.

Delegates to the 1978 Constitutional Convention further proposed to amend the Hawai'i State Constitution to affirm protection of all "rights, customarily and traditionally exercised for subsistence, cultural and religious purposes and possessed by ahupua'a [traditional land division in Hawai'i] tenants who are descendants of native Hawaiians who inhabited the Hawaiian Islands prior to 1778..." Moreover, state law also specifically protects Hawaiians' ability to practice their traditional and customary rights. The federal and state courts have continuously recognized the right of the Native Hawaiian people to engage in customary and traditional practices on public lands.

In 1993, the United States formally apologized to Native Hawaiians for the United States' role in the overthrow of the Hawaiian Kingdom through Public

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Senate Bill No. 1520, State of Hawaii, Senate, 26th Legislature, 2011, http://www.capitol.hawaii.gov/session2011/Bills/SB1520_CD1_.HTM

Law 103-150 (107 Stat. 1510), commonly known as the "Apology Resolution." The Apology Resolution acknowledges that the illegal overthrow of the Hawaiian Kingdom occurred with the active participation of agents and citizens of the United States and further acknowledges that the Native Hawaiian people never directly relinquished to the United States their claims to their inherent sovereignty as a people over their national lands, either through a Treaty of Annexation or through a plebiscite or referendum. The Apology Resolution expresses the commitment of Congress and the President to acknowledge the ramifications of the overthrow of the Hawaiian Kingdom and to support reconciliation efforts between the United States and Native Hawaiians. Pursuant to the Apology Resolution, the United States Departments of Justice and the Interior conducted reconciliation hearings with the Native Hawaiian people in 1999 and issued a joint report entitled, "From Mauka to Makai: The River of Justice Must Flow Freely," which identified promoting the reorganization of a Native Hawaiian government as a priority recommendation for continuing the process of reconciliation. To further this process of reconciliation, Congress created the Office of Native Hawaiian Relations within the Department of the Interior, to consult with Native Hawaiians on the reconciliation process.

In December 2010, the Departments of Justice and the Interior reaffirmed the federal support for the Native Hawaiian Government Reorganization Act of 2010. This reaffirmation recognized that Native Hawaiians are the only one of the nation's three major indigenous peoples who currently lack a formal government-to-government relationship with the United States.

The United States became a charter member of the United Nations in 1945. The United States submitted Hawai'i as a territory of the United States to be listed as a non-self-governing territory entitled to self-government under Article 73, Charter of the United Nations, via United Nations General Assembly Resolution 66 (1946), although it was later de-listed at the time of statehood. Also in December 2010, the United States endorsed the United Nations Declaration on the Rights of Indigenous Peoples, which acknowledged, among other things:

ARTICLE 3 — **Indigenous peoples have the right to self-determination. By virtue of that right they freely determine their political status and freely pursue their economic, social and cultural development.**

The United States' endorsement of the United Nations Declaration on the Rights of Indigenous Peoples included recognition of its support not only for the Native Hawaiian Government Reorganization Act of 2010 but also many additional laws for Native Hawaiians such as the National Historic Preservation Act, the Native Hawaiian Education Act, the Native American Housing Assistance and Self-Determination Act, and the Native American Graves Protection and Repatriation Act.

Native Hawaiians have continued to maintain their separate identity as a single, distinctly native political community through cultural, social, and political institutions and have continued to maintain their rights to self-determination, self-governance, and economic self-sufficiency.

The State has supported the reorganization of a Native Hawaiian governing entity. It has supported the Sovereignty Advisory Council, the Hawaiian

Sovereignty Advisory Commission, the Hawaiian Sovereignty Elections Council, and Native Hawaiian Vote, and the convening of the Aha Hawai'i 'Oiwi (the Native Hawaiian Convention). The legislature has adopted various resolutions during its regular sessions throughout the 1990s and 2000s. The Governor has testified before Congress regarding the State's support for Native Hawaiians as the indigenous people of Hawai'i with the right to self-government. Recognizing the likelihood of a reorganized Native Hawaiian governing entity, the State has also provided for the transfer of the management and control of the island of Kahoolawe and its waters to the sovereign Native Hawaiian entity upon its recognition by the United States and the State of Hawai'i.

The purpose of this Act is to recognize Native Hawaiians as the only indigenous, aboriginal, maoli population of Hawai'i. It is also the State's desire to support the continuing development of a reorganized Native Hawaiian governing entity and, ultimately, the federal recognition of Native Hawaiians.

The legislature urges the office of Hawaiian affairs to continue to support the self-determination process by Native Hawaiians in the formation of their chosen governmental entity.

SECTION 2. The Hawai'i Revised Statutes is amended by adding a new chapter to be appropriately designated and to read as follows:

CHAPTER NATIVE Hawaiian RECOGNITION

Statement of Recognition. The Native Hawaiian people are hereby recognized as the only indigenous, aboriginal, maoli people of Hawai'i.

Purpose. The purpose of this chapter is to provide for and to implement the recognition of the Native Hawaiian people by means and methods that will facilitate their self-governance, including the establishment of, or the amendment to, programs, entities, and other matters pursuant to law that relate, or affect ownership, possession, or use of lands by the Native Hawaiian people, and by further promoting their culture, heritage, entitlements, health, education, and welfare.

Native Hawaiian Roll Commission. (a) There is established a five-member Native Hawaiian roll commission within the office of Hawaiian affairs for administrative purposes only. The Native Hawaiian roll commission shall be responsible for:

(1) Preparing and maintaining a roll of qualified Native Hawaiians; and

(2) Certifying that the individuals on the roll of qualified Native Hawaiians meet the definition of qualified Native Hawaiians. For purposes of establishing the roll, a "qualified Native Hawaiian" means an individual who the commission determines has satisfied the following criteria and who makes a written statement certifying that the individual:

(A) Is:

(i) An individual who is a descendant of the aboriginal peoples who, prior to 1778, occupied and exercised sovereignty in the Hawaiian islands, the area that now constitutes the State of Hawai'i; or

(ii) An individual who is one of the indigenous, native people of Hawai'i and who was eligible in 1921 for the programs authorized by the Hawaiian Homes Commission Act, 1920, or a direct lineal descendant of that individual;

(B) Has maintained a significant cultural, social, or civic connection to the Native Hawaiian community and wishes to participate in the organization of the Native Hawaiian governing entity; and

(C) Is eighteen years of age or older.

(b) No later than one hundred eighty days after the effective date of this chapter, the governor shall appoint the members of the Native Hawaiian roll commission from nominations submitted by qualified Native Hawaiians and qualified Native Hawaiian membership organizations. For the purposes of this subsection, a qualified Native Hawaiian membership organization includes an organization that, on the effective date of this Act, has been in existence for at least ten years, and whose purpose has been and is the betterment of the conditions of the Native Hawaiian people.

In selecting the five members from nominations submitted by qualified Native Hawaiians and qualified Native Hawaiian membership organizations, the governor shall appoint the members as follows:

1) One member shall reside in the county of Hawai'i;

2) One member shall reside in the city and county of Honolulu;

3) One member shall reside in the county of Kauai;

4) One member shall reside in the county of Maui; and

5) One member shall serve at-large.

(c) A vacancy on the commission shall not affect the powers of the commission and shall be filled in the same manner as the original appointment.

(d) Members of the commission shall serve without compensation but shall be allowed travel expenses, including per diem in lieu of subsistence while away from their homes or regular places of business in the performance of services for the commission.

(e) The commission, without regard to chapter 76, may appoint and terminate an executive director and other additional personnel as are necessary to enable the commission to perform the duties of the commission.

(f) The commission may fix the compensation of the executive director and other commission personnel.

(g) The commission may procure temporary and intermittent services.

Notice of qualified Native Hawaiian roll. (a) The commission shall publish notice of the certification of the qualified Native Hawaiian roll, update the roll as necessary, and publish notice of the updated roll of qualified Native Hawaiians. (b) The publication of the initial and updated rolls shall serve as the basis for the eligibility of qualified Native Hawaiians whose names are listed on the rolls to participate in the organization of the Native Hawaiian governing entity.

Native Hawaiian convention. The publication of the roll of qualified Native Hawaiians, as provided in section 4, is intended to facilitate the process under

which qualified Native Hawaiians may independently commence the organization of a convention of qualified Native Hawaiians, established for the purpose of organizing themselves.

Dissolution of the Native Hawaiian roll commission. The governor shall dissolve the Native Hawaiian roll commission upon being informed by the Native Hawaiian roll commission that it has published notice of any updated roll of qualified Native Hawaiians, as provided in section -4, and thereby completed its work.

No diminishment of rights or privileges. Nothing contained in this chapter shall diminish, alter, or amend any existing rights or privileges enjoyed by the Native Hawaiian people that are not inconsistent with this chapter.

Reaffirmation of delegation of federal authority; governmental authority and power; negotiations. (a) The delegation by the United States of authority to the State of Hawai'i to address the conditions of the indigenous, native people of Hawai'i contained in the Act entitled "An Act to Provide for the Admission of the State of Hawai'i into the Union", approved March 18, 1959 (Public Law 86-3), is reaffirmed. (b) Consistent with the policies of the State of Hawai'i, the members of the qualified Native Hawaiian roll, and their descendants, shall be acknowledged by the State of Hawai'i as the indigenous, aboriginal, maoli population of Hawai'i.

Disclaimer. Nothing in this chapter is intended to serve as a settlement of any claims against the State of Hawai'i, or affect the rights of the Native Hawaiian people under state, federal, or international law."

SECTION 3. The Hawaiian Homes Commission Act, 1920, shall be amended, subject to approval by the United States Congress, if necessary, to accomplish the purposes set forth in this Act in a manner that is expeditious, timely, and consistent with the current needs and requirements of the Native Hawaiian people and the current beneficiaries of the Hawaiian Homes Commission Act, 1920.

SECTION 4. Funding for the Native Hawaiian roll commission shall be provided by the office of Hawaiian affairs.

SECTION 5. The Native Hawaiian roll commission, in cooperation with the office of Hawaiian affairs, shall report to the governor and the legislature no later than twenty days prior to the convening of the regular session of 2012, on the status of the preparation of a roll of qualified Native Hawaiians, expenditures related to the responsibilities of the Native Hawaiian roll commission, and any concerns or recommendations as deemed appropriate by the Native Hawaiian roll commission.

SECTION 6. If any provision of this Act, or the application thereof to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of the Act, which can be given effect without the invalid provision or application, and to this end the provisions of this Act are severable.

SECTION 7. This Act does not affect rights and duties that matured, penalties that were incurred, and proceedings that were begun before its effective date.

SECTION 8. This Act shall take effect upon its approval.

ESSAYS

The following two essays examine redress campaigns by activists documenting the history of women forced into serving as sexual slaves of the Japanese military during the Asia-Pacific War and by activists reclaiming Hawaiian land and resources. The first essay, by Tessa Morris-Suzuki, an Australian National University historian, criticizes Japanese politicians who dismiss proof of the Japanese military's role in recruiting, transporting, and organizing sexual slavery. Morris-Suzuki notes that this credible evidence includes testimony by surviving military sexual slaves, military records, soldiers' diaries, and the testimony of Japanese veterans. The second essay is written by Melody Kapilialoha MacKenzie, Susan K. Serrano, and Koalani Laura Kaulukukui. MacKenzie is a law professor at the University of Hawai'i, Manoa; Serrano is the Director of Research and Scholarship at the Center for Excellence in Native Hawaiian Law at the University of Hawai'i, Manoa; and Kaulukukui is a lawyer with the Office of Hawaiian Affairs. Their essay celebrates the efforts of Native Hawaiians to protect and restore Kaho'olawe, an island subjected to a half-century of bombing by the U.S. Navy. The authors present this campaign as a model for Native Hawaiian restorative environmental justice that also strives for sovereignty, economic self-sufficiency, and cultural renewal.

History, Responsibility, and Japan's Military Sexual Slaves During the Asia-Pacific War

TESSA MORRIS-SUZUKI

Contesting the Kōno Statement

On 4 August 1993, Japan's Chief Cabinet Secretary Kōno Yōhei issued an official declaration on the issue of the so-called 'comfort women'—women recruited to work in a large network of brothels operated by the Japanese military during the Asia-Pacific War, where many suffered terrible sexual and other physical and mental abuse, and many died. The declaration, based on a study conducted by the Japanese government, read in part as follows:

> Comfort stations were operated in response to the request of the military authorities of the day... The Government study has revealed that in many cases [the comfort women] were recruited against their own will,

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Tessa Morris-Suzuki, "Addressing Japan's 'Comfort Women' Issue From an Academic Standpoint," *The Asia-Pacific Journal* 12, Issue 9, no. 1, March 2, 2014. Reprinted by permission.

> through coaxing, coercion, etc., and that, at times, administrative/military personnel directly took part in the recruitments. They lived in misery at comfort stations under a coercive atmosphere.

The Kōno Declaration went on to express the government's 'sincere apologies and remorse' to the women concerned, and to say:

> We shall face squarely the historical facts as described above instead of evading them, and take them to heart as lessons of history. We hereby reiterated our firm determination never to repeat the same mistake by forever engraving such issues in our memories through the study and teaching of history.

Kōno's statement resulted not only from demands for an apology from countries like Korea, where many 'comfort women' had been recruited, but also from the work of many grassroots groups within Japan, who had worked tirelessly to seek recompense for the victims. The study carried out by the Japanese government involved the collection of official documents showing army involvement in the control and running of the 'comfort station' system. Testimony was also collected from sixteen former 'comfort women' in Korea, but not from victims of the system in more than a dozen other Asian countries.

Ever since 1993, the Kōno Declaration has been a target of the Japanese political right, who insist that it dishonored Japan's dignity. In 2007, during the first Abe administration, the cabinet issued a 'decision' (kakugi kettei) which partially retracted the Kōno Declaration, denying that Japanese military or government officials had been personally involved in forcible recruitment of 'comfort women'.

On 20 February this year, Restoration Party politician Yamada Hiroshi launched a fierce and emotional attack on the Kōno Declaration in the Japanese Diet. Yamada's ammunition for this attack included a statement by Ishihara Nobuo, who had been Deputy Cabinet Secretary at the time when the Kōno Declaration was issued. Ishihara (as he has done several times in public) argued that Japan had bowed to pressure from South Korea in devising the wording of the Declaration and in its use of the testimony of the sixteen comfort women. By agreement with the women, the content of their testimony has never been made public. Ishihara and Yamada imply that the women's testimony of forced recruitment was false, and demand that this testimony should be made public and 're-investigated' by the government.

Suga Yoshihide, Chief Cabinet Secretary in the present Abe government, responded by announcing that the government now intends to reexamine the testimony and evidence gathered in 1993. According to Japanese newspaper reports, Prime Minister Abe went on to applaud Yamada for his intervention, stating that 'thanks to your questions, public support for a possible reexamination of the comfort women statements is high'.

The official stance of the Japanese government on the issue is that during the first Abe government, a cabinet decision was made regarding this issue. Based on this, the Abe government believes it is ideal for more discussions to be had in the

future in regard to this issue from an academic stand point as historians and intellectuals are currently conducting research on various issues surrounding comfort women.

There are, of course, many aspects of the 'comfort women's' history that need more academic research. Surprisingly little is known, for example, about the stories of the many Japanese women recruited to work in the military's sexual empire. A serious plan by the Japanese government to promote research on the history of the 'comfort women' issue, and to communicate that history to the public (as promised by the Kōno Declaration), would be welcomed.

Genuine historical research should begin with a careful, responsible and open-minded review of the existing academic literature and other relevant documentation such as memoirs by Japanese officials and soldiers, and accounts by 'comfort women'. It would involve a willingness to look at the evidence as a whole, and draw balanced conclusions from that evidence, even if those conclusions turn out to be politically inconvenient. This is not a simple process. Many military and government documents were deliberately destroyed at the end of the war. Much evidence on the 'comfort women' issue is oral testimony, which does need to be used with care, as human memories are fallible and stories may sometimes be altered in the telling. Official documents too need to be read with care, since they may be designed to conceal as much as to reveal the truth.

In spite of these difficulties, a very large amount of information on the 'comfort women' has already been collected by Japanese and international academic researchers, UN enquiries, the Japanese government, NGO [Non-Governmental Organization] groups, including evidence collected for a number of court cases. This information unequivocally documents the existence of a vast network of 'comfort stations' throughout the empire and including the front lines of battle. The system was a complex one. Some 'comfort stations' were operated directly by the military; others by civilians for military use. Some were temporary and local, created by troops on the ground rather than by command from on high. Many thousands of women were recruited in various ways, sometimes by members of the military but often by brokers, who commonly used deceptive promises of work in factories or restaurants to lure women into 'comfort stations'. Once there, some women were physically imprisoned, but even those who were allowed out could rarely escape, as most had been transported to places hundreds or thousands of miles from their homes, frequently on Japanese navy ships, and had no means of return.

The attack on the Kōno Declaration focuses on the claim that there are no official documents showing the direct engagement of the Japanese military in the forcible drafting and transportation of 'comfort women'. This is sometimes expanded into a claim that there is no evidence of forcible recruitment at all. But in fact there is very credible testimony from numerous women that they were directly and violently abducted by Japanese soldiers. Among them is Jan Ruff-O'Herne, a Dutch citizen, who was forcibly taken by the military to a 'comfort station' in Indonesia, and who, at age 91, courageously continues to

speak out on behalf of the former 'former comfort women'. Responding to the latest Japanese government statement, Mrs. Ruff-O'Herne says, 'it's just hideous to not acknowledge it, there are so many witnesses who have spoken out about this' (*The Age* newspaper, 25 February 2014).

Testimony of direct forcible abduction by Japanese military or police has also come from victims and other witnesses in many countries including China, the Philippines and Taiwan, Vietnam and Indonesia.

There is also abundant credible testimony of recruitment by brokers who worked closely with Japanese military or police using deception to lure women to 'comfort stations'; and even where women were recruited by third parties, this in no way diminishes the responsibility of the Japanese military on whose behalf the brokers were working. Japanese military records, soldiers' diaries and recorded recollections by veterans unmistakably record the close involvement of the military in the recruitment, transport and organization of women. Just one of numerous examples of such evidence is an Imperial Japanese Navy document recording the 'collection of native women' for a 'comfort station' in Balikpapan, Indonesia, carried out under the 'management' of the chief accounts officer of a local Japanese naval unit. The chief accounts officer in question (the document notes) was Nakasone Yasuhiro, who went on to serve as prime minister of Japan from 1982 to 1987, and is now a Liberal Democratic Party elder statesman. This document was presented and discussed in the Japanese Diet by an opposition parliamentarian in May 2013, but has been ignored in the recent debate.

Will the Japanese government's planned study examine all this evidence and produce a balanced conclusion? Or has the conclusion already been determined before the research is even begun? Will the 'discussions from an academic view point' follow genuinely scholarly practices, or will they be an exercise in that pseudo-scholarship which (as Hannah Arendt put it) 'destroys its object'? Will they aim to create memory and understanding of this history, or to un-make memory by selecting and sewing together a few disconnected fragments into a veil that distorts and conceals the past?

The Road Forward

A second prong in the attack on the Kōno Declaration is the claim that all countries have had equivalents of the 'comfort women' system in wartime: an argument made, for example, by the new Director General of NHK [Nippon Hōsō Kyōkai or Japan Broadcasting Corporation] Momii Katsuto who, specifically citing France and Germany, stated that similar systems 'existed everywhere in Europe' during the war.

Of course Japan is far from being the only country whose military has been guilty of sexual violence in war. Momii is incorrect to suggest that military-run networks of brothels existed throughout wartime Europe; but they have existed in places outside the Japanese empire. In colonial India, for example, British rulers authorized a system of brothels in military cantonments between the 1850s and the 1880s. Troops from many counties

have been responsible for sexual violence against women in occupied territories—including in occupied Japan itself, where a short-lived system of government-authorized brothels specifically for the use of the allied occupying forces existed between 1945 and 1946, and where events like the Kokura riot of July 1950 resulted in the reported rape of dozens of women by US troops. The system of military 'comfort stations' created in the Japanese empire was not unprecedented in nature; but it was unprecedented in scale, and the misery it caused continues to afflict its victims and their families to this day.

The Japanese government must confront its nation's past with honesty if it is to regain the trust of invaded and colonized nations such as China and Korea who now number among its major trade partners. And if it is to stand among those nations seeking to prevent sexual violence in the contemporary world. Other countries like Britain and the US can help this process by facing up to their own dark histories, while committing themselves to new ways to prevent sexual violence in contemporary war zones and within their military forces. We should also remember, celebrate and seek to empower the work of Japanese citizens groups like the Violence Against Women in War Network (VAWW-NET Japan) which have worked for so long to seek justice for the 'comfort women'. The history of the 'comfort women' is not (as some commentators in both countries wish to portray it) an issue of 'Japanese-versus-Koreans'. It is an issue of human rights and human dignity whose implications extend throughout East Asia and beyond.

Native Hawaiians Reclaim Their Land and Fight for Environmental Justice

MELODY KAPILIALOHA MACKENZIE,
SUSAN K. SERRANO, AND KOALANI LAURA KAULUKUKUI

Hānau ka ʻāina, hānau ke aliʻi, hānau ke kanaka. Born was the land, born were the chiefs, born were the common people. Mary Kawena Pukui, *Ōlelo Noʻeau, Hawaiian Proverbs & Poetical Sayings* 56 (1983). So begins an ancient proverb that describes the inseparable spiritual—and genealogical—connection between Native Hawaiians and their land and environment. For Native Hawaiians, the land, or *ʻāina*, is not a mere physical reality. Instead, it is an integral component of Native Hawaiian social, cultural, and spiritual life. Like many indigenous peoples, Native Hawaiians see an interdependent, reciprocal relationship between the gods, the land, and the people.

In stark contrast to the Western notion of privately held property, Hawaiians did not conceive of land as exclusive and alienable, but instead communal and shared. The land, like a cherished relative, cared for the Native Hawaiian people and, in

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Melody Kapilialoha MacKenzie, Susan K. Serrano, and Koalani Laura Kaulukukui, "Environmental Justice for Indigenous Hawaiians: Reclaiming Land and Resources." *Natural Resources & Environment*, 21.3 (Winter 2007): 37–42, 79. Reprinted by permission of the American Bar Association.

return, the people cared for the land. The principle of *mālama 'āina* (to take care of the land) is therefore directly linked to conserving and protecting not only the land and its resources but also humankind and the spiritual world as well.

Western colonialism throughout the eighteenth and nineteenth centuries dramatically altered Hawaiians' relationship to the land. Hawaiian lands were divided, confiscated, sold away; Native Hawaiian cultural practices were barred and ways of life denigrated. In 1893, the independent and sovereign Hawaiian nation was illegally overthrown with direct U.S. military support. Large sugar plantations diverted water from Hawaiian communities. More Hawaiians were separated from the land, thereby severing cultural and spiritual connections.

Hawaiians in their homeland still bear the worst socioeconomic indicators of all of Hawai'i's people—the highest rates of illness, prison incarceration, and homelessness, and the lowest rates of higher education and family income.

But Native Hawaiians are again reclaiming their land. In partnership with conservation nonprofits and governmental bodies, Native Hawaiians are regaining control over the management of their land, environment, and cultural resources ... and perhaps most well known, is the return of Kaho'olawe island to the protection and stewardship of the Native Hawaiian people after the ravages of deforestation, massive erosion, and nearly fifty years of U.S. military live-fire bombing....

For Hawaiians, restorative environmental justice is in large part about doing justice through reclamation and restoration of land and culture. A new environmental justice framework thus expands the focus beyond discrimination and ill health to integrate community history, political identity, and socioeconomic and cultural needs in defining environmental problems and fashioning remedies.

These Hawaiian land reclamations are therefore types of restorative justice; not only are they attempts to preserve the fragile ecosystems of Hawai'i, they are efforts to restore to Native Hawaiians a measure of "sovereignty, economic self-sufficiency, and cultural restoration—an expansive, group-resonant type of environmental justice."...

Kaho'olawe

The island of Kaho'olawe is the smallest of the eight main islands in the Hawaiian archipelago. Centuries ago, ancient Hawaiians dedicated the island to Kanaloa, the god of the ocean, ocean currents, and navigation. Kaho'olawe was viewed as the physical embodiment of Kanaloa, and the god's *mana*, or spiritual power, was held within the island's soil. Also known as Kukulu Ka'iwi O Ka 'Āina, or "the bone of the land standing upright," and Kohemālamalama O Kanaloa, "the shining womb of Kanaloa," the island has been a center of religious, cultural, historical, and political importance to Native Hawaiians....

For hundreds of years the island was fruitful and supported Native Hawaiian communities that were skilled in astronomy, navigation, fishing, and adz [axlike tool] making....

During the 1800s, Western colonialism dramatically reduced the island's population. Although no sale of any part of the island was made, in 1858 a lease of the entire island was granted for sheep ranching, marking the beginning of years of ranching operations. Throughout the ranching period, the uncontrolled grazing of cattle, sheep, and goats contributed to the massive erosion and environmental degradation of the island....

In 1898, Kaho'olawe, which was Hawaiian government land, was "ceded" to the United States upon annexation of Hawai'i....

Through a lease with the Kaho'olawe Ranch Company, the U.S. military began its use of Kaho'olawe as a practice target for aerial bombs in the 1920s. During World War II, the U.S. government took control of the island, banned all civilian access, and closed traditionally used fishing areas. In a 1953 executive order, President Eisenhower set the island aside for massive target practice by navy bombers. The navy conducted ship-to-shore bombardment of the island and submarine commanders tested torpedoes by firing them at Kaho'olawe's shoreline cliffs. The bombing of Kaho'olawe (including surface-to-air missiles and underwater and surface high-explosive detonations) continued unabated for nearly half a century, causing massive damage to hundreds of cultural sites and fragile environmental resources.

When Hawai'i became a state in 1959, the Admissions Act stated that lands set aside pursuant to any act of Congress, executive order, or proclamation of the president were to remain the property of the United States if needed for continued use. Thus, military control of the island was guaranteed for the unascertainable future.

By the 1970s, Native Hawaiians and nearby island residents could no longer accept the reverberations of bombs, the restricted fishing around the island, and the desecration of sacred lands. In 1971, Maui Mayor Elmer Cravalho and the nonprofit environmental organization Life of the Land brought suit against the Department of Defense under the newly enacted National Environmental Policy Act of 1969 (NEPA). In *Cravalho v. Laird*, Civ. No. 71-3391 (1972), the plaintiffs requested a halt to live-fire training and contended that NEPA required the navy to prepare an environmental impact statement (EIS) to document the effects of military use of the island. The navy responded that it planned to keep the island indefinitely, and if it were denied use of Kaho'olawe, it would be forced to cut back use of Pearl Harbor, thus depriving the state of a major source of income. The court did not order a halt to the bombing, but the navy was ordered to produce an EIS and the case was dismissed.

During the 1970s, a group of young Native Hawaiians founded the Protect Kaho'olawe 'Ohana (family), an organization dedicated to stopping the bombing and reclaiming Kaho'olawe for the Native Hawaiian people. An integral part of a growing political and cultural resurgence among Native Hawaiians, the group began a campaign to raise awareness about the destruction of their sacred land. In January of 1976, nine people landed on the island in an act of peaceful civil disobedience. Although the Coast Guard quickly escorted the protestors off the island and cited several for trespass,

the 'Ohana continued its landings on the island. In conjunction with their continued landings, the 'Ohana filed a federal lawsuit against the Department of Defense, *Aluli v. Brown*, 437 F. Supp. 602, 604 (1977), to enjoin the navy from further bombing.

In early 1977, 'Ohana leaders George Helm and Kimo Mitchell returned to the island to search for two others who had remained on the island. In trying to paddle-surf back to Maui seven miles away, Helm and Mitchell were lost at sea. Their death marked a critical point in the 'Ohana's struggle to halt the bombings and reclaim Kaho'olawe.

While the *Aluli* appeal was pending in May of 1979, the 'Ohana and the navy began settlement negotiations. In October 1980, the parties entered into a Consent Decree. In it, the navy did not promise to cease live-fire training, but it did agree to use inert ordnance "to the maximum extent possible," prevent ordnance from landing in the surrounding waters and document and remove any that did, and clear ordnance from approximately 10,000 acres designated by the 'Ohana. The cleared areas were to be reserved for "religious, cultural, scientific, and educational purposes." The navy also promised to take measures to protect historic sites, which specifically included adz quarries and burial sites. Finally, the navy agreed to give the 'Ohana limited access to the island to implement its environmental and cultural restoration plan.

In March of 1981, the entire island was listed on the National Register for Historical Places and designated the Kaho'olawe Archaeological District. In 1990, nearly fifty years after the bombing began, President Bush halted the bombing of Kaho'olawe. The United States transferred title to Kaho'olawe to the state in May of 1994 and established a joint venture among the federal and state governments and the 'Ohana to oversee restoration of the island. The navy was given ten years and allocated $400 million to remove unexploded ordnance and to complete environmental restoration of the island.

The transfer and eventual control of the island was placed under the responsibility of the Kaho'olawe Island Reserve Commission (KIRC), part of DLNR [Department of Land and Natural Resources]. KIRC, now headed by Native Hawaiian Sol Kaho'ohalahala, has authority over all actions occurring on the island, including proper treatment of any burial sites discovered there and entering into stewardship agreements with Hawaiian organizations. KIRC works in partnership with the 'Ohana, which is the official steward of the island.

Four exclusive and perpetual purposes and uses of the island were made part of Hawai'i State law: the preservation and practice of customary and traditional Native Hawaiian rights for cultural, spiritual, and subsistence purposes; the preservation of the island's archaeological, historical, and environmental resources; rehabilitation, revegetation, habitat restoration, and preservation; and education. Chapter 6K also guarantees that when a sovereign Native Hawaiian entity is established and recognized by the United States, the state will transfer management and control of Kaho'olawe to that entity.

The navy declared the island's cleanup complete in April of 2004. Even with the removal of 10 million pounds of metal, the cleanup fell far short of the

promised 100 percent surface clearance and 30 percent subsurface clearance. About 70 percent of the island had been surface cleared, and about 9 percent was cleared to a subsurface level of four feet. Places on the island will likely never be cleared of ordnance....

Despite the incomplete navy cleanup, KIRC and the 'Ohana carried on their restoration plans, including planting over 100,000 native species on the island. The current focus of restoration is to prevent further erosion and to build up soil and ground cover to enable reforestation. Once ground cover shrubs and grasses are restored, trees will be planted to further hold in soil and moisture, and eventually to help bring rain back to the island.

The 'Ohana has focused on restoring many important cultural sites, such as the Hale O Papa *heiau*. Between February and October each year, volunteers access the island through the 'Ohana to help in restoration efforts. In November through January, cultural practitioners access the island for the annual *Makahiki*, a traditional Hawaiian celebration of the harvest and time of personal, spiritual, and cultural renewal.

Hawaiians have long recognized Kaho'olawe as a *wahi pana* (a legendary place) and *pu'uhonua* (a place of refuge), and today it is being protected and restored as a result of Native Hawaiian efforts. Native Hawaiians are participating directly in the preservation and protection of Kaho'olawe's archaeological, historical, and environmental resources and are engaged in rehabilitation and rehabitation of the island. As KIRC director Sol Kaho'ohalahala recognized, "Aloha 'Āina [(love for the land)] and the navy's bombing target range on the island of Kaho'olawe were in direct conflict. The movement to stop the bombing of Kaho'olawe was significant and symbolic of the struggle that we faced as a people disenfranchised in their own island home."...

Native Hawaiians are doing justice by reclaiming and restoring Hawaiian land and culture. Although these land reclamations are attempts to preserve Hawai'i's natural environment, they are also hard-fought efforts to restore to Native Hawaiians a measure of self-determination, cultural restoration, and economic self-sufficiency. This expansive view of restorative "environmental justice" goes beyond rectifying the discriminatory siting of toxic facilities. The framework embraces the complexity of the Native Hawaiian experience by integrating cultural values, history, socioeconomic power, and group needs and goals in defining environmental problems and fashioning meaningful remedies.

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CHAPTER 15



Asian Americans and National Security

Being viewed as perpetual foreigners led Asian Americans to worry about being scapegoated as spies and terrorists before and after 9/11. In 1999, Wen Ho Lee, a Taiwanese-born scientist at Los Alamos National Laboratory, was accused but never convicted of stealing nuclear weapons secrets for China. As the media publicized claims that Chinese Americans were more prone to espionage because of their ethnic ties, Asian Americans began to declare that Wen Ho Lee was a victim of ethnic profiling. Lee later won $1.6 million in a civil suit against the government and five media organizations for leaking his name to the press before any charges had been filed. President Bill Clinton publicly stated he was "troubled" by the way Lee's case was handled, and Federal Judge James Parker apologized to Lee for the way he was mistreated while being held in solitary confinement.

After the terrorist attacks on September 11, 2001, Asian Americans provided diverse views of how the U.S. government should respond to new terrorist threats and balance national security needs with the protection of civil liberties. Some played prominent roles in the Bush administration and shaped the development of security policies. As assistant attorney general, Vietnamese American Viet Dinh oversaw the drafting and implementation of the Patriot Act, the nation's major overhaul of antiterrorist measures approved in the wake of the 9/11 attacks. Korean American law professor John Yoo co-authored a memo on torture in 2002 while serving in the Justice Department's Office of Legal Counsel. Yoo argued in this memo that the Geneva Conventions did not protect individuals the government deemed members of the terrorist group Al Qaeda or the Taliban. Other Asian Americans protested the torture and abuse of "enemy combatants." Filipino American General Antonio Taguba investigated and then denounced the abuse of prisoners at the U.S.-controlled Abu Ghraib prison in Iraq after the 2004 publication of photographs showing soldiers taunting naked Iraqi prisoners who were forced to assume sexually degrading poses.

Other Asian Americans worried about the heated political and popular media rhetoric against suspected terrorist groups in the United States and the secrecy surrounding U.S. interrogations and detentions of people accused of supporting enemies of the United States.

Chinese American James Yee, a Muslim U.S. Army chaplain, was unfairly arrested, interrogated, and detained on charges of spying after counseling Muslim detainees captured in Afghanistan and Pakistan and held at Guantanamo Bay. The army then dropped all criminal charges but accused Yee of committing adultery and possessing pornography on his government computer. Activism by Muslim and Chinese American groups helped Yee garner nationwide support as the victim of an unfounded smear campaign. Some groups, such as Justice for New Americans, linked Yee with Wen Ho Lee, asserting that both were victims of anti-Asian racism. Like Lee, Yee was eventually exonerated and his reprimand was expunged from his army record.

Mistaken for Arab Americans because of their turbans and beards, Sikh Americans became targets of civil rights violations and hate crimes. Right after the 9/11 attacks on the World Trade Center, the media played up photographs of the arrest of Sher Singh, a turbaned and bearded Sikh American commuter in Providence, Rhode Island, as a possible terror suspect, and then neglected to note that he was cleared of any wrongdoing. On September 15, 2001, Frank Silva Roque shot and killed Balbir Singh Sodhi, a Sikh American gas station owner in Mesa, Arizona, because Roque thought Sodhi was an Arab Muslim. In addition, South Asian Americans protested the post-9/11 raids of Pakistani immigrant communities in New York that resulted in the detention of nearly 2,000 individuals and the charge that 200 of those individuals held in Paterson, New Jersey, suffered physical abuse during their imprisonment. The activists publicized the mistreatment of Pakistani detainees, who were often held on nothing more than minor visa or immigration violations. Other Asian American protesters criticized the war in Afghanistan and Iraq, became peace activists, and called for an end to the U.S. war on terror.

DOCUMENTS

Documents 1 to 5 examine Asian American individuals and groups that have been victimized by antiterroism policies. In Document 1, Korean American lawyer Angela E. Oh condemns the U.S. prosecution of Wen Ho Lee as an example of racial profiling, selective prosecution, and the demonization of China as the "great twenty-first century threat" to the United States. In Document 2, a report by the Office of the Inspector General documents the verbal and physical abuse of Pakistani American detainees held at the Metropolitan Detention Center in Brooklyn after 9/11. In Document 3, an online message circulated among Asian American activists in 2003, Filipino Americans in Hawai'i explain why they support Native Hawaiian protests of U.S. military expansion in Hawai'i and the Philippines and demands for the U.S. military to clean up toxic contamination in both sites. The Filipino American activists also call for an end to human rights violations in the southern Philippines and the return of military-controlled land to Hawaiians. Document 4 recounts James Yee's ordeal as a suspected spy after he counseled Muslim detainees in a Guantanamo Bay prison. In Document 5, Lillian Nakano, a third-generation Japanese American, draws parallels between the war hysteria and racist scapegoating that caused Japanese American internment and post-9/11 antiterrorism policies targeting Americans who are Muslims or of Arab or Middle Eastern descent.

Documents 6 to 8 explore criticisms of U.S. interrogation tactics, detention centers, and military policies in Afghanistan and Iraq. Document 6 provides excerpts of an antiwar speech given by Japanese American Lieutenant Ehren Watada, the first U.S. commissioned officer to refuse deployment to Iraq and to publicly denounce the war as immoral and unlawful. Speaking before the Veterans for Peace National Convention in 2006, Watada urges soldiers to stop the unjust war by refusing to fight and calls on the public to express their support for these protesting soldiers. Document 7 is Filipino American Major General Antonio Taguba's indictment of the George W. Bush administration for committing war crimes that violated the Geneva Conventions, the UN Convention against Torture, and the Uniform Code of Military Justice. Taguba's charges appeared in his preface to a 2008 report by Physicians for Human Rights documenting the suffering of men tortured in U.S. detention facilities in Iraq, Afghanistan, and Guantanamo Bay. In Document 8, Judge Amy Berman Jackson rules in 2015 that Iknoor Singh, a Hofstra University student, cannot be barred from enrolling in the Army's Reserve Officer Training Corps program for refusing to shave his beard, cut his hair, or remove his turban because of his Sikh religious beliefs.

1. Lawyer Angela E. Oh Describes the Significance of the Government Prosecution of Los Alamos Scientist Wen Ho Lee, 2000

Compared to the thousands of other criminal cases filed by the federal government each year, nothing is unique about Dr. Lee's dilemma except its political, social, and media aspects. As news of the case continues to be reported, we Asian Americans are feeling a familiar uneasiness about the events unfolding. The fact that this case has emerged in the midst of a Presidential campaign in which many Chinese Americans have "opted out" because of the fund-raising experiences of 1996 has added complexity to the political landscape for Asian Americans.

Unfortunately, the case may have reinforced the feelings of antipathy and alienation toward politicians and politics when it should inspire greater involvement in the political process, particularly since it so clearly demonstrates that America's foreign relations policies have a direct impact on Asian American citizens. Whether Wen Ho Lee is innocent or not is a question to be answered by a judge or jury. Whether Wen Ho Lee's case will mark a significant loss of political ground for Asian Americans, however, is a question that must be answered by Asian Americans.

For many of us following the case, the political symbolism of this prosecution is enormous. At a time when China should be viewed as a major potential partner in formulating new foreign policy initiatives, in establishing innovative new business opportunities, and in introducing expansive cultural and intellectual exchange programs, America has begun to set its sights on China as its next candidate for national enmity. China is being cast as "the great 21st century threat"

From Angela E. Oh, "Understanding the Prosecution of Wen Ho Lee," originally published in Asian American Village Online at www.imdiversity.com. Copyright © 2001 by Angela Oh. Used with permission.

against America, and many foresee turmoil for Asian Americans. The Los Alamos investigation raises reasonable anxiety about the peace and security of our nation. However, without diminishing the importance of national security concerns, Asian Americans know too well the consequences of silence in the face of mounting fears and questioned loyalty....

The case of Wen Ho Lee and a current climate of China-bashing have also had a major impact on Asian American society, and they are deservedly receiving our political attention. In terms of community organizing, the intergenerational and cross-ethnic support for Dr. Lee has been impressive. Dr. Lee is, like tens of thousands of others, a naturalized citizen, and his ethnic heritage has played a significant role in decisions to investigate, interrogate, and incarcerate. Not only has his case spurred interest among Chinese Americans, but it has created pan-Asian coalitions among individuals and organizations with no prior history of mutual support to monitor the case. The results have been extraordinary. Defense committees and new alliances have formed in all parts of the nation. Detailed analysis of the information gathered has brought attention to problems such as racial profiling, employment discrimination, abuse of authority, and selective prosecution. Moreover, this case has helped to clarify for many lay persons the role of anti-discrimination agencies such as the U.S. Commission on Civil Rights, and the operation of the American criminal justice system....

Now, members of the scientific community are seeking new alliances with broader Asian American political, civic, and legal organizations that understand the political and social landscape that has emerged.

The Wen Ho Lee case is already a significant story in Asian American history.

2. The Office of the Inspector General Describes Abuse Against September 11 Immigrant Detainees, 2003

VI. Allegations of Physical and Verbal Abuse

Based on our interviews of 19 September 11 detainees and our investigation of allegations of abuse raised by several detainees, we believe the evidence indicates a pattern of physical and verbal abuse against some September 11 detainees held at the MDC [Metropolitan Detention Center] by some correctional officers, particularly during the first months after the terrorist attacks. Although the allegations have been declined for criminal prosecution, the OIG [Office of the Inspector General] is continuing to investigate these matters administratively...

A. OIG Site Visit In connection with this review of the treatment of September 11 detainees, our inspection team interviewed 19 detainees who were being held at the MDC when we visited the facility in May 2002. All 19

Excerpt from the US Department of Justice, Office of the Inspector General, "The September 11 Detainees: A Review of the Treatment of Aliens Held on Immigration Charges in Connection with the Investigation of the September 11 Attacks," April 2003, pp. 157–164.

detainees complained of some form of abuse. Twelve complained about physical abuse and 10 complained about verbal abuse. The complaints of physical abuse ranged from painfully tight handcuffs to allegations they were slammed against the wall by MDC staff. The detainees told us that the physical abuse usually occurred upon their arrival at the MDC, while being moved to and from their cells, or when the hand-held surveillance camera was turned off.

Ten of the 19 detainees we interviewed during our inspection visit alleged they had been subjected to verbal abuse by MDC staff, consisting of slurs and threats. According to detainees, the verbal abuse included taunts such as "Bin Laden Junior" or threats such as "you're going to die here," "you're never going to get out of here," and "you will be here for 20–25 years like the Cuban people." They said most of the verbal abuse occurred during intake and during movement to and from the detainees' cells.

Our inspection team interviewed 12 correctional officers about the detainees' allegations of physical abuse. All 12 officers denied witnessing or committing any acts of abuse. Further, they denied knowledge of any rumors about allegations of abuse. The correctional officers we interviewed also denied they verbally abused the detainees and denied making these specific comments to the detainees.

B. OIG Investigation of Abuse On October 30, 2001, the OIG reviewed a newspaper article in which a September 11 detainee alleged he was physically abused when he arrived at the MDC on October 4, 2001. Based on the allegations in the article, the OIG's Investigations Division initiated an investigation into the matter. When we interviewed the detainee, he complained that MDC officers repeatedly slammed him against walls while twisting his arm behind his back. He also alleged officers dragged him by his handcuffed arms and frequently stepped on the chain between his ankle cuffs. The detainee stated his ankles and wrists were injured as a result of the officers' abuse. He also identified three other September 11 detainees who allegedly had been abused by MDC staff members.

We interviewed these three other September 11 detainees. They stated that when they arrived at the MDC, they were forcefully pulled out of the vehicle and slammed against walls. One detainee further alleged that his handcuffs were painfully tight around his wrists and that MDC officers repeatedly stepped on the chain between his ankle cuffs. Another detainee alleged officers dragged him by his handcuffs and twisted his wrist every time they moved him. All three detainees alleged that officers verbally abused them with racial slurs and threats like "you will feel pain" and "someone thinks you have something to do with the World Trade Center so don't expect to be treated well."

During our investigation of these complaints, we received similar allegations from other September 11 detainees. On February 11, 2002, four September 11 detainees held at the MDC (including one of the detainees we interviewed previously) told MDC officers that certain MDC officers were physically and verbally abusing them. Those complaints were provided to us.

In interviews with our investigators, these detainees alleged that when they arrived at the MDC in September and October 2001, MDC officers forcefully pulled them from the car, slammed them into walls, dragged them by their arms, stepped on the chain between their ankle cuffs, verbally abused them, and twisted their arms, hands, wrists, and fingers. One of the detainees alleged that when he was being taken to the MDC's medical department following a 4-day hunger strike, an officer bent his finger back until it touched his wrist. Another detainee alleged that when he arrived at the MDC, officers repeatedly twisted his arm, which was in a cast, and finger, which was healing from a recent operation. He also alleged that when he was transferred to another cell in December 2001, officers slammed him into a wall and twisted his wrist. One detainee claimed his chin was cut open and he had to receive stitches because officers slammed him against a wall.

During our investigation, the OIG asked the detainees individually to identify the officers who had committed the abuse through photographic line-ups. The detainees identified many of the same officers as the perpetrators, and the OIG focused its investigation on eight officers. The OIG interviewed seven of these officers. Six of them denied physically or verbally abusing any of the detainees or witnessing any other officer abuse the detainees. Five remembered at least one of the detainees and some of them remembered a few of the detainees. Two officers described two detainees as disruptive and uncooperative. One of the officers explained that the high-security procedures in place during the weeks following the September 11 attacks required four officers to physically control inmates during all escorts; face them toward the wall while waiting for doors, elevators, or the application and removal of leg restraints; and place them against the wall if they became aggressive during these escorts.

The seventh officer interviewed by the OIG told us that he witnessed officers "slam" inmates against walls and stated this was a common practice before the MDC began videotaping the detainees. He said he did not believe these actions were warranted. He said he told MDC officers to "ease up" and not to be so aggressive when escorting detainees. He also said he witnessed a supervising officer slam detainees against walls, but when he spoke with the officer about this practice the officer told him it was all part of being in jail and not to worry about it. The seventh officer signed a sworn affidavit to this effect. In a subsequent interview with the OIG, this officer recharacterized the action as "placing" the detainees against the wall, and said he did not want to use the word "slam." He denied that the officers acted in an abusive or inappropriate manner.

The OIG reviewed the detainees' medical records. The medical records do not indicate that most of the detainees received medical treatment for the injuries they asserted they received from officers. Two of the detainees' medical records indicate they were treated for injuries that they later claimed were caused by officers, but the medical records did not indicate that they alleged their injuries were caused by officers at the time they were treated. One detainee's records do not mention the cause of the injury and the other detainee's records state the

detainee said he was injured when he fell. In his interview with the OIG, the detainee alleged his chin was badly cut when detention officers slammed him against the wall. He said that nobody ever asked him how his injury occurred. The other five detainees did not seek treatment for their alleged injuries.

Based on the scarcity of medical records documenting injuries and the lack of evidence of serious injuries to most of the detainees, the U.S. Attorney's Office for the Eastern District of New York and the Civil Rights Division declined criminal prosecution in this case. All of the detainees, with the exception of one, now have been removed from the United States. Nevertheless, the OIG is continuing its investigation of these allegations as an administrative matter. Because this case is ongoing, we are not describing in detail all the evidence in the case about the detainees' allegations. However, we believe there is evidence supporting the detainees' claims of abuse, including the fact that similar – although not identical – allegations of abuse have been raised by other detainees, which we describe in the next section.

3. Filipinos Stand in Solidarity with Native Hawaiians in Opposing United States Military Expansion in Hawaii and the Philippines, 2003

As Filipino co-habitants of Oahu, we strongly oppose the US military's proposal to expand its training sites to include Waikane, Kualoa, Hakipuu, and Kaaawa, or any other sites in the Hawaiian archipelago. We demand that the US military take full responsibility for the human displacement and environmental damage caused by its usage of Hawaiian lands. We fully support the Kamaka family's struggle to hold the US military accountable for its failure to properly clean up their land. We join with Kanaka Maoli groups in calling for a return of control of all land in use by the US military to its rightful ancestral stewards and descendants.

We oppose the use of Hawaiian lands for US military training for the following reasons: The current military expansion in Windward Oahu is, at least in part, aimed at an escalation of US military operations in the Philippines.

We oppose continued US military intervention in our ancestral homeland because: Joint US-Philippine military operations are unconstitutional, violate Philippine sovereignty, and are strongly opposed by Philippine citizens. The Philippine Constitution expressly prohibits foreign troops from engaging in combat against Philippine citizens on Philippine soil. Top Philippine elected officials oppose Balikatan ["shoulder-to-shoulder" training exercise] '03-1 and have raised concerns about its violation of the terms of the Mutual Defense Treaty and the Visiting Forces Agreement. On March 1, 2003, more than 40,000 Filipinos representing churches, schools, NGOs, and civil society groups rallied for

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"Filipinos Stand in Solidarity with Native Hawaiians in Opposing United States Military Expansion in Hawaii and the Philippines, March 2003," Contributed by Grace Alvaro Caligtan, Darlene Rodrigues, Melisa S.L. Casumbal, Catherine Betts, Grace Duenas, Gigi Miranda, Cindy Ramirez, Sonya Zabala, Tamara Freedman, Maile Labasan. Used with permission.

peace in Manila, while thousands more participated in peace rallies elsewhere in the country.

Joint US-Philippine military operations such as Balikatan '02-1 and '03-1 have not achieved their purported goal of ridding the Philippines of Abu Sayyaf ["bearer-of-the-sword" militant group]. Instead, they have provoked such strong opposition that groups such as the CPP/NPA (Communist Party of the Philippines/New People's Army) and the MILF (Moro Islamic Liberation Front) have actually experienced resurgence and increase in popular support. Joint US-Philippine military operations have destabilized the fragile and ongoing process of peace talks between these opposition groups and the Philippine government. Joint US-Philippine military operations have resulted in the deaths and casualties of innocent Philippine civilians in Zamboanga and Basilan. KARAPATAN, a Philippine human rights organization, has documented several cases of farmers and fishermen, even a child, being killed as they are evacuating their homes or because their fishing boat was accidentally bombed. Further, on July 25, 2002, an American soldier shot Moro civilian Buyong-Buyong Isnijal in his own home in Tuburan, Basilan.

Joint US-Philippine military operations have resulted in the escalation of human rights violations in the southern Philippines. These human rights violations, according to KARAPATAN, include illegal searches of Moro homes, and increases in disappearances and 'salvagings' (murders) of members of legitimate, peaceful organizations opposing the remilitarization of the southern Philippines.

Joint US-Philippine military operations have resulted in the forced relocation of tens of thousands of civilians, including Muslims and indigenous peoples, to ill-equipped evacuation centers in the southern Philippines.

The conflict between legitimate Muslim opposition groups (excluding the Abu Sayaff, which is a tiny band of fringe elements with little to no popular support) and the Philippine government has a complex, decades-long history that cannot be resolved by US military intervention. The only lasting and peaceful resolution to this historic and civil, not international, conflict will come from peace talks, not US military presence.

As Filipino co-habitants of Hawaii, we stand in solidarity with Native Hawaiian families and organizations in opposition to militarization of their land because: The colonization of the Philippines and Hawaii are intimately tied together. Since the illegal annexation of Hawaii in 1898, native Hawaiians and other indigenous peoples and nations have shouldered the brunt of military build-up in Pacific. We see this current expansion into the Windward ahupuaas as a part of [a] long genealogy of a continued dispossession of Native Hawaiians from their land. We see the military's failure to clean the Kamaka family land as assault on Native Hawaiian traditional values, livelihood, health and well-being.

We are familiar with the legacy of environmental pollution [the] US military presence creates from our own history with US bases in the Philippines. Groups like FACES [Filipino/American Coalition for Environmental Solutions], a coalition of American- and Philippine-based Filipinos working to clean up former US bases in the Philippines, have extensively documented the contamination of former base sites with toxic solvents, pesticides, asbestos, heavy metals, unexploded ordnance and other hazardous substances. Serious

groundwater and soil contamination in over 46 sites on Clark and Subic [air bases] is documented in reports by the US General Accounting Office (GAO), World Health Organization, Independent US and Philippine experts, two US-based environmental firms, and the Department of Defense's internal reports. US failure to meet its environmental safety standards is also documented by the GAO. Yet, US officials refuse to even acknowledge the problem.

As descendants of Filipino migrant labor to Hawaii and the US continent, our health and well-being are also affected by the adverse environmental impact the US military presence has in Hawaii. The US military is the largest single polluter in the island chain. It controls nearly 200,000 acres of land and nearly 25% of the land on Oahu. And it has only been through public pressure and close scrutiny that the US government has recently begun cleaning up its deadly toxic waste in sacred places such as Kahoolowe.

The military's slow action and refusal to be accountable to Native Hawaiians and cohabiting communities further imperil future generations. True security derives from stewardship of the aina [earth], economic equity, and an honoring of all peoples.

We call for a speedy clean-up of polluted lands and military accountability to all communities in Hawaii. We call on other communities to stand up against the US military's acts of violence, amoralism, and disregard for Native peoples and others who live here. The continuation of the peoples and the places of the earth committed to renewal and sustainability is imperative.

4. Former Guantanamo Chaplain James Yee Is Exonerated After Being Imprisoned as a Terrorist, 2004

James Yee is an American of Chinese descent who graduated from West Point in 1990. Shortly afterwards he converted to Islam from Christianity. Yee wanted to become a Muslim Army chaplain, but that required a doctorate in divinity studies. So in 1993 he went on reserve status to complete the programs necessary to become a military chaplain. Yee moved to Damascus and studied under Syria's grand mucti (supreme religious leader). While there he learned Arabic and married a Syrian woman.

Yee returned to the U.S. in 1999 after completing his Islamic studies, and obtained the certification necessary to become a military chaplain. Yee then returned to active Army duty and was assigned as a Muslim chaplain at Fort Lewis, Washington.

After the events of September 11, 2001, Yee, an Army Captain, spent much of his time explaining Islam to both the public and military personnel.

In November 2002 Yee was assigned as the chaplain for the Muslims detained at the Guantanamo Bay, Cuba military prison – also known as Camp Delta. He soon began clashing with his superiors over what he considered mistreatment of the Muslim prisoners. Among his complaints was the prisoners were in an atmosphere of "unrelieved tension and boredom." Yee's complaining successfully resulted in "recordings of the ritual calls to prayer broadcast through

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Hans Sherrer, "Muslim Army Chaplain Falsely Imprisoned as Terrorist," *Justice: Denied* magazine, Issue 25, page 12. Reprinted by permission.

the" prison, and ensuring the prisoner's "food was prepared according to Islamic dietary guidelines."

The military's response to Yee's concerns about prisoner treatment was a form of 'shoot the messenger' – it began investigating him. Yee's every move was watched. On September 10, 2003 he flew from Guantanamo Bay to the Jacksonville, Florida naval air station. Customs Service agents inspecting his luggage allegedly found diagrams of cells at the Guantanamo Bay prison, and the names of detainees and their interrogators. Yee was arrested on the spot "for suspicion of espionage and aiding captured Taliban and al-Qaida fighters." Newspaper headlines and news broadcasts across the country trumpeted Yee's arrest for espionage and aiding international terrorists. Those are capital offenses – so at the time of his arrest Yee was potentially facing charges that could result in his execution. Yee was immediately transported to the maximum-security Naval brig (prison) in Charleston, South Carolina and put in solitary confinement. The private lawyer hired to defend Yee, Eugene Fidell of Seattle, said, "It's shocking an officer is in a maximum-security prison."

On October 10th Yee was charged with two counts of failing to obey a lawful order: "taking classified information home," and "wrongly transporting classified information." Those are relatively minor charges that could result in a maximum of a year in prison and a bad conduct discharge.

After the Army's intensive six week investigation of Yee following his arrest, four more charges were filed against him on November 24, 2003: making a false official statement; failure to obey an order or regulation; adultery; and conduct unbecoming an officer. After the last of the six charges against him were filed, Yee was released from maximum security, after spending 76 days in solitary confinement.

The six charges were relatively minor infractions compared with the alleged espionage and treasonous aiding of the enemy that precipitated his arrest. Kevin Barry, a retired Coast Guard captain and military judge commented, "All this suggests they really don't have much on him. It indicates the Army has decided to lowball this."

Muslims and Chinese-American's across the country rallied in support of Yee. His treatment as an Army officer imprisoned in a solitary confinement was compared with the mistreatment of Wen Ho Lee after his false arrest for allegedly passing US nuclear secrets to China. Samia El-Moslimany of the Seattle chapter of Council on American-Islamic Relations said at a November 2003 rally in support of Yee, "Captain Yee has already been tried and convicted in the media before there were even charges brought against him. He was basically branded as a spy and traitor to his country. We think this is happening because he's a Muslim and Chinese-American." Yee's wife, Huda Suboh spoke through a translator, "the only news in the paper about my husband is coming from the government. James wants me to tell you all that he is innocent. He is going to fight the charges with all his energy." A spokesman for Justice for New Americans said, "there is no evidence that Yee ever gave anything to a foreign government."

On March 20, 2004, the case against Yee that had begun with allegations he had committed capital offenses, including "spying, mutiny, sedition and aiding

the enemy," completely collapsed: the Army dropped all six charges against him. Yee's lawyer, Eugene Fidell said, "Captain Yee has won."

Yee was assigned to Fort Lewis, and on April 5th he returned to his home in Olympia (near Fort Lewis) and was reunited with his wife and four year-old daughter. The 36 year-old Yee told people gathered at Seattle-Tacoma International Airport, "It's a great day to be back in Washington state, and to be back with my family." Somewhat ironically, he said of his ordeals impact on his daughter, "Every time she sees me on TV or in the news, she says, 'Everybody loves my daddy.'"

However in a classic example of the 'sore losers syndrome,' after dropping the criminal charges, the Army decided to publicly smear Yee by administratively charging and finding him guilty of adultery and having adult images stored in his computer. Yee appealed the finding, and in mid-April, General James T. Hill, commander of the U.S. Southern Command ruled in Yee's favor. Yee's lawyer Eugene Fidell, said Yee's clearing of all criminal and administrative charges was a "bittersweet victory. It wouldn't have killed them to admit a mistake. The Army has to be big enough to admit a mistake. In that regard, today was disappointing."

After Yee's exoneration, two members of the Senate Armed Services Committee, Senators Carl Levin (D-MI) and Edward Kennedy (D-MA), request in an April 23rd letter to Secretary of Defense Donald Rumsfeld that he initiate an official investigation of Captain Yee's treatment. The two senators wrote, "The manner in which Chaplain Yee was detained and prosecuted raises serious questions about the fair and effective administration of military justice. We urge you to give this issue your immediate attention." In a June 4th letter to Secretary Rumsfeld, four members of Congress joined in calling for an official investigation into Yee's treatment.

At a June 25th event to raise money to help pay his legal fees, James Yee said, I'm not here tonight to talk about my case, but to thank those who stand in support of civil liberties." At the same event, Wayne Lum observed that "James Yee would not have been targeted if it were not for this heightened hysteria against Muslims. This case was calculated. It was a coldly calculated targeting of an innocent person."

On August 2nd James Yee released a letter of resignation from the Army effective in January 2005. He wrote, "In 2003, I was unfairly accused of grave offenses under the Uniform Code of Military Justice and unjustifiably placed in solitary confinement for 76 days. Those unfounded allegations – which were leaked to the media – irreparably injured my personal and professional reputation and destroyed my prospects for a career in the United States Army."

The irony of the Army's systematic destruction of James Yee's career is that two days before his arrest, his commander at Guantanamo Bay gave him the highest possible performance rating. It is also ironic that seven months after Yee's arrest that was precipitated by his whistleblowing about prisoner mistreatment at Guantanamo Bay, news reports informed the entire world of the U.S. military's mistreatment of prisoners there and in Iraq. As this is written in August 2004, new revelations of prisoner mistreatment at the Guantanamo Bay prison continue to be reported.

5. Lillian Nakano Compares Racial Profiling of Japanese Americans in 1942 and Muslim Americans During the War on Terror, 2005

Feb. 19, 1942, was a day that changed the lives of Japanese Americans forever. I was a teenager growing up in Hawaii when President Franklin D. Roosevelt signed Executive Order 9066, which set into motion the removal and incarceration of more than 110,000 people of Japanese ancestry in inland concentration camps.

After Japan attacked Pearl Harbor, a tense atmosphere of suspicion and hysteria engulfed the West Coast and Hawaii. Decades of anti-Japanese and anti-Asian legislation and racism had already laid the foundation for the events that soon took place. We were rounded up without due process even though we had nothing to do with the attack. Our family was shipped to California, then to Arkansas and finally to Wyoming, where we spent the duration of the war.

Upon our release from the camps, Japanese Americans began to pick up the pieces of wrecked lives, in the face of continuing racism and hostility. For years, we suppressed our anger, bitterness and shame about the unfair treatment we got.

Today, many in the Japanese American community will attend the annual Day of Remembrance events in Los Angeles, San Francisco and other cities, with the goal of teaching new generations the lessons from that painful time. Some of my fellow Americans are now being targeted because they are Muslim, Arab or Middle Eastern. When the attacks of Sept. 11 happened, I mourned for the innocent lives that were lost. But I also began to identify and sympathize with the innocent Muslim Americans who immediately became victims of the same kind of stereotyping and scapegoating we faced 63 years ago. They too have become targets of suspicion, hate crimes, vandalism and violence, all in the name of patriotism and national security.

Feb. 19 is a day I do not wish upon anyone else. Now, the lessons are not just about events in a distant past, but events as they are occurring on a daily basis.

Let's not forget the infamous words of Gen. John DeWitt—who was in charge of West Coast defenses—in 1943, "A Jap is a Jap." Or Secretary of War Henry Stimson, who said, "Their racial characteristics are such that we cannot understand or even trust the citizen Japanese." How painfully familiar it seemed to see Muslim and Arab Americans suspected and ostracized as potential terrorists solely on the basis of ethnicity and religion.

In the 1970s and '80s, inspired by the civil rights struggle, the Japanese American community fought a 10-year-long campaign and won redress and an apology from the U.S. government in 1988. This was to be the official government acknowledgment that the internment was morally and legally wrong, and we were given hope that such an event would not be repeated.

Lillian Nakano, "1942-Style Bigotry Targets Muslims in the U.S. Today," *Los Angeles Times*, February 19, 2005, http://articles.latimes.com. Reprinted by permission of the author.

Yet today there are renewed attacks on civil liberties in the name of the "war on terrorism." Legislation such as the Patriot Act and the government's willingness to arrest and charge innocent people contribute to an atmosphere that could lead to future internment camps.

Some ideologues on the right seek to rewrite history in order to justify government policy and racial profiling. One example is Michelle Malkin's 2004 book, *In Defense of Internment: The Case for 'Racial Profiling' in World War II and the War on Terror,* which not only rehashes the untruths that Japanese Americans have heard for years but also asserts: "The most damaging legacy of this apologia and compensation package [redress won by Japanese Americans] has been its impact on national security efforts. The ethnic grievance industry and civil liberties Chicken Littles wield the reparations law like a bludgeon over the War on Terror debate."

There is no justification for racism or denial of civil liberties—not in 1942 and not in 2005.

6. Lt. Ehren Watada Vows to Stop an Illegal and Unjust War, 2006

Today, I speak with you about a radical idea. It is one born from the very concept of the American soldier (or service member). It became instrumental in ending the Vietnam War – but it has been long since forgotten. The idea is this: that to stop an illegal and unjust war, the soldiers can choose to stop fighting it.

Now it is not an easy task for the soldier. For he or she must be aware that they are being used for ill-gain. They must hold themselves responsible for individual action. They must remember duty to the Constitution and the people supersedes the ideologies of their leadership. The soldier must be willing to face ostracism by their peers, worry over the survival of their families, and of course the loss of personal freedom. They must know that resisting an authoritarian government at home is equally important to fighting a foreign aggressor on the battlefield. Finally, those wearing the uniform must know beyond any shadow of a doubt that by refusing immoral and illegal orders they will be supported by the people not with mere words but by action.

The American soldier must rise above the socialization that tells them authority should always be obeyed without question. Rank should be respected but never blindly followed. Awareness of the history of atrocities and destruction committed in the name of America – either through direct military intervention or by proxy war – is crucial. They must realize that this is a war not out of self-defense but by choice, for profit and imperialistic domination. WMD [weapons of mass destruction], ties to Al Qaeda, and ties to 9/11 never existed and never will. The soldier must know that our narrowly and questionably elected officials intentionally manipulated the evidence presented to Congress, the public, and

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Dahr Jamail "To Stop an Illegal and Unjust War, Soldiers Can Choose to Stop Fighting." Speech to the Veterans for Peace 2006 National Convention August 12, 2006, 1–2. Copyright, Truthout.org. Reprinted with permission.

the world to make the case for war. They must know that neither Congress nor this administration has the authority to violate the prohibition against pre-emptive war – an American law that still stands today. This same administration uses us for rampant violations of time-tested laws banning torture and degradation of prisoners of war. Though the American soldier wants to do right, the illegitimacy of the occupation itself, the policies of this administration, and rules of engagement of desperate field commanders will ultimately force them to be party to war crimes. They must know some of these facts, if not all, in order to act.

Mark Twain once remarked, "Each man must for himself alone decide what is right and what is wrong, which course is patriotic and which isn't. You cannot shirk this and be a man. To decide against your conviction is to be an unqualified and inexcusable traitor, both to yourself and to your country ..." By this, each and every American soldier, marine, airman, and sailor is responsible for their choices and their actions. The freedom to choose is only one that we can deny ourselves.

The oath we take swears allegiance not to one man but to a document of principles and laws designed to protect the people. Enlisting in the military does not relinquish one's right to seek the truth – neither does it excuse one from rational thought nor the ability to distinguish between right and wrong. "I was only following orders" is never an excuse.

The Nuremburg Trials showed America and the world that citizenry as well as soldiers have the unrelinquishable obligation to refuse complicity in war crimes perpetrated by their government. Widespread torture and inhumane treatment of detainees is a war crime. A war of aggression born through an unofficial policy of prevention is a crime against the peace. An occupation violating the very essence of international humanitarian law and sovereignty is a crime against humanity. These crimes are funded by our tax dollars. Should citizens choose to remain silent through self-imposed ignorance or choice, it makes them as culpable as the soldier in these crimes....

I tell this to you because you must know that to stop this war, for the soldiers to stop fighting it, they must have the unconditional support of the people. I have seen this support with my own eyes. For me it was a leap of faith. For other soldiers, they do not have that luxury. They must know it and you must show it to them. Convince them that no matter how long they sit in prison, no matter how long this country takes to right itself, their families will have a roof over their heads, food in their stomachs, opportunities and education. This is a daunting task. It requires the sacrifice of all of us. Why must Canadians feed and house our fellow Americans who have chosen to do the right thing? We should be the ones taking care of our own. Are we that powerless—are we that unwilling to risk something for those who can truly end this war? How do you support the troops but not the war? By supporting those who can truly stop it; let them know that resistance to participate in an illegal war is not futile and not without a future.

I have broken no law but the code of silence and unquestioning loyalty. If I am guilty of any crime, it is that I learned too much and cared too deeply for the meaningless loss of my fellow soldiers and my fellow human beings. If I am to be punished it should be for following the rule of law over the immoral orders of one man. If I am to be punished it should be for not acting sooner. Martin

Luther King Jr. once said, "History will have to record that the greatest tragedy of this period ... was not the strident clamor of the bad people, but the appalling silence of the good people."

Now, I'm not a hero. I am a leader of men who said enough is enough. Those who called for war prior to the invasion compared diplomacy with Saddam to the compromises made with Hitler. I say, we compromise now by allowing a government that uses war as the first option instead of the last to act with impunity. Many have said this about the World Trade Towers, "Never Again." I agree. Never again will we allow those who threaten our way of life to reign free – be they terrorists or elected officials. The time to fight back is now - the time to stand up and be counted is today.

I'll end with one more Martin Luther King Jr. quote:

> "One who breaks an unjust law that conscience tells him is unjust, and who willingly accepts the penalty of imprisonment in order to arouse the conscience of the community over its injustice, is in reality expressing the highest respect for law."

Thank you and bless you all.

7. Major General Antonio Taguba Indicts Bush Administration War Crimes, 2008

This report tells the largely untold human story of what happened to detainees in our custody when the Commander-in-Chief and those under him authorized a systematic regime of torture. This story is not only written in words: It is scrawled for the rest of these individuals' lives on their bodies and minds. Our national honor is stained by the indignity and inhumane treatment these men received from their captors.

The profiles of these eleven former detainees, none of whom were ever charged with a crime or told why they were detained, are tragic and brutal rebuttals to those who claim that torture is ever justified. Through the experiences of these men in Iraq, Afghanistan, and Guantanamo Bay, we can see the full scope of the damage this illegal and unsound policy has inflicted—both on America's institutions and our nation's founding values, which the military, intelligence services, and our justice system are duty-bound to defend.

In order for these individuals to suffer the wanton cruelty to which they were subjected, a government policy was promulgated to the field whereby the Geneva Conventions and the Uniform Code of Military Justice were disregarded. The UN Convention Against Torture was indiscriminately ignored. And the healing professions, including physicians and psychologists, became complicit in the willful infliction of harm against those the Hippocratic Oath demands they protect.

Preface to *Broken Laws, Broken Lives: Medical Evidence of Torture by US Personnel and Its Impact*, Physicians for Human Rights, 2008, viii, http://phr.org/broken-laws-broken-lives. Reprinted by permission.

After years of disclosures by government investigations, media accounts, and reports from human rights organizations, there is no longer any doubt as to whether the current administration has committed war crimes. The only question that remains to be answered is whether those who ordered the use of torture will be held to account. The former detainees in this report, each of whom is fighting a lonely and difficult battle to rebuild his life, require reparations for what they endured, comprehensive psycho-social and medical assistance, and even an official apology from our government.

But most of all, these men deserve justice as required under the tenets of international law and the United States Constitution.

And so do the American people.

8. Judge Amy Berman Jackson Rules That the Army's ROTC Program Must Accommodate Iknoor Singh's Religious Beliefs, 2015

MEMORANDUM OPINION

Plaintiff Iknoor Singh is a rising junior at Hofstra University and an observant Sikh. In accordance with his religion, plaintiff does not cut his hair or beard, and he wears a turban. He has endeavored to enroll in the Reserve Officers' Training Corps ("ROTC") program run by the United States Army at his university, but his religious practices do not conform to Army uniform and grooming standards. Plaintiff sought a religious accommodation that would enable him to enroll in ROTC with his articles of faith intact, but the Army denied the request. Plaintiff contends that the Army's refusal to accommodate his religious exercise violates the Religious Freedom Restoration Act ("RFRA"), and he brought this lawsuit against John McHugh, in his official capacity as Secretary of the United States Army; Lieutenant General James C. McConville, in his official capacity as Deputy Chief of Staff, G-1, United States Army; Brigadier General Peggy C. Combs, in her official capacity as Commanding General, United States Army Cadet Command; and Lieutenant Colonel Daniel L. Cederman, in his official capacity as Commander of the ROTC program at Hofstra University.

In their motion for summary judgment, defendants remind the Court of the doctrine that cautions judges to afford substantial deference to the judgment of military commanders and to decline to interpose their own views in matters involving the composition and training of military officers. In opposing defendants' motion and advancing his own, plaintiff points out that like all government agencies, the Armed Services are governed by the congressional determination – enshrined in RFRA – to tip the scale in favor of individual religious rights. He notes that even the military must be able to demonstrate that a policy that imposes a substantial burden upon an individual's ability to practice

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Iknoor Singh v John McHugh, et. al. Civil Action No. 14-1906 (ABJ), US District Court for the District of Columbia, June 12, 2015.

his religion furthers a compelling government interest, and is the least restrictive alternative available for furthering that interest. In other words, while the Court must accord the military a great deal of respect, particularly in its identification of the compelling interests involved, the defendants still bear the burden to come forward with sufficient evidence to satisfy the strict scrutiny inquiry: does the specific application of Army policy to this plaintiff further the asserted compelling interest and do so in the least restrictive manner?

The Court finds that defendants have failed to show that the application of the Army's regulations to this plaintiff and the denial of the particular religious accommodation he seeks further a compelling government interest by the least restrictive means. Therefore, and for the additional reasons set forth below, defendants' dispositive motions will be denied and judgment will be entered in favor of the plaintiff. The Court accords substantial deference to the Army's judgments concerning the essential role that uniformity plays in military training and effectiveness. But given the tens of thousands of exceptions the Army has already made to its grooming and uniform policies, its successful accommodation of observant Sikhs in the past, and the fact that, at this time, plaintiff is seeking only to enroll in the ROTC program, the Army's refusal to permit him to do so while adhering to his faith cannot survive the strict scrutiny that RFRA demands. This decision is limited to the narrow issue presently before the Court – plaintiff's ability to enroll in ROTC with his turban, unshorn hair, and beard – and it does not address plaintiff's eventual receipt of a contract or an Army commission....

The Decision at Issue in This Case:

The Denial of Plaintiff's Request for a Religious Accommodation Plaintiff "has long dreamed of serving his country," and he has explained that he wishes to enroll as a cadet in the Hofstra ROTC program so that he may compete for a contract. Plaintiff has participated in ROTC classes at Hofstra as an unenrolled student since his freshman year. In April 2013, plaintiff requested a religious accommodation so that he could fully enroll in ROTC, and complete all of the training necessary to compete for a contract, while maintaining his unshorn hair, beard, and turban. The Enrollment Officer of the Hofstra ROTC program denied plaintiff's request for an accommodation, stating that "[t]he Army whenever possible, makes all attempts to accommodate religious practices and belief but not when it has an adverse impact on readiness, unit cohesion, standards, health, safety or discipline."

After the initial denial, plaintiff continued to seek an accommodation. In June 2013, the organization UNITED SIKHS sent a letter on plaintiff's behalf to the ROTC Department Chair at the time, Lieutenant Colonel ("LTC") David Daniel, urging him to approve a religious exemption for the plaintiff. LTC Daniel denied the request on August 16, 2013, stating that "the contracting of Cadets into the ROTC program who cannot comply with the wear and appearance and personal grooming standards of Army Regulation (AR) 670-1 is not permitted under AR 145-1," and that neither he nor U.S. Army Cadet

Command had the authority to permit an exception to this policy. LTC Daniel further stated that it was "not legally permissible under AR 145-1 to grant religious exceptions to allow a Sikh Cadet to enroll in the ROTC program while maintaining his religious articles."...

After plaintiff filed this lawsuit, the Army decided to process his accommodation request. On December 19, 2014, plaintiff received a letter from LTG McConville denying the religious accommodation on substantive grounds.

LTG McConville's letter stated that, after balancing "the facts of [plaintiff's] individual case" against considerations of "military necessity," the Army was denying the accommodation request on several grounds. McConville explained that "Army ROTC is the primary means of generating the officer leaders of the Army," and so "it is important that Cadets are inculcated into the Army and its values, training methods, and traditions in a way that is reflective of what their future [S]oldiers will expect of them." Citing his "over thirty years of experience as a leader and commander of [S]oldiers," he determined that "[p]ermitting an obvious deviation from these standards in an officer training program" by granting plaintiff's requested accommodation "would, in the eyes of the [S]oldiers whom Cadets are being trained to lead, damage the esteem and credibility of ROTC and the officer corps in general....

B. Defendants have not demonstrated that denying an accommodation to plaintiff furthers the government's compelling interests. Defendants assert that "[t]he Army's decision to deny Plaintiff's request for a grooming accommodation while in an officer training program furthers compelling interests in maintaining a credible officer corps and an effective fighting force that is capable of meeting the Nation's defensive needs."... According to LTG McConville, "[u]niformity is a primary way the Army builds an effective fighting force" because "[i]t allows a strong team identity to be forged, distinguishes service members from the civilian population, reinforces notions of selfless service, and provides a routine that instills discipline in Soldiers and leaders, while connecting the Army to its past in a visible way." Defendants assert that "[t]he interest in maintaining an effective Army by developing a disciplined, well trained, credible, cohesively bonded, and reliable corps of officers in ROTC is undeniably compelling."

There can be no doubt that military readiness and the unit cohesion and discipline of the Army officer corps constitute highly compelling government interests....

But the Religious Freedom Restoration Act of 1993 (RFRA) "requires the Government to demonstrate that the compelling interest test is satisfied through application of the challenged law 'to the person'—the particular claimant whose sincere exercise of religion is being substantially burdened." Thus, the Court must determine whether defendants have proven that the decision to deny *this plaintiff* a religious accommodation that would enable him to enroll in ROTC actually furthers the compelling interests defendants have identified....

In this case, there is ample undisputed evidence that soldiers in all corners of the Army are permitted to maintain beards and to wear religious headgear while

in uniform, as well as to deviate from the grooming standards in other ways. And the Army has allowed several Sikhs to serve – albeit, in different circumstances than plaintiff – with accommodations for their turbans, beards, and unshorn hair. So defendants cannot simply invoke general principles here – they must make the necessary heightened showing to justify the specific refusal to grant an exception to plaintiff.

The Court finds that defendants have not overcome this hurdle.

1. LTG McConville's Decision LTG McConville's decision to deny an accommodation to plaintiff rested on his conclusion that permitting "an obvious deviation" from the uniform and grooming regulations in an officer training program would undermine:

- "Unit cohesion and morale," because it would "undermine the common Army identity we are attempting to develop in ROTC, and adversely impact efforts to develop cohesive teams,"
- "Good order and discipline," because "the even handed enforcement of grooming standards instills the self-discipline necessary for the military member to perform effectively"; "[g]ranting [plaintiff] an exception in a military officer training program would undercut this fundamental component of [the] program, and dramatically change the nature of how we train officers for the future needs of the Army"; and "[i]f officer training does not reflect Army training, the credibility of the officer corps will be called into question,"
- "Individual and unit readiness," because "allowing [plaintiff] to continue in officer training without any emphasis on uniformity would leave [him] generally unprepared to lead Soldiers, viewed as an outsider by [his] peers, and trained in a manner that is wholly inconsistent with how we develop strong military officers," thereby weakening "good order, discipline, the credibility of the officer corps, cohesion, and morale," as well as military readiness in general, and
- Plaintiff's "health and safety," based on an Army study that shows that "facial hair significantly degrades the protection factor of all approved protective masks," and because compliance with Army grooming standards is "[o]ne of the most important mechanisms for managing risk" because it facilitates "the ability to assess a Soldier's competency and attention to detail,"

McConville acknowledged that the Army had granted religious accommodations to Sikh soldiers in the past, but he differentiated those individuals because the exceptions were granted "based on the military necessity factors that existed at the time," and the soldiers were "selected to serve in positions requiring unique skills or professional credentials to meet the Army's operational needs." McConville also offered his view that issuing temporary medical exceptions to grooming standards did not undercut the Army's ability to enforce grooming and appearance policies in general because those exceptions are "subject to

approval by military commanders" and often limited in duration, and still they require the recipient to "trim his beard as close to his face as possible."

Notwithstanding the undeniable importance of uniformity to military discipline, unit cohesion, and safety in general, these justifications for the Army's decision do not withstand strict scrutiny.

2. The Army has permitted numerous exceptions to its grooming and uniform policies. Defendants' contention that denying plaintiff a religious accommodation furthers the stated compelling interests is undermined by the fact that the Army routinely grants soldiers exceptions to its grooming and uniform regulations.

First, since 2007, the Army has permitted more than 100,000 service members to grow beards for medical reasons; it has authorized at least 49,690 permanent "shaving profiles," and at least 57,616 temporary ones. These soldiers with beards include not only enlisted men but officers bound to ensure that the men who serve under them are clean-shaven....

It is undisputed that there are differences between the religious accommodation plaintiff seeks for his beard and the shaving profiles the Army has granted. But defendants have not carried their burden to show that permitting plaintiff's unshorn beard would undermine the Army's compelling interests any more than the medical beard accommodations the Army has provided, especially considering that the Army permits soldiers to grow beards longer than a quarter of an inch "if medically necessary." And although some shaving profiles are classified as temporary, tens of thousands of them are "permanent," and defendants have offered no evidence that any soldier has been separated on that basis.

Moreover, while soldiers who are granted shaving profiles may be required to shave by their commanders, the Army's own rules provide that this authority "should not [b]e used to require that a Soldier be clean shaven for maneuvers and other tactical simulations," but should be invoked only "when there is an actual need to wear the protective mask in a real tactical operation." Therefore, the fact that other shaving exceptions may be revocable does not support the outright denial of the accommodation sought here: as an ROTC enrollee, or even as a contracted cadet, plaintiff would never encounter the "real tactical operation" that would permit a commander to require a soldier with a medically-necessary beard to shave.

For the same reason, the concern about plaintiff's health and safety is misplaced, at least for the duration of his participation in ROTC.

Finally, the Court notes that defendants have not claimed or shown that even one of the more than 100,000 soldiers who have been permitted to grow a beard since 2007—including many who have served in deployed environments—has been ordered to shave it for any reason.

In sum, it is difficult to see how accommodating plaintiff's religious exercise would do greater damage to the Army's compelling interests in uniformity, discipline, credibility, unit cohesion, and training than the tens of thousands of medical shaving profiles the Army has already granted....

("[T]he Department has provided no legitimate explanation as to why the presence of officers who wear beards for medical reasons does not have [the same] effect [as] the presence of officers who wear beards for religious reason would.... We are at a loss to understand why religious exemptions threaten important city interests but medical exemptions do not."). Defendants have not claimed or shown that any of the soldiers and officers who have served with beards have been less disciplined, less credible, less socially integrated, or less well-trained than their clean-shaven colleagues. In addition, to the extent that the Army has also asserted an interest in diversity, that interest would plainly be furthered by permitting plaintiff's enrollment in ROTC.

Medically-based shaving profiles are not the only large-scale exception the Army makes to its grooming policies. In March of 2014, the Army tightened its policies related to tattoos, but it grandfathered in nearly 200,000 soldiers with non-conforming tattoos—including officers who will be bound to enforce the policy in the future. The tattoos cover a wide range of personal expression, and they include religious iconography, symbols of cultural or ethnic heritage, images from popular culture, and more. The fact that the Army is able to tolerate so many idiosyncratic deviations from its grooming regulations further undermines LTG McConville's assertion that "the even handed enforcement of grooming standards" is critical to "instill[] the self-discipline necessary for the military member to perform effectively."

Neither LTG McConville's decision nor defendants' pleadings say much about plaintiff's request to maintain his turban and unshorn hair. LTG McConville's letter states that "[h]air and clothing are a very visible way that individuals express their identity," and that "[b]y eliminating the social distinctions that different civilian attire implies, uniforms emphasize the professional equality of all military people." But it is undisputed that the Army's own regulations permit soldiers to wear yarmulkes and other religious headgear, and defendants do not contend that a turban would necessarily fail to satisfy the religious headgear rules. Moreover, although Army regulations require male soldiers to keep the hair on their heads cut short, defendants do not—and cannot—contend that plaintiff's unshorn hair, when tucked into a turban in accordance with religious precepts, would "fall over the ears or eyebrows, or touch the collar," or present an appearance that is anything other than "neat and conservative." In view of the vast number of exceptions to the grooming and uniform standards that the Army has granted, the Court finds that defendants have not shown that denying this plaintiff a religious accommodation would make him less credible, disciplined, or ready than the other officers and soldiers who similarly do not meet all of the requirements of uniformity.

Finally, defendants have not carried their burden to show that "the compelling interest test is satisfied through application of the challenged law 'to the person.'" LTG McConville's decision emphasizes the general importance of uniformity in cultivating and reflecting Army discipline. McConville explains that "[u]niformity is a key component of the learning process" for ROTC cadets because it is "a readily available means of instilling the practice of inspection and compliance that not only sharpens Soldiers, but also leaders." He insists

that "[u]niformity helps to inhibit personal desires and impulses that may be antithetical to mission accomplishment," noting that "[t]he obligations Soldiers undertake, risking life and well-being for the greater good, require[] dedication, selfless service, and discipline." And he notes that compliance with Army grooming standards facilitates "the ability to assess a Soldier's competency and attention to detail."

But the accommodation this plaintiff seeks does not stem from any lack of self-control, dedication, or attention to detail. To the contrary: plaintiff seeks an accommodation because he faithfully adheres to the strict dictates of his religion. So even if, in some cases, a soldier's failure to follow the Army's standards might signal a rebellious streak or reflect a lack of impulse control or discipline, LTG McConville's decision fails to grapple with the fact that any deviation from the rules on plaintiff's part flows from a very different source. And therefore, the decision lacks the individual assessment that is fundamental under RFRA.

3. The Army has granted religious accommodations to other Sikh soldiers. Defendants' contention that denying this plaintiff an accommodation advances the Army's compelling interests is further undermined by the undisputed fact that at least four Sikh men who served in the Army with tremendous success received similar accommodations. Corp. Simran Preet Singh Lamba enlisted in 2009, served as a medic, received a promotion to Corporal, and currently serves in the U.S. Army Individual Ready Reserve. Maj. Kamaljeet Singh Kalsi is an Army doctor who served in Afghanistan, received a promotion to Major, and is currently serving in the Army Active Reserves. Capt. Tejdeep Singh Rattan is an active duty Army dentist who served in Afghanistan. Gopal Singh Khalsa enlisted in the Army as a private in 1976, served in Military Intelligence, served overseas, received numerous promotions, and eventually retired as a Colonel in 2009. Each of these soldiers received an accommodation that permitted him to serve while maintaining unshorn hair, an unshorn beard, and a turban. And, notwithstanding the deviation from the uniformity that is undeniably a core aspect of military life, each of them has earned commendations and outstanding reviews:

- Corp. Lamba's superiors described him as "easily one of the most impressive Soldiers in the company," "an exceptional Soldier [who] possess[es] all the attributes ... required to be an outstanding Army Officer," and "a tremendous Soldier, an invaluable member of [the] team, and [someone who had] an amazing impact on his peers and supervisors." In addition, one of his Drill Sergeants noted that "[d]espite any spoken or unspoken stereotypes surrounding his enlistment in the United States Army, SPC Lamba displayed ... intelligence, courage, and inner strength; enabling him to push forward with his training in a manner that would make seasoned Soldiers proud to have him on their team." Lamba also received an Army Commendation Medal in acknowledgment of his "exceptionally meritorious service," his "selfless service and dedication to duty," and the fact that "his actions [were in] keeping with the finest traditions of military service."

- Maj. Kalsi's superiors described his performance as "[t]ruly exceptional," stating that he "can be expected to excel in positions of leadership," and that "[h]e possesses absolutely unlimited potential as a leader, military officer, and physician." Kalsi was awarded a Bronze Star for his service in Afghanistan.
- Capt. Rattan's superiors believe that his "potential is unlimited as an Army Dental Officer and leader," and have described his performance as "exemplary," "tireless," "in keeping with the highest traditions of the ... United States Army," "outstanding," and "extraordinary." In addition, Rattan's commander stated that he had "done everything within his power to keep within the [grooming and uniform] regulation" and had "[gone] leaps and bounds beyond what others have had to do." The commander further noted that "[t]he only struggle is that when some people get a first look, they are going to stereotype him," but "[t]hat is the good thing about having Rattan out there, to show that this is a proud individual, he knows what he is doing, and he is doing a phenomenal job." Capt. Rattan has received numerous awards, including a NATO Medal and the Army Commendation Medal for his service.
- During more than three decades of Army service, Col. (Ret.) Khalsa received an enormous volume of praise and numerous promotions. In training in 1977, he was selected from among 600 peers as the Outstanding Soldier of the Cycle; in Officer Candidate School, he was named the Distinguished Leadership Graduate, and was later inducted into the school's hall of fame; in 1998, after being promoted to Lieutenant Colonel, Khalsa was appointed Battalion Commander for the Reserves' 368th Military Intelligence Battalion, a position in which he commanded 700 soldiers, including commissioned officers, warrant officers, and enlisted soldiers; he was repeatedly rated "Best Qualified" for promotion; in 2003, he was promoted to full Colonel and became the Deputy Chief of Staff, G7 for Training for the 63rd Regional Readiness Command, a position that charged him with coordinating and resourcing all individual, unit, and professional development training for all U.S. Army Reserve units in Arizona, California, and Nevada; and he delayed his retirement at the Army's request to accept an appointment as Course Director for the Army's Company Team Leader Development Course. Khalsa was praised for being "a total soldier who demonstrates mental and physical readiness and sets the highest example for his troops to follow," as having "unlimited potential," as "our best battalion commander, bar none," for being "held in the highest esteem by his superiors and subordinates alike," "a highly disciplined officer," "capable of commanding any brigade," and the "[b]est of the best."

Defendants point to undisputed facts that distinguish each of these soldiers from the plaintiff. They note that Maj. Kalsi, Capt. Rattan, and Corp. Lamba each "joined the military in response to specialized programs that actively sought the unique skills these individuals possessed during a time of growing conflict," and all three served in medical roles in the Special Branches, which "focus on

professional technical skills and less on the leadership of large teams of soldiers." Plaintiff, by contrast, wishes to become a Military Intelligence officer in the Basic Branches of the Army.

Faced with the fact that Col. (Ret.) Khalsa served in Military Intelligence in the Basic Branches and had a long and distinguished career as an Army officer, defendants note that he was "commissioned and grandfathered under the prior regulatory system" that permitted religious accommodations for Sikhs. Also, according to defendants, "[t]he needs of the Army now are also far different than when other exceptions were granted."

Finally, defendants argue that "[t]he relative professional success" of Corp. Lamba, Maj. Kalsi, Capt. Rattan, and Col. (Ret.) Khalsa "validates the Army's decision-making process and its decision to grant accommodations in appropriate circumstances."

But despite the differences between plaintiff and Corp. Lamba, Maj. Kalsi, Capt. Rattan, and Col. (Ret.) Khalsa, the undisputed evidence in the record indicates that each of these men served—or are serving—with their articles of faith intact without any of the negative consequences that defendants predict would flow from granting a similar exception in this case. The praise heaped on each man's service—including, in particular, for their discipline and leadership—stands in stark contrast to LTG McConville's conclusion that permitting plaintiff to maintain his articles of faith would undermine the quality of his training, unit cohesion and morale, military readiness, and the credibility of the officer corps.

Furthermore, the Army's own research stands in stark contradiction to LTG McConville's opinion. The Army conducted an internal examination of the effect of Corp. Lamba's religious accommodation on his service, and the study concluded that "the Soldier's religious accommodations did not have a significant impact on unit morale, cohesion, good order, and discipline," and that it "had no significant impact on his own, or any other Soldier's, health and safety." The defendants point to no contrary empirical evidence.

Thus, instead of "validat[ing] the Army's decision-making process," the exemplary service records of the four Sikh soldiers with religious accommodations serve to highlight the flaws in the Army's analysis in this case. Those soldiers had the chance to prove themselves, and that is all plaintiff is seeking here. Defendants have no way of knowing whether plaintiff, too, might be qualified to serve because they have not yet even allowed him to enroll in ROTC.

In conclusion, defendants failed to come forward with any evidence to diminish the force of the evidence produced by plaintiff, as is their burden, and they seem to suggest that LTG McConville's say-so is sufficient to justify the decision here. Notwithstanding his thirty-four years of experience in the Army, and his superior judgment about military matters, adopting his conclusion without more would entail abdicating the role that RFRA requires the Court to play. Defendants have failed to sustain the heavy burden that applies when a governmental entity refuses to grant an exception to a policy already riddled with exceptions, and they have failed to satisfy their burden of demonstrating that the compelling government interests they cite are furthered by the

unwavering application of Army policies to this plaintiff in this particular context. Under these circumstances, and in light of the evidence presented here, the Court finds that it would require "a degree of deference that is tantamount to unquestioning acceptance," to credit defendants' assertion that denying a religious accommodation to plaintiff while he enrolls in ROTC advances the Army's asserted compelling interests as applied to him.

C. Defendants have not shown that denying an accommodation to plaintiff is the least restrictive means of furthering their interests. While the Court accords defendants a high level of deference in their identification of compelling military interests, it finds that it is well within its purview to hold that the Army's refusal to grant this plaintiff a religious accommodation is not the least restrictive means of advancing those interests....

Defendants contend that "there is no less restrictive means to promote and maintain teamwork, motivation, discipline, esprit de corps and image, within the context of an officer development program," than to deny a religious accommodation to plaintiff. Plaintiff's individual readiness, they argue, would be irretrievably undermined by allowing him "to continue in officer training without any emphasis on uniformity," because he would be "trained in a manner that is wholly inconsistent with how we develop strong military officers." Moreover, defendants point out that plaintiff, if qualified, would not receive a commission until 2017, and that "[t]he Army cannot decide now that it will simply find Plaintiff a branch within the organization ... where his accommodation may have some potentially lesser impact on the military necessity factors." Finally, according to defendants, "[t]he fact remains Plaintiff would subject himself, his fellow soldiers, and his unit to greater risk by virtue of his wearing a beard in an environment with chemical or biological weapons."

But the Court has already found that defendants have failed to show that if plaintiff's religious exercise were to be accommodated, his individual readiness will be diminished any more than the readiness of the tens of thousands of soldiers and officers who have received grooming and uniform accommodations for other reasons. Nor have defendants demonstrated that plaintiff's training would be devoid of *"any* emphasis on uniformity" by virtue of his accommodation, (emphasis added), or that these concerns could not be advanced some other way. For example, the Army's letter granting an accommodation to Corp. Lamba stated that it was "[then-]SPC Lamba's responsibility to ensure his beard is well maintained and presents a neat and orderly appearance."

Furthermore, although the Court does not doubt that the Army cannot anticipate at this time what its needs will be in 2017, that only serves to underscore the fact that a temporary accommodation is a less restrictive means here. As plaintiff points out, a temporary accommodation "would be especially workable" because it would give the Army "ample opportunity to determine whether [plaintiff's] articles of faith *actually* interfere with his performance," and would permit defendants to "observe Mr. Singh in action with his accommodation as he competes with his peers for an ROTC contract." It would also permit defendants to troubleshoot any issues that might arise, including with respect to gas masks, as appropriate.

Finally, the undisputed evidence shows that, in 2010, the Army granted Corp. Lamba a temporary accommodation that was virtually identical to the one sought by plaintiff here for the purpose of Lamba's "attendance at basic military training and military occupational school." Lamba's temporary accommodation included the proviso that the accommodation could not "be guaranteed at all times" and might "be revoked due to changed conditions," which no doubt served to protect many of the interests that defendants have asserted in this case. Defendants have not shown that the less restrictive alternative of a temporary accommodation with similar conditions would be insufficient to protect the Army's interests here.

In sum, defendants have not carried the "'exceptionally demanding'" burden to "'sho[w] that [the Army] lacks other means of achieving its desired goal without imposing a substantial burden on [plaintiff's] exercise of religion.'" The relief plaintiff seeks—an accommodation that would permit him to enroll in ROTC with his articles of faith intact—would not require the Army to guarantee him a commission, or even a contract, and it stops far short of the permanent relief the Army has granted to tens of thousands of soldiers for medical and religious reasons, Moreover, because providing plaintiff with a temporary religious accommodation for the purpose of enrolling in ROTC, which could be revocable if necessary, is an available less restrictive means, the Army must employ that alternative.

Conclusion

For the foregoing reasons, the Court will deny defendants' motion to dismiss and for summary judgment, and it will grant plaintiff's cross-motion for summary judgment....

And it is...

ORDERED that defendants are permanently and immediately enjoined from conditioning plaintiff's enrollment in ROTC and his ability to compete for a contract on plaintiff's compliance with the Army uniform and grooming regulations that would require him to abandon his turban and beard, and to cut his hair, in violation of his sincerely held religious beliefs.

SO ORDERED.

/s/ Amy Berman Jackson
AMY BERMAN JACKSON
United States District Judge
DATE: June 12, 2015

ESSAYS

The first essay, by journalist John H. Richardson, discusses the controversy surrounding John Yoo, a Korean American law professor at the University of California, Berkeley, who drafted legal memos in 2002, as deputy assistant attorney general in

the George W. Bush administration, on the use of "enhanced interrogation techniques" of detainees. While Yoo's defenders argue these techniques are a necessary application of executive authority to effectively fight a new kind of war on terror, his critics charge that Yoo condones torture that violates the Geneva Conventions. The second essay, by Jaideep Singh, a professor of ethnic studies at California State University, East Bay, examines how media depictions of turbaned and bearded men after 9/11 unleashed a wave of violence against the half million Sikh Americans living in the United States. After personally experiencing attacks linking him with suspected terrorists, Singh states that he was not surprised when he learned that Wade Michael Page, a U.S. Army veteran and white supremacist, fatally shot six people and wounded four others at a Sikh temple in Oak Creek, Wisconsin, in 2012.

"Enhanced Interrogation" and the Definition of Torture During the War on Terror

JOHN H. RICHARDSON

HE IS THE YOUNG JUSTICE DEPARTMENT LAWYER—thirty-four at the time—who wrote the Bush administration's first decisions on prisoner detention, interrogation, habeas corpus, military commissions, and the Geneva Conventions. He is the man who defined torture as pain equivalent to "death or organ failure," who said that the president could crush the testicles of a child to make his father talk, who picked the lock on Pandora's box and unleashed the demons of Abu Ghraib. He's been accused of war crimes and compared to the Nazi lawyers who justified Hitler. Many good Americans would like to see him fired, shamed, even imprisoned....

Jose Padilla's lawyers certainly think so. "We are talking about the torture of an American citizen in an American prison by American officials," one of them told me, indignation rising fresh in his voice. Padilla is the former Chicago gang member who was arrested in O'Hare Airport in May 2002 as he returned from terrorist training camps in the Middle East with plans-or so the government believed—to explode a "dirty" nuclear bomb in the United States. After he was convicted on more general terrorism-conspiracy charges, his lawyers took the extraordinary step of filing a lawsuit against the junior-level lawyer they saw as the first link in the chain. "Defendant Yoo prepared the Torture Memos," they said, referring to several Justice Department opinions, including a memo that was sighed on August 1, 2002, and withdrawn in shame two years later. "He knew the Torture Memos would be transmitted to senior government officials, including officials at the White House and Department of Defense, and would be relied upon by military and intelligence officers in formulating and implementing programs of confinement and interrogation for suspected 'enemy combatants.'" Yoo also wrote the memo that put the "enemy combatant" label on Padilla. As a result, the lawsuit claims, Padilla was held

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"Is This Man a Monster?" by John Richardson from *Esquire*, 149, no. 6 (June 2008): 126–152. Reprinted by permission of *Esquire* Magazine.

without charges for three years and eight months, completely alone under twenty-four-hour camera surveillance, with his windows blacked out and no clock or radio or TV to help him mark time. Sometimes the lights were left on for days, sometimes he was left in the dark for days, sometimes the cell was extremely hot, sometimes extremely cold. His sleep was constantly interrupted and he was threatened with death and given disorienting drugs and shackled and forced into stress positions for hours at a time. Whenever he was moved, he wore a blindfold and noise-canceling headphones to reinforce his isolation and helplessness. After a few years of this intentional effort to break his will and destroy his mind, Padilla was given to "involuntary twitching and self-inflicted scratch wounds" and his jailers often observed him weeping in his cell, so broken and passive that he had become "like a piece of furniture."

Padilla's claims have not been proven. Some of them, like the accusations of death threats and use of drugs, go beyond even Yoo's liberal interpretation of interrogation laws. But they remind us of what we have done and what we will continue to do. Consider the fight over Michael Mukasey's nomination for attorney general, when Mukasey refused to call waterboarding torture. He said he didn't want to put the CIA officers who made these judgments in the heat of battle "in personal legal jeopardy." It seemed so ridiculous, right out of 1984. The Khmer Rouge used waterboarding. We prosecuted Japanese generals for doing it. But Mukasey was confirmed anyway, and four months later President Bush vetoed a law that banned waterboarding. Consider also that courts and Congress have endorsed many of Yoo's opinions, including the use of military commissions and the extended detention without criminal charges of "enemy combatants" who are American citizens....

From his office, he has a million-dollar view of San Francisco and the Golden Gate Bridge. There are law books everywhere. His screen saver is a picture of his wife. His iPhone screen saver is a picture of his wife too, which helps take the edge off all the hate calls. On the floor, there's a shopping bag from a local hippie institution called Amoeba Music. On the wall, a framed goodbye card from the Department of Justice. "Thank you for your excellent service to America," John Ashcroft wrote. "We are stronger and safer because of you."

He turns out to have lots of unexpected quirks. He's pro-choice. He thinks flag burning is a legitimate form of free speech. He thinks the government is "wasting a lot of resources" in the war on drugs. He thinks the phrase "war on terror" is misleading political rhetoric. He's cowriting an article that makes a conservative case for gay marriage. "Our argument is, the state should just stay out of these things, because it doesn't hurt anybody." And he's definitely alarmed by the more theocratic Republicans. "When Mike Huckabee says he wants to amend the Constitution so that it's consistent with God's law, that scares the bejesus out of me."...

"It's the level of anger that really shocks me," he says.

"I'm surprised that you're surprised," I say.

The anger is often directed at him. Protesters in Guantánamo orange have disrupted his class and dogged him in public forums. I talked to another Berkeley law professor who refuses to attend faculty meetings with him. "Until he

atones," he said, "I don't want to be in the same room with him." But Yoo shrugs it all off. He likes living among liberals, he says. "Liberals from the sixties do a great job of creating all the comforts of life—gourmet food, specialty jams, the best environmentally conscious waters."...

At Steve's Korean B.B.Q., Yoo talks about his parents. They were teenagers during the Korean War, a serious pair who both became doctors and moved to the U. S. out of gratitude and a love of democracy. "They saw the United States as saving their country, and I agree with them," he says. "It did save their country. And then it let people in. It was extraordinarily generous. I wouldn't be here if it wasn't for the generosity of the United States."

He grew up in the elite Main Line area of Philadelphia and went to a prep school where he wore a suit and tie and learned Greek and Latin. He seems to have been a natural-born conservative, attracted even as a teenager to Ronald Reagan's message of anticommunism, low taxes, and small government, values that resonated with the immigrant dream of personal freedom. But he was never angry or righteous about it. "He was completely open and tolerant of everyone," says Gordon Getter, a prep-school classmate. "He had a genuine sense of humor," says Thomas Schwartz, one of his professors at Harvard. "He would argue and people would get mad at him, but he never seemed to take it personally."

He was also exceptionally brilliant, Schwartz says. "These were extraordinary students, and John was a star among them."

As an undergraduate in the history department, Yoo developed a deep interest in presidential power. His senior thesis was about Eisenhower's plan to share nuclear weapons with the other members of NATO. The example of Truman in Korea was never far from his mind—with North Korean troops sweeping south, Truman rushed U. S. troops to war without pausing for a congressional debate and tried to seize the steel companies to guarantee arms production.

But when Yoo arrived at Yale Law School, everyone seemed to agree that Congress was the dominant policymaker and should approve every war. It was the standard liberal position in the wake of Vietnam, but Yoo saw Vietnam through the lens of Korea, imagining how life would have been for his parents under the savage dictatorship of Kim Il Sung. His preference for Truman's lonely fortitude only deepened when he became a clerk for Laurence Silberman, one of the leading champions of the "unitary executive" theory of expansive presidential powers. In free moments around the courthouse, Silberman painted Congress as a flock of tiny men with tiny ropes intent on binding the president down-annoying in peace but dangerous in war.

Over the next few years, Yoo alternated between stints as a professor at Berkeley and jobs in Washington, first with Justice Clarence Thomas and next with Senator Orrin Hatch. Though he disagreed with them on basic issues like abortion and the attempt to remove Clinton from office, he was drawn to their lonely integrity. Hatch was "one of the few guys in the Senate who really would go to the mat on principle," he says. He also picked up another crucial lesson during the Whitewater investigation, when Senate committee members

would demand documents and President Clinton refused to provide them, each side insisting that the Constitution supported its position. "But they worked out deals," Yoo says. "The system is almost designed for them to come into conflict, and they work out a deal. So that had a big effect on me."

Back at Berkeley, he started putting it all into a book. As the first chapters hit the legal journals, he became a star on the lecture circuit, a young hotshot with a provocative theory. His basic idea was that the Constitution has tons of rules on how to pass legislation but almost nothing on war. So the president takes action and Congress fights back, an improvisation with one partner leading, and that is the way it was meant to be—the real reason Truman didn't ask Congress for an authorization before going into Korea, the reason Clinton continued to bomb the Serbs in defiance of the War Powers Act, the reason Bush has resisted every attempt by Congress to restrict his war policies.

Yoo's analysis hinges on the Declare War Clause. Most scholars—most people—believe it was intended to give Congress power to decide whether to go to war and that the founders saw this as an essential bulwark against tyranny. Yoo makes a case that it was really meant as a formal recognition of wars already under way, and the founders intended the real bulwark against tyranny to be Congress's power of the purse. "Several times every year, Congress has a chance to vote on funding the Iraq war," he keeps telling me. "It's an amazing power—if 51 percent of them refuse to vote for it, the war is over."

Abraham Lincoln is Yoo's best argument. Congress had already passed a statute laying out an explicit legal procedure for freeing slaves, but Lincoln ignored the law and freed the slaves under his "unilateral executive authority in wartime as commander in chief to take measures necessary to win a war," as Yoo puts it. Lincoln used the same grounds to suspend habeas corpus, a right the Constitution explicitly grants to Congress. If you really believe that Yoo is all wrong and the unitary-executive theory completely false, you kind of have to say Lincoln behaved like a tyrant.

Jonathan Freiman, Jose Padilla's attorney, bristles when I run Yoo's arguments down for him. "The Supreme Court has said every time it's been asked since 9/11, a state of war is not a blank check. The Constitution applies."

But Congress and the Supreme Court also accepted the military commissions and the enemy-combatant designation and even the indefinite detention of an American citizen named Yaser Hamdi, Yoo would say.

Freiman concedes the point. But Hamdi was arrested in a foreign country in the zone of combat, he says. "That's a pretty small category, a battlefield in a foreign country. It's not a category that encompasses Padilla."

But that's exactly the problem. Padilla was arrested a few months after his associates killed three thousand people in New York City. So where is this battlefield?

It's a dangerous question, Freiman says. "The argument that the entire United States has become a battlefield by virtue of those heinous attacks on 9/11 is just an argument to make the Constitution completely optional, an argument to extend presidential power to the level of monarchy—to every inch of life in this country."

For the next two hours, he pounds Yoo from every possible angle: They already had Padilla under arrest and could have held him under charges like conspiracy or levying war. But they wanted to interrogate him and they wanted to use harsh methods, so they just made up their own rules. This was the natural result of rejecting the Geneva Conventions instead of treating Al Qaeda members as ordinary war criminals. "Before 9/11, you're either a criminal or a soldier. What the government said was, We want a third category where the black shade is drawn, where there are no protections whatsoever, where there is no law."

Freiman is particularly passionate when he rips into the torture memo itself. Did I know that the Justice Department was now investigating how it ever came to be written? Did I know that the man who took over Yoo's department withdrew it, calling it "deeply flawed, sloppily reasoned, overbroad, and incautious in asserting extraordinary constitutional authorities on behalf of the president?" What Yoo should have done was look at the Eighth Amendment, which forbids cruel and unusual punishment. He should have considered international treaties against torture and cruelty and Civil rights along with a host of domestic laws and statutes. But Yoo wasn't acting as an honest lawyer, he says. As the Padilla lawsuit states, he was "a key member of a small, secretive group of executive officials who exerted tremendous influence over antiterrorism policy and who were known as the 'War Council.'" So he bent the law to justify a course of action he was already determined to take.

Freiman is especially scornful about the "necessity argument," as legal philosophers call it—the idea that the president can take extraordinary actions in an emergency to protect the nation, that the information in Padilla's head was worth cracking it open. "That's the argument that every despotic regime in every corner of the globe has been making for sixty years," he says. "Necessity, national security. The Nazis invoked necessity too. The question is, How do you deal with those threats? Are you bound by human rights, or are you not?"

This is why Freiman filed Padilla's lawsuit against Yoo. To redraw that line, he says, to recover our sense of justice and decency, to salvage the idealism that once shone so bright, America must pass judgment on John Yoo.

So let's go back to that moment in the heat of battle. The way Yoo tells the story, he was sitting at his desk at the Justice Department when the first plane hit the World Trade Center. He had only been working there two months, hired to answer the White House's questions on foreign-policy laws at a time when the biggest legal issue before him was a treaty about polar bears. When the order came to evacuate Washington and people began heading out into the streets, someone from the attorney general's office told him to stick around.

Soon the questions came:

Is this a war?
Do we need to declare war?
Can we scramble planes?
And again: Is this a war?

There was no obvious precedent. Yoo considered the level of violence and the source, thousands of civilians killed in coordinated attacks by a foreign

enemy intent on crippling our government. He considered the Civil War, when people asked if it was a war or a rebellion and if Southerners should be treated as traitors or members of a foreign nation. He considered our history of warfare against nonstate groups like Indians and pirates.

He considered the level of military response that might be likely, because a military response itself would imply a state of war. He may have considered his friend Barbara Olson, dead on one of the planes. He found himself returning to this thought:

If a nation had done it, would we have any doubt it was a war?

So yes, it was a war. That's the decision he made while the buildings were still burning.

He stayed till two or three in the morning and when he left Justice and crossed the Fourteenth Street Bridge, the Pentagon was still burning. He saw the flames reaching up so high they lit the sky. But he didn't sleep because his phone kept ringing, each call another variation on the theme: Can we use force? What standards would guide the use of force? Is this a war?

Everyone reviewed his war memo. Ashcroft signed off. And Congress passed the Authorization to Use Military Force with only one opposing vote. If this was the first mistake in the war on terror, as many now believe, it was a mistake the nation made together.

The decision on military commissions came next and seemed like a no-brainer, Yoo says. We had always used military commissions in wartime because they were less cumbersome and many civilian laws (like stalking and assault) made no sense in a war context. It also seemed like a good idea to keep the prison camps distant from U.S. soil, both for safety and to insulate them from those same domestic laws.

The Geneva Conventions issue came up in December 2001. In retrospect it may seem obvious that any departure from Geneva was a policy mistake, the first step down the slippery slope, but Yoo points out that President Reagan explicitly refused to extend Geneva rights to terrorists in 1987. There were also technical problems, such as Geneva requirements that POWs be held in barracks instead of prisons, which didn't seem a practical approach to enemies who didn't wear uniforms and deliberately killed civilians, war criminals by definition. The Taliban was a tougher issue because Afghanistan had something closer to regular-army units and had signed the Geneva Conventions, but Yoo argued that Afghanistan was a failed state, so its signature didn't mean anything—which even he admits was pushing it. The point was, they weren't massing orderly brigades to attack the United States. They gave safe haven to terrorists. With Colin Powell pushing back, Bush finally decided to deny Geneva rights to Al Qaeda but to extend them to the Taliban—a necessary improvisation, Yoo says, a recognition that something new had entered the world.

The interrogation question came up only briefly, Yoo insists. In one meeting he attended in the White House Situation Room, someone worried that under Geneva, "we would only be able to ask Osama bin Laden loud questions, and nothing more." But this was all just an academic exercise until late March 2002, when the CIA captured Al Qaeda's chief of operations, a man named Abu

Zubaydah. They approached Yoo and said they had solid reasons to believe that Zubaydah knew the names of hundreds of terrorists and the details of attack plans that could include nuclear weapons. On top of that, Zubaydah was an expert in interrogation and how to resist interrogation. If it wasn't exactly the famous "ticking bomb" scenario come to life, where you are certain there is a bomb and certain your captive knows where it is, it was close enough. Yoo insists that nobody ever proposed crossing the line into outright torture and that he personally considers torture repugnant and unjustified under any conditions. But they did believe that this was a strange new kind of war, where the front lines were inside the heads of men like Padilla and Abu Zubaydah. So, what about things like isolation, prolonged interrogation, forced exercise, and limited sleep? Where was the line, exactly?

"How long did it take to come up with an answer?"

"I don't remember."

"Weeks? Months?"

"Probably weeks."

The Eighth Amendment did not apply, Yoo decided. It forbade cruel and unusual punishment, but punishment came only after a criminal conviction. His critics savage him for not considering American laws against coerced confessions and police brutality, but Yoo points out that the memo only applies to noncitizens "outside the United States." They say he should have considered our treaty obligations under the United Nations Convention Against Torture, which also forbids "cruel, inhuman, or degrading treatment," but Yoo believed that treaties were only binding when Congress passed statutes translating them into domestic law, a position recently affirmed by the Supreme Court. That meant the binding law was the antitorture statute Congress passed in 1994 in the wake of the convention, a statute that forbade "severe" physical pain and "prolonged mental harm." So these were the critical questions:

How do you define "severe pain"? How do you define "prolonged mental harm"?

Some say this is where he should have balked. "Torture violates the very premise of the legal system itself, that there is something irreducible and inviolable about every person," says Yoo's fellow Berkeley law professor Robert H. Cole. "You can't write a memo about it the way you would write about snowmobiling in Yosemite." At the very least, they say, Yoo should have warned of the moral danger the question posed to the essence of America.

Yoo says he shared those concerns. He says he thought he was writing a memo for exceptional cases, for the highly trained specialists of the CIA. "I never thought it would be a good idea for the Army to do it, to put it in the hands of eighteen-year-old kids. But it would be inappropriate if I had that worry and it changed the way I interpreted the law."

So he buckled down to one of the world's most thankless jobs, defining the limits of acceptable pain. He knew it would be easy to draw a vague standard that sounded good and then give the CIA a meaningful wink. But that wouldn't be fair to the officers in the field.

He wanted to draw a clear line.

The problem was, the Justice Department had never prosecuted anyone under the anti-torture statute, so there were no judicial opinions to guide him. Dictionaries defined severe as "extreme" and "hard to endure." Yoo studied all the international precedents he could find, including the judgment of the European Court of Human Rights in Ireland v. the United Kingdom, which found that the use of hoods, continuous loud noise, sleep deprivation, reduced diet, and a stress position called "wall-standing" were all cruel and degrading but not torture.

So where was the line?

He got the crucial phrasing about organ failure and death from a U.S. law concerning health care.

I can't let this pass. "John, you're a very engaging guy. I like you. I can't picture you writing that phrase, 'organ failure or death.'"

"It's the phrase Congress used," he says.

"But health care and interrogation are wildly different subjects."

"That's a fair criticism. But it's still the closest you can get to any definition of that phrase at all."

"But this isn't legal theory anymore. It's going to have a body count."

"It's a difficult issue, I admit. It's the use of violence. It's unpleasant. I don't disagree with that."

"You could have drawn the line in a different place."

"I really tried to distinguish between law and policy," he insists. Despite Yoo's shocking language defining severe pain as "equivalent to" organ failure or death, he points out that the memo clearly defines as torture mock executions, threats of imminent death, and beatings. He also says it's unfair for people to confuse the war crimes of Abu Ghraib with the aggressive interrogations he authorized. His memo also includes a long list of examples of acts that various courts have found to be torture, page after page of severe beatings and electric shocks and even one case where guards shackled a man to a bed, placed a towel over his face, and poured water down his nose-a nearly exact description of waterboarding, "which people ignore because they focus on that one sentence," Yoo says. "So if you read the whole opinion, I don't think of it as a license to do anything you want to."

It's true, the list is there, the cautionary intent clear. I've never seen it mentioned by any of his critics. But so is Yoo's pet theory about the president's unlimited war powers in an emergency, the passage that would, at least in theory, justify crushing testicles: "Congress may no more regulate the President's ability to detain and interrogate enemy combatants than it may regulate his ability to direct troop movements in the field." This is the section that drives people crazy. When the new head of the Justice Department's Office of Legal Counsel officially withdrew the memo, he singled it out for its "unusual lack of care and sobriety," its "cursory and one-sided legal arguments." No matter what Lincoln or Truman did, they say, Yoo never should have tried to make presidential lawbreaking legal. But Yoo insists that suicide terrorism in the age of nuclear weapons is precisely the kind of situation he anticipated in his law-school theory, the reason the founders left the president's war powers vague.

"But at the same time," I say, "you know that by writing that opinion, by using those words, you're opening the gates."

"I agree," he answers. "The language is not pleasing, it's not politically savvy—I didn't see that as my job."

"And you didn't have any moral qualms?"

He looks me right in the eye. "I think there are some moral questions. But the other side of the moral question is the lives you might save. I have a hard time believing any responsible American president would have said, 'No, absolutely not, do not ask him any more questions, give him a lawyer.' I don't think Al Gore would have said that."

But those harsh interrogation techniques migrated straight to Iraq. What about that?

"That was definitely not permitted under the decision-making level I was at," Yoo says. "It was clearly not. The Geneva Conventions fully applied in Iraq."

And the memo he wrote that was made public this spring, which justified harsh interrogation techniques for military interrogators?

That worried him, he says. But it only applied to interrogators of Al Qaeda prisoners in Guantánamo, and Yoo says that he expressed his concerns to officials "at high levels of the Department of Justice, the White House, and the Department of Defense."

Is it possible that partisan loyalty blinded him to the dangers of putting all that power into the hands of a president so reckless and extreme, the worst combination of cowboy machismo with this radical theory of executive power?

"I can see why people have that view, but I just don't think this is the product of people who have this radical worldview."

"But Cheney was primed. He said we would have to go to the dark side."

Yoo doesn't say anything for a moment, then answers in his usual measured tone. "In World War II, we interned people, tens of thousands of citizens. We tried citizens who were enemy spies under military commissions which had no procedures at all. We let the Air Force kill hundreds of thousands of civilians in firebombing runs in Europe. We dropped a nuclear weapon on Japan. Water boarding we think is torture, but it happened to three people. The scale of magnitude is different."

"But if the war goes on forever, we've created a torture state."

"We've done it three times," he repeats.

"The White House launched an elective war against a country based on false premises."

"They made a mistake."

"But your theory puts the power in the hands of a person who then can invade the wrong country."

"Who can make a mistake. The Constitution can't protect against bad decisions," he insists. "What the framers were really worried about was not that the president would make a mistake, but that the president would become a dictator, and I really don't think Bush has become that."

And looking back? Does he still think it was the right decision?

"I still think I would have done the same—with Abu Zubaydah. But I didn't want the military to use these methods. My advice was not taken on that."

Yoo left the Justice Department in May of 2003, just after Mission Accomplished, three months before Major General Geoffrey Miller was sent to Iraq to "Gitmoize" Abu Ghraib.

So what is severe pain? We asked John Yoo, and he drew the line for us, and now he is tainted in our eyes, rendered unclean by his contact with the unspeakable. The broken figure of Jose Padilla and the horrors of Abu Ghraib will loom behind him forever. "I got a call from the *L.A. Times* asking me if he was a war criminal," says his old Harvard professor sadly. "All my friends see him in that light." But if you read the thousands of essays and books and blogs that rage against him, you will find very few that give a satisfactory answer to the question Yoo was asked. How would you define severe pain? If thousands of lives are at stake and time is of the essence? Would you allow sleep manipulation? Heat and cold? Isolation? Hunger? I asked Jose Padilla's lawyer three times. Where would you draw the line, Mr. Freiman? He dodged it twice. The third time he said outright, "I'm not going to draw that line for you. But I'll tell you where I would have looked—I would have first looked at the Constitution to see what was permissible, then I would have looked at the Geneva Conventions...."

So we still don't have an answer to the question. Some people take comfort in the argument that torture never works. Others say that only an imminent threat to the existence of the nation would justify it. Some say that torture should always be against the law as long as we remember that some laws are meant to be broken, a camp that includes John McCain and Judge Richard Posner in his recent book, *Not a Suicide Pact: The Constitution in a Time of National Emergency*: "In national emergencies most soldiers and other security personnel are willing to do what the situation demands and leave their legal liabilities to be sorted out later. They live for such emergencies, and are selected for courage."

Was that Yoo's real mistake? Saying it out loud?

I ask him the question nobody in the Bush administration wants to answer. "Is waterboarding torture?"

He doesn't hesitate. "It's on the line. It doesn't cause long-term or permanent pain, but it does cause intense pain. It seems to meet the requirements of the statute in some ways—but not all.

So it seems to me that in very limited circumstances, you can use it."

Is what was done to Jose Padilla morally wrong?

"I really cannot talk about that, however much I would like to, because of the litigation brought by Padilla against me," Yoo says. "But perhaps I can say that the memos only applied to captured Al Qaeda and Taliban leaders held outside the United States. They would not apply to an American citizen or permanent resident alien held anywhere in the world, or to anyone held within the United States."

He has other regrets. "I could have tried to press harder on what the Army should have done," he says. But he won't back down on the rest. He'd write the

torture memos the same today, he told me. Alone among Bush administration officials, he does not run from what he has done. He writes editorials and participates in as many as forty public forums a year. In Los Angeles, I even saw him debate a professor of queer theory, an absurd spectacle. "No man is above the law," she said, wanting it to be simple. "This is a question of tragic choices," he answered, insisting it is not.

Not that anyone is listening. Yoo has become the focus of national anger about every excess in the war on terrorism, and minds are made up. But dismissing him as a monster just means that we don't have to think about why he did what he did. Grant him his good intentions, entertain the possibility that he did it to save lives, recognize the honor in his refusal to hide, and his story becomes a cautionary tale about the incremental steps that can lead a nation to disaster.

Memory, Invisibility, and the Oak Creek *Gurdwara* Massacre: A Sikh American Perspective of the Post-Racial United States

JAIDEEP SINGH

On 9/11, I was in my second week teaching at Oberlin College, while living in a rural suburb of Cleveland. Within an hour's drive of my apartment, a *gurdwara* [a Sikh place of worship] was fire-bombed (fortunately, very incompetently) and a man drove his vehicle into a *masjid* (Muslim house of worship) at high speed. But sadly, this local drama paled in comparison to the terror that was gripping Sikh, Muslim, Arab, and South Asian communities throughout the nation. For weeks and months after 9/11, many immigrant communities lived under a virtual state of siege, as entire neighborhoods feared leaving their homes. After 9/11, the Pakistanis who dominated a neighborhood in Brooklyn disappeared permanently within a matter of weeks.

The spring following the terrorist attacks, I was in New York City to give lectures detailing the ground-level impact of racial and religious bigotry in contemporary society, with an emphasis on the Sikh American experience after 9/11. I had given a talk at Princeton on my first day of the trip, and was enjoying a shopping trip with a friend in lower Manhattan, prior to the following day's talk at Columbia. Just across the street from the wreckage of the World Trade Center, as I checked my voicemail, I was asked malevolently by a massive Euro-American construction worker in a bright orange vest walking in the other direction on a packed sidewalk: 'Planning your next move, buddy?'.

I was back on the east coast during the tenth anniversary of the 9/11 attacks, beginning the fieldwork for my study of the Sikh American response to the moment of 9/11. In Boston and New York City, I interviewed a half dozen Sikh Americans who emerged as community activists in the days following 9/11.

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The one consistent theme that emerged from that series of painful-to-conduct interviews, among geographically dispersed and occupationally diverse activists, was that things really have not changed all that much in the intervening decade. They insisted that, for a Sikh man with a beard and turban in the USA, life was very much like walking around with a target on your body.

They spoke of insults hurled on subways trains, confrontations in bars, on the street, and in restaurants. Most distressingly, they told of a general uneasiness that accompanied them in various public settings. There remained in their lives—a decade after the terrorist attacks of 9/11—a constant, usually low-intensity, level of public violence. Such violence is especially insidious because it engenders a constant paranoia and hyper-vigilance about one's surroundings when alone in public, significantly enhancing one's level of personal stress. To observant, visibly identifiable Sikh Americans, the notion that we live in a 'post-racial' world would be farcical, if it did not impinge so painfully on our daily lives.

With a long history of violence accompanying my personal and community history in this country, I have to admit that the massacre in Oak Creek was not shocking, nor even surprising. As someone who studies and writes about race and racial violence, the long list of attacks on Sikh bodies and sites of worship is so long, so ongoing, that it is almost numbing. Just the attacks on Sikh Americans since 9/11 in my home of northern California puts in sharp perspective what it means to be a Sikh in this country, at this time.

Balbir Singh Sodhi and the Erasure of the Sikh American Experience

Particularly horrifying for Sikh Americans was the 15 September 2001 murder of Balbir Singh Sodhi, in Mesa, Arizona. The first person to die from domestic terrorism after 9/11, Mr Sodhi was a Sikh American gas station owner who was killed on his business property by a vigilante racist. But Mr Sodhi's murder, a hateful act of racist vengeance, was largely lost in the broader narrative of our national tragedy, much like that of the Sikh American community itself. While we can debate the reasons for this, his murder made little long-term national impact, except in Sikh and progressive South Asian American communities.

Mr Sodhi's marginalization is evidenced by the scarcity of his name in public discourse around discussions of such topics as contemporary hate crimes, religious intolerance, or the grass roots impact of the nation's increasingly vicious political discourse demonizing immigrants, racialized minorities, and the followers of Islam. Despite the direct linkage of his murder to 9/11, and the fact that he was killed because of the way he looked, news reports about his death rarely presented the public with a photo of Mr Sodhi. The impact of that omission by the news media in this country is now evident.

Balbir Singh Sodhi has never become a symbol of contemporary hate violence in this country, and neither have Sikh Americans. Mr Sodhi is a nonentity to the vast majority of Americans—forgotten like so many true American heroes of color who emerged in the wake of the national trauma of 9/11. The dearth of visually impactful depictions of Mr Sodhi after his murder

reinforced the pervasive western media trope that still represents bearded, turbaned men as religious fundamentalists, misogynists, movie villains, foreigners who seek to harm the country, and terrorists. These vicious stereotypes contrast sharply with the reality of Mr Sodhi being a model immigrant, who came to the USA not only for economic opportunity but to find religious freedom unavailable in his homeland. The immigrant business-owner had just emptied his wallet to donate to the victims of 9/11 at a local store, before returning to his business and being gunned down by a man claiming: 'I'm a patriot ... I'm a damn American all the way'.

As a matter of fact, Mr Sodhi is so obscure that in April 2011, both houses of Arizona's legislature passed a bill that would have removed Mr Sodhi's name from the state's 9/11 memorial, to sell it for scrap metal. A voracious protest led by the Sikh American Legal Defense and Education Fund flooded Arizona Governor Jan Brewer's office with 7500 letters in less than three days, forcing her to meet with the Sodhi family and veto the bill. However, Mr Sodhi was not an anonymous casualty of 9/11 to Sikh Americans. He represented so much more to us—our vulnerability, our visibility, our version of the American Dream, and how paralyzingly fragile that dream actually is for so many of us. In Balbir Singh Sodhi's American experience, many Sikh Americans saw their American dream becoming a nightmare.

When we look back and assess the larger impact of the historic, grassroots, political mobilizations by Sikh Americans after 9/11 and then Oak Creek, this incident is instructive. It is not only Mr Sodhi, and what his murder represented to Sikhs and many other brown Americans, that is missing from our national remembrance of that tragic, fearful time. Almost entirely absent from the public history of that seminal period in our collective national history is the overlooked fact that, in the immediate aftermath of 9/11, brown Americans endured the greatest epidemic of hate crimes in this nation's modern history. But this is never part of the story we remember when the nation looks back on 9/11. In those retrospectives of our supposed 'collective past', the victims of tragedy are usually white.

For one Sikh American, the national hate crime epidemic began just moments after the twin towers fell. Walking to work, a young Sikh American man was yelled at, cursed, and chased by several men—who somehow identified him as responsible for the attack that had just occurred. The screaming, cursing group forced the young Sikh American to flee in terror, ducking into a subway station to hide, where—in fear for his life—he removed his turban. Yards away, another Sikh American, this one a young physician, helped save the lives of his fellow Americans by setting up and manning the first triage station at ground zero. This brave doctor risked his health near the base of the collapsed buildings to save others, while simultaneously risking attack from misguided bigots.

Case Study: Muslim Americans at the Intersection of Racial and Religious Bigotry

... The wave of hate crimes affecting Sikh Americans was exacerbated by the irresponsibility of the US media. Within minutes of the first plane hitting the

World Trade Center, images of Osama bin Laden proliferated on television, despite the fact that no possible connection could be shown at the time or for quite some time afterwards. Later in the day, a press conference from Afghanistan showed a Taliban leader denying any involvement in the attacks. Both bin Laden and the leaders of the Taliban wear turbans, keep long beards, and have swarthy complexions—the prototypical image of a terrorist in the western media.

The salience, weight, and lasting power of those first images broadcast by the media subsequently had a devastating effect on the lives of the nation's half million Sikh Americans. This fact became all the more poignant and ironic, as it became evident that not one of the hijackers and their suspected accomplices wore a turban. Nonetheless, the violent hatred against Sikh Americans did not abate in any appreciable way for months.

Sikh Americans continued to receive verbal and gestured threats, were spat upon, had garbage thrown at them, had their homes and property violated, were run off the road and tailgated, were shot at with guns, stabbed with knives, and suffered numerous cases of arson, firebombings, beatings, and murder. It was not until weeks later that scattered reports began to appear in the media, after the hard work and outreach of Sikh American community activists, that the vast majority of people wearing turbans in the USA were actually Sikhs. Mainstream media sources were predictably late in picking up this vital and readily available information, but it did little to displace the image of a terrorist already firmly implanted in the American psyche by the media, and the State through its arbitrary scrutiny of 'apparently Muslim' individuals.

The failures of the media are well encapsulated in a comparison of the stories of two Sikh Americans: Sher Singh and Mr Sodhi. Despite the national significance of Mr Sodhi's murder, almost none of the national television reports or print media articles about his death included a photo of him. This fact was made even more appalling by the fact Mr Sodhi was killed because of his appearance. His face was never shown and he was never truly humanized, thus preventing most Americans from actually imagining him as a person, tragically murdered because of the way he looked. In fact, the murder was treated as a minor story by the media—certainly far less newsworthy than if Mr Sodhi had been a white man murdered for similar hateful reasons.

The lone image of a Sikh American the national media did project throughout the country was that of Sher Singh, a Sikh American commuter who was removed from a train by authorities in Providence, Rhode Island, because he looked 'suspicious'. Rumors that a possible terrorist had been arrested spread rapidly, and national media outlets swiftly reported the story. In doing so, they failed in their journalistic duty to investigate the nature of the incident before reporting it as a possible terrorism-related arrest. The verity that the bearded, turban-wearing man could be an innocent victim of racist hysteria never occurred to the members of the media reporting the incident, as the assumption of innocence seems to have been dwarfed in import by the exterior of the Sikh American man.

Almost immediately, video clips of a young man with a green turban and a long, flowing beard being led away in handcuffs inundated the nation's airwaves, doing incalculable damage to the nation's perceptions of visibly observant Sikh

Americans. CNN, Fox, the Associated Press, and others carried video and still photos of Sher Singh being arrested. They, however, gave *far* less attention to the subsequent, critical information that he was released and charged only with a misdemeanor for carrying a *kirpan*—a small, ceremonial sword that is a Sikh religious article of faith. That charge was later dropped because of the obvious religious nature of the *kirpan*. Nonetheless, Sher Singh's image flooded the airwaves and internet over the next several days, long after it had been established that he had nothing to do with the terrorist attacks.

Media misrepresentations of Sher Singh's arrest added further animus to the prejudice already being engendered against bearded and turbaned individuals by media outlets' concurrent bombardment of images of bin Laden and the Taliban. The images on television neatly fit the stereotype of a terrorist the western media had fabricated. By showing Sher Singh being led away in handcuffs, and mentioning that the train was stopped because of the presence of 'suspicious' individuals, the media managed to firmly associate Sher Singh—and those who looked like him—with the terrorist attacks. The bias evident in this repellent episode is blatant racial and religious profiling. Still, the media never apologized, nor did it seek to correct the misleading and dangerous impressions they had created by repeatedly showing images of Sher Singh in close juxtaposition with those of bin Laden and the Taliban.

In fact, the media missed the real story, that of illegal profiling by police in arresting an innocent American, who was singled out for arbitrary scrutiny, harassment, and detention by the state because of his racial and religious uniforms. Further substantiating the bias informing the entire episode, it is unimaginable that a story about a man arrested on a minor weapons charge could have risen to the level of national prominence it assumed if the accused had not been wearing a turban and beard. Yet, this seminal issue has—not surprisingly—been ignored.

While the President, religious leaders, and members of the media reiterated the fact that Muslim, Arab, and Sikh Americans are part of the national mosaic, the rhetoric did not match reality. Since 9/11 non-Christian Asian Americans have repeatedly been singled out because of their religious affiliation as well as their race, demonstrating that they still are not part of the 'mainstream'. Almost without exception, media stories dealing with the post-attack hate crime epidemic were tokenistic in their positioning. Unlike other stories which detailed 'The American Experience', these stories were reported as outside the purview of the mainstream of society. The direct implication was that those in these stories were not part of that mainstream, but were marginal figures in society. Their problems were 'minority' issues, not issues for all Americans to ponder.

'Post-Racial' Life in Sikh America

So has anything changed in the wake of the Oak Creek Massacre, an armed invasion of a sacred site that has no real parallel in post-World War II US history? Less than a month after the Oak Creek Massacre, the small Indiana town of Garrett was the site of a chillingly representative illustration of the social climate

which today confronts Sikh Americans—and others viewed as 'apparently Muslim'—in much of the USA. About 250 miles from the site of the massacre, the sitting mayor of Garrett, Tonya Hoeffel, committed an act of vandalism fed by and exhibiting open religio-racial hostility, and undergirded by a sense of entrenched privilege and superiority.

In the wake of the nearby *gurdwara* massacre, Kulwinder Singh Nagra placed pamphlets about his faith on the counter of his convenience store, hoping to diminish the vast ignorance about Sikhs where he lived: 'I just wanted to let people know who I am.... After 9/11, there was a lot of misunderstanding'.

On August 28, Mayor Tonya Hoeffel was caught on surveillance video entering Mr Nagra's business, purchasing a soft drink, then walking away from the counter where the pamphlets were placed. She then returned to the counter, 'grabbed the small stack of pamphlets, took them outside and threw them into a trash bin'. When Mr Nagra confronted her about what she had done, he received the following response: 'She said, "It's against my beliefs." ... She said, "This is against Christianity".'

Obviously receiving wise counsel in the interim, Ms Hoeffel later claimed that 'she disposed of the pamphlets because of a lack of personal interest, not as a statement about the religion'. Her rapidly changing, obviously disingenuous account of the incident eventually evolved into the equally implausible: 'I just grabbed what was there. I just decided I didn't want it.'

She has since apologized to Mr Nagra, meeting with him and his business partners, along with a member of the city council. For his part, Mr Nagra explained, 'the Sikh religion teaches forgiveness and the issue was resolved for him when Hoeffel apologized'.

Despite the apparently amicable resolution of the matter, it demands further interrogation because of what it reveals about the state of our nation. This jarring event mirrors the recent personal experiences of the overwhelming majority of the nation's Sikh Americans as well as members of many other non-white, non-Christian communities. Throughout the nation, many—probably most—have experienced some level of hate crime in the past several years or know someone who has suffered such an assault. Without a doubt, in the years since 9/11, hate violence has become completely normalized in the experiences of Sikh Americans and others who are 'apparently Muslim'.

The low-level hate crime by the mayor of Garrett, Indiana, not only illuminates the level and constancy of the acerbic hatred Sikh Americans continue to confront on a daily basis, but it sets a very dangerous precedent. Simran Jeet Singh and Savneet Singh write:

> We must demand more from our elected officials and hold them accountable for their actions ... because our elected officials maintain enormous influence.... We also hold them to a higher standard. It is unacceptable for any of our political representatives to act with intolerance and bigotry.... This divisive rhetoric will continue to fragment this nation until we take ownership and begin calling out our elected officials to stop dividing and start uniting.

... The attempt to remove Balbir Singh Sodhi from the 9/11 memorial represented an effort by the State to obliterate his memory, simultaneously brushing aside his family's and the national Sikh American's community's aching remembrance of his racist murder. It was a symbolic erasure of Sikh American pain, presence, and our sense of belonging within the national fabric that is all too common, even in the wake of Oak Creek. This is nothing new in our recurrent national efforts to forget our sordid, blood-drenched history of white supremacy, as the long-suppressed histories of African and Asian Americans, American Indians, and Chicano/Latinos illustrate in graphic detail. After all, we live in a time when the same state of Arizona can ban the teaching of truth (history) under the guise of preventing 'resentment toward a race or class of people'....

In fact, we are running from the truth as a society once again. As alluded to above, political leaders in Arizona have attacked the teaching of historical truth by passing laws attacking Ethnic Studies programs. Our cowardly, destructive retreat from our past is now matched by an equally disturbing, similarly politicized, distortion of the science curriculum within our schools. These trends bode ill for our nation's economic future in an increasingly complex and interdependent world economy.

As the iconic historian Howard Zinn explained:

> History is important. If you don't know history it is as if you were born yesterday. And if you were born yesterday, anybody up there in a position of power can tell you anything, and you have no way of checking up on it.
>
> A historically illiterate people has little hope of ending the centuries of bigotry toward racialized, religious minorities that has characterized our past and coarsened the fabric of our present. If we stop running from the truth, it may just save us.

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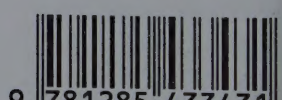
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